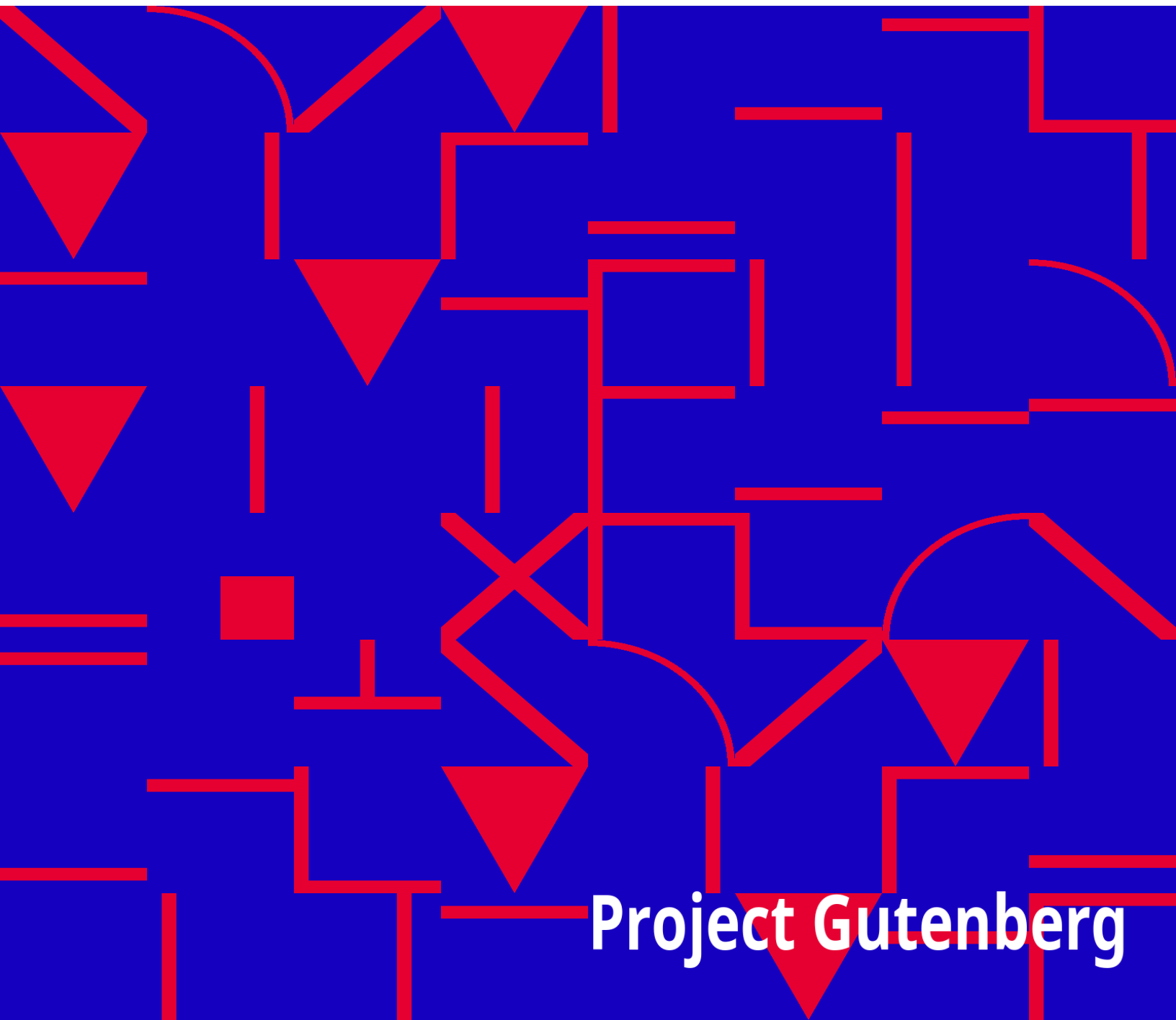


Minstrelsy of the Scottish border, Volume 1

Walter Scott



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OF THE SCOTTISH BORDER, VOLUME 1 ***

MINISTRELSY OF THE SCOTTISH BORDER:

CONSISTING OF HISTORICAL AND ROMANTIC
BALLADS, COLLECTED IN THE SOUTHERN COUNTIES
OF SCOTLAND; WITH A FEW OF MODERN DATE,
FOUNDED UPON LOCAL TRADITION.

IN THREE VOLUMES.

VOL. I

The songs, to savage virtue dear,
That won of yore the public ear,
Ere Polity, sedate and sage,
Had quench'd the fires of feudal rage.
—WARTON.

1806.

TO HIS GRACE,
HENRY, *DUKE OF BUCCLEUCH*, &c.&c.&c.
THESE TALES, WHICH IN ELDER TIMES HAVE CELEBRATED
THE PROWESS, AND CHEERED THE HALLS, OF *HIS GALLANT*
ANCESTORS, ARE RESPECTFULLY INSCRIBED

BY

HIS GRACE'S MUCH OBLIGED AND MOST HUMBLE SERVANT,

WALTER SCOTT.

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INTRODUCTION.

From the remote period; when the Roman province was contracted by the ramparts of Severus, until the union of the kingdoms, the borders of Scotland formed the stage, upon which were presented the most memorable conflicts of two gallant nations. The inhabitants, at the commencement of this aera, formed the first wave of the torrent which assaulted, and finally overwhelmed, the barriers of the Roman power in Britain. The subsequent events, in which they were engaged, tended little to diminish their military hardihood, or to reconcile them to a more civilized state of society. We have no occasion to trace the state of the borders during the long and obscure period of Scottish history, which preceded the accession of the Stuart family. To illustrate a few ballads,^[ii] the earliest of which is hardly coeval with James V. such an enquiry would be equally difficult and vain. If we may trust the Welch bards, in their account of the wars betwixt the Saxons and Danes of Deira and the Cumraig, imagination can hardly form any idea of conflicts more desperate, than were ^[570] maintained, on the borders, between the ancient British and their Teutonic invaders. Thus, the Gododin describes the waste and devastation of mutual havoc, in colours so glowing, as strongly to recall the words of Tacitus; "*Et ubi solitudinem faciunt, pacem appellant*"^[1]."

At a later period, the Saxon families, who fled from the exterminating sword of the Conqueror, with many of the Normans themselves, whom discontent and intestine feuds had driven into exile,^[iii] began to rise into eminence upon the Scottish borders. They brought with them arts, both of peace and of war, unknown in Scotland; and, among their descendants, we soon number the most powerful border chiefs. Such, ^[1249] during the reign of the last Alexander, were Patrick, earl of March, and Lord Soulis, renowned in tradition; and such were, also, the powerful Comyns, who early acquired the principal sway upon the Scottish marches. ^[1300]In the civil wars betwixt Bruce and Baliol, all those powerful chieftains espoused the unsuccessful party. They were forfeited and exiled; and upon their ruins

was founded the formidable house of Douglas. The borders, from sea to sea, were now at the devotion of a succession of mighty chiefs, whose exorbitant power threatened to place a new dynasty upon the Scottish throne. It is not my intention to trace the dazzling career of this race of heroes, whose exploits were alike formidable to the English, and to their sovereign.

The sun of Douglas set in blood. The murders of the sixth earl, and his brother, in the castle of Edinburgh, were followed by that of their successor, poignarded at Stirling by the hand of^[iv] his prince. His brother, Earl James, appears neither to have possessed the abilities nor the ambition of his ancestors. He drew, indeed, against his prince, the formidable sword of Douglas, but with a timid and hesitating hand. Procrastination ruined his cause; and he was deserted, at Abercorn, by the knight of Cadyow, chief of the Hamiltons, and by his most active adherents, after they had ineffectually exhorted him to commit ^[1453]his fate to the issue of a battle. The border chiefs, who longed for independence, shewed little ^[1455]inclination to follow the declining fortunes of Douglas. On the contrary, the most powerful clans engaged and defeated him, at Arkinholme, in Annandale, when, after a short residence in England, he again endeavoured to gain a footing in his native country^[2]. The spoils of Douglas were liberally distributed among his conquerors, and royal grants of his forfeited domains effectually interested them in excluding his return. An^[1457] attempt, on the east borders, by "*the Percy and the Douglas, both together*," was equally unsuccessful.^[v] The earl, grown old in exile, longed once more to see his native country, and vowed, that, ^[1483]upon Saint Magdalen's day, he would deposit his offering on the high altar at Lochmaben.—Accompanied by the banished earl of Albany, with his usual ill fortune, he entered Scotland.—The borderers assembled to oppose him, and he suffered a final defeat at Burnswark, in Dumfries-shire. The aged earl was taken in the fight, by a son of Kirkpatrick of Closeburn, one of his own vassals. A grant of lands had been offered for his person: "Carry me to the king!" said Douglas to Kirkpatrick: "thou art well entitled to profit by my misfortune; for thou wast true to me,^[vi] while I was true to myself." The young man wept bitterly, and offered to fly with the earl into England. But Douglas, weary of exile, refused his proffered liberty, and only requested, that Kirkpatrick would not deliver him to the king, till he had secured his own reward^[3]. Kirkpatrick

did more: [vii] he stipulated for the personal safety of his old master. His generous intercession prevailed; and the last of the Douglasses was permitted to die, in monastic seclusion, in the abbey of Lindores.

After the fall of the house of Douglas, no one chieftain appears to have enjoyed the same extensive supremacy over the Scottish borders. The various barons, who had partaken of the spoil, combined in resisting a succession of uncontrouled domination. The earl of Angus alone seems to have taken rapid steps in the same course of ambition which had been pursued by his kinsmen and rivals, the earls of Douglas. Archibald, sixth earl of Angus, called *Bell-the-Cat*, was, at once, warden of the east and middle marches, Lord of Liddisdale and Jedwood forest, and possessed of the strong castles of Douglas, Hermitage, and Tantallon. Highly esteemed by the ancient nobility, a faction which he headed shook the throne of the feeble James III., whose person they restrained, and whose minions they led to[viii] an ignominious death. The king failed not to shew his sense of these insults, though unable effectually to avenge them. This hastened his fate: and the field of Bannockburn, once the scene of a more glorious conflict, beheld the combined chieftains of the border counties arrayed against their sovereign, under the banners of his own son. The king was supported by almost all the barons of the north; but the tumultuous ranks of the Highlanders were ill able to endure the steady and rapid charge of the men of Annandale and Liddisdale, who bare spears, two ells longer than were used by the rest of their countrymen. The yells, with which they accompanied their onset, caused the heart of James to quail within him. He deserted his host, [1488]and fled towards Stirling; but, falling from his horse, he was murdered by the pursuers.

James IV., a monarch of a vigorous and energetic character, was well aware of the danger which his ancestors had experienced, from the preponderance of one overgrown family. He is supposed to have smiled internally, when the border and highland champions bled and died in the savage sports of chivalry, by which his nuptials[ix] were solemnized. Upon the waxing power of Angus he kept a wary eye; and, embracing the occasion of a casual slaughter, he compelled that earl, and his son, to exchange the lordship of Liddisdale and the castle of Hermitage, for the castle and lordship of Bothwell^[4]. By this policy, he prevented the house of Angus, mighty as it

was, from rising to the [x] height, whence the elder branch of their family had been hurled.

Nor did James fail in affording his subjects on the marches marks of his royal justice and protection. [1510]The clan of Turnbull having been guilty of unbounded excesses, the king came suddenly to Jedburgh, by a night march, and executed the most rigid justice upon the astonished offenders. Their submission was made with singular solemnity. Two hundred of the tribe met the king, at the water of Rule, holding in their hands the naked swords, with which they had perpetrated their crimes, and having each around his neck the halter which he had well merited. A few were capitally punished, many imprisoned, and the rest dismissed, after they had given hostages for their future peaceable demeanour.—*Holinshed's Chronicle, Lesly*.

The hopes of Scotland, excited by the prudent and spirited conduct of James, were doomed to a sudden and fatal reverse. Why should we recapitulate the painful tale of the defeat and death of a high-spirited prince? Prudence, policy, the prodigies of superstition, and the advice of his most[xi] experienced counsellors, were alike unable to subdue in James the blazing zeal of romantic chivalry. The monarch, and the flower of his nobles, [1513]precipitately rushed to the fatal field of Flodden, whence they were never to return.

The minority of James V. presents a melancholy scene. Scotland, through all its extent, felt the truth of the adage, "that the country is hapless, whose prince is a child." But the border counties, exposed from their situation to the incursions of the English, deprived of many of their most gallant chiefs, and harassed by the intestine struggles of the survivors, were reduced to a wilderness, inhabited only by the beasts of the field, and by a few more brutal warriors. Lord Home, the chamberlain and favourite of James IV., leagued with the Earl of Angus, who married the widow of his sovereign, held, for a time, the chief sway upon the east border. Albany, the regent of the kingdom, bred in the French court, and more accustomed to wield the pen than the sword, feebly endeavoured to controul a lawless nobility, to whom his manners appeared strange, and his person[1516] despicable. It was in vain that he inveigled[xii] the Lord Home to Edinburgh, where he was tried and executed. This example of justice, or severity, only irritated the kinsmen and followers of the deceased baron: for though, in other respects,

not more sanguinary than the rest of a barbarous nation, the borderers never dismissed from their memory a deadly feud, till blood for blood had been exacted, to the uttermost drachm^[5]. Of this, the fate of Anthony d'Arcey, Seigneur de la Bastie, affords a melancholy example. This gallant French cavalier was appointed warden of the east marches by Albany, at his first disgraceful retreat to France. Though De la Bastie was an able statesman, and a true son of chivalry, the choice of the regent was nevertheless unhappy. The new warden was a foreigner, placed in the office of Lord Home, as^[1517] the delegate of the very man, who had brought that baron to the scaffold. A stratagem, contrived by ^[xiii] Home of Wedderburn, who burned to avenge the death of his chief, drew De la Bastie towards Langton, in the Merse. Here he found himself surrounded by his enemies. In attempting, by the speed of his horse, to gain the castle of Dunbar, the warden plunged into a morass, where he was overtaken and cruelly butchered. Wedderburn himself cut off his head; and, in savage triumph, knitted it to his saddle-bow by the long flowing hair, which had been admired by the dames of France.—*Pitscottie, Edit.* 1728, p. 130. *Pinkerton's History of Scotland*, Vol. II. p. 169^[6].

The Earl of Arran, head of the house of Hamilton was appointed to succeed De la Bastie in his perilous office. But the Douglasses, the Homes, and the Kerrs, proved too strong for him upon the ^[1520] border. He was routed by these clans, at Kelso, and afterwards in a sharp skirmish, fought betwixt^[xiv] his faction and that of Angus, in the high-street of the metropolis^[7].

The return of the regent was followed by the banishment of Angus, and by a desultory warfare^[xv] with England, carried on with mutual incursions. Two gallant armies, levied by Albany, were dismissed without any exploit worthy notice, while Surrey, at the head of ten thousand cavalry, burned Jedburgh, and laid waste all Tiviotdale. This general pays a splendid tribute to the gallantry of the border chiefs. He terms them "the boldest ^[1523]men, and the hottest, that ever I saw any nation^[8]."

Disgraced and detested, Albany bade adieu to Scotland for ever. The queen-mother, and the Earl of Arran, for some time swayed the kingdom. But their power was despised on the borders, where Angus, though banished, had many friends. Scot of Buccleuch even appropriated to himself domains,

belonging to the queen, worth 4000 merks yearly; being probably the castle of Newark and her jointure lands in Ettrick [xvi] forest^[9].—

This chief, with Kerr of Cessford, was committed to ward, from which they escaped, to join [1525]the party of the exiled Angus. Leagued with these, and other border chiefs, Angus effected his return to Scotland, where he shortly after acquired possession of the supreme power, and of the person of the youthful king. "The ancient power of the Douglasses," says the accurate historian, whom I have so often referred to, "seemed to have revived; and, after a slumber of near a century, again to threaten destruction to the Scottish monarchy."—*Pinkerton*, Vol. 11, p. 277.

In fact, the time now returned, when no one durst strive with a Douglas, or with his follower. For, although Angus used the outward pageant of conducting the king around the country, for punishing thieves and traitors, "yet," says Pitscottie, "none were found greater than were in his own company." The high spirit of the young king was [xvii] galled by the ignominious restraint under which he found himself; and, in a progress to the border for repressing the Armstrongs, he probably gave such signs of dissatisfaction, as excited the [1526] laird of Buccleuch to attempt his rescue.

This powerful baron was the chief of a hardy clan, inhabiting Ettrick forest, Eskdale, Ewsdale, the higher part of Tiviotdale, and a portion of Liddesdale. In this warlike district he easily levied a thousand horse, comprehending a large body of Elliots, Armstrongs, and other broken clans, over whom the laird of Buccleuch exercised an extensive authority; being termed, by Lord Dacre, "chief maintainer of all misguided men on the borders of Scotland."—*Letter to Wolsey*, July 18. 1528. The Earl of Angus, with his reluctant ward, had slept at Melrose; and the clans of Home and Kerr, under the Lord Home, and the barons of Cessford, and Fairnihurst, had taken their leave of the king, when, in the gray of the morning, Buccleuch and his band of cavalry were discovered, hanging, like a thunder-cloud, upon the neighbouring hill of Haliden^[10]. A herald was sent to demand his [xviii] purpose, and to charge him to retire. To the first point he answered, that he came to shew his clan to the king, according to the custom of the borders; to the second, that he knew the king's mind better than Angus.—When this haughty answer was reported to the earl, "Sir," said he to the king, "yonder is Buccleuch, with the thieves of Annandale and Liddesdale, to bar your

grace's passage. I vow to God they shall either fight or flee. Your grace shall tarry on this hillock, with my brother George; and I will either clear your road of yonder banditti, or die in the attempt." The earl, with these words, alighted, and hastened to the charge; while the Earl of Lennox (at whose instigation Buccleuch made the attempt), remained with the king, an inactive spectator. Buccleuch and his followers likewise dismounted, and received the assailants with a dreadful shout, and a shower of lances. The encounter was fierce and obstinate;^[ixx] but the Homes and Kerrs, returning at the noise of battle, bore down and dispersed the left wing of Buccleuch's little army. The hired banditti fled on all sides; but the chief himself, surrounded by his clan, fought desperately in the retreat. The laird of Cessford, chief of the Roxburgh Kerrs, pursued the chace fiercely; till, at the bottom of a steep path, Elliot of Stobs, a follower of Buccleuch, turned, and slew him with a stroke of his lance. When Cessford fell, the pursuit ceased. But his death, with those of Buccleuch's friends, who fell in the action, to the number of eighty, occasioned a deadly feud betwixt the names of Scott and Kerr, which cost much blood upon the marches^[11].—See *Pitscottie*, *Lesly*, and *Godscroft*.

[1528]Stratagem at length effected what force had been unable to accomplish; and the king, emancipated from the iron tutelage of Angus, made the^[xx] first use of his authority, by banishing from the kingdom his late lieutenant, and the whole race of Douglas. This command was not enforced without difficulty; for the power of Angus was strongly rooted in the east border, where he possessed the castle of Tantallon, and the hearts of the Homes and Kerrs. The former, whose strength was proverbial^[12], defied a royal army; and the latter, at the Pass of Pease, baffled the Earl of Argyle's attempts to enter the Merse, as lieutenant of his sovereign. On this occasion, the borderers regarded with wonder and contempt the barbarous array, and rude equipage, of their northern countrymen Godscroft has preserved the beginning of a scoffing rhyme, made upon this occasion:

The Earl of Argyle is bound to ride
From the border of Edgebucklin brae^[13];
And all his habergeons him beside,
Each man upon a sonk of strae.

They made their vow that they would slay—

Godscroft, v. 2. p. 104. Ed. 1743.

[xxi]

The pertinacious opposition of Angus to his doom irritated to the extreme the fiery temper of James, and he swore, in his wrath, that a Douglas should never serve him; an oath which he kept in circumstances under which the spirit of chivalry, which he worshipped^[14], should have taught him other feelings.

While these transactions, by which the fate of Scotland was influenced, were passing upon the eastern border, the Lord Maxwell seems to have^[xxii] exercised a most uncontroled domination in Dumfries-shire. Even the power of the Earl of Angus was exerted in vain, against the banditti of Liddesdale, protected and bucklered by this mighty chief. Repeated complaints are made by the English residents, of the devastation occasioned by the depredations of the Elliots, Scotts, and Armstrongs, connived at, and encouraged, by Maxwell, ^[1528]Buccleuch, and Fairnihurst. At a convention of border commissioners, it was agreed, that the king of England, in case the excesses of the Liddesdale freebooters were not duly redressed, should be at liberty to issue letters of reprisal to his injured subjects, granting "power to invade the said inhabitants of Liddesdale, to their slaughters, burning, heirships, robbing, reifing, despoiling and destruction, and so to continue the same at his^[xxiii] grace's pleasure," till the attempts of the inhabitants were fully atoned for. This impolitic expedient, by which the Scottish prince, unable to execute justice on his turbulent subjects, committed to a rival sovereign the power of unlimited chastisement, was a principal cause of the savage state of the borders. For the inhabitants, finding that the sword of revenge was substituted for that of justice, were loosened from their attachment to Scotland, and boldly threatened to carry on their depredations, in spite of the efforts of both kingdoms.

James V., however, was not backward in using more honourable expedients to quell the banditti ^[1529]on the borders. The imprisonment of their chiefs, and a noted expedition, in which many of the principal thieves were executed (see introduction to the ballad, called *Johnie Armstrong*),

produced such good effects, that, according to an ancient picturesque history, "thereafter there was great peace and rest a long time, where through the king had great profit; for he had ten thousand sheep going in the Ettrick forest, in keeping by Andrew Bell, who made the king so good count of them, as [xxiv] they had gone in the hounds of Fife." *Pitscottie*, p. 153.

A breach with England interrupted the tranquillity [1533] of the borders. The Earl of Northumberland, a formidable name to Scotland, ravaged the middle marches, and burned Branxholm, the abode of Buccleuch, the hereditary enemy of the English name. Buccleuch, with the barons of Cessford and Fairniirst, retaliated by a raid into England, [1533] where they acquired much spoil. On the east march, Fowberry was destroyed by the Scots, and Dunglass castle by D'Arcey, and the banished Angus.

A short peace was quickly followed by another war, which proved fatal to Scotland, and to her king. In the battle of Haddenrig, the English, and the exiled Douglasses, were defeated by the Lords Huntly and Home; but this was a transient gleam of success. Kelso was burned, and the borders [1542] ravaged, by the Duke of Norfolk; and finally, the rout of Solway moss, in which ten thousand men, the flower of the Scottish army, were dispersed and defeated by a band of five hundred English cavalry, or rather by their own dissensions, broke the proud [xxv] heart of James; a death, more painful a hundred fold than was met by his father in the field of Flodden.

When the strength of the Scottish army had sunk, without wounds, and without renown, the principal chiefs were led captive into England.—Among these was the Lord Maxwell, who was compelled, by the menaces of Henry, to swear allegiance to the English monarch. There is still in existence the spirited instrument of vindication, by which he renounces his connection with England, and the honours and estates which had been proffered him, as the price of treason to his infant sovereign. From various bonds of manrent, it appears, that all the western marches were swayed [1543] by this powerful chieftain. With Maxwell, and the other captives, returned to Scotland the banished Earl of Angus, and his brother, Sir George Douglas, after a banishment of fifteen years. This powerful family regained at least a part of their influence upon the borders; and, grateful to the kingdom which had afforded them protection during their exile, became chiefs of the English faction in Scotland, whose object it was to urge a

contract of^[xxvi] marriage betwixt the young queen and the heir apparent of England. The impetuosity of Henry, the ancient hatred betwixt the nations, and the wavering temper of the governor, Arran, prevented the success of this measure. The wrath of the disappointed monarch discharged itself in a wide-wasting and furious invasion of the east marches, conducted by the Earl of Hertford. Seton, Home, and Buccleuch, hanging on the mountains of Lammermoor, saw, with ineffectual regret, the fertile plains of Merse and Lothian, and the metropolis itself, reduced to a smoking desert. Hertford had scarcely retreated with the main army, when Evers and Latoun laid waste the whole vale of Tiviot, with a ferocity of devastation, hitherto unheard of^[15]. The same "lion mode of wooing," being pursued during the ^[xxvii] minority of Edward VI., totally alienated the affections even of those Scots who were most attached to the English interest. The Earl of Angus, in particular, united himself to the governor, and gave the English a sharp defeat at Ancram moor, ^[1545]a particular account of which action is subjoined to the ballad, entitled, "*The Eve of St. John*." Even the fatal defeat at Pinky, which at once renewed the carnage of Flodden, and the disgrace of Solway, served to prejudice the cause of the victors. The borders saw, with dread and detestation, the ruinous fortress of Roxburgh once more receive an English garrison, and the widow of Lord Home driven from his baronial castle, to ^[1547]make room for the "*Southern Reivers*." Many of the barons made a reluctant submission to Somerset; but those of the higher part of the marches remained among their mountains, meditating revenge. A similar incursion was made on the west borders by Lord Wharton, who, with five thousand men, ravaged and overran Annandale, Nithsdale, and Galloway, compelling the inhabitants to receive the yoke of England^[16].

^[xxviii]

The arrival of French auxiliaries, and of French gold, rendered vain the splendid successes of the English. One by one, the fortresses which they occupied were recovered by force, or by stratagem; and the vindictive cruelty of the Scottish borderers made dreadful retaliation for the injuries they had sustained. An idea may be conceived of ^[xxix] this horrible warfare, from the memoirs of Beaugé, a French officer, serving in Scotland.

The castle of Fairnihurst, situated about three miles above Jedburgh, had been taken and garrisoned by the English. The commander and his ^[xxx]

followers are accused of such excesses of lust and cruelty "as would," says Beaugé, "have made to tremble the most savage moor in Africa." A band of Frenchmen, with the laird of Fairnihurst, and [1549] his borderers, assaulted this fortress. The English archers showered their arrows down the steep ascent, leading to the castle, and from the outer wall by which it was surrounded. A vigorous escalade, however, gained the base court, and the sharp fire of the French arquebusiers drove the bowmen into the square keep, or dungeon, of the fortress. Here the English defended themselves, till a breach in the wall was made by mining. Through this hole the commandant crept forth; and, surrendering himself to De la Mothe-rouge, implored protection from the vengeance of the borderers. But a Scottish marc-hman, eyeing in the captive the ravisher of his wife, approached him ere the French officer could guess his intention, and, at one blow, carried his head four paces from the trunk. Above a hundred Scots rushed to wash their hands in the blood of their oppressor, bandied about the severed head, and expressed their joy in such shouts, as if they had stormed the city of London. The prisoners, who [xxx] fell into their merciless hands, were put to death, after their eyes had been torn out; the victors contending who should display the greatest address in severing their legs and arms, before inflicting a mortal wound. When their own prisoners were slain, the Scottish, with an unextinguishable thirst for blood, purchased those of the French; parting willingly with their very arms, in exchange for an English captive. "I myself," says Beaugé, with military sang-froid, "I myself sold them a prisoner for a small horse. They laid him down upon the ground, galloped over him with their lances in rest, and wounded him as they passed. When slain, they cut his body in pieces, and bore the mangled gobbets, in triumph, on the points of their spears. I cannot greatly praise the Scottish for this practice. But the truth is, that the English tyrannized over the borders in a most barbarous manner; and I think it was but fair to repay them, according to the proverb, in their own coin."—

Campagnes de Beaugé.

A peace, in 1551, put an end to this war; the most destructive which, for a length of time, had ravaged Scotland. Some attention was paid by the governor and queen-mother, to the administration of justice on the border;

and the chieftains, who had distinguished themselves during the late troubles, received the honour of knighthood^[17]. [1522]At this time, also, the Debateable Land, a tract of country, situated betwixt the Esk and Sarke, claimed by both kingdoms, was divided by royal commissioners, appointed by the two crowns.—By their award, this land of contention was separated by a line, drawn from east to west, betwixt the rivers. The upper half was adjudged to Scotland, and the more eastern part to England. Yet the Debateable Land continued long after to be the residence of the thieves and banditti, to whom its dubious state had afforded a desirable refuge^[18].

[xxxii]

In 1557, a new war broke out, in which rencounters on the borders were, as usual, numerous, and with varied success. In some of these, the too famous Bothwell is said to have given proofs of his courage, which was at other times very questionable^[19]. About this time the Scottish borderers seem to have acquired some ascendancy over their southern neighbours.—*Strype*, Vol. III. p. 437—In 1559, peace was again restored.

The flame of reformation, long stifled in Scotland, now burst forth, with the violence of a volcanic eruption. The siege of Leith was commenced, by the combined forces of the Congregation and of England. The borderers cared little about speculative points of religion; but [xxxiii] they shewed themselves much interested in the treasures which passed through their country, for payment of the English forces at Edinburgh. Much alarm was excited, lest the marchers should intercept these weighty protestant arguments; and it was, probably, by voluntarily imparting a share in them to Lord Home, that he became a sudden convert to the new faith^[20].

Upon the arrival of the ill-fated Mary in her native country, she found the borders in a state of great disorder. The exertions of her natural brother (afterwards the famous regent, Murray) were necessary to restore some degree of tranquillity. He marched to Jedburgh, executed twenty or thirty of the transgressors, burned many houses, and brought a number of prisoners to Edinburgh. The chieftains of the principal clans were also obliged to grant pledges for their future obedience. A noted convention (for the particulars of which, see [xxxiv] *Border Laws*, p. 84.) adopted various regulations, which were attended with great advantage to the marches^[21].

The unhappy match, betwixt Henry Darnley and his sovereign, led to new dissensions on the border. The Homes, Kerrs, and other east marchers, hastened to support the queen, against Murray, Chatelherault, and other nobles, whom her marriage had offended. For the same purpose the Johnstones, Jardines, and clans of Annandale entered into bonds of confederacy. But Liddesdale was under the influence of England; in so much, that Randolph, the English minister, proposed to hire a band of *strapping Elliots*, to find Home business at home, in looking after his corn and cattle.—*Keith*, p. 265. *App.* 133.

This storm was hardly overblown, when Bothwell received the commission of lieutenant upon the borders; but, as void of parts as of principle, he could not even recover to the queen's allegiance his own domains in [xxxv] Liddesdale.—*Keith*, *App.* 165. The queen herself advanced to the borders, to remedy this evil, and to hold courts at Jedburgh. Bothwell was already in Liddesdale, where he had been severely wounded, in an attempt to seize John Elliot, of the Parke, a desperate freebooter; and happy had it been for Mary, had the dagger of the moss-trooper struck more home. Bothwell being transported to his castle of Hermitage, the queen, upon hearing the tidings, hastened thither, A dangerous morass, still called the *Queen's Mire*^[22], is pointed out by tradition as the spot where the lovely Mary, and her white palfrey, were in danger of perishing. The distance betwixt Hermitage and Jedburgh, by the way of Hawick, is nearly twenty-four English [xxxvi] miles. The queen went and returned the same day. Whether she visited a wounded subject, or a lover in danger, has been warmly disputed in our latter days.

To the death of Henry Darnley, it is said, some of the border lords were privy. But the subsequent marriage, betwixt the queen and Bothwell, alienated from her the affections of the chieftains of the marches, most of whom aided the association of the insurgent barons. A few gentlemen of the Merse, however, joined the army which Mary brought to Carberry-hill. But no one was willing to fight for the detested Bothwell, nor did Bothwell himself shew any inclination to put his person in jeopardy. The result to Mary was a rigorous captivity in Lochleven castle; and the name of Bothwell scarcely again pollutes the page of Scottish history.

The distress of a beautiful and afflicted princess softened the hearts of her subjects; and, when she escaped from her severe captivity, the most powerful barons in Scotland crowded around her standard. Among these were many of the west border men, under the lords Maxwell [xxxvii] and Herries^[23]. But the defeat at Langside was a death-blow to her interest in Scotland.

The death of the regent Murray, in 1569, excited the party of Mary to hope and to exertion. It seems, that the design of Bothwelhaugh, who slew him, was well known upon the borders; for, the very day on which the slaughter happened, Buccleuch and Fairniirst, with their clans, broke into England, and spread devastation along the frontiers, with unusual ferocity. It is probable they well knew that the controuling hand of the regent was that day palsied by death. Buchanan exclaims loudly against this breach of truce with Elizabeth, charging Queen Mary's party with having "houndit furth proude and uncircumspecte young men, to hery, burne, and slay, and tak prisoneris, in her realme, and use all misordour and crueltie, not only usit in weir, but detestabil to all barbar and wild Tartaris, in slaying of prisoneris, and contrair to all humanitie and justice, keeping na promeis to [xxxviii] miserabil catives resavit anis to thair mercy"—*Admonitioun to the trew lordis, Striveling*, 1571. He numbers, among these insurgents, highlanders as well as borderers, Buccleuch and Fairniirst, the Johnstons and Armstrongs, the Grants, and the clan Chattan. Besides these powerful clans, Mary numbered among her adherents, the Maxwells, and almost all the west border leaders, excepting Drumlanrig, and Jardine of Applegirth. On the eastern border, the faction of the infant king was more powerful; for, although deserted by Lord Home, the greater part of his clan, under the influence of Wedderburn, remained attached to that party. The laird of Cessford wished them well, and the Earl of Angus naturally followed the steps of his uncle Morton. A sharp and bloody invasion of the middle march, under the command of the Earl of Sussex, avenged with interest the raids of Buccleuch and Fairniirst. The domains of these chiefs were laid waste, their castles burned and destroyed. The narrow vales of Beaumont and Kale, belonging to Buccleuch, were treated with peculiar severity; and the forrays of Hertford were equalled by that of Sussex. In vain did the chiefs request assistance from the government to [xxxix] defend their fortresses. Through the predominating interest of Elizabeth in the Scottish

councils, this was refused to all but Home, whose castle, nevertheless, again received an English garrison; while Buccleuch and Fairnihiirst complained bitterly that those, who had instigated their invasion, durst not even come so far as Lauder, to shew countenance to their defence against the English. The bickerings, which followed, distracted the whole kingdom. One celebrated exploit may be selected, as an illustration of the border fashion of war.

The Earl of Lennox, who had succeeded Murray in the regency, held a parliament at Stirling, in 1571. The young king was exhibited to the great council of his nation. He had been tutored to repeat a set speech, composed for the occasion; but, observing that the roof of the building was a little decayed, he interrupted his recitation, and exclaimed, with childish levity, "that there was a hole in the parliament,"—words which, in these days, were held to presage the [xl] deadly breach shortly to be made in that body, by the death of him in whose name it was convoked.

Amid the most undisturbed security of confidence, the lords, who composed this parliament, were roused at day-break, by the shouts of their enemies in the heart of the town. *God and the Queen!* resounded from every quarter, and, in a few minutes, the regent, with the astonished nobles of his party, were prisoners to a band of two hundred border cavalry, led by Scott of Buccleuch, and to the Lord Claud Hamilton, at the head of three hundred infantry. These enterprising chiefs, by a rapid and well concerted manoeuvre, had reached Stirling in a night march from Edinburgh, and, without so much as being bayed at by a watch-dog had seized the principal street of the town.—The fortunate obstinacy of Morton saved his party. Stubborn and undaunted, he defended his house till the assailants set it in flames, and then yielded with reluctance to his kinsman, Buccleuch. But the time, which he had gained, effectually served his cause. The borderers had dispersed to plunder the stables of the nobility; the infantry thronged tumultuously together on the main street, when the [xli] Earl of Mar, issuing from the castle, placed one or two small pieces of ordnance in his own half-built house^[24], which commands the market place. Hardly had the artillery begun to scour the street, when the assailants, surprised in their turn, fled with precipitation. Their alarm was increased by the townsmen thronging to arms. Those, who had been so lately triumphant, were now, in many instances, asking the protection of their own prisoners. In all probability, not a man would have escaped death, or captivity, but for the characteristic

rapacity of Buccleuch's marauders, who, having seized and carried off all the horses in the town, left the victors no means of following the chace. The regent was slain by an officer, named Caulder, in order to prevent his being rescued. Spens of Ormeston, to whom he had surrendered, lost his life in a generous attempt to protect him^[25]. Hardly does our history present another enterprise, so well planned, so happily [xlii] commenced, and so strangely disconcerted. To the licence of the marchmen the failure was attributed; but the same cause ensured a safe retreat.—*Spottiswoode, Godscroft, Robertson, Melville.*

[xliii]

The wily Earl of Morton, who, after the short intervening regency of Mar, succeeded to the supreme authority, contrived, by force or artifice, to render the party of the king every where superior. Even on the middle borders, he had the address to engage in his cause the powerful, though savage and licentious, clans of Rutherford and Turnbull, as well as the citizens of Jedburgh. He was thus enabled to counterpoise his powerful opponents, Buccleuch and Fairniirst, [xliv] in their own country; and, after an unsuccessful attempt to surprise Jedburgh even these warm adherents of Mary relinquished her cause in despair.

While Morton swayed the state, his attachment to Elizabeth, and the humiliation which many of the border chiefs had undergone, contributed to maintain good order on the marches, till James VI. himself assumed the reigns of government.—The intervening skirmish of the Reidswire (see the ballad under that title) was but a sudden explosion of the rivalry and suppressed hatred of the borderers of both kingdoms. In truth, the stern rule of Morton, and of his delegates, men unconnected with the borders by birth, maintained in that country more strict discipline than had ever been there exercised. Perhaps this hastened his fall.

The unpopularity of Morton, acquired partly by the strict administration of justice, and partly by avarice and severity, forced him from the regency. In 1578, he retired, apparently, from state affairs, to his castle of Dalkeith; which the populace, emphatically [xlv] expressing their awe and dread of his person, termed the *Lion's Den*. But Morton could not live in retirement; and, early in the same year, the aged lion again rushed from his cavern. By

a mixture of policy and violence, he possessed himself of the fortress of Stirling, and of the person of James. His nephew, Angus, hastened to his assistance. Against him appeared his follower Cessford, with many of the Homes, and the citizens of Edinburgh. Alluding to the restraint of the king's person, they bore his effigy on their banners, with a rude rhyme, demanding liberty or death.—*Birrel's Diary, ad annum, 1578.* The Earl of Morton marched against his foes as far as Falkirk, and a desperate action must have ensued, but for the persuasions of Bowes, the English ambassador. The only blood, then spilt, was in a duel betwixt Tait, a follower of Cessford, and Johnstone, a west border man, attending upon Angus. They fought with lances, and on horseback, according to the fashion of the borders.—The former was unhorsed and slain, the latter desperately wounded.—*Godscroft, Vol. II. p. 261.* The prudence of the late regent appears to have abandoned him, when he was decoyed into a treaty upon this occasion. [xlvi] It was not long before Morton the veteran warrior, and the crafty statesman, was forced bend his neck to an engine of death^[26], the use of which he himself had introduced into Scotland.

Released from the thralldom of Morton, the king, with more than youthful levity, threw his supreme power into the hands of Lennox and Arran. The religion of the first, and the infamous character of the second favourite, excited the hatred of the commons, while their exclusive and engrossing power awakened the jealousy of the other nobles. James, doomed to be the sport of contending factions was seized at Stirling by the nobles, confederated in what was termed the Raid of Ruthven. But the conspirators soon suffered their prize to escape, and were rewarded for their enterprize by exile or death.

In 1585, an affray took place at a border meeting in which Lord Russel, the Earl of Bedford's eldest son, chanced to be slain. Queen Elizabeth imputed the guilt of this slaughter to Thomas Kerr of [xlvii] Fairnihurst, instigated by Arran. Upon the imperious demand of the English ambassador, both were committed to prison; but the minion, Arran, was soon restored to liberty and favour; while Fairnihurst, the dread of the English borderers and the gallant defender of Queen Mary, died in his confinement, of a broken heart.—*Spottiswoode p. 341.*

The tyranny of Arran becoming daily more insupportable the exiled lords, joined by Maxwell, Home, Bothwell, and other border chieftains, seized the town of Stirling, which was pillaged by their disorderly followers, invested the castle, which surrendered at discretion, and drove the favourite from the king's council^[27].

The king, perceiving the Earl of Bothwell among the armed barons, to whom he surrendered his person addressed him in these prophetic words:—"Francis, Francis, what moved thee to come in arms against [xlvi] thy prince, who never wronged thee? I wish thee a more quiet spirit, else I foresee thy destruction."—*Spottiswoode*, p. 343.

In fact, the extraordinary enterprizes of this nobleman disturbed the next ten years of James's reign. Francis Stuart, son to a bastard of James V., had been invested with the titles and estates belonging to his maternal uncle, James Hepburn, Earl of Bothwell, upon the forfeiture of that infamous man; and consequently became lord of Liddesdale, and of the castle of Hermitage.—This acquisition of power upon the borders, where he could easily levy followers, willing to undertake the most desperate enterprize, joined to the man's native daring and violent spirit, rendered Bothwell the most turbulent insurgent, that ever disturbed the tranquillity of a kingdom. During the king's absence in Denmark, Bothwell, swayed by the superstition of his age, had tampered with certain soothsayers and witches, by whose pretended art he hoped to atchieve the death of his monarch. In one of the courts of inquisition, which James delighted to hold upon the professors of the occult sciences, some of his cousin's proceedings [xli] were brought to light, for which he was put in ward in the castle of Edinburgh. Burning with revenge, he broke from his confinement, and lurked for some time upon the borders, where he hoped for the countenance of his son-in-law, Buccleuch. Undeterred by the absence of that chief, who, in obedience to the royal command, had prudently retired to France, Bothwell attempted the desperate enterprize of seizing the person of the king, while residing in his metropolis. At the dead of night, followed by a band of borderers, he occupied the court of the palace of Holyrood, and began to burst open the doors of the royal apartments. The nobility, distrustful of each other, and ignorant of the extent of the conspiracy, only endeavoured to make good the defence of their separate lodgings; but darkness and confusion prevented the assailants from profiting by their disunion. Melville, who was present,

gives a lively picture of the scene of disorder, transiently illuminated by the glare of passing torches; while the report of fire arms, the clatter of armour, the din of hammers thundering on the gates, mingled wildly with the war-cry of [xlx] the borderers, who shouted incessantly, "Justice! Justice! A Bothwell! A Bothwell!" The citizens of Edinburgh at length began to assemble for the defence of their sovereign; and Bothwell was compelled to retreat, which he did without considerable loss.—*Melville*, p. 356. A similar attempt on the person of James, while residing at Faulkland, also misgave; but the credit which Bothwell obtained on the borders, by these bold and desperate enterprizes, was incredible "All Tiviotdale," says Spottiswoode, "ran after him;" so that he finally obtained his object; and, at Edinburgh, in 1593, he stood before James, an unexpected apparition, with his naked sword in his hand. "Strike!" said James, with royal dignity—"Strike, and end thy work! I will not survive my dishonour." But Bothwell with unexpected moderation, only stipulated for remission of his forfeiture, and did not even insist on remaining at court, whence his party was shortly expelled, by the return of the Lord Home, and his other enemies. Incensed at this reverse, Bothwell levied a body of four hundred cavalry, and attacked the king's guard in broad day, upon the Borough [xlxi] Moor, near Edinburgh.—The ready succour of the citizens saved James from falling once more into the hands of his turbulent subject^[28]. On a subsequent day, Bothwell met the laird of Cessford, riding near Edinburgh, with whom he fought a single combat, which lasted for two hours^[29]. But his credit was now fallen; he retreated to England, whence he was driven by Elizabeth, and then wandered to Spain and Italy, where he subsisted, in indigence and obscurity, on the bread which he earned by apostatizing to the faith of Rome. So fell this agitator of domestic broils, whose name passed into a proverb, denoting a powerful and turbulent demagogue^[30].

[xlxii]

While these scenes were passing in the metropolis the borders were furiously agitated by civil discord. The families of Cessford and Fairnihirst disputed their right to the wardenry of the middle marches, and to the provostry of Jedburgh; and William Kerr of Ancram, a follower of the latter, was murdered by the young chief of Cessford, at the instigation of his mother.—*Spottiswoode*, p. 383. But this was trifling, compared to the civil

war, waged on the western frontier, between the Johnstones and Maxwells, of which there is a minute account in the introduction to the ballad, entitled, "*Maxwell's Goodnight*." Prefixed to that termed "*Kinmont Willie*" the reader will find an account of the last warden raids performed upon the border.

My sketch of border history now draws to a close. The accession of James to the English crown converted the extremity into the centre of his kingdom.

The east marches of Scotland were, at this momentous period, in a [xlxiii] state of comparative civilization. The rich soil of Berwickshire soon invited the inhabitants to the arts of agriculture.—Even in the days of Lesley, the nobles and barons of the Merse differed in manners from the other borderers, administered justice with regularity, and abstained from plunder and depredation.—*De moribus Scotorum*, p. 7. But, on the middle and western marches, the inhabitants were unrestrained moss-troopers and cattle drivers, knowing no measure of law, says Camden, but the length of their swords. The sterility of the mountainous country, which they inhabited, offered little encouragement to industry; and, for the long series of centuries, which we have hastily reviewed, the hands of rapine were never there folded in inactivity, nor the sword of violence returned to the scabbard. Various proclamations were in vain issued for interdicting the use of horses and arms upon the west border of England and Scotland^[31].

[xlxiv]

The evil was found to require the radical cure of extirpation. Buccleuch collected under his banners the most desperate of the border warriors, of whom he formed a legion, for the service of the states of Holland; who had as much reason to rejoice on their arrival upon the continent, as Britain to congratulate herself upon their departure. It may be presumed, that few of this corps ever returned to their native country. The clan of Graeme, a hardy and ferocious set of freebooters inhabiting chiefly the Debateable Land, by a very summary exertion of authority, was transported to Ireland, and their return prohibited under pain of death. Against other offenders, measures, equally arbitrary, were without hesitation pursued. Numbers of border riders were executed, without even the formality of a trial; and it is even [xlxv] said, that, in mockery of justice, assizes were held upon them after they had

suffered. For these acts of tyranny, see *Johnston*, p. 374, 414, 39, 93. The memory of Dunbar's legal proceedings at Jedburgh, are preserved in the proverbial phrase, *Jeddart Justice*, which signifies, trial after execution. By this rigour though sternly and unconscientiously exercised the border marauders were, in the course of years, either reclaimed or exterminated; though nearly a century elapsed ere their manners were altogether assimilated to those of their countrymen^[32].

In these hasty sketches of border history, I have endeavoured to select, such incidents, as may introduce to the reader the character of the marchmen, more briefly and better than a formal essay upon their manners. If I have been successful in the attempt, he is already acquainted with the mixture of courage and rapacity by which they were distinguished; and has reviewed some of the scenes in which they acted a principal part. It is, therefore only necessary to notice, more minutely, some of their peculiar customs and modes of life.

Their morality was of a singular kind. The ranpine, by which they [xlxvi] subsisted, they accounted lawful and honourable. Ever liable to lose their whole substance, by an incursion of the English, on a sudden breach of truce, they cared little to waste their time in cultivating crops, to be reaped by their foes. Their cattle was, therefore, their chief property; and these were nightly exposed to the southern borderers, as rapacious and active as themselves. Hence, robbery assumed the appearance of fair reprisal. The fatal privilege of pursuing the marauders into their own country, for recovery of stolen goods, led to continual skirmishes. The warden also, himself frequently the chieftain of a border horde, when redress was not instantly granted by the opposite officer, for depredations sustained by his district, was entitled to retaliate upon England by a warden raid. In such cases, the moss-troopers, who crowded to his standard, found themselves pursuing their craft under legal authority, and became the favourites and followers of the military magistrate, whose duty it was to have checked and suppressed them. See the curious history of *Geordie Bourne*, *App. No. II.* Equally unable and unwilling to [xlxvii] make nice distinctions, they were not to be convinced, that what was to-day fair booty, was to-morrow a subject of theft. National animosity usually gave an additional stimulus to their rapacity; although it must be owned, that their depredations extended also to the more cultivated parts of their own country^[33].

Satchells, who lived when the old border ideas of *meum* and *tuum* were still in some force, endeavours to draw a very nice distinction betwixt a freebooter and a thief; and thus sings he of the Armstrongs:

On that border was the Armstrongs, able men;
Somewhat unruly, and very ill to tame.
I would have none think that I call them thieves,
For, if I did, it would be arrant lies.

[xlxviii] Near a border frontier, in the time of war,
There's ne'er a man but he's a freebooter.

Because to all men it may appear,
The freebooter he is a volunteer;
In the muster rolls he has no desire to stay;
He lives by purchase, he gets no pay.

It's most clear a freebooter doth live in hazard's train;
A freebooter's a cavalier that ventures life for gain:
But, since King James the Sixth to England went,
Ther has been no cause of grief;
And he that hath transgress'd since then,
Is no *Freebooter*, but a *Thief*.

History of the name of Scott.

The inhabitants of the inland counties did not understand these subtle distinctions. Sir David Lindsay, in the curious drama, published by Mr Pinkerton, introduces, as one of his *dramatis personae*, *Common Thift*, a borderer, who is supposed to come to Fife to steal the Earl of Rothes' best hackney, and Lord Lindsay's brown jennet. *Oppression* also (another personage there introduced), seems to be connected with the borders; for, finding himself in danger, he exclaims,—

War God that I were sound and haill,
Now liftit into Liddesdail;

The Mers sowld fynd me beiff and caill,
What rack of breid?

[xlxix] War I thair lyftit with my lyfe,
The devill sowld styk me with a knyffe,
An' ever I cum agane in Fyfe,
Till I were deid.—

Pinkerton's Scottish Poems, Vol. II p. 180.

Again, when *Common Thift* is brought to condign punishment, he remembers his border friends in his dying speech:

The widdefow wardanis tuik my geir,
And left me nowthir horse nor meir,
Nor erdly gud that me belangit;
Now, walloway! I mon be hangit.

Adew! my bruthir Annan thieves,
That holpit me in my mischevis:
Adew! Grossars, Niksonis, and Bells,
Oft have we fairne owthreuch the fells:
Adew! Robsons, Howis, and Pylis,
That in our craft hes mony wilis:
Littlis, Trumbells, and Armestranges;
Adew! all theeves, that me belangis;
Baileowes, Erewynis, and Elwandis,
Speedy of flicht, and slicht of handis:
The Scotts of Eisdale, and the Gramis,
I half na time to tell your namis.

Ib. p. 156.

When *Common Thift* is executed (which is performed upon the stage), *Falset* (Falsehood), who is also brought forth for punishment, pronounces over him the following eulogy:

[xlxx] Waes me for thee, gude Common Thift!

Was never man made more honest chift,
His living for to win:
Thair wes not, in all Liddesdail,
That ky mair craftelly could steil,
Whar thou hingis on that pin!

Ib. p. 194.

Sir Richard Maitland, incensed at the boldness and impunity of the thieves of Liddesdale in his time, has attacked them with keen iambicks. His satire, which, I suppose, had very little effect at the time, forms No. III, of the appendix to this introduction.

The borderers had, in fact, little reason to regard the inland Scots as their fellow subjects, or to respect the power of the crown. They were frequently resigned, by express compact, to the bloody retaliation of the English, without experiencing any assistance from their prince, and his more immediate subjects. If they beheld him, it was more frequently in the character of an avenging judge, than of a protecting sovereign. They were, in truth, during the time of peace, a kind of outcasts, against whom the united powers of England and Scotland were often employed. Hence, the men of the borders had little [xlxxi] attachment to the monarchs, whom they termed, in derision, the kings of Fife and Lothian; provinces which they were not legally entitled to inhabit^[34], and which, therefore, they pillaged with as little remorse as if they had belonged to a foreign country. This strange, precarious, and adventurous mode of life, led by the borderers, was not without its pleasures, and seems, in all probability, hardly so disagreeable to us, as the monotony of regulated society must have been to those, who had been long accustomed to a state of rapine. Well has it been remarked, by the eloquent Burke, that the shifting tides of fear and hope, the flight and pursuit, the peril and escape, alternate famine and feast, of the savage and the robber, after a time render all course of slow, steady, progressive, unvaried occupation and the prospect only of a limited mediocrity at the end of long labour, to the last degree tame, languid, and insipid. The interesting nature of their exploits may be conceived from the account of Camden.

[xlxxii]

"What manner of cattle stealers they are, that inhabit these valleys in the marches of both kingdoms, John Lesley, a Scotchman himself, and bishop of Ross, will inform you. They sally out of their own borders, in the night, in troops, through unfrequented bye-ways, and many intricate windings. All the day-time, they refresh themselves and their horses in lurking holes they had pitched upon before, till they arrive in the dark at those places they have a design upon. As soon as they have seized upon the booty, they, in like manner, return home in the night, through blind ways, and fetching many a compass. The more skilful any captain is to pass through those wild deserts, crooked turnings, and deep precipices, in the thickest mists and darkness, his reputation is the greater, and he is looked upon as a man of an excellent head.—And they are so very cunning, that they seldom have their booty taken from them, unless sometimes, when, by the help of blood-hounds following them exactly upon the tract, they may chance to fall into the hands of their adversaries. When being taken, they have [xlxxiii] so much persuasive eloquence, and so many smooth insinuating words at command, that if they do not move their judges, nay, and even their adversaries (notwithstanding the severity of their natures), to have mercy, yet they incite them to admiration and compassion."—*Camden's Britannia*. The reader is requested to compare this curious account, given by Lesley, with the ballad, called *Hobble Noble*^[35].

[xlxxiv]

The inroads of the marchers, when stimulated only by the desire of plunder, were never marked with cruelty, and seldom even with bloodshed, unless in the case of opposition. They held, that property was common to all who stood in want of it; but they abhorred and avoided the crime of unnecessary homicide.—*Lesley*, p. 63. This was, perhaps, partly owing to the habits of intimacy betwixt the borderers of both kingdoms, notwithstanding their mutual hostility, and reciprocal depredations. A natural intercourse took place between the English and Scottish marchers, at border meetings, and during the short intervals of peace. They met frequently at parties of the chace and foot-ball; and it required many and strict regulations, on both sides, to prevent them from forming intermarriages, and from cultivating too close a degree of intimacy.—*Scottish Acts*, 1587, c. 105; *Wharton's Regulations*, 6th Edward VI. The custom, also, of paying black-mail, or protection-rent, introduced a connection betwixt the countries; for, a

Scottish borderer, taking black-mail from an English inhabitant, was not only himself bound to abstain from injuring such person, but also to maintain his quarrel, [xlxxv] and recover his property, if carried off by others. Hence, an union arose betwixt the parties, founded upon mutual interest, which counteracted, in many instances, the effects of national prejudice. The similarity of their manners may be inferred from that of their language. In an old mystery, imprinted at London, 1654, a mendicant borderer is introduced, soliciting alms of a citizen and his wife. To a question of the latter he replies, "Savying your honour, good maistress, I was born in Redesdale, in Northomberlande, and come of a wight riding sirname, call'd the Robsons: gude honeste men, and true, savyng a little shiftyng for theyr livyng; God help them, silly pure men." The wife answers, "What doest thou here, in this countrie? me thinke thou art a Scot by thy tongue." *Beggar*—"Trowe me never mair then, good deam; I had rather be hanged in a withie of a cow-taile, for thei are ever fare and fase."—*Appendix to Johnstone's Sad Shepherd*, 1783. p. 188. From the wife's observation, as well as from the dialect of the beggar, we may infer, that there was little difference between the Northumbrian and the [xlxxvi] border Scottish; a circumstance interesting in itself, and decisive of the occasional friendly intercourse among the marchmen. From all those combining circumstances arose the lenity of the borderers in their incursions and the equivocal moderation which they sometimes observed towards each other, in open war^[36].

[xlxxvii]

This humanity and moderation was, on certain occasions, entirely laid aside by the borderers. In the case of deadly feud, either against an Englishman, or against any neighbouring tribe, the whole force of the offended clan was bent to avenge the death of any of their number. Their vengeance not only vented itself upon the homicide and his [xlxxviii] family, but upon all his kindred, on his whole tribe; on every one, in fine, whose death or ruin could affect him with regret.—*Lesley*, p. 63; *Border Laws*, *passim*; *Scottish Acts*, 1594, c. 231. The reader will find, in the following collection, many allusions to this infernal custom, which always overcame the marcher's general reluctance to shed human blood, and rendered him remorselessly savage.

For fidelity to their word, Lesley ascribes high praise to the inhabitants of the Scottish frontier. When an instance happened to the contrary, the injured person, at the first border meeting, rode through the field, displaying a glove (the pledge of faith) upon the point of his lance, and proclaiming the perfidy of the person, who had [xlxxix] broken his word. So great was the indignation of the assembly against the perjured criminal, that he was often slain by his own clan, to wipe out the disgrace he had brought on them. In the same spirit of confidence, it was not unusual to behold the victors, after an engagement, dismiss their prisoners upon parole, who never failed either to transmit the stipulated ransom, or to surrender themselves to bondage, if unable to do so. But the virtues of a barbarous people, being founded not upon moral principle, but upon the dreams of superstition, or the capricious dictates of antient custom, can seldom be uniformly relied on. We must not, therefore, be surprised to find these very men, so true to their word in general, using, upon other occasions, various resources of cunning and chicanery, against which the border laws were in vain directed.

The immediate rulers of the borders were the chiefs of the different clans, who exercised over their respective septs a dominion, partly patriarchal, and partly feudal. The latter bond of adherence was, however, the more slender; for, in the acts regulating the borders, [xlxxx] we find repeated mention of "Clannes having captaines and chieftaines, whom on they depend, oft-times against the willes of their landeslordes."—*Stat.* 1587, c. 95, *and the Roll thereto annexed*. Of course, these laws looked less to the feudal superior, than to the chieftain of the name, for the restraint of the disorderly tribes; and it is repeatedly enacted, that the head of the clan should be first called upon to deliver those of his sept, who should commit any trespass, and that, on his failure to do so, he should be liable to the injured party in full redress. *Ibidem*, and *Stat.* 1594, c. 231. By the same statutes, the chieftains and landlords, presiding over border clans, were obliged to find caution, and to grant hostages, that they would subject themselves to the due course of law. Such clans, as had no chieftain of sufficient note to enter bail for their quiet conduct, became broken men, outlawed to both nations.

From these enactments, the power of the border chieftains may be conceived; for it had been hard and useless to have punished them for the trespasses of their tribes, unless they possessed over them [xlxxxi] unlimited authority. The abode of these petty princes by no means corresponded to the

extent of their power. We do not find, on the Scottish borders, the splendid and extensive baronial castles, which graced and defended the opposite frontier. The gothic grandeur of Alnwick, of Raby, and of Naworth, marks the wealthier and more secure state of the English nobles. The Scottish chieftain, however extensive his domains, derived no advantage, save from such parts as he could himself cultivate or occupy. Payment of rent was hardly known on the borders, till after the union^[37]. All that the landlord could gain, from those residing upon his estate, was their personal service in battle, their assistance in labouring the land retained in his natural possession, some petty quit-rents, of a nature resembling the feudal [xlxxxii] casualties, and perhaps a share in the spoil which they acquired by rapine^[38]. This, with his herds of cattle and of sheep, and with the *black mail*, which he exacted from his neighbours, constituted the revenue of the chieftain; and, from funds so precarious, he could rarely spare sums to expend in strengthening or decorating his habitation. Another reason is found in the Scottish mode of warfare. It was early discovered, that the English surpassed their neighbours in the arts of assaulting or defending fortified places. The policy of the Scottish, therefore, deterred them from erecting upon the borders buildings of such extent and strength, as, being once taken by the foe, would have been capable of receiving a permanent garrison^[39]. To [xlxxxiii] themselves, the woods and hills of their country were pointed out, by the great Bruce, as their safest bulwarks; and the maxim of the Douglasses, that "it was better to hear the lark sing, than the mouse cheep," was adopted by every border chief. For these combined reasons, the residence of the chieftain was commonly a large square battlemented^[40] tower, called a *keep*, or *peel*; placed [xlxxxiv] on a precipice, or on the banks of a torrent, and, if the ground would permit, surrounded by a moat. In short, the situation of a border house, surrounded by woods, and rendered almost inaccessible by torrents, by rocks, or by morasses, sufficiently indicated the pursuits and apprehensions of its inhabitant. —"*Locus horroris et vastae solitudinis, aptus ad praedam, habilis ad rapinam, habitatoribus suis lapis erat offensiones et petra scandali, utpote qui stipendiis suis minime contenti totum de alieno parum de suo possidebant—totius provinciae spoliū.*" No wonder, therefore, that James V., on approaching the castle of Lochwood, the antient seat of the Johnstones, is said to have exclaimed, "that he who built it must have been a knave in his heart." An outer wall, with some slight fortifications, served

as a protection for the cattle at night. The walls of these fortresses were of an immense thickness, and they could easily be defended against any small force; more especially, as, the rooms being vaulted, each story formed a separate lodgement, capable of being held out for a considerable time. On such occasions, the [xlxxxv] usual mode, adopted by the assailants, was to expel the defenders, by setting fire to wet straw in the lower apartments. But the border chieftains seldom chose to abide in person a siege of this nature; and I have not observed a single instance of a distinguished baron made prisoner in his own house^[41].—*Patten's Expedition*, p. 35. The common people resided in paltry huts, about the safety of which they were little anxious, as they contained nothing of value. On the approach of a superior force, they unthatched them, to prevent their being burned, and then abandoned them to the foe.—*Stowe's Chronicle*, p. 665. Their only treasures were, a fleet and active horse, with the ornaments which their rapine had procured for the females of their family, of whose gay appearance the borderers were vain.

Some rude monuments occur upon the borders, the memorial of ancient valour. Such is the cross at Milholm, on the banks of the Liddel, said to have been erected in memory of the chief of the Armstrongs, murdered treacherously by Lord Soulis, while feasting in Hermitage [xlxxxvi] castle. Such also, a rude stone, now broken, and very much defaced, placed upon a mount on the lands of Haughhead, near the junction of the Kale and Teviot. The inscription records the defence made by Hobbie Hall, a man of great strength and courage against an attempt by the powerful family of Ker, to possess themselves of his small estate^[42].

The same simplicity marked their dress and arms. Patten observes, that in battle the laird could not be distinguished from the serf: all wearing the same coat armour, called a jack, and the baron being only distinguished by his sleeves of mail, and his head-piece. The [xlxxxvii] borderers, in general, acted as light cavalry; riding horses of a small size, but astonishingly nimble, and trained to move, by short bounds, through the morasses with which Scotland abounds. Their offensive weapons were, a lance of uncommon length; a sword, either two-handed, or of the modern light size; sometimes a species of battle-axe, called a Jedburgh-staff; and, latterly, dags, or pistols. Although so much accustomed to act on horseback, that they held it even mean to appear otherwise, the marchmen occasionally

acted as infantry; nor were they inferior to the rest of Scotland in forming that impenetrable phalanx of spears, whereof it is said, by an English historian, that "sooner shall a bare finger pierce through the skin of an angry hedge-hog, than any one encounter the brunt of their pikes." At the battle of Melrose, for example, Buccleuch's army fought upon foot. But the habits of the borderers fitted them particularly to distinguish themselves as light cavalry; and hence the name of *prickers and hobyler*s, so frequently applied to them. At the blaze of their beacon fires, they were wont to assemble ten thousand [xlxxxviii] horsemen in the course of a single day. Thus rapid in their warlike preparations, they were alike ready for attack and defence. Each individual carried his own provisions, consisting of a small bag of oatmeal, and trusted to plunder, or the chace, for ekeing out his precarious meal. Beaugé remarks, that nothing surprised the Scottish cavalry so much as to see their French auxiliaries encumbered with baggage-waggons, and attended by commissaries. Before joining battle, it seems to have been the Scottish practice to set fire to the litter of their camp, while, under cover of the smoke, the *hobyler*s, or border cavalry, executed their manoeuvres.—There is a curious account of the battle of Mitton, fought in the year 1319, in a valuable MS. *Chronicle of England*, in the collection of the Marquis of Douglas, from which this stratagem seems to have decided the engagement. "In meyn time, while the wer thus lastyd, the kynge went agane into Skotlande, that hitte was wonder for to wette, and bysechyd the towne of Barwick; but the Skottes went over the water of Sold, that was iii myle from the hoste, and prively they stole awaye [xlxxxix] be nyghte, and come into England, and robbed and destroyed all that they myght, and spared no manner thing til that they come to Yorke. And, whan the Englischemen, that wer left att home, herd this tiding, all tho that myght well travell, so well monkys and priestis, and freres, and chanouns, and seculars, come and met with the Skottes at Mytone of Swale, the xii day of October. Allas, for sorow for the Englischemen! housbondmen, that could nothing in wer, ther were quelled and drenchyd in an arm of the see. And hyr chyftaines, Sir William Milton, ersch-biishop of Yorke, and the abbot of Selby, with her stedes, fled and com into Yorke; and that was her owne folye that they had that mischaunce; for the passyd the water of Swale, and the Skottes set on fiir three stalkes of hey, and the smoke thereof was so huge, that the Englischemen might nott se the Scottes; and whan the Englischemen were gon over the water, tho cam the Skottes, with hir wyng, in maner of a sheld,

and come toward the Englischemen in ordour. And the Englischemen fled for unnethe they had any use of armes, [xc] for the kyng had hem al almost lost att the sege of Barwick. And the Scotsmen *hobylers* went betwene the brigge and the Englischemen; and when the gret hoste them met, the Englischemen fled between the *hobylers* and the gret hoste; and the Englischemen were ther quelled, and he that myght wend over the water were saved, but many were drowned. Alas! for there were slayn many men of religion, and seculars, and pristis, and clerks, and with much sorwe the erschbischope scaped from the Skottes; and, therefore, the Skottes called that battell the *White Battell*"

For smaller predatory expeditions, the borderers had signals, and places of rendezvous, peculiar to each tribe. If the party set forward before all the members had joined, a mark, cut in the turf, or on the bark of a tree, pointed out to the stragglers the direction which the main body had pursued^[43].

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Their warlike convocations were, also, frequently disguised, under pretence of meetings for the purpose of sport. The game of foot-ball, in particular which was anciently, and still continues to be, a favourite border sport, was the means of collecting together large bodies of moss-troopers, previous to any military exploit. When Sir Robert Carey was warden of the east marches, the knowledge that there was a great match of foot-ball at Kelso, to be frequented by the principal Scottish riders, was sufficient to excite his vigilance and his apprehension^[44]. Previous also to the murder of Sir John Carmichael (see Notes on the *Raid of the Reidswire*,) it appeared at the trial of the perpetrators that they had assisted at a grand foot-ball meeting, where the crime was concerted.

Upon the religion of the borderers there can very little be said. We have already noticed, that they remained attached to the Roman Catholic faith rather longer than the rest of Scotland. This probably arose from a total indifference upon the subject; for, we no where find in their character the respect for the church, which is a marked [xcii] feature of that religion. In 1528, Lord Dacre complains heavily to Cardinal Wolsey, that, having taken a notorious freebooter, called Dyk Irwen, the brother and friends of the outlaw had, in retaliation, seized a man of some property, and a relation of

Lord Dacre, called Jeffrey Middleton, as he returned from a pilgrimage to St. Ninian's, in Galloway; and that, notwithstanding the sanctity of his character, as a *true pilgrim*, and the Scottish monarch's safe conduct, they continued to detain him in their fastnesses, until he should redeem the said arrant thief, Dyk Irwen. The abbeys, which were planted upon the border, neither seem to have been much respected by the English, nor by the Scottish barons. They were repeatedly burned by the former, in the course of the border wars, and by the latter they seem to have been regarded chiefly as the means of endowing a needy relation, or the subject of occasional plunder. Thus, Andrew Home of Fastcastle, about 1488, attempted to procure a perpetual feu of certain possessions belonging to the abbey of Coldinghame; and being baffled, by the king bestowing that opulent benefice upon [xciii] the royal chapel at Stirling, the Humes and Hepburns started into rebellion; asserting, that the priory should be conferred upon some younger son of their families, according to ancient custom. After the fatal battle of Flodden, one of the Kerrs testified his contempt for clerical immunities and privileges, by expelling from his house the abbot of Kelso. These bickerings betwixt the clergy and the barons were usually excited by disputes about their temporal interest. It was common for the churchmen to grant lands in feu to the neighbouring gentlemen, who, becoming their vassals, were bound to assist and protect them^[45]. But, as the possessions and revenues of the benefices became thus intermixed with those of the laity, any attempts rigidly to enforce the claims of the church were usually attended by the most scandalous disputes. A petty warfare was carried on for years, betwixt James, abbot of Dryburgh, and the family of Halliburton [xciv] of Mertoun, or Newmains, who held some lands from that abbey. These possessions were, under various pretexts, seized and laid waste by both parties; and some bloodshed took place in the contest, betwixt the lay vassals and their spiritual superior. The matter was, at length, thought of sufficient importance to be terminated by a reference to his majesty; whose decree arbitral, dated at Stirling, the 8th of May, 1535, proceeds thus: "Whereas we, having been advised and knowing the said gentlemen, the Halliburtons, to be leal and true honest men, long servants unto the saide abbeye, for the saide landis, stout men at armes, and goode borderers against England; and doe therefore decree and ordaine, that they sail be re-possess'd, and bruik and enjoy the landis and steedings they had of the said abbeye, paying the use and wonte: and that they sail be

goode servants to the said venerabil father, like as they and their predecessours were to the said venerabil father, and his predecessours, and he a good master to them^[46]." It is unnecessary to detain the reader with other [xcv] instances of the discord, which prevailed anciently upon the borders, betwixt the spiritual shepherd and his untractable flock.

The reformation was late of finding its way into the border wilds; for, while the religious and civil dissensions were at the height in 1568, Drury writes to Cecil,—"Our trusty neighbours of Teviotdale are holden occupied only to attend to the pleasure and calling of their own heads, to make some diversion in this matter." The influence of the reformed preachers, among the borders, seems also to have been but small; for, upon all occasions of dispute with the kirk, James VI. was wont to call in their assistance. *Calderwood*, p. 129.

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We learn from a curious passage in the life of Richard Cameron, a fanatical preacher during the time of what is called "the persecution," that some of the borderers retained to a late period their indifference about religious matters. After having been licensed at Haughhead, in Teviotdale, he was, according to his biographer, sent first to preach in Annandale. "He said, 'how can I go there? I know what sort of people they are.' 'But,' Mr. Welch said, 'go your way, Ritchie, and set the fire of hell to their tails.' He went; and, the first day, he preached upon that text, *Home shall I put thee among the children, &c.* In the application he said, 'Put you among the children! the offspring of thieves and robbers! we have all heard of Annandale thieves.' Some of them got a merciful cast that day, and told afterwards, that it was the first field meeting they ever attended, and that they went out of mere curiosity, to see a minister preach in a tent, and people sit on the ground." *Life of Richard Cameron*^[47].

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Cleland, an enthusiastic Cameronian, lieutenant-colonel of the regiment levied after the Revolution from among that wild and fanatical sect, claims to the wandering preachers of his tribe the merit of converting the borderers. He introduces a cavalier, haranguing the Highlanders, and ironically thus guarding them against the fanatic divines:

If their doctrine there get rooting,
Then, farewell theft, the best of booting,
And this ye see is very clear,
Dayly experience makes it appear;
For instance, lately on the borders,
Where there was nought but theft and murders,
Rapine, cheating, and resetting,
Slight of hand, fortunes getting,
Their designation, as ye ken,
Was all along the *Tacking Men*.
Now, rebels more prevails with words,
Then drawgoons does with guns and swords,
So that their bare preaching now
Makes the rush-bush keep the cow;
Better than Scots or English kings,
Could do by kilting them with strings.
Yea, those that were the greatest rogues,
Follows them over hills and bogues,
Crying for mercy and for preaching,
For they'll now hear no others teaching."

Cleland's Poems, 1697, p. 30.

The poet of the whigs might exaggerate the success of their teachers; yet, it must be owned, that their doctrine of insubordination, joined to their vagrant and lawless habits, was calculated strongly to conciliate their border hearers.

But, though the church, in the border counties, attracted little veneration, no part of Scotland teemed with superstitious fears and observances more than they did. "The Dalesmen^[48]," says Lesley, "never count their beads with such earnestness as when they set out upon a predatory expedition." Penances, the composition betwixt guilt and conscience, were also frequent upon the borders. Of this we have a record in many bequests to the church, and in some more lasting monuments; such as the Tower of Repentance in Dumfries-shire, and, according to vulgar tradition, the church of Linton^[49], in [xciiii] Roxburghshire. In the appendix to this introduction. No. IV., the reader will find a curious league, or treaty of peace, betwixt two hostile

clans, by which the heads of each became bound to make the four pilgrimages of Scotland, for the benefit of the souls of those of the opposite clan, who had fallen in the feud. These were superstitions, flowing immediately from the nature of the Catholic religion: but there was, upon the border, no lack of others of a more general nature. Such was the universal belief in spells, of which some traces may yet remain in the wild parts of the country. These were common in the time of the learned Bishop Nicolson, who derives them from the time of the Pagan Danes. "This conceit was the more heightened, by reflecting upon the natural superstition of our [xcix] borderers at this day, who were much better acquainted with, and do more firmly believe, their old legendary stories, of fairies and witches, than the articles of their creed. And to convince me, yet farther, that they are not utter strangers to the black art of their forefathers, I met with a gentleman in the neighbourhood, who shewed me a book of spells, and magical receipts, taken, two or three days before, in the pocket of one of our moss-troopers; wherein, among many other conjuring feats, was prescribed, a certain remedy for an ague, by applying a few barbarous characters to the body of the party distempered. These, methought, were very near a-kin to Wormius's *Ram Runer*, which, he says, differed wholly in figure and shape from the common *runae*. For, though he tells us, that these *Ram Runer* were so called, *Eo quod molestias, dolores, morbosque hisce infligere inimicis soliti sunt magi*; yet his great friend, Arng. Jonas, more to our purpose, says, that—*His etiam usi sunt ad benefaciendum, juvandum, medicandum tam animi quam corporis morbis; atque ad ipsos cacodaemones pellendos et fugandos*. I shall [c] not trouble you with a draught of this spell, because I have not yet had an opportunity of learning whether it may not be an ordinary one, and to be met with, among others of the same nature, in Paracelsus, or Cornelius Agrippa."—*Letter from Bishop Nicolson to Mr. Walker; vide Camden's Britannia, Cumberland*. Even in the editor's younger days, he can remember the currency of certain spells, for curing sprains, burns, or dislocations, to which popular credulity ascribed unfailing efficacy^[50]. Charms, however, against spiritual enemies, were yet more common than those intended to cure corporeal complaints. This is not surprising, as a fantastic remedy well suited an imaginary disease.

There were, upon the borders, many consecrated wells, for resorting to which the people's credulity is severely censured, by a worthy physician of

the seventeenth century; who himself believed in a [ci] shower of living herrings having fallen near Dumfries. "Many run superstitiously to other wells, and there obtain, as they imagine, health and advantage; and there they offer bread and cheese, or money, by throwing them into the well." In another part of the MS. occurs the following passage. "In the bounds of the lands of Eccles, belonging to a lyneage of the name of Maitland, there is a loch called the Dowloch, of old resorted to with much superstition, as medicinal both for men and beasts, and that with such ceremonies, as are *shrewdly* suspected to have been begun with witchcraft, and increased afterward by magical directions: For, burying of a cloth, or somewhat that did relate to the bodies of men and women, and a shackle, or teather, belonging to cow or horse; and these being cast into the loch, if they did float, it was taken for a good omen of recovery, and a part of the water carried to the patient, though to remote places, without saluting or speaking to any they met by the way; but, if they did sink, the recovery of the party was hopeless. This custom was of late [cii] much curbed and restrained; but since the discovery of many medicinal fountains near to the place, the vulgar, holding that it may be as medicinal as these are, at this time begin to re-assume their former practice."—*Account of Presbytery of Penpont, in Macfarlane's MSS.*

The idea, that the spirits of the deceased return to haunt the place, where on earth they have suffered or have rejoiced, is, as Dr. Johnson has observed, common to the popular creed of all nations The just and noble sentiment, implanted in our bosoms by the Deity, teaches us, that we shall not slumber for ever, as the beasts that perish.—Human vanity, or credulity, chequers, with its own inferior and base colours, the noble prospect, which is alike held out to us by philosophy and by religion. We feel, according to the ardent expression of the poet, that we shall not wholly die; but from hence we vainly and weakly argue, that the same scenes, the same passions, shall delight and actuate the disembodied spirit, which affected it while in its tenement of clay. Hence the popular belief, that the [ciii] soul haunts the spot where the murdered body is interred; that its appearances are directed to bring down vengeance on its murderers; or that, having left its terrestrial form in a distant clime, it glides before its former friends, a pale spectre, to warn them of its decease. Such tales, the foundation of which is an argument from our present feelings to those of the spiritual world, form the

broad and universal basis of the popular superstition regarding departed spirits; against which reason has striven in vain, and universal experience has offered a disregarded testimony. These legends are peculiarly acceptable to barbarous tribes; and, on the borders, they were received with most unbounded faith. It is true, that these supernatural adversaries were no longer opposed by the sword and battle-axe, as among the unconverted Scandinavians. Prayers, spells, and exorcisms, particularly in the Greek and Hebrew languages, were the weapons of the borderers, or rather of their priests and cunning men, against their aërial enemy^[51]. The belief in ghosts, which has [civ] been well termed the last lingering phantom of superstition, still maintains its ground upon the borders.

[cv]

It is unnecessary to mention the superstitious belief in witchcraft, which gave rise to so much cruelty and persecution during the seventeenth century. There were several executions upon the borders for this imaginary crime, which was usually tried, not by the ordinary judges, but by a set of country gentlemen, acting under commission from the privy council^[52].

Besides these grand articles of superstitious belief, the creed of [cvi] the borderers admitted the existence of sundry classes of subordinate spirits, to whom were assigned peculiar employments. The chief of these were the Fairies, concerning whom the reader will find a long dissertation, in Volume Second. The Brownie formed a class of beings, distinct in habit and disposition from the freakish and mischievous elves. He was meagre, shaggy, and wild in his appearance. Thus, Cleland, in his satire against the Highlanders, compares them to

"Faunes, or *Brownies*, if ye will,
Or satyres come from Atlas hill."

In the day time, he lurked in remote recesses of the old houses which he delighted to haunt; and, in the night, sedulously employed himself in discharging any laborious task which he thought might be acceptable to the family, to whose service he had devoted himself. His name is probably derived from the *Portuni*, whom Gervase of Tilbury describes thus: "*Ecce enim in Anglia daemones quosdam habent, daemones, inquam, nescio*

dixerim, an secretae et ignotae generationis effigies, quos Galli Neptunos, Angli Portunos nominant. Istis insitum est quod simplicitatem fortunatorum colonorum amplectuntur, et [cvii] cum nocturnas propter domesticas operas agunt vigilias, subito clausis januis ad ignem califiunt, et ranunculus ex sinu projectas, prunis impositas concedunt, senili vultu, facie corrugata, statura pusilli, dimidium pollicis non habentes. Panniculis consertis induuntur, et si quid gestandum in domo fuerit, aut onerosi opens agendum, ad operandum se jungunt citius humana facilitate expediunt. Id illis insitum est, ut obsequi possint et obesse non possint."—Otia. Imp. p. 980. In every respect, saving only the feeding upon frogs, which was probably an attribute of the Gallic spirits alone, the above description corresponds with that of the Scottish Brownie. But the latter, although, like Milton's lubbar fiend, he loves to stretch himself [cviii] by the fire^[53], does not drudge from the hope of recompence. On the contrary, so delicate is his attachment, that the offer of reward, but particularly of food, infallibly occasions his disappearance for ever^[54]. We learn from Olaus Magnus, that spirits, somewhat similar in their operations to the Brownie, were supposed to haunt the Swedish mines. The passage, in the translation of 1658, runs thus: "This is collected in briefe, that in northerne kingdomes there are great armies of devils, that have their services, which they perform with the inhabitants of these countries: but they are most frequent in [cix] rocks and mines, where they break, cleave, and make them hollow: which also thrust in pitchers and buckets, and carefully fit wheels and screws, whereby they are drawn upwards; and they shew themselves to the labourers, when they list, like phantasms and ghosts." It seems no improbable conjecture, that the Brownie is a legitimate descendant of the *Lar Familiaris* of the ancients.

A being, totally distinct from those hitherto mentioned, is the Bogle, or Goblin; a freakish spirit, who delights rather to perplex and [cx] frighten mankind; than either to serve, or seriously to hurt, them. This is the *Esprit Follet* of the French; and *Puck*, or *Robin Goodfellow*, though enlisted by Shakespeare among the fairy band of *Oberon*, properly belongs to this class of phantoms. *Shellycoat*, a spirit, who resides in the waters, and has given his name to many a rock and stone upon the Scottish coast, belongs also to the class of bogles^[55]. When he appeared, he seemed to be decked with marine productions, and, in particular with shells, whose clattering announced his approach. From this circumstance he derived his name. He

may, perhaps, be identified with the goblin [cxi] of the northern English, which, in the towns and cities, Durham and Newcastle for example had the name of *Barquest*; but, in the country villages, was more frequently termed *Brag*. He usually ended his mischievous frolics with a horse-laugh.

Shellycoat must not be confounded with *Kelpy*, a water spirit also, but of a much more powerful and malignant nature. His attributes have been the subject of a poem in Lowland Scottish, by the learned Dr. Jamieson of Edinburgh, which adorns the third volume of this collection. Of *Kelpy*, therefore, it is unnecessary to say any thing at present.

Of all these classes of spirits it may be, in general observed, that their attachment was supposed to be local, and not personal. They haunted the rock, the stream, the ruined castle, without regard to the persons or families to whom the property belonged. Hence, they differed entirely from that species of spirits, to whom, in the Highlands, is ascribed the guardianship, or superintendence of a particular clan, or family of distinction; and who, perhaps yet more [cxii] than the Brownie, resemble the classic household gods. Thus, in an MS. history of Moray, we are informed, that the family of Gurlinbeg is haunted by a spirit, called *Garlin Bodacher*; that of the baron of Kinchardin, by *Lamhdearg*^[56], or Red-hand, a spectre, one of whose hands is as red as blood; that of Tullochgorm, by *May Moulach*, a female figure, whose left hand and arm were covered with hair, who is also mentioned in *Aubrey's Miscellanies*, pp. 211, 212, as a familiar attendant upon the elan Grant. These superstitions were so ingrafted in the popular creed, that the clerical synods and presbyteries were wont to take cognizance of them^[57].

[cxiii]

Various other superstitions, regarding magicians, spells, prophecies, &c., will claim our attention in the progress of this work. For the present, therefore taking the advice of an old Scottish rhymer, let us

"Leave bogles, brownies, gyre carlinges, and ghaists^[58]."

Flyting of Polwart and Montgomery.

The domestic economy of the borderers next engages our attention. That the revenue of the chieftain should be expended in rude hospitality, was the natural result of his situation. His wealth consisted chiefly in herds of cattle, which were consumed by the kinsmen, vassals, and [cix] followers, who aided him to acquire and to protect them^[59]. We learn from Lesley, that the borderers were temperate in the use of intoxicating liquors, and we are therefore left to conjecture how they occupied the time, when winter, or when accident, confined them to [cxv] their habitations. The little learning, which existed in the middle ages, glimmered a dim and a dying flame in the religious houses; and even in the sixteenth century, when its beams became more widely [cxvi] diffused, they were far from penetrating the recesses of the border mountains. The tales of tradition, the song, with the pipe or harp of the minstrel, were probably the sole resources against *ennui*, during the short intervals of repose from military adventure.

This brings us to the more immediate subject of the present publication.

Lesley, who dedicates to the description of border manners a chapter, which we have already often quoted, notices particularly the taste of the marchmen for music and ballad poetry. "*Placent admodum sibi sua musica, et rythmicis suis cantionibus, quas de majorum suorum gestis, aut ingeniosis predandi precandive stratagematis ipsi confingunt.*"—Leslaeus, *in capitulo de moribus eorum, qui Scotiae limites Angliam versus incolunt*. The more rude and wild the state of society, the more general and violent is the impulse received from poetry and music. The muse, whose effusions are the amusement of a very small part of a polished nation, records, in the lays of inspiration, the history the laws, the very religion, of [cxvii] savages.—Where the pen and the press are wanting, the low of numbers impresses upon the memory of posterity, the deeds and sentiments of their forefathers. Verse is naturally connected with music; and, among a rude people, the union is seldom broken. By this natural alliance, the lays, "steeped in the stream of harmony," are more easily retained by the reciter, and produce upon his audience a more impressive effect. Hence, there has hardly been found to exist a nation so brutishly rude, as not to listen with enthusiasm to the songs of their bards, recounting the exploits of their forefathers, recording their laws and moral precepts, or hymning the praises of their deities. But, where the feelings are frequently stretched to the highest pitch, by the vicissitudes of a life of danger and military adventure, this

predisposition of a savage people, to admire their own rude poetry and music, is heightened, and its tone becomes peculiarly determined. It is not the peaceful Hindu at his loom, it is not the timid Esquimaux in his canoe, whom we must expect to glow at the war song of Tyrtaeus. [cxviii] The music and the poetry of each country must keep pace with their usual tone of mind, as well as with the state of society.

The morality of their compositions is determined by the same circumstances. Those themes are necessarily chosen by the bard, which regard the favourite exploits of the hearers; and he celebrates only those virtues, which from infancy he has been taught to admire. Hence, as remarked by Lesley, the music and songs of the borders were of a military nature, and celebrated the valour and success of their predatory expeditions. Razing, like Shakespeare's pirate, the eighth commandment from the decalogue, the minstrels praised their chieftains for the very exploits, against which the laws of the country denounced a capital doom.—An outlawed freebooter was to them a more interesting person, than the King of Scotland exerting his power to punish his depredations; and, when the characters are contrasted, the latter is always represented as a ruthless and sanguinary tyrant.—Spenser's description of the bards of Ireland applies in some degree, to our ancient border poets. "There is, among the Irish, a certain kinde of people, called bardes, which are to them instead of poets; whose [cxix] profession is to set forth the praises or dispraises of men, in their poems or rhymes; the which are had in such high regard or esteem amongst them, that none dare displease them, for fear of running into reproach through their offence, and to be made infamous in the mouths of all men; for their verses are taken up with a general applause, and usually sung at all feasts and meetings, by certain other persons, whose proper function that is, who also receive, for the same, great rewardes and reputation amongst them." Spenser, having bestowed due praise upon the poets, who sung the praises of the good and virtuous, informs us, that the bards, on the contrary, "seldom use to chuse unto themselves the doings of good men for the arguments of their poems; but whomsoever they finde to be most licentious of life, most bold and lawless in his doings, most dangerous and desperate in all parts of disobedience, and rebellious disposition, him they set up and glorify in their rhythmies; him they praise to the people, and to young men make an example to follow."—*Eudoxus*—"I

marvail what kind of [cxx] speeches they can find, or what faces they can put on, to praise such bad persons, as live so lawlessly and licentiously upon stealths and spoyles, as most of them do; or how they can think, that any good mind will applaud or approve the same." In answer to this question, *Irenaeus*, after remarking the giddy and restless disposition of the ill educated youth of Ireland, which made them prompt to receive evil counsel, adds, that such a person, "if he shall find any to praise him, and to give him any encouragement, as those bards and rhythmers do, for little reward, or a share of a stolen cow^[60], then waxeth he most insolent, and half-mad, with the love of himself and his own lewd deeds. And as for words to set forth such lewdness, it is not hard for them to give a goodly and painted show thereunto, borrowed even from the praises which are proper to virtue itself. As [cxxi] of a most notorious thief, and wicked outlaw, which had lived all his life-time of spoils and robberies, one of their bardes, in his praise, will say, 'that he was none of the idle milk-sops that was brought up by the fire-side, but that most of his days he spent in arms and valiant enterprizes; that he never did eat his meat, before he had won it with his sword; that he lay not all night slugging in his cabin under his mantle, but used commonly to keep others waking to defend their lives, and did light his candle at the flames of their houses to lead him in the darkness; that the day was his night, and the night his day; that he loved not to be long wooing of wenches to yield to him; but, where he came, he took by force the spoil of other men's love, and left but lamentations to their lovers; that his music was not the harp, nor lays of love, but the cries of people, and clashing of armour; and, finally, that he died, not bewailed of many, but made many wail when he died, that dearly bought his death.' Do not you think, Eudoxus, that many of these praises might be applied to men of [cxxii] best deserts? Yet, are they all yielded to a most notable traitor, and amongst some of the Irish not smally accounted of."—*State of Ireland*. The same concurrence of circumstances, so well pointed out by Spenser, as dictating the topics of the Irish bards, tuned the border harps to the praise of an outlawed Armstrong, or Murray.

For similar reasons, flowing from the state of society, the reader must not expect to find, in the border ballads, refined sentiment, and, far less, elegant expression; although the stile of such compositions has, in modern hands, been found highly susceptible of both. But passages might be pointed out,

in which the rude minstrel has melted in natural pathos, or risen into rude energy. Even where these graces are totally wanting, the interest of the stories themselves, and the curious picture of manners, which they frequently present, authorise them to claim some respect from the public. But it is not the editor's present intention to enter upon a history of border poetry; a subject of great difficulty, and which the extent of his information does not as yet permit him to engage in. He will, therefore, now lay before the reader the plan of the present [cxxxiii] publication; pointing out the authorities from which his materials are derived and slightly noticing the nature of the different classes into which he has arranged them.

The MINSTRELSY of the SCOTTISH BORDER contains Three Classes of Poems:

I. HISTORICAL BALLADS.

II. ROMANTIC.

III. IMITATIONS OF THESE COMPOSITIONS BY MODERN AUTHORS.

The Historical Ballad relates events, which we either know actually to have taken place, or which, at least, making due allowance for the exaggerations of poetical tradition, we may readily conceive to have had some foundation in history. For reasons already mentioned, such ballads were early current upon the border. Barbour informs us, that he thinks it unnecessary to rehearse the account of a victory, gained in Eskdale over the English, because

[cxxiv] —Whasa liks, thai may her
Young women, when thai will play,
Syng it among thaim ilk day.—

The Bruce, Book XVI.

Godscroft also, in his History of the House of Douglas, written in the reign of James VI., alludes more than once to the ballads current upon the border, in which the exploits of those heroes were celebrated. Such is the passage, relating to the death of William Douglas, Lord of Liddesdale, slain by the Earl of Douglas, his kinsman, his godson, and his chief^[61]. Similar strains of lamentation were poured by the [cxxv] border poets over the tomb of the Hero of Otterbourne; and over the unfortunate youths, who were dragged to an ignominious death, from the very table at which they partook of the hospitality of their sovereign. The only stanza, preserved of this last ballad, is uncommonly animated—

Edinburgh castle, towne and toure,
God grant thou sink for sinne!

And that even for the black dinoure,
Erl Douglas gat therein.

Who will not regret, with the editor, that compositions of such interest and antiquity should be now irrecoverable? But it is the nature of popular poetry, as of popular applause, perpetually to shift with the objects of the time; and it is the frail chance of recovering some old manuscript, which can alone gratify our curiosity regarding the earlier efforts of the border muse. Some of her later strains, composed during the sixteenth century, have survived even to the present day; but the recollection of them has, of late years, become like that of "a tale which was told." In the sixteenth century, these northern tales appear to have been popular even in London; for the [cxxvi] learned Mr. Ritson has obligingly pointed out to me the following passages, respecting the noted ballad of *Dick o' the Cow* (p. 157); "Dick o' the Cow, that mad demi-lance northern borderer, who plaid his prizes with the lord Jockey so bravely."—Nashe's *Have with you to Saffren-Walden, or Gabriell Harvey's Hunt is up*.—1596, 4to. *Epistle Dedicatorie*, sig. A. 2. 6. And in a list of books, printed for, and sold by, P. Brocksby (1688), occurs "Dick-a-the-Cow, containing north country songs^[62]." Could this collection have been found, it would probably have thrown much light on the present publication: but the editor has been obliged to draw his materials chiefly from oral tradition.

Something may be still found in the border cottages resembling the scene described by Pennycuik.

On a winter's night, my grannam spinning,
To mak a web of good Scots linnen;
Her stool being placed next to the chimley,
(For she was auld, and saw right dimly,)

[cxxvii] My lucky dad, an honest whig,
Was telling tales of Bothwell-brigg;
He could not miss to mind the attempt,
For he was sitting pu'ing hemp;
My aunt, whom' nane dare say has no grace,
Was reading on the Pilgrim's Progress;
The meikle tasker, Davie Dallas,
Was telling blads of William Wallace;

My mither bade her second son say,
What he'd by heart of Davie Lindsay;
Our herd, whom all folks hate that knows him,
Was busy hunting in his bosom;

The bairns, and oyes, were all within doors;}
The youngest of us chewing cinders,}
And all the auld anes telling wonders.}

Pennycuik's Poems, p. 7.

The causes of the preservation of these songs have either entirely ceased, or are gradually decaying. Whether they were originally the composition of minstrels, professing the joint arts of poetry and music; or whether they were the occasional effusions of some self-taught bard; is a question into which I do not here mean to enquire. But it is certain, that, till a very late period, the pipers, of whom there was one attached to each border town of note, and whose [cxxviii] office was often hereditary, were the great depositaries of oral, and particularly of poetical, tradition. About spring time, and after harvest, it was the custom of these musicians to make a progress through a particular district of the country. The music and the tale repaid their lodging, and they were usually gratified with a donation of seed corn^[63]. This order of minstrels is alluded to in the comic song of *Maggy Lauder*, who thus addresses a piper—

"Live ye upo' the border?"

By means of these men, much traditional poetry was preserved, which must otherwise have perished. Other itinerants, not professed musicians, found their welcome to their night's quarters readily [cxxix] insured by their knowledge in legendary lore. John Graeme, of Sowport, in Cumberland, commonly called *The Long Quaker*^[64], a person of this latter description, was very lately alive; and several of the songs, now published, have been taken down from his recitation. The shepherds also, and aged persons, in the recesses of the border mountains, frequently remember and repeat the warlike songs of their fathers. This is more especially the case in what are

called the South Highlands, where, in many instances, the same families have occupied the same possessions for centuries.

It is chiefly from this latter source that the editor has drawn his materials, most of which were collected, many years ago, during his early youth. But he has been enabled, in many instances, to supply [cxxx] and correct the deficiencies of his own copies, from a collection of border songs, frequently referred to in the work, under the title of *Glenriddell's MS*. This was compiled, from various sources, by the late Mr. Riddell, of Glenriddel, a sedulous border antiquary, and, since his death, has become the property of Mr. Jollie, bookseller at Carlisle; to whose liberality the editor owes the use of it, while preparing this work for the press. No liberties have been taken, either with the recited or written copies of these ballads, farther than that, where they disagreed, which is by no means unusual, the editor, in justice to the author, has uniformly preserved what seemed to him the best, or most poetical, reading of the passage. Such discrepancies must very frequently occur, wherever poetry is preserved by oral tradition; for the reciter, making it a uniform principle to proceed at all hazards, is very often, when his memory fails him, apt to substitute large portions from some other tale, altogether distinct from that which he has commenced. Besides, the prejudices of clans and of districts have occasioned variations in the mode of telling [cxxx] the same story. Some arrangement was also occasionally necessary, to recover the rhyme, which was often, by the ignorance of the reciters, transposed, or thrown into the middle of the line. With these freedoms, which were essentially necessary to remove obvious corruptions, and fit the ballads for the press, the editor presents them to the public, under the complete assurance, that they carry with them the most indisputable marks of their authenticity.

The same observations apply to the Second Class, here termed ROMANTIC BALLADS; intended to comprehend such legends as are current upon the border, relating to fictitious and marvellous adventures. Such were the tales, with which the friends of Spenser strove to beguile his indisposition:

"Some told of ladies, and their paramours;
Some of brave knights, and their renowned squires;
Some of the fairies, and their strange attires,

And some of giants, hard to be believed."

These, carrying with them a general, and not merely a local, interest, are much more extensively known among the peasantry of Scotland than the border-raid ballads, the fame of which is in general confined to [cxxxii] the mountains where they were originally composed. Hence, it has been easy to collect these tales of romance, to a number much greater than the editor has chosen to insert in this publication^[65]. With this class are now intermingled some lyric pieces, and some ballads, which, though narrating real events, have no direct reference to border history or manners. To the politeness and liberality of Mr. Herd, of Edinburgh, the editor of the first classical collection of Scottish songs and ballads (Edinburgh, 1774, 2 vols.), the editor is indebted for the use of his MSS., containing songs and ballads, published and unpublished, to the number of ninety and upwards. To this collection frequent references are made, in the course of the following pages. Two books of ballads, in MS., have also been communicated to me, by my learned and respected friend, Alexander Fraser Tytler, Esq^[66]. I take the liberty of transcribing Mr. Tytler's memorandum respecting the [cxxxiii] manner in which they came into his hands. "My father^[67] got the following songs from an old friend, Mr. Thomas Gordon, professor of philosophy, King's College, Aberdeen. The following extract of a letter of the professor to me, explains how he came by them:—"An aunt of my children, Mrs Farquhar, now dead, who was married to the proprietor of a small estate, near the sources of the Dee, in Braemar, a good old woman, who spent the best part of her life among flocks and herds, resided in her latter days in the town of Aberdeen. She was possest of a most tenacious memory, which retained all the songs she had heard from nurses and country-women in that sequestered part of the country. Being maternally fond of my children, when young, she had them much about her, and delighted them with her songs, and tales of chivalry. My youngest daughter, Mrs Brown, at Falkland, is blest with a memory as good as her aunt, and has almost the whole of her songs [cxxxiv] by heart. In conversation I mentioned them to your father, at whose request, my grandson, Mr Scott, wrote down a parcel of them, as his aunt sung them. Being then but a mere novice in music, he added, in the copy, such musical notes, as, he supposed, might give your father some notion of the airs, or rather lilt, to which they were sung."

From this curious and valuable collection, the editor has procured very material assistance. At the same time, it contains many beautiful legendary poems, of which he could not avail himself, as they seemed to be the exclusive property of the bards of Angus and Aberdeenshire. But the copies of such, as were known on the borders, have furnished him with various readings, and with supplementary stanzas, which he has frequent opportunities to acknowledge. The MSS. are cited under the name of Mrs. Brown of Falkland, the ingenious lady, to whose taste and memory the world is indebted for the preservation of the tales which they contain. The other authorities, which occur during the work, are particularly referred to. Much information has been [cxxxv] communicated to the editor, from various quarters, since the work was first published of which he has availed himself, to correct and enlarge the present edition.

In publishing both classes of ancient ballads, the editor has excluded those which are to be found in the common collections of this nature, unless in one or two instances, where he conceived it possible to give some novelty, by historical or critical illustration.

It would have been easy for the editor to have given these songs an appearance of more indisputable antiquity, by adopting the rude orthography of the period, to which he is inclined to refer them. But this (unless when MSS. of antiquity can be referred to) seemed too arbitrary an exertion of the privileges of a publisher, and must, besides, have unnecessarily increased the difficulties of many readers. On the other hand, the utmost care has been taken, never to reject a word or phrase, used by a reciter, however uncouth or antiquated. Such barbarisms, which stamp upon the tales their age and their nation, should be respected by an editor, as the hardy emblem of [cxxxvi] his country was venerated by the Poet of Scotland:

The rough bur-thistle spreading wide
Amang the bearded bear,
I turn'd the weeder-clips aside,
And spared the symbol dear.

BURNS.

The meaning of such obsolete words is usually given at the bottom of the page. For explanation of the more common peculiarities of the Scottish dialect, the English reader is referred to the excellent glossary annexed to the last edition of Burns' works.

The Third Class of Ballads are announced to the public, as MODERN IMITATIONS of the Ancient Style of composition, in that department of poetry; and they are founded upon such traditions as we may suppose in the elder times would have employed the harps of the minstrels. This kind of poetry has been supposed capable of uniting the vigorous numbers and wild fiction, which occasionally charm us in the ancient ballad, with a greater equality of versification, and elegance of sentiment, than we can expect to find in the works of a rude age. But, [cxxxvii] upon my ideas of the nature and difficulty of such imitations, I ought in prudence to be silent; lest I resemble the dwarf, who brought with him a standard to measure his own stature. I may, however, hint at the difference, not always attended to, betwixt legendary poems and real imitations of the old ballad; the reader will find specimens of both in the modern part of this collection. The legendary poem, called *Glenfinlas*, and the ballad, entitled the *Eve of St. John*, were designed as examples of the difference betwixt these two kinds of composition.

It would have the appearance of personal vanity, were the editor to detail the assistance and encouragement which he has received, during his undertaking, from some of the first literary characters of our age. The names of Stuart, Mackenzie, Ellis, Currie, and Ritson, with many others, are talismans too powerful to be used, for bespeaking the world's favour to a collection of old songs; even although a veteran bard has remarked, "that both the great poet of Italian rhyme, Petrarch, and our Chaucer, and other of the upper house of the muses, [cxxxviii] have thought their canzons honoured in the title of a ballad." To my ingenious friend, Dr. John Leyden, my readers will at once perceive that I lie under extensive obligations, for the poetical pieces, with which he has permitted me to decorate my compilation; but I am yet farther indebted to him for his uniform assistance, in collecting and arranging materials for the work.

In the notes, and occasional dissertations, it has been my object to throw together, perhaps without sufficient attention to method, a variety of

remarks, regarding popular superstitions, and legendary history, which, if not now collected, must soon have been totally forgotten. By such efforts, feeble as they are, I may contribute somewhat to the history of my native country; the peculiar features of whose manners and character are daily melting and dissolving into those of her sister and ally. And, trivial as may appear such an offering, to the manes of a kingdom, once proud and independent, I hang it upon her altar with a mixture of feelings, which I shall not attempt to describe.

[cxxxix] "—Hail, land of spearmen! seed of those who scorn'd
To stoop the proud crest to Imperial Rome!
Hail! dearest half of Albion, sea-wall'd!
Hail! state unconquer'd by the fire of war,
Red war, that twenty ages round thee blaz'd!
To thee, for whom my purest raptures flow,
Kneeling with filial homage, I devote
My life, my strength, my first and latest song."

[cxl]

APPENDIX. No. I.

LETTER FROM THE EARL OF SURREY, TO HENRY VIII. GIVING AN ACCOUNT OF THE STORM OF JEDBURGH.

Cott. MSS. Calig. B. III. fol. 29.

"Pleisith it your grace to be advertised, that upon Fridaye, at x a clok at nyght, I retourned to this towne, and all the garnysons to their places assigned, the bushopricke men, my Lorde of Westmoreland, and my Lord Dacre, in likewise evry man home with their companys, without los of any men, thanked be God; saving viii or x slayne, and dyvers hurt, at skyrmyshis and saults of the town of Gedwurth, and the forteressis, which towne is soo suerly brent, that no garnysons ner [cxli] none other shal bee lodged there, unto the tyme it bee newe buylded; the brennyng whereof I comytted to twoo sure men, Sir William Bulmer, and Thomas Tempeste. The towne was moche bettir then I went (*i.e.* ween'd) it had been, for there was twoo tymys moo houses therein then in Berwike, and well buylded, with many honest and faire houses therein, sufficiente to have lodged M horsemen in garnyson, and six good towres therein; whiche towne and towres be clenely distroyed, brent, and throwen downe. Undoubtedly there was noo journey made into Scotland, in noo manys day leving, with soo fewe a nombre that is recownted to be soo high an enterprice as this, bothe with thies contremen, and Scottishmen, nor of truthe so moche hurt doon. But in th' ende a great mysfortune ded fall, onely by folly, that such ordre, as was commaunded by me to be kepte, was not observed, the maner whereof hereaftir shall ensue. Bifore myn entre into Scotland, I appointed Sir William Bulmer and Sir William Evers too be marshallis of th' army; Sir William Bulmer for the vangard, and Sir William Evers for the reregard. In the vangard I appointed my Lord of Westmoreland, as chief, with all the bushopricke, Sir William Bulmer, Sir William Evers, my Lord Dacre, with all his company; and with me remayned all the rest of the garnysons, and the Northumberland men. I was of counsaill with the marshallis at th'

ordering of our lodgingg, and our campe was soo well enviorned with ordynance, carts, and dikes, that hard it was to entre or issue, but at certain places appointed for [cxlii] that purpos, and assigned the mooste commodious place of the saide campe for my Lord Dacre company, next the water, and next my Lord of Westmoreland. And at suche tyme as my Lord Dacre came into the fald, I being at the sault of th' abby, whiche contynued unto twoo houres within nyght, my seid Lord Dacre wold in nowise bee contente to ly within the campe, whiche was made right sure, but lodged himself without, wherewith, at my retourne, I was not contente, but then it was to late to remove; the next daye I sente my seid Lorde Dacre to a strong hold, called Fernherst, the lorde whereof was his mortal enemy; and with hym, Sir Arthur Darcy, Sir Marmaduke Constable, with viii c. of their men, one cortoute, and dyvers other good peces of ordynance for the feld (the seid Fernherste stode marvelous strongly, within a grete woode); the seid twoo knights with the moost parte of their men, and Strickland, your grace servaunte, with my Kendall men, went into the woode on fote, with th' ordynance, where the said Kendall men were soo handled, that they found hardy men, that went noo foote back for theym; the other two knightes were alsoo soo sharply assayled, that they were enforced to call for moo of their men; and yet could not bring the ordynance to the forteresse, unto the tyme my Lord Dacre, with part of his horsemen, lighted on fote; and marvelously hardly handled himself, and fynally, with long skirmyshing, and moche difficultie, gat forthe th' ordynance within the howse and threwe [cxliii] downe the same. At which skyrmyshe, my seid Lord Dacre, and his brother, Sir Cristofer, Sir Arthure, and Sir Marmaduke, and many other gentilmen, did marvellously hardly; and found the best resistance that hath been seen with my comyng to their parties, and above xxxii Scottis sleyne, and not passing iiij Englishmen, but above lx hurt. Aftir that, my seid lord retournyng to the campe, wold in nowise bee lodged in the same, but where he laye the furst nyght. And he being with me at souper, about viij a klok, the horses of his company brak lowse, and sodenly ran out of his feld, in such nombre, that it caused a marvellous alarome in our feld; and our standing watche being set, the horses cam ronnyng along the campe, at whome were shot above one hundred shief of arrowes, and dyvers gonnys, thinking they had been Scotts, that wold have saulted the campe; fynally the horses were soo madde, that they ran like wild dere into the feld; above xv c. at the leest, in dyvers companys, and, in one place,

above I felle downe a gret rok, and slewe theymself, and above ij c. ran into the towne being on fire, and by the women taken, and carried awaye right evill brent, and many were taken agayne. But, fynally, by that I can esteme by the nombre of theym that I sawe goo on foote the next daye, I think thare is lost above viij c. horses, and all with foly for lak of not lying within the camp. I dare not write the wondres that my Lord Dacre, and all his company, doo saye they sawe that nyght, vj. tymys [cxliv] of spirits and fereful sights. And unyversally all their company saye playnly, the devill was that nyght among theym vi tymys; whiche mysfortune hath blemysht the best journey that was made in Scotland many yeres. I assure your grace I found the Scottes, at this tyme, the boldest men, and the hottest, that ever I sawe any nation, and all the journey, upon all parts of th' army, kepte us with soo contynuall skyrmyshe, that I never sawe the like. If they myght assemble xl M as good men as I nowe sawe, xv c or ij M, it wold bee a hard encountre to mete theym. Pitie it is of my Lord Dacres losse of the horses of his company; he brought with hym above iiij M. men, and came and lodged one night in Scotland, in his moost mortal enemy's centre. There is noo herdyer, ner bettir knyght, but often tyme he doth not use the most sure order, which he hath nowe payed derely for. Written at Berwike the xxvij of September.

Your most bownden,

T. SURREY.

APPENDIX, No. II.

HISTORY OF GEORDIE BOURNE.

In the following passages, extracted from the memoirs of Sir Robert Carey, then deputy of his father, Lord Hunsdon, warden of the east marches, afterwards Earl of Monmouth, the reader will find a lively illustration of the sketch given of border manners in the preceding Introduction.

"Having thus ended with my brother, I then beganne to thinke of the charge I had taken upon mee, which was the government of the east march, in my father's absence. I wrote to Sir Robert Kerr^[68], who was my opposite warden, a brave active young man, and desired him that hee would appoint a day, when hee and myselfe might privately meet in some part of the border, to take some good order for the quieting the borders, till my retourne from London, which journey I was shortly of [cxlvi] necessity to take. Hee stayed my man all night, and wrote to mee back, that hee was glad to have the happinesse to be acquainted with mee, and did not doubt but the country would be better governed by our good agreements. I wrote to him on the Monday, and the Thursday after hee appointed the place and hour of meeting.

"After hee had filled my man with drinke, and putt him to bed, hee, and some halfe a score with him, gott to horse, and came into England to a little village. There hee broke up a house, and tooke out a poore fellow, who (hee pretended) had done him some wrong, and before the doore cruelly murthered him, and so came quietly home, and went to bed. The next morning hee delivered my man a letter in answer to mine, and retourned him to mee. It pleased mee well at the reading of his kinde letter; but when I heard what a *brave* hee had put upon mee, I quickly resolved what to do, which was, never to have to do with him, till I was righted for the greate wrong hee had done mee. Upon this resolution, the day I should have mett with him I tooke post, and with all the haste I could, rode to London,

leaving him to attend my coming to him as was appointed. There hee stayed from one till five, but heard no news of mee. Finding by this that I had neglected him, hee retourned home to his house, and so things rested (with greate dislike the one of the other) till I came back, which was with all the speede I could, my businesse being ended. The first thing [cxlvii] I did after my retourne, was to ask justice for the wrong hee had done mee; but I could gett none. The borderers, seeing our disagreement, they thought the time wished for of them was come. The winter being beganne, their was roades made out of Scotland into the east march, and goods were taken three or foure times a weeke. I had no other meanes left to quiet them, but still sent out of the garrison horsemen of Berwick, to watch in the fittest places for them, and it was their good hap many times to light upon them, with the stolen goods driving before them. They were no sooner brought before mee, but a jury went upon them, and, being found guilty, they were frequently hanged: a course which hath been seldom used, but I had no way to keep the country quiet but to do so; for, when the Scotch theeves found what a sharp course I tooke with them, that were found with the bloody hand, I had in a short time the country more quiet. All this while wee were but in jest as it were, but now beganne the greate quarrell betweene us.

"There was a favorite of his, a greate theife, called Geordie Bourne. This gallant, with some of his associates would, in a bravery, come and take goods in the east march. I had that night some of the garrison abroad. They met with this Geordie and his fellowes, driving of cattle before them. The garrison set upon them, and with a shott killed Geordie Bourne's unckle, and hee himselfe bravely resisting till he was sore hurt in the head, was taken. After hee was taken, his [cxlviii] pride was such, as hee asked, who it was that durst avow that nightes worke? but when hee heard it was the garrison, he was then more quiet. But so powerfull and awfull was this Sir Robert Kerr, and his favourites, as there was not a gentleman in all the east march that durst offend them. Presently after hee was taken, I had most of the gentlemen of the march come to mee, and told mee, that now I had the ball at my foote, and might bring Sir Robert Kerr to what conditions I pleased; for that this man's life was so neere and deare unto him, as I should have all that my heart could desire, for the good and quiet of the country and myselfe, if upon any condition I would give him his life. I heard them and their reasons; notwithstanding, I called a jury the next morning, and hee

was found guilty of MARCH TREASON. Then they feared that I would cause him to be executed that afternoone, which made them come flocking to mee, humbly entreating mee, that I would spare his life till the next day, and if Sir Robert Kerr came not himselfe to mee, and made mee not such proffers, as I could not but accept, that then I should do with him what I pleased. And further, they told mee plainly, that if I should execute him, before I had heard from Sir Robert Kerr, they must be forced to quitt their houses and fly the country; for his fury would be such, against mee and the march I commanded, as hee would use all his power and strength to the utter destruction of the east march. They were so earnest with mee, that I gave them my word hee should not dye that day. There was [cxlix] post upon post sent to Sir Robert Kerr, and some of them rode to him themselves, to advertise him in what danger Geordie Bourne was; how he was condemned, and should have been executed that afternoone, but, by their humble suite, I gave them my word, that he should not dye that day; and therefore besought him, that hee would send to mee, with all the speede hee could, to let mee know, that hee would be the next day with mee to offer mee good conditions for the safety of his life. When all things were quiet, and the watch set at night, after supper, about ten of the clock, I tooke one of my men's liveryes, and putt it about mee, and tooke two other of my servants with mee in their liveryes, and we three, as the warden's men, came to the provost marshall's, where Bourne was, and were lett into his chamber. Wee sate down by him, and told him, that wee were desirous to see him, because wee heard hee was stoute and valiant, and true to his friend; and that wee were sorry our master could not be moved to save his life. He voluntarily of himselfe said, that hee had lived long enough to do so many villainies as hee had done; and withal told us, that hee had layne with about forty men's wives, what in England, what in Scotland; and that hee had killed seven Englishmen with his own hands, cruelly murthering them: that hee had spent his whole time in whoreing, drinking, stealing, and taking deep revenge for slight offences. Hee seemed to be very penitent, and much desired a minister for the comfort of his soule. Wee promised him to lett our master know his [cl] desire, who, wee knew, would presently grant it. Wee tooke our leaves of him, and presently I tooke order, that Mr. Selby, a very worthy honest preacher, should go to him, and not stirre from him till his execution the next morning; for, after I had heard his own confession, I was resolved no conditions should save his life: and so tooke order, that at the

gates opening the next morning, hee should be carried to execution, which accordingly was performed. The next morning I had one from Sir Robert Kerr for a parley, who was within two miles staying for mee. I sent him word, "I would meet him where hee pleased, but I would first know upon what termes and conditions." Before his man was retourned, hee had heard, that in the morning, very early, Geordie Bourne had been executed. Many vowes hee made of cruell revenge, and retourned home full of grieve and disdaine, and, from that time forward still plotted revenge. Hee knew the gentlemen of the country were altogether sacklesse, and to make open road upon the march would but shew his malice, and lay him open to the punishment due to such offences. But his practice was how to be revenged on mee, or some of mine.

"It was not long after that my brother and I had intelligence, that there was a great match made at footeball and the chiefe ryders were to be there. The place they were to meet at was Kelsy, and that day, wee heard it, was the day for the meeting. Wee presently called a [cli] counsaile, and after much dispute it was concluded, that the likeliest place hee was to come to, was to kill the scoutes. And it was the more suspected, for that my brother, before my coming to the office, for the cattaile stolne out of the bounds, and as it were from under the walles of Barwicke, being refused justice (upon his complaint,) or at least delaid, sent off the garrison into Liddisdale, and killed there the chiefe offender, which had done the wrong.

"Upon this conclusion, there was order taken, that both horse and foote should lye in ambush, in diverse parts of the boundes, to defend the scoutes, and to give a sound blow to Sir Robert and his company. Before the horse and foote were sett out with directions what to do, it was almost darke night, and the gates ready to be lockt. Wee parted, and as I was by myselfe comeing to my house, God put it into my mind, that it might well be, hee meant destruction to my men, that I had sent out to gather tithes for mee at Norham, and their rendezvous was every night to lye and sup at an ale-house in Norham. I presently caused my page to take horse, and to ride as fast as his horse could carry him, and to command my servants (which were in all eight) that, presently upon his coming to them, they should all change their lodging, and go streight to the castle, there to lye that night in strawe and hay. Some of them were unwilling thereto, but durst not disobey; so altogether left their ale-house, and retired to the castle. They had not well

settled themselves to sleep, but they [clii] heard in the town a great alarm; for Sir Robert and his company came streight to the ale-house, broke open the doors, and made enquiry for my servants. They were answered, that by my command they were all in the castle. After they had searched all the house, and found none, they feared they were betrayed, and, with all the speede they could, made haste homewards again. Thus God blessed me from this bloody tragedy.

"All the whole march expected nightly some hurt to be done; but God so blessed mee and the government I held, as, for all his fury, hee never drew drop of blood in all my march, neither durst his theeves trouble it much with stealing, for fear of hanging, if they were taken. Thus wee continued a yeare, and then God sent a meanes to bring thinges to better quiet by this occasion.

"There had been commissioners in Barwicke, chosen by the queene and king of Scottes, for the better quieting of our borders. By their industry they found a great number of malefactors guilty, both in England and Scotland; and they tooke order, that the officers of Scotland should deliver such offenders, as were found guilty in their jurisdictions, to the opposite officers in England, to be detained prisoners, till they had made satisfaction for the goods they had taken out of England. The like order was taken with the wardens of England, and days prefixed for the delivery of them all. And in case [cliii] any of the officers, on either side, should omit their duties, in not delivering the prisoners at the dayes and places appointed, that then there should a course be taken by the soveraignes, that what chiefe officer soever should offend herein, he himself should be delivered and detained, till he had made good what the commissioners had agreed upon.

"The English officers did punctually, at the day and place, deliver their prisoners, and so did most of the officers of Scotland; only the Lord of Bogleuch and Sir Robert Kerr were faultie. They were complained of, and new dayes appointed for the delivery of their prisoners. Bogleuch was the first, that should deliver; and hee failing entered himselfe prisoner into Barwicke, there to remaine till those officers under his charge were delivered to free him. He chose for his guardian Sir William Selby, master of the ordinance at Barwicke. When Sir Robert Kerr's day of delivery came, he failed too, and my Lord Hume, by the king's command, was to deliver

him prisoner into Barwicke upon the like termes, which was performed. Sir Robert Kerr (contrary to all men's expectation) chose mee for his guardian, and home I brought him to my own house, after hee was delivered to mee. I lodged him as well as I could, and tooke order for his diet, and men to attend on him, and sent him word, that (although by his harsh carriage towards mee, ever since I had that charge, he could not expect any favour, yet) hearing so much goodness of him, that hee [cxliv] never broke his word, if hee should give mee his hand and credit to be a true prisoner, hee would have no guard sett upon him, but have free liberty for his friends in Scotland to have ingresse and regresse to him as oft as hee pleased. He tooke this very kindly at my handes, accepted of my offer, and sent me thanks.

"Some four dayes passed; all which time his friends came into him, and hee kept his chamber. Then hee sent to mee, and desired mee, I would come and speake with him, which I did; and after long discourse, charging and re-charging one another with wrong and injuries, at last, before our parting, wee became good friends, with greate protestations, on his side, never to give mee occasion of unkindnesse again. After our reconciliation hee kept his chamber no longer, but dined and supt with mee. I tooke him abroad with mee at the least thrice a weeke, a hunting, and every day wee grew better friends. Bogleuch, in a few dayes after, had his pledges delivered, and was set at liberty. But Sir Robert Kerr could not get his, so that I was commanded to carry him to Yorke, and there to deliver him prisoner to the archbishop, which accordingly I did. At our parting, he professed greate love unto mee for the kinde usage I had shewn him, and that I would find the effects of it upon his delivery, which hee hoped would be shortly.

"Thus wee parted; and, not long after, his pledges were gott, and brought to Yorke, and hee sett at liberty. After his retourne home, I found him as good as his word. Wee met oft at dayes of truce, and I [clv] had as good justice as I could desire; and so wee continued very kinde and good friends, all the time that I stayed in that march, which was not long."

APPENDIX, No. III.

MAITLAND'S COMPLAYNT AGANIS THE THIEVIS OF LIDDISDAIL, FROM PINKERTON'S EDITION, COLLATED WITH A MS. OF MAITLAND'S POEMS, IN THE LIBRARY OF EDINBURGH COLLEGE.

Of Liddisdail the commoun theifis
Sa peartlie steillis now and reifis,
That nane may keip
Horse, nolt, nor scheip,
Nor yett dar sleip
For their mischeifis.

[clvii] Thay plainly throw the country rydis,
I trow the mekil devil thame gydis!
Quhair they onsett,
Ay in thair gaitt,
Thair is na yet
Nor dor, thame bydis.
Thay leif rich nocht, quhair ever thay ga;
Thair can na thing be hid thame fra;
For gif men wald
Thair housis hald,
Than waxe thay bald,
To burne and slay.
Thay thieves have neirhand herreit hail,
Ettricke forest and Lawderdaill;
Now are they gane,
In Lawthiane;
And spairis nane
That thay will wail.
Thay landis ar with stouth sa socht,
To extreame povertye ar broucht,

Thay wicked schrowis
Has laid the plowis,
That nane or few is
That are left oucht.

[clviii] Bot commoun taking of blak mail,
Thay that had flesche, and breid and aill,
Now are sa wrakit,
Made bair and nakit,
Fane to be slaikit
With watter caill.
Thay theifs that steillis and tursis hame,
Ilk ane of them has ane to-name^[69];
Will of the Lawis,
Hab of the Schawis:
To mak bair wawis
Thay thinke na schame.
Thay spuilye puir men of their pakis,
Thay leif them nocht on bed nor bakis;
Baith hen and cok,
With reil and rok,
The Lairdis Jok,
All with him takis.

[clix] Thay leif not spindell, spoone, nor speit;
Bed, boster, blanket, sark, nor scheit;
Johne of the Parke
Ryps kist and ark;
For all sic wark
He is richt meit.
He is weil kend, John of the Syde;
A greater theif did never ryde.
He never tyris
For to brek byris:
Ouir muir and myris
Ouir gude ane gyde.
Thair is ane, callet Clement's Hob,
Fra ilk puir wyfe reifis the wob,
And all the lave,

Quhatever they haife,
The devil recave
Thairfoir his gob.
To sic grit stouth quha eir wald trow it,
Bot gif some great man it allowit
Rycht sair I trow
Thocht it be rew:
Thair is sa few
That dar avow it.

[clx] Of sum great men they have sic gait,
That redy are thame to debait,
And will up weir
Thair stolen geir;
That nane dare steir
Thame air nor late.
Quhat causis theifis us ourgang,
Bot want of justice us amang?
Nane takis cair,
Thocht all for fear;
Na man will spair
Now to do wrang.
Of stouth thocht now thay come gude speid,
That nother of men nor God has dreid;
Yet, or I die,
Sum sail thame sie,
Hing on a trie
Quhill thay be deid—

Quo' Sir R.M. of Lethington, knicht.

APPENDIX, No. IV.

BOND OF ALLIANCE, OR FEUD STAUNCHING, BETWIXT THE CLANS OF SCOTT AND KER.

The battle of Melrose (see Introduction, p. xvii.) occasioned a deadly feud betwixt the name of Scott and Ker. The following indenture was designed to reconcile their quarrel. But the alliance, if it ever took effect, was not of long duration; for the feud again broke out about 1553, when Sir Walter Scott was slain by the Kers, in the streets of Edinburgh.

"Thir indentures, made at Ancrum the 16th of March, 1529 years, contains, proports, and bears leil and suithfast witnessing. That it is appointed, agreed, and finally accorded betwixt honourable men; that is to say, Walter Ker of Cessford, Andrew Ker of Fairnieherst, Mark Ker of Dolphinston, George Kerr, tutor of Cessford, and Andrew Ker of Primesideloch, for themselves, kin, friends, mentenants, assisters, allies, adherents, and partakers, on the one part; and Walter Scot of Branxholm, knight, Robert Scot of Allanhaugh, Robert Scot, tutor of Howpaisy, John Scot of Robertson, and Walter Scot of Stirkshaws, for themselves, their kin, friends, mentenants, servants, assisters, and adherents, on the other part; in manner, form, and effect, as after follows: For staunching all discord and variance betwixt them, and for furth-bearing of the king's authority, and punishing trespasses, and for amending all slaughters, heritages, and steedings, and all other pleas concerning thereto, either of these parties to others, and for unité, friendship, and concord, to be had in time coming 'twixt them, of our sovereign lord's special command: that is to say, either of the said parties, be the tenor hereof, remits and forgives to others the rancour, hatred, and malice of their hearts; and the said Walter Scot of Branxholm shall gang, or cause gang, at the will of the party, to the four head pilgrimages of Scotland, and shall say a mass for the souls of umquhile Andrew Ker of Cessford, and them that were slain in his company, in the field of Melrose; and, upon his expence, shall cause a chaplain say a mass daily, when he is

disposed, in what place the said Walter Ker and his [clxii] friends pleases, for the well of the said souls, for the space of five years next to come.—Mark Ker of Dolphinston, Andrew Kerr of Graden, shall gang, at the will of the party, to the four head pilgrimages of Scotland, and shall gar say a mass for the souls of umquhile James Scot of Eskirk, and other Scots, their friends, slain in the field of Melrose; and, upon their expence, shall gar a chaplain say a mass daily, when he is disposed, for the heal of their souls, where the said Walter Scot and his friends pleases, for the space of three years next to come: and the said Walter Scot of Branhholm shall marry his son and heir upon one of the said Walter Ker his sisters; he paying, therefor, a competent portion to the said Walter Ker and his heir, at the sight of the friends of baith parties. And also, baith the saids parties bind and oblige them, be the faith and truth of their bodies, that they abide at the decret and deliverance of the six men chosen arbiters, anent all other matters, quarrels, actiones, and debates, whilk either of them likes to propone against others betwixt the saids parties: and also the six arbiters are bound and obliged to decret and deliver, and give forth their deliverance thereuntil, within year and day after the date hereof.—And attour, either of the saids parties bind and oblige them, be the faith and truth of their bodies, ilk ane to others, that they shall be leil and true to others, and neither of them will another's skaith, but they shall let it at their power, and give to others their best counsel, and it be asked; and [clxiii] shall take leil and aeffald part ilk ane with others, with their kin, friends, servants, allies, and partakers, in all and sundry their actions, quarrels, and debates, against all that live and die (may the allegiance of our sovereign lord the king allenarly be excepted).—And for the obliging and keeping all thir premises above written, baith the saids parties are bound and obliged, ilk ane to others, be the faith and truth of their bodies, but fraud or guile, under the pain of perjury, men-swearing, defalcation, and breaking of the bond of deadly. And, in witness of the whilk, ilk ane to the procuratory of this indenture remain with the said Walter Scot and his friends, the said Walter Ker of Cessford has affixed his proper seal, with his subscription manual, and with the subscription of the said Andrew Ker of Fairnieherst, Mark Ker of Dolphinston, George Ker, tutor of Cessford, and Andrew Ker of Primesideloch, before these witnesses, Mr. Andrew Drurie, abbot of Melrose, and George Douglas of Boonjedward, John Riddel of that ilk, and William Stewart.

Sic Subscribitur,

WALTER KER of Cessford.

ANDREW KER of Fairnieherst.

MARK KER.

GEORGE KER.

ANDREW KER of Primesideloch."

N.B. The four pilgrimages are Scoon, Dundee, Paisley, and Melrose.

APPENDIX, No. V.

ANE INTERLUDE OF THE LAYING OF A GAIST.

This burlesque poem is preserved in the Bannatyne MSS. It is in the same strain with the verses concerning the *Gyre Carline* (Vol. II.) As the mention of *Bettokis Bowr* occurs in both pieces, and as the scene of both is laid in East Lothian, they are perhaps composed by the same author. The humour of these fragments seems to have been directed against the superstitions of Rome; but it is now become very obscure. Nevertheless, the verses are worthy of preservation, for the sake of the ancient language and allusions.

Listen lordis, I sall you tell,
Off ane very grit marvell,
Off Lord Fergusis gaist,
How meikle Sir Andro it chest,
[clxv] Unto Beittokis bour,
The silly sawle to succour:
And he hes writtin unto me,
Auld storeis for to se,
Gif it appinis him to meit,
How he sall conjure the spreit:
And I haif red mony quars,
Bath the Donet, and Dominus que pars,
Ryme maid, and als redene,
Baith Inglis and Latene:
And ane story haif I to reid,
Passes Bonitatem in the creid.
To conjure the litill gaist he mon haif
Of tod's tails ten thraif,
And kast the grit holy water
With pater noster, pitter patter;
And ye man sit in a compas,

And cry, Harbert tuthless,
Drag thow, and ye's draw,
And sit thair quhill cok craw.
The compas mon hallowit be
With aspergis me Domine;
The haly writ schawis als
Thair man be hung about your bals
Pricket in ane woll poik
Of neis powder ane grit loik.
Thir thingis mon ye beir,
Brynt in ane doggis eir,

[clxvi] Ane pluck, ane pindill, and ane palme cors,

Thre tuskis of ane awld hors,
And of ane yallow wob the warp,
The boddome of ane awld herp,
The held of ane cuttit reill,
The band of an awld quheill,
The taill of ane yeild sow,
And ane bait of blew wow,
Ane botene, and ane brechame,
And ane quhorle made of lame,
To luke out at the litill boir,
And cry, Crystis crosse, you befoir:
And quhen ye see the litill gaist,
Cumand to you in all haist,
Cry loud, Cryste eleisone,
And speir quhat law it levis on?
And gif it sayis on Godis ley,
Than to the litill gaist ye say,
With braid benedicite;
—"Litill gaist, I conjure the,
With lerie and larie,
Bayth fra God, and Sanct Marie,
First with ane fischis mouth,
And syne with ane sowlis towth,
With ten pertane tais,
And nyne knokis of windil strais,

With thre heidis of curle doddy."—
And bid the gaist turn in a boddy.

[clxvii] Then efter this conjuratioun,
The litill gaist will fall in soun,
And thair efter down ly,
Cryand mercy petously;
Than with your left heil sane,
And it will nevir cum agane,
As meikle as a mige amaist.^[70]
He had a litill we leg,
And it wes cant as any cleg,
It wes wynd in ane wynden schet,
Baythe the handis and the feit:
Suppose this gaist wes litill
Yit it stal Godis quhitell;
It stal fra peteous Abrahame,
Ane quhorle and ane quhim quhame;
It stal fra ye carle of ye mone
Ane payr of awld yin schone;
It rane to Pencatelane,
And wirreit ane awld chaplane;
This litill gaist did na mair ill
Bot klok lyk a corn mill;
And it wald play and hop,
About the heid ane stre strop;
And it wald sing and it wald dance,
Oure fute, and Orliance.

[clxviii] Quha conjurit the litill gaist say ye?
Nane bot the litill Spenzie fle,
That with hir wit and her ingyne,
Gart the gaist leif agane;
And sune mareit the gaist the fle,
And croun'd him King of Kandelie;
And they gat them betwene,
Orpheus king, and Elpha quene.^[71]
To reid quha will this gentill geist,
Ye hard it not at Cockilby's feist.^[72]

[clxix]

APPENDIX, No. VI.

SUPPLEMENTAL STANZAS TO COLLINS'S ODE ON THE SUPERSTITIONS OF THE HIGHLANDS.

BY

WILLIAM ERSKINE, ESQ. ADVOCATE.

The editor embraces this opportunity of presenting the reader with the following stanzas, intended to commemorate some striking Scottish superstitions, omitted by Collins in his ode upon that subject; and which, if the editor can judge with impartiality of the production of a valued friend, will be found worthy of the sublime original. The reader must observe, that these verses form a continuation of the [clxx] address, by Collins, to the author of *Douglas*, exhorting him to celebrate the traditions of Scotland. They were first published in the *Edinburgh Magazine*, for April, 1788.

Thy muse may tell, how, when at evening's close,
To meet her love beneath the twilight shade,
O'er many a broom-clad brae and heathy glade,
In merry mood the village maiden goes;
There, on a streamlet's margin as she lies,
Chaunting some carol till her swain appears,
With visage deadly pale, in pensive guise,
Beneath a wither'd fir his form he rears!^[73]
Shrieking and sad, she bends her irie flight,
When, mid dire heaths, where flits the taper blue,
The whilst the moon sheds dim a sickly light,
The airy funeral meets her blasted view!
When, trembling, weak, she gains her cottage low,

Where magpies scatter notes of presage wide,
Some one shall tell, while tears in torrents flow,
That, just when twilight dimm'd the green hill's side,
Far in his lonely sheil her hapless shepherd died.

[clxxi] Let these sad strains to lighter sounds give place!
Bid thy brisk viol warble measures gay!
For see! recall'd by thy resistless lay,
Once more the Brownie shews his honest face.
Hail, from thy wanderings long, my much lov'd sprite!
Thou friend, thou lover of the lowly, hail!
Tell, in what realms thou sport'st thy merry night,
Trail'st the long mop, or whirl'st the mimic flail.
Where dost thou deck the much-disordered hall,
While the tired damsel in Elysium sleeps,
With early voice to drowsy workman call,
Or lull the dame, while mirth his vigils keeps?
'Twas thus in Caledonia's domes, 'tis said,
Thou ply'dst the kindly task in years of yore:
At last, in luckless hour, some erring maid
Spread in thy nightly cell of viands store:
Ne'er was thy form beheld among their mountains more.^[74]
Then wake (for well thou can'st) that wond'rous lay,
How, while around the thoughtless matrons sleep,
Soft o'er the floor the treacherous fairies creep,
And bear the smiling infant far away:
How starts the nurse, when, for her lovely child,
She sees at dawn a gaping idiot stare!
O snatch the innocent from demons vilde,
And save the parents fond from fell despair!

[clxxii] In a deep cave the trusty menials wait,
When from their hilly dens, at midnight's hour,
Forth rush the airy elves in mimic state,
And o'er the moon-light heath with swiftness scour:
In glittering arms the little horsemen shine;
Last, on a milk-white steed, with targe of gold,
A fay of might appears, whose arms entwine
The lost, lamented child! the shepherds bold^[75]

The unconscious infant tear from his unhallowed hold.

[1]

MINSTRELSY OF THE SCOTTISH BORDER.

PART FIRST.

HISTORICAL BALLADS.

[2]

[3]

SIR PATRICK SPENS.

One edition of the present ballad is well known; having appeared in the *Reliques of Ancient Poetry*, and having been inserted in almost every subsequent collection of Scottish songs. But it seems to have occurred to no editor, that a more complete copy of the song might be procured. That, with which the public is now presented, is taken from two MS. copies,^[76] collated with several verses recited by the editor's friend, Robert Hamilton, Esq. advocate, being the 16th, and the four which follow. But, even with the assistance of the common copy, the ballad seems still to be a fragment. The cause of Sir Patrick Spens' voyage is, however, pointed out distinctly; and it shews, that the song has claim to high antiquity, as referring to a very remote period in Scottish history.

[4]

Alexander III. of Scotland died in 1285; and, for the misfortune of his country, as well as his own, he had been bereaved of all his children before his decease. The crown of Scotland descended upon his grand-daughter, Margaret, termed, by our historians, the *Maid of Norway*. She was the only offspring of a marriage betwixt Eric, king of Norway, and Margaret, daughter of Alexander III. The kingdom had been secured to her by the parliament of Scotland, held at Scone, the year preceding her grandfather's death. The regency of Scotland entered into a congress with the ministers of the king of Norway and with those of England, for the establishment of good order in the kingdom of the infant princess. Shortly afterwards, Edward I. conceived the idea of matching his eldest son, Edward, Prince of Wales, with the young queen of Scotland. The plan was eagerly embraced by the Scottish nobles; for, at that time, there was little of the national animosity, which afterwards blazed betwixt the countries, and they patriotically looked forward to the important advantage, of uniting the island of Britain into one kingdom. But Eric of Norway seems to have been unwilling to deliver up his daughter; and, while the negotiations were thus

protracted, the death of the Maid of Norway effectually crushed a scheme, the consequences of which might have been, that the distinction betwixt England and Scotland would, in our day, have been as obscure and uninteresting as that of the realms of the heptarchy.—*Hailes' Annals. Fordun, &c.*

[5]

The unfortunate voyage of Sir Patrick Spens may really have taken place, for the purpose of bringing back the Maid of Norway to her own kingdom; a purpose, which was probably defeated by the jealousy of the Norwegians, and the reluctance of King Eric. I find no traces of the disaster in Scottish history; but, when we consider the meagre materials, whence Scottish history is drawn, this is no conclusive argument against the truth of the tradition. That a Scottish vessel, sent upon such an embassy, must, as represented in the ballad, have been freighted with the noblest youth in the kingdom, is sufficiently probable; and, having been delayed in Norway, till the tempestuous season was come on, its fate can be no matter of surprise. The ambassadors, finally sent by the Scottish nation to receive their queen, were Sir David Wemyss, of Wemyss, and Sir Michael Scot of Balwearie; the same, whose knowledge, surpassing that of his age, procured him the reputation of a wizard. But, perhaps, the expedition of Sir Patrick Spens was previous to their embassy. The introduction of the king into the ballad seems a deviation from history; unless we suppose, that Alexander was, before his death, desirous to see his grand-child and heir.

The Scottish monarchs were much addicted to "sit in Dumfermline town," previous to the accession of the Bruce dynasty. It was a favourite abode of Alexander himself, who was killed by a fall from his horse, in the vicinity, and was buried in the abbey of Dumfermline.

[6]

There is a beautiful German translation of this ballad, as it appeared in the *Reliques*, in the Volk-Lieder of Professor Herder; an elegant work, in which it is only to be regretted, that the actual popular songs of the Germans form so trifling a proportion.

The tune of Mr. Hamilton's copy of *Sir Patrick Spens* is different from that, to which the words are commonly sung; being less plaintive, and having a bold nautical turn in the close.

[7]

SIR PATRICK SPENS.

The king sits in Dumfermline town,
Drinking the blude-red wine;
"O^[77] whare will I get a skeely skippe^[78],
"To sail this new ship of mine?"
O up and spake an eldern knight,
Sat at the king's right knee,—
"Sir Patrick Spens is the best sailor,
"That ever sail'd the sea."
Our king has written a braid letter.
And seal'd it with his hand,
And sent it to Sir Patrick Spens,
Was walking on the strand.
"To Noroway, to Noroway,
[8] "To Noroway o'er the faem;
"The king's daughter of Noroway,
"'Tis thou maun bring her hame."
The first word that Sir Patrick read,
Sae loud loud laughed he;
The neist word that Sir Patrick read,
The tear blinded his e'e.
"O wha is this has done this deed,
"And tauld the king o' me,
"To send us out, at this time of the year,
"To sail upon the sea?
"Be it wind, be it weet, be it hail, be it sleet,
"Our ship must sail the faem;

"The king's daughter of Noroway,
"'Tis we must fetch her hame,"
They hoysed their sails on Monenday morn,
Wi' a' the speed they may;
They hae landed in Noroway,
Upon a Wodensday.

- [9] They hadna been a week, a week,
In Noroway, but twae,
When that the lords o' Noroway
Began aloud to say,—
"Ye Scottishmen spend a' our king's goud,
"And a' our queenis fee."
"Ye lie, ye lie, ye liars loud!
"Fu' loud I hear ye lie."
"For I brought as much white monie,
"As gane^[79] my men and me,
"And I brought a half-fou^[80] o' gude red goud,
"Out o'er the sea wi' me."
"Make ready, make ready, my merry men a'!
"Our gude ship sails the morn."
"Now, ever alake, my master dear,
"I fear a deadly storm!
"I saw the new moon, late yestreen,
"Wi' the auld moon in her arm;
"And if we gang to sea, master,
"I fear we'll come to harm."

- [10] They hadna sailed a league, a league,
A league but barely three,
When the lift grew dark, and the wind blew loud,
And gurly grew the sea.
The ankers brak, and the topmasts lap,^[81]
It was sik a deadly storm;
And the waves came o'er the broken ship,
Till a' her sides were torn.
"O where will I get a gude sailor,
"To take my helm in hand,
"Till I get up to the tall top-mast,

"To see if I can spy land?"
"O here am I, a sailor gude,
"To take the helm in hand,
"Till you go up to the tall top-mast;
"But I fear you'll ne'er spy land."
He hadna' gane a step, a step,
A step, but barely ane,
When a bout flew out of our goodly ship,
And the salt sea it came in.

[11] "Gae, fetch a web o' the silken claith,
"Another o' the twine,
"And wap them into our ship's side,
"And let na the sea come in."
They fetched a web o' the silken claith,
Another of the twine,
And they wapped them round that gude ship's side,
But still the sea came in.
O laith, laith, were our gude Scots lords
To weet their cork-heel'd shoon!
But lang or a' the play was play'd,
They wat their hats aboon.
And mony was the feather-bed,
That flattered^[82] on the faem;
And mony was the gude lord's son,
That never mair cam hame.

[12] The ladyes wrang their fingers white,
The maidens tore their hair,
A' for the sake of their true loves;
For them they'll see na mair.
O lang, lang, may the ladyes sit,
Wi' their fans into their hand,
Before they see Sir Patrick Spens
Come sailing to the strand!
And lang, lang, may the maidens sit,
Wi' their goud kaims in their hair,
A' waiting for their ain dear loves!
For them they'll see na mair.

O forty miles off Aberdeen,
'Tis fifty fathom deep,
And there lies gude Sir Patrick Spens,
Wi' the Scots lords at his feet.

[13]

NOTES ON SIR PATRICK SPENS.

*To send us out at this time of the year,
To sail upon the sea?—P. 8, v. 3.*

By a Scottish act of parliament, it was enacted, that no ship should be fraughted out of the kingdom, with any staple goods, betwixt the feast of St. Simon's day and Jude and Candelmas.—*James III. Parliament 2d, chap. 15.* Such was the terror entertained for navigating the north seas in winter.

When a bout flew out of our goodly ship.—P. 10. v. 5.

I believe a modern seaman would say, a plank had started, which must have been a frequent incident during the infancy of ship-building. The remedy applied seems to be that mentioned in *Cook's Voyages*, when, upon some occasion, to stop a leak, which could not be got at in the inside, a quilted sail was brought under the vessel, which, being drawn into the leak by the suction, prevented the entry of more water. Chaucer says,

"There n'is no new guise that it na'as old."

[14] *O forty miles off Aberdeen,—P. 11. v. 3.*

This concluding verse differs in the three copies of the ballad, which I have collated. The printed edition bears,

"Have owre, have owre to Aberdour;"

And one of the MSS. reads,

"At the back of auld St. Johnstowne Dykes."

But, in a voyage from Norway, a shipwreck on the north coast seems as probable as either in the Firth of Forth, or Tay; and the ballad states the disaster to have taken place out of sight of land.

AULD MAITLAND.

NEVER BEFORE PUBLISHED.

This ballad, notwithstanding its present appearance, has a claim to very high antiquity. It has been preserved by tradition; and is, perhaps, the most authentic instance of a long and very old poem, exclusively thus preserved. It is only known to a few old people, upon the sequestered banks of the Ettrick; and is published, as written down from the recitation of the mother of Mr. James Hogg^[83], who sings, or rather chaunts it, with great animation. She learned the ballad from a blind man, who died at the advanced age of ninety, and is said to have been possessed of much traditionary knowledge. Although the language of this poem is much modernised, yet many words, [16] which the reciters have retained, without understanding them, still preserve traces of its antiquity. Such are the words *Springals* (corruptly pronounced *Springwalls*), *sowies*, *portcullize*, and many other appropriate terms of war and chivalry, which could never have been introduced by a modern ballad-maker. The incidents are striking and well-managed; and they are in strict conformity with the manners of the age, in which they are placed. The editor has, therefore, been induced to illustrate them, at considerable length, by parallel passages from Froissard, and other historians of the period to which the events refer.

The date of the ballad cannot be ascertained with any degree of accuracy. Sir Richard Maitland, the hero of the poem, seems to have been in possession of his estate about 1250; so that, as he survived the commencement of the wars betwixt England and Scotland, in 1296, his prowess against the English, in defence of his castle of Lauder, or Thirlestane, must have been exerted during his extreme old age. He seems to have been distinguished for devotion, as well as valour; for, A.D. 1249, Dominus Ricardus de Mautlant gave to the abbey of Dryburgh, "*Terras suas de Haubentside, in territorio suo de Thirlestane, pro salute animae suae, et sponsae suae, antecessorum suorum et successorum suorum, in*

perpetuum^[84]." He also gave, to the same [17] convent, "*Omnes terras, quas Walterus de Giling tenuit in feodo suo de Thirlestane, et pastura incommuni de Thirlestane, ad quadraginta oves, sexaginta vaccas, et ad viginti equos.*"—Cartulary of Dryburgh Abbey, in the Advocates' Library.

From the following ballad, and from the family traditions referred to in the Maitland MSS., Auld Maitland appears to have had three sons; but we learn, from the latter authority, that only one survived him, who was thence surnamed *Burd alane*, which signifies either *unequalled*, or *solitary*. A *Consolation*, addressed to Sir Richard Maitland of Lethington, a poet and scholar who flourished about the middle of the sixteenth century, and who gives name to the Maitland MSS., draws the following parallel betwixt his domestic misfortunes and those of the first Sir Richard, his great ancestor:

Sic destanie and derfe devoring deid
 Oft his own hous in hazard put of auld;
 Bot your forbeiris, frovard fortounes steid
 And bitter blastes, ay buir with breistis bauld;
 Luit wanweirdis work and walter ay they wald,
 Thair hardie hairtis hawtie and heroik,
 For fortounes feid or force wald never fauld;
 Bot stormis withstand with stomak stoat and stoik.
 Renowned Richert of your race record,
 Quhais prais and prowis cannot be exprest;
 Mair lustie lynyage nevir haid ane lord,
 For he begat the bauldest bairnis and best,
 Maist manful men, and madinis maist modest,
 That ever wes syn Pyramus tyme of Troy,
 But piteouslie thai peirles perles apest.
 Bereft him all hot Buird-allane, a boy.

[18] Himselwe was aiget, his hous hang be a har,
 Duill and distres almaist to deid him draife;
 Yet Burd-allane, his only son and air,
 As wretched, vyiss, and valient, as the laive,
 His hous uphail'd, quhilk ye with honor haive.
 So nature that the lyk invyand name,^[85]
 In kindlie cair dois kindly courage craif,
 To follow him in fortune and in fame.
 Richerd he wes, Richerd ye are also,
 And Maitland als, and magnanime as he;
 In als great age, als wrappit are in wo,
 Sewin sons^[86] ye haid might contravaill his thrie,
 Bot Burd-allane ye haive behind as he:
 The lord his linage so inlarge in lyne,
 And mony hundreith nepotis grie and grie^[87]
 Sen Richert wes as hundreth yeiris are hyne.

An Consolator Ballad to the Richt Honorabill Sir Richert Maitland of Lethingtoun.

—Maitland MSS. in Library of Edinburgh University.

Sir William Mautlant, or Maitland, the eldest and sole surviving son of Sir Richard, ratified and confirmed, to the monks of Dryburgh, [19] "*Omnes terras quas Dominus Ricardus de Mautlant pater suus fecit dictis monachis in territorio suo de Thirlestane,*" Sir William is supposed to have died about 1315.—*Crawford's Peerage*.

Such were the heroes of the ballad. The castle of Thirlestane is situated upon the Leader, near the town of Lauder. Whether the present building, which was erected by Chancellor Maitland, and improved by the Duke of Lauderdale, occupies the site of the ancient castle, I do not know; but it still merits the epithet of a "*darksome house*." I find no notice of the siege in history; but there is nothing improbable in supposing, that the castle, during the stormy period of the Baliol wars, may have held out against the English. The creation of a nephew of Edward I., for the pleasure of slaying him by the hand of young Maitland, is a poetical licence^[88]; and may induce us to place the date of the composition about the reign of David II., or of his successor, when the real exploits of Maitland, and his sons, were in some degree obscured, as well as magnified, by the lapse of time. The inveterate hatred against the English, founded upon the usurpation of Edward I., glows in every line of the ballad.

Auld Maitland is placed, by Gawain Douglas, bishop of Dunkeld, among the popular heroes of romance, in his allegorical *Palice of Honour*^[89]:

[20] I Saw Raf Coilyear with his thrawin brow,
Crabit John the Reif, and auld Cowkilbeis Sow;
And how the wran cam out of Ailsay,
And Peirs Plowman^[90], that meid his workmen few;
Gret Gowmacmorne, and Fyn MacCowl, and how
They suld be goddis in Ireland, as they say.
Thair saw I Maitland upon auld beird gray,
Robine Hude, and Gilbert with the quhite hand,
How Hay of Naughton flew in Madin land.

In this curious verse, the most noted romances, or popular histories, of the poet's day, seem to be noticed. The preceding stanza describes the sports of the field; and that, which follows, refers to the tricks of "*jugailrie*;" so that the three verses comprehend the whole pastimes of the middle ages, which

are aptly represented as the furniture of dame Venus's chamber. The verse, referring to Maitland, is obviously corrupted; the true reading was, probably, "*with his auld beird* [21] *gray*." Indeed the whole verse is full of errors and corruptions; which is the greater pity, as it conveys information, to be found no where else.

The descendant of Auld Maitland, Sir Richard of Lethington, seems to have been frequently complimented on the popular renown of his great ancestor. We have already seen one instance; and in an elegant copy of verses in the Maitland MSS., in praise of Sir Richard's seat of Lethingtoun, which he had built, or greatly improved, this obvious topic of flattery does not escape the poet. From the terms of his panegyric we learn, that the exploits of auld Sir Richard with the gray beard, and of his three sons, were "sung in many far countrie, albeit in rural rhyme;" from which we may infer, that they were narrated rather in the shape of a popular ballad, than in a *romance of price*. If this be the case, the song, now published, may have undergone little variation since the date of the Maitland MSS.; for, divesting the poem, in praise of Lethington, of its antique spelling, it would run as smoothly, and appear as modern, as any verse in the following ballad. The lines alluded to, are addressed to the castle of Lethington:

And happie art thou sic a place,
That few thy mak ar sene:
But yit mair happie far that race
To quhome thou dois pertene.
Quha dais not knaw the Maitland bluid,
The best in all this land?
In quhilk sumtyme the honour stuid
And worship of Scotland.

[22] Of auld Sir Richard, of that name,
We have hard sing and say;
Of his triumphant nobill fame,
And of his auld baird gray.
And of his nobill sonnis three,
Quhilk that tyme had no maik;
Quhilk maid Scotland renounit be,
And all England to quaik.

Quhais luifing praysis, maid trewlie,
Efter that simple tyme,
Ar sung in monie far countrie,
Albeit in rural rhyme.
And, gif I dar the treuth declair,
And nane me fleitschour call,
I can to him find a compair,
And till his barnis all.

It is a curious circumstance, that this interesting tale, so often referred to by ancient authors, should be now recovered in so perfect a state; and many readers may be pleased to see the following sensible observations, made by a person, born in Ettrick Forest, in the humble situation of a shepherd. "I am surprised to hear, that this song is suspected by some to be a modern forgery; the contrary will be best proved, by most of the old people, hereabouts, having a great part of it by heart. Many, indeed, are not aware of the manners of this country; till this present age, the poor illiterate people, in these glens, knew of no other entertainment, in the long winter nights, than repeating, and listening to, the feats of their ancestors, recorded in songs, which I believe to be handed down, from father to son, for many [23] generations; although, no doubt, had a copy been taken, at the end of every fifty years, there must have been some difference, occasioned by the gradual change of language. I believe it is thus that many very ancient songs have been gradually modernised, to the common ear; while, to the connoisseur, they present marks of their genuine antiquity."—*Letter to the Editor from Mr. James Hogg*. To the observations of my ingenious correspondent I have nothing to add, but that, in this, and a thousand other instances, they accurately coincide with my personal knowledge.

[24]

There lived a king in southern land,
King Edward hight his name;
Unwordily he wore the crown,
Till fifty years were gane.

He had a sister's son o's ain,
Was large of blood and bane;
And afterward, when he came up,
Young Edward hight his name.

One day he came before the king,
And kneel'd low on his knee—
"A boon, a boon, my good uncle,
"I crave to ask of thee!

[25] "At our lang wars, in fair Scotland,
"I fain hae wished to be;
"If fifteen hundred waled^[91] wight men
"You'll grant to ride wi' me."

"Thou sail hae thae, thou sail hae mae;
"I say it sickerlie;
"And I mysell, an auld gray man,
"Array'd your host sall see."

King Edward rade, King Edward ran—
I wish him dool and pyne!
Till he had fifteen hundred men
Assembled on the Tyne.

And thrice as many at Berwicke^[92]
Were all for battle bound,
Who, marching forth with false Dunbar,
A ready welcome found.

They lighted on the banks of Tweed,
And blew their coals sae het,

And fired the Merse and Teviotdale,
All in an evening late.

[26] As they fared up o'er Lammermore,
They burned baith up and down,
Until they came to a darksome house;
Some call it Leader-Town.

"Wha hauds this house?" young Edward cry'd,
"Or wha gies't ower to me?"
A gray-hair'd knight set up his head,
And crackit right crouselly:

"Of Scotland's king I haud my house;
"He pays me meat and fee;
"And I will keep my gude auld house,
"While my house will keep me."

They laid their sowies to the wall,
Wi' mony a heavy peal;
But he threw ower to them agen
Baith pitch and tar barrel.

With springalds, stanes, and gads of airn,
Amang them fast he threw;
Till mony of the Englishmen
About the wall he slew.

[27] Full fifteen days that braid host lay,
Sieging Auld Maitland keen,
Syne they hae left him, hail and fair,
Within his strength of stane.

Then fifteen barks, all gaily good,
Met them upon a day,
Which they did lade with as much spoil
As they could bear away.

"England's our ain by heritage;
"And what can us withstand,
"Now we hae conquer'd fair Scotland,
"With buckler, bow, and brand?"

Then they are on to the land o' France,
Where auld King Edward lay,
Burning baith castle, tower, and town,
That he met in his way,

Untill he came unto that town,
Which some call Billop-Grace;
There were Auld Maitland's sons, a' three,
Learning at school, alas!

[28]

The eldest to the youngest said,
"O see ye what I see?
"Gin a' be trew yon standard says^[93],
"We're fatherlesse a' three.

"For Scotland's conquer'd, up and down;
"Landmen we'll never be:
"Now, will ye go, my brethren two,
"And try some jeopardy?"

Then they hae saddled twa black horse,
Twa black horse, and a grey;
And they are on to King Edward's host,
Before the dawn of day.

When they arriv'd before the host,
They hover'd on the lay—
"Wilt thou lend me our king's standard,
"To bear a little way?"

"Where was thou bred? where was thou born?

"Where, or in what countrie?"
"In north of England I was born:
(It needed him to lie.)

[29] "A knight me gat, a lady bore,
"I'm a squire of high renowne;
I well may bear't to any king,
"That ever yet wore crowne."

"He ne'er came of an Englishman,
"Had sic an e'e or bree;
"But thou art the likest Auld Maitland,
"That ever I did see.

"But sick a gloom, on ae brow-head,
"Grant I ne'er see agane!
"For mony of our men he slew,
"And mony put to pain."

When Maitland heard his father's name,
An angry man was he!
Then, lifting up a gilt dagger,
Hung low down by his knee,

He stabb'd the knight, the standard bore,
He stabb'd him cruellie;
Then caught the standard by the neuk,
And fast away rode he.

[30] "Now, is't na time, brothers," he cried,
"Now, is't na time to flee?"
"Aye, by my sooth!" they baith replied,
"We'll bear you company."

The youngest turn'd him in a path,
And drew a burnished brand,
And fifteen of the foremost slew,

Till back the lave did stand.

He spurr'd the gray into the path,
Till baith his sides they bled—
"Gray! thou maun carry me away,
"Or my life lies in wad!"

The captain lookit ower the wa',
About the break o' day;
There he beheld the three Scots lads,
Pursued along the way.

"Pull up portcullize! down draw-brigg!
"My nephews are at hand;
And they sall lodge wi' me to-night,
"In spite of all England."

[31] Whene'er they came within the yate,
They thrust their horse them frae,
And took three lang spears in their hands,
Saying, "Here sall come nae mae!"

And they shot out, and they shot in,
Till it was fairly day;
When mony of the Englishmen
About the draw-brigg lay.

Then they hae yoked carts and wains,
To ca' their dead away,
And shot auld dykes aboon the lave,
In gutters where they lay.

The king, at his pavilion door,
Was heard aloud to say,
"Last night, three o' the lads o' France
"My standard stole away.

"Wi' a fause tale, disguised, they came,
"And wi' a fauser trayne;
"And to regain my gaye standard,
"These men were a' down slayne."

[32]

"It ill befits," the youngest said,
"A crowned king to lie;
"But, or that I taste meat and drink,
"Reproved sall he be."

He went before King Edward strait,
And kneel'd low on his knee;
"I wad hae leave, my lord," he said,
"To speak a word wi' thee."

The king he turned him round about,
And wistna what to say—
Quo' he, "Man, thou's hae leave to speak,
Tho' thou should speak a' day."

"Ye said, that three young lads o' France
"Your standard stole away,
"Wi' a fause tale, and fauser trayne,
"And mony men did slay:

"But we are nane the lads o' France,
"Nor e'er pretend to be;
"We are three lads o' fair Scotland,
"Auld Maitland's sons are we;

[33]

"Nor is there men, in a' your host,
"Daur fight us, three to three."
"Now, by my sooth," young Edward said,
"Weel fitted ye sall be!

"Piercy sall wi' the eldest fight,
"And Ethert Lunn wi' thee;

"William of Lancaster the third,
"And bring your fourth to me!"

*"Remember, Piercy, aft the Scot^[94]
"Has cow'rd beneath thy hand:
"For every drap of Maitland blood,
"I'll gie a rigg of land."*

He clanked Piercy ower the head,
A deep wound and a sair,
Till the best blood o' his bodie
Cam rinning down his hair.

"Now, I've slayne ane; slay ye the twa;
"And that's gude companye;
"And if the twa suld slay you baith,
"Ye'se get na help frae me."

[34]

But Ethert Lunn, a baited bear,
Had many battles seen;
He set the youngest wonder sair,
Till the eldest he grew keen—

"I am nae king, nor nae sic thing:
"My word it shanna stand!
"For Ethert sail a buffet bide,
"Come he beneath my brand."

He clanked Ethert ower the head,
A deep wound and a sair,
Till the best blood of his bodie
Cam rinning ower his hair.

"Now I've slayne twa; slay ye the ane;
"Is na that gude companye?
"And tho' the ane suld slay ye baith,
"Ye'se get na help o' me."

The twa-some they hae slayne the ane;
They maul'd him cruellie;
Then hung them over the draw-brigg,
That all the host might see.

[35]

They rade their horse, they ran their horse,
Then hovered on the lee;
"We be three lads o' fair Scotland,
"That fain wad fighting see."

This boasting, when young Edward heard.
An angry man was he!
"I'll take yon lad, I'll bind yon lad,
"And bring him bound to thee!"

"Now, God forbid," King Edward said,
"That ever thou suld try!
"Three worthy leaders we hae lost,
"And thou the fourth wad lie.

"If thou should'st hang on yon draw-brigg,
"Blythe wad I never be!"
But, wi' the poll-axe in his hand,
Upon the brigg sprang he.

The first stroke that young Edward gae,
He struck wi' might and mayn;
He clove the Maitlan's helmet stout,
And bit right nigh the brayn.

[36]

When Maitland saw his ain blood fa',
An angry man was he!
He let his weapon frae him fa',
And at his throat did flee.

And thrice about he did him swing,

Till on the grund he light,
Where he has halden young Edward,
Tho' he was great in might.

"Now, let him up," King Edward cried,
"And let him come to me!
"And, for the deed that thou hast done,
"Thou shalt hae erldomes three!"

"Its ne'er be said in France, nor e'er
In Scotland, when I'm hame,
That Edward once lay under me,
And e'er gat up again!"

He pierced him through and through the heart;
He maul'd him cruellie;
Then hung him ower the draw-brigg,
Beside the other three.

[37]

"Now, take frae me that feather-bed!
"Mak me a bed o' strae!
"I wish I had na lived this day,
"To mak my heart sae wae.

"If I were ance at London tower,
"Where I was wont to be,
"I never mair suld gang frae hame,
"Till borne on a bier-tree."

[38]

NOTES ON AULD MAITLAND.

Young Edward hight his name.—P, 25. v. 2.

Were it possible to find an authority for calling this personage *Edmund*, we should be a step nearer history; for a brother, though not a nephew of Edward I., so named, died in Gascony during an unsuccessful campaign against the French.—*Knighton*, Lib. III. cap. 8.

I wish him dool and pyne.—P. 26. v. 3.

Thus, Spenser, in *Mother Huberd's tale*—

Thus is this ape become a shepherd swain,
And the false fox his dog, God give them pain!
Who, marching forth with false Dunbar,
A ready welcome found.—P. 26. v. 4.

These two lines are modern, and inserted to complete the verse. Dunbar, the fortress of Patrick, Earl of March, was too often opened [39] to the English, by the treachery of that baron, during the reign of Edward I.

They laid their sowies to the wall,
Wi' many a heavy peal.—P. 27. v. 4.

In this and the following verse, the attack and defence of a fortress, during the thirteenth and fourteenth centuries, is described accurately and concisely. The sow was a military engine, resembling the Roman *testudo*. It was framed of wood, covered with hides, and mounted on wheels, so that, being rolled forwards to the foot of the besieged wall, it served as a shed, or cover, to defend the miners, or those who wrought the battering ram, from the stones and arrows of the garrison. In the course of the famous defence, made by Black Agnes, Countess of March, of her husband's castle of Dunbar, Montague, Earl of Salisbury, who commanded the besiegers, caused one of these engines to be wheeled up to the wall. The countess, who, with her damsels, kept her station on the battlements, and affected to wipe off with her handkerchief the dust raised by the stones, hurled from the English machines, awaited the approach of this new engine of assault. "Beware, Montague," she exclaimed, while the fragment of a rock was discharged from the wall—"Beware, Montague! for farrow shall thy sow!" [95] Their cover being dashed to pieces, the assailants, with great loss and difficulty, scrambled back to their trenches. "By the regard of suche a ladye," would Froissart have said, "and by her comforting, a man ought to

be worth two men, at need." The sow was called by the French *Truie*.—See *Hailes' Annals*, Vol. II. p. 89. *Wintown's Cronykil*, Book VIII. *William of Malmesbury*, Lib. IV.

The memory of the sow is preserved in Scotland by two trifling circumstances. The name given to an oblong hay-stack, is a [40] *hay-sow*; and this may give us a good idea of the form of the machine. Children also play at a game with cherry stones, placing a small heap on the ground, which they term a *sowie*, endeavouring to hit it, by throwing single cherry-stones, as the sow was formerly battered from the walls of the besieged fortress. My companions, at the High School of Edinburgh, will remember what was meant by *berrying a sowie*. It is strange to find traces of military antiquities in the occupation of the husbandman, and the sports of children.

The pitch and tar-barrels of Maitland were intended to consume the formidable machines of the English. Thus, at a fabulous siege of York, by Sir William Wallace, the same mode of defence is adopted:

The Englishmen, that cruel were and kene,
Keeped their town, and fended there full fast;
Faggots of fire among the host they cast,
Up *pitch and tar* on feil sowis they lent;
Many were hurt ere they from the walls went;
Stones on Springalds they did cast out so fast,
And goads of iron made many grome agast.

Henry the Minstrel's History of Wallace.—B. 8. c. 5.

A more authentic illustration may be derived from Barbour's Account of the Siege of Berwick, by Edward II., in 1319, when a sow was brought on to the attack by the English, and burned by the combustibles hurled down upon it, through the device of John Crab, a Flemish engineer, in the Scottish service.

And thai, that at the sege lay,
Or it was passyt the fyft day,
Had made thaim syndry apparall,
To gang eft sonys till assaill.
Off gret gests a sow thai maid,

That stalwart heildyne aboyne it haid;
With armyt men inew tharin,
And instruments for to myne.

[41] Syndry scaffalds thai maid withall,
That war wele heyar than the wall,
And ordanyt als that, be the se,
The town suld weill assaillyt be.

Thai within, that saw thaim swa,
Swa gret apparaill schap to ma,
Throw Craby's cunsaill, that wes sley,
A crane thai haiff gert dress up hey,
Rynnand on quheills, that thai nicht bryng
It quhar that nede war off helping.
And pyk, and ter, als haiff thai tane;
And lynt, and herds, and brymstane;
And dry treyis that wele wald brin,
And mellyt aythir other in:
And gret fagalds thairoff thai maid,
Gyrdyt with irne bands braid.
The fagalds weill mycht mesuryt be,
Till a gret towrys quantite.
The fagalds bryning in a ball,
With thair cran thocht till awaill;
And giff the sow come to the wall,
To lat it brynd on her fall;
And with stark chenyis hald it thar,
Quhill all war brynt up that thar war.

Upon sic maner gan thai fycht,
Quhill it wes ner none off the day,
That thai without, on gret aray,
Pryssyt thair sow toward the wall;
And thai within sune gert call
The engynour, that takyn was,
And gret manance till hym mais,
And swour that he suld dey, bot he

Prowyt on the sow sic sutelté
That he to fruscht ilk dele,
And he, that hath persawyt wele
That the dede wes wele ner hym till,
Bot giff he mycht fulfil thair will
Thocht that he at hys mycht wald do.

[42] Bendyt in gret by then wes sche,
That till the sow wes ewyn set.
In hy he gert draw the cleket;
And smertly swappyt owt a stane,
Ewyn our the sow the stane is gane,
And behind it a litill way
It fell: and then they cryt, "Hey!"
That war in hyr, "furth to the wall,
For dredles it is ours all!"

The gynour than deleuerly
Gert bend the gyn in full gret hy;
And the stane smertly swappyt out.
It flaw out quethyr, and with a rout,
And fell rycht ewyn befor the sow.
Thair harts than begouth to grow.
Bot yhet than, with thair mychts all
Thai pressyt the sow towart the wall;
And has hyr set tharto gentilly.
The gynour than gert bend in hy
The gyne, and wappyt owt the stane,
That ewyn towart the lyft is gane,
And with gret wycht syne duscht down,
Rycht be the wall in a randoun;
And hyt the sow in sic maner,
That it that wes the maist sowar,
And starkast for to stynt a strak,
In sundre with that dusche it brak.
The men than owt in full gret hy,
And on the wallis thai gan cry,
That thair sow wes feryt thar.

Jhon Crab, that had hys geer all yar
In hys fagalds has set the fyr,
And our the wall syne gan thai wyr,
And brynt the sow till brands bar.

The Bruce, Book XVII

The *springalds*, used in defence of the castle of Lauder, were *balistae*, or large cross-bows, wrought by machinery, and [43] capable of throwing stones, beams, and huge darts. They were numbered among the heavy artillery of the age; "Than the kyng made all his navy to draw along, by the cost of the Downes, every ship well garnished with bombardes, crosbowes, archers, *springalls*, and other artillarie."—*Froissart*.

Goads, or sharpened bars of iron, were an obvious and formidable missile weapon. Thus, at the assault of Rochemiglion "They within cast out great barres of iron, and pots with lyme, wherewith they hurt divers Englishmen, such as adventured themselves too far."—*Froissart*, Vol. I. cap. 108.

From what has been noticed, the attack and defence of Lauder castle will be found strictly conformable to the manners of the age; a circumstance of great importance, in judging of the antiquity of the ballad. There is no mention of guns, though these became so common in the latter part of the reign of Edward III., that, at the siege of St. Maloes, "the English had well a four hondred gones, who shot day and night into the fortresse, and agaynst it."—*Froissart*, Vol. I. cap. 336. Barbour informs us, that guns, or "crakis of wer," as he calls them, and crests for helmets, were first seen by the Scottish, in their skirmishes with Edward the Third's host, in Northumberland A.D. 1327.

Which some call Billop-Grace.—P. 28. v. 5.

If this be a Flemish, or Scottish, corruption for Ville de Grace, in Normandy, that town was never besieged by Edward I., whose wars in France were confined to the province of Gascony. The rapid change of scene, from Scotland to France, excites a suspicion, that some verses may have been lost in this place. The retreat of the English host, however, may remind us of a passage, in Wintown, when, after mentioning that the Earl of

Salisbury raised the siege of Dunbar, to join King Edward in France, he observes,

"It was to Scotland a gud chance,
"That thai made thaim to werray in France;
"For had thai halyly thaim tane
"For to werray in Scotland allane.

[44] Eftyr the gret mischeffis twa,
Duplyn and Hallydowne war tha,
Thai suld have skaithit it to gretly.
Bot fortowne thought scho fald fekilly
Will noucht at anis myscheffis fall;
Thare-fore scho set thare hartis all,
To werray Fraunce richt to be,
That Scottis live in grettar lé.

Cronykil, B. VIII. cap. 34.

*Now, will ye go, my brethren two,
And try some jeopardie?—P. 29. v. 2.*

The romantic custom of atchieving, or attempting, some desperate and perilous adventure, without either necessity or cause, was a peculiar, and perhaps the most prominent, feature of chivalry. It was not merely the duty, but the pride and delight, of a true knight, to perform such exploits, as no one but a madman would have undertaken. I think it is in the old French romance of *Erec and Eneide*, that an adventure, the access to which lay through an avenue of stakes, garnished with the bloody heads of the knights who had attempted and failed to atchieve it, is called by the inviting title of *La joie de la Cour*. To be first in advancing, or last in retreating; to strike upon the gate of a certain fortress of the enemy; to fight blindfold, or with one arm tied up; to carry off a banner, or to defend one; were often the subjects of a particular vow, among the sons of chivalry. Until some distinguishing exploit of this nature, a young knight was not said to have *won his spurs*; and, upon some occasions, he was obliged to bear, as a mark of thralldom, a chain upon his arm, which was removed, with great ceremony, when his merit became conspicuous. These chains are noticed in the romance of *Jehan de Saintré*. In the language of German chivalry, they

were called *Ketten des Gelubdes* (fetters of duty). Lord Herbert of Cherbury informs us, that the knights of the Bath were obliged to wear certain strings, of silk and gold, upon their left arm, until they had atchieved some noble deed of arms. When Edward III. commenced his [45] French wars, many of the young bachelors of England bound up one of their eyes with a silk ribband, and swore, before the peacock and the ladies, that they would not see with both eyes until they had accomplished certain deeds of arms in France.—*Froissart*, cap. 28.

A remarkable instance of this chivalrous frenzy occurred during the expedition of Sir Robert Knowles, who, in 1370, marched through France, and laid waste the country, up to the very gates of Paris. "There was a knyghte, in their companye, had made a vowe, the day before, that he wolde ryde to the walles or gates of Parys, and stryke at the barryers with his speare. And, for the fournyshing of his vowe, he departed fro his companye, his spear in his fyst, his shelde about his neck, armed at all pecesse, on a good horsse, his squyer on another, behinde him, with his bassenet. And whan he approached neare to Parys, he toke and dyde on his helme, and left his squyer behind hym, and dashed his spurres to his horsse, and came gallopyng to the barryers, the whiche as then were opyn; and the lordes, that were there, had wened he wolde have entred into the towne; but that was not his mynde; for, when he hadde stryken at the barryers, as he had before avowed, he towned his reyne, and drue back agayne, and departed. Than the knyghtes of France, that sawe hym depart, sayd to hym, 'Go your waye; you have ryghte well acquitted yourself.' I can nat tell you what was thys knyghtes name, nor of what contre; but the blazure of his armes was, goules, two fusses sable, a border sable. Howbeit, in the subbarbes, he had a sore encontre; for, as he passed on the pavement, he founde before hym a bocher, a bigge man, who had well sene this knyghte pass by. And he helde in his handes a sharpe hevy axe, with a longe poynt; and, as the knyght returned agayne, and toke no hede, this bocher came on his side, and gave the knyghte suche a stroke, betwene the neck and the shulders, that he reversed forwarde heedlynge, to the neck of his horsse, and yet he recovered agayne. And than the bocher strake hym agayne, so that the axe entered into his [46] body, so that, for payne, the knyghte fell to the erthe, and his horsse ran away, and came to the squyer, who abode for his mayster at the stretes ende. And so, the squyer toke the horsse, and had gret

marveyle what was become of his mayster; for he had well sene him ryde to the barryers, and stryke therat with his glayve, and retourne agayne. Thanne he rode a lytell forthe, thyderwarde, and anone he sawe where his master layn upon the erthe, bytwene foure men, layenge on him strokes, as they wolde have stryken on a stethey (*anvil*); and than the squyer was so affreyed, that he durst go no farther; for he sawe well he could nat helpe his mayster. Therefore he retourned as fast as he myght: so there the sayd knyghte was slayne. And the knyghtes, that were at the gate, caused hym to be buried in holy ground."—*Froissart*, ch. 281.

A similar instance of a military jeopardy occurs in the same author, ch. 364. It happened before the gates of Troyes. "There was an Englyshe squyre, borne in the bishopryke of Lincolne, an expert man of armes; I can nat say whyder he could se or nat; but he spurred his horse, his speare in his hande, and his targe about his necke; his horse came rushyng downe the waye, and lepte clene over the barres of the baryers, and so galoped to the gate, where as the duke of Burgoyne and the other lords of France were, who reputed that dede for a great enterprise. The squyer thoughte to have returned, but he could nat; for his horse was stryken with speares, and beaten downe, and the squyer slayn; wherewith the Duke of Burgoyne was right sore displeased."

*Wilt thou lend me our king's standard,
To bear a little way?—P. 29. v. 4.*

In all ages, and in almost all countries, the military standards have been objects of respect to the soldiery, whose duty it is to range beneath them, and, if necessary, to die in their defence. In the ages of chivalry, these ensigns were distinguished by their shape, and by the various names of banners, pennons, penoncelles, &c., according to the number of men, who were to fight under them. They were displayed, [47] on the day of battle, with singular solemnity, and consigned to the charge only of such as were thought willing and able to defend them to the uttermost. When the army of Edward, the Black Prince, was drawn up against that of Henry the Bastard, king of Castile, "Than Sir Johan Chandos brought his baner, rolled up togyder, to the prince, and said, 'Sir, behold, here is my baner. I requyre you display it abroad, and give me leave, this daye, to raise it; for, sir, I thanke God and you, I have land and heritage suffyciente to maynteyne it withal.'

Than the prince, and King Dampeter (Don Pedro), toke the baner betwene their handes, and spred it abroad, the which was of sylver, a sharp pyle gaules, and delyvered it to hym, and said, 'Sir Johan, behold here youre baner; God sende you joye and honour thereof!' Than Sir Johan Chandos bare his baner to his owne company, and sayde, 'Sirs, beholde here my baner, and yours; kepe it as your owne.' And they toke it, and were right joyful therof, and sayd, that, by the pleasure of God, and Saint George, they wold kepe and defend it to the best of their powers. And so the baner abode in the handes of a good Englishe squyer, called William Alery, who bare it that day, and acquaytted himself right nobly."—*Froissart*, Vol. I. ch. 237. The loss of a banner was not only great dishonour, but an infinite disadvantage. At the battle of Cocherel, in Normandy, the flower of the combatants, on each side, were engaged in the attack and defence of the banner of the captall of Buche, the English leader. It was planted amid a bush of thorns, and guarded by sixty men at arms, who defended it gallantly. "There were many rescues, and many a one hurt and cast to the earth, and many feats of armes done, and many gret strokes given, with good axes of steel, that it was wonder to behold." The battle did not cease until the captall's standard was taken and torn to pieces.

We learn, from the following passage in *Stowe's Chronicle*, that the standard of Edward I. was a golden dragon. "The king entred Wales with an army, appointing the footmen to occupie the enemies in fight, whiles his horsemen, in a wing, set on the rere battell: himselfe, [48] with a power, kept his place, where he pight his golden dragon, unto whiche, as to a castle, the wounded and wearied might repair."

"Where was thou bred? where was thou born?

Where, or in what countrie?"

"In north of England I was born:

(It needed him to lie.)—P. 29. v. 5.

Stratagems, such as that of Maitland, were frequently practised with success, in consequence of the complete armour worn by the knights of the middle ages. In 1359, Edward III. entered France, to improve the success of the battle of Poitiers. Two French knights, Sir Galahaut of Rybamont, and Sir Roger of Cologne, rode forth, with their followers, to survey the English host, and, in short, to seek adventures. It chanced that they met a foraging

party of Germans, retained in King Edward's service, under the command of Reynold of Boulant, a knight of that nation. By the counsel of a squire of his retinue, Sir Galahaut joined company with the German knight, under the assumed character of Bartholomew de Bonne, Reynold's countryman, and fellow soldier in the English service. The French knights "were a 70 men of armes, and Sir Renolde had not past a 30; and, whan Sir Renolde saw theym, he displayed his baner befor hym, and came softly rydyng toward the them, wenyng to hym that they had been Englyshemen. Whan he approched, he lyft up hys vyser, saluted Sir Galahaut, in the name of Sir Bartylmewe de Bonnes. Sir Galahaut helde hymselfe styll secrete, and answered but fayntly, and sayd, 'let us ryde forth;' and so rode on, and hys men, on the one syde, and the Almaynes on the other. Whan Sir Renolde of Boulant sawe theyr maner, and howe Sir Galahaut rode sometye by hym, and spake no word, than he began to suspecte. And he had not so ryden, the space of a quarter of an hour, but he stode styll, under his baner, among hys men, and sayd, 'Sir, I have dout what knyght ye be. I thynke ye be nat Sir Bartylmewe, for I knowe hym well; and I see well that yt ys nat you. I woll ye telle me your name, [49] or I ryde any farther in your company.' Therwith Sir Galahaut lyft up hys vyser, and rode towardes the knyght to have taken hym by the raygne of hys brydell, and cryed, '*Our Ladye of Rybamont!*' than Sir Roger of Coloyne sayd, '*Coloyne to the rescue!*'^[96] Whan Sir Renolde of Boulant sawe what case he was in, he was nat gretly afrayed, but drewe out his sworde; and, as Sir Galahaut wolde have taken hym by the brydell, Sir Renolde put his sworde clene through hym, and drue agayne hys sworde out of hym, and toke his horse, with the spurres, and left Sir Galahaut sore hurt. And, whan Sir Galahautes men sawe theyr master in that case, they were sore dyspleased, and set on Sir Renolde's men; there were many cast to the yerth, but as sone as Sir Renolde had gyven Sir Galahaut that stroke, he strak hys horse with the spurres, and toke the feldes. Than certayne of Galahaut's squyers chasyd hym, and, whan he sawe that they folowed hym so nere, that he muste other tourne agayne, or els be shamed, lyke a hardy knyght he tourned, and abode the foremost, and gave hym such a stroke, that he had no more lyst to folwe him. And thus, as he rode on, he served three of theym, that folowed hym, and wounded theym sore: if a goode axe had been in hys hand, at every stroke he had slayne a man. He dyd so muche, that he was out of danger of the Frenchmen, and saved hymselfe withoute any hurte; the whyche hys

enemyes reputed for a grete prowess, and so dyd all other that harde thereof; but hys men were nere slayne or taken, but few that were saved. And Sir Galahaut was caryed from thence sore hurt to Perone; of that hurt he was never after perfectly hole; for he was a knyght of suche courage, that, for all his hurte, he wold not spare hymselfe; wherefore he lyved not long after."—*Froissart*, Vol. I. Chap. 207.

*The youngest turn'd him in a path,
And drew a burnished brand, &c.*—P. 31. v. 2.

Thus, Sir Walter Mauny, retreating into the fortress of Hanyboute, [50] after a successful sally, was pursued by the besiegers, who ranne after them, lyke madde men; than Sir Gualtier saide, "Let me never be beloved wyth my lady, without I have a course wyth one of these folowers!" and turning, with his lance in the rest, he overthrew several of his pursuers, before he condescended to continue his retreat.

*Whene'er they came within the yate,
They thrust their horse them frae, &c.*—P. 32. v. 1.

"The Lord of Hangest (pursued by the English) came so to the barryers (of Vandonne) that were open, as his happe was, and so entred in therat, and than toke his speare, and turned him to defence, right valiantly."—*Froissart*, Vol. I. Chap. 367.

*They rade their horse, they ran their horse,
Then hovered on the lee, &c.*—P. 36. v. 1.

The sieges, during the middle ages, frequently afforded opportunity for single combat, of which the scene was usually the draw-bridge, or barriers, of the town. The former, as the more desperate place of battle, was frequently chosen by knights, who chose to break a lance for honour, and their ladies' love. In 1387, Sir William Douglas, lord of Nithisdale, upon the draw-bridge of the town of Carlisle, consisting of two beams, hardly two feet in breadth, encountered and slew, first, a single champion of England, and afterwards two, who attacked him together.—*Forduni Scotichronicon*, Lib. XIV. cap. 51.

He brynt the surburbyes of Carlele,
And at the bareris he faucht sa wele,

That on thare bryg he slw a man,
The wychtast that in the town wes than:
Quhare, on a plank of twa feet brade,
He stude, and twa gude payment made,
That he feld twa stout fechteris,
And but skath went till his feres.

Wintown's Cronykil, Book IX. Chap. 8.

[51]

These combats at the barriers, or palisades, which formed the outer fortification of a town, were so frequent, that the mode of attack and defence was early taught to the future knight, and continued long to be practised in the games of chivalry. The custom, therefore, of defying the inhabitants of a besieged town to this sort of contest, was highly fashionable in the middle ages; and an army could hardly appear before a place, without giving rise to a variety of combats at the barriers, which were, in general, conducted without any unfair advantage being taken on either part.

The following striking example of this romantic custom occurs in Froissart. During the French wars of Edward the Black Prince, and in the year 1370, a body of English, and of adventurers retained in his service, approached the city of Noyon, then occupied by a French garrison, and arrayed themselves, with displayed banners, before the town, defying the defenders to battle. "There was a Scottysh knyghte^[97] dyde there a goodly feate of armes, for he departed fro his companye, hys speare in hys hand, and mounted on a good horse, hys page behynde hym, and so came before the barryers. Thys knyghte was called Sir Johan Assueton,^[98] a hardy man and a couragious. Whan he was before the barryers of Noyon, he lyghted a-fote, and sayd to hys page, 'Holde, kepe my horse, and departe nat hens;' and so wente to the barryers. And wythyn the barryers, there were good knyghtes; as, Sir John of Roy, Sir Lancelat of Loutys, and a x or xii other, who had grete marveyle what thys sayde knyghte wolde do. Than he sayde to them, 'Sirs, I am come hyder to se you. I se well, ye wyll nat issue [52] out of your barryers; therefore I will entre, and I can, and wyll prove my knyghthode agaynst yours; wyn me and ye can.' And therewyth he layde on, round about hym, and they at hym. And thus, he alone fought agaynst them, more than an houre; and dyd hurte two or three of them; so that they of the towne, on the

walles and garrettes, stode still, and behelde them, and had great pleasure to regarde his valyauntness, and dyd him no hurte; the whiche they myght have done, if they hadde list to have shotte, or cast stones at hym. And also the French knyghtes charged them to let hym and them alone togyder. So long they foughte, that, at last, his page came near to the barryers, and spake in his langage, and sayd, 'Sir, come awaye; it is time for you to departe, for your cumpanye is departyng hens.' The knyghte harde hym well, and than gave a two or three strokes about him, and so, armed as he was, he lepte out of the barryers, and lepte upon his horse, without any hurte, behynde his page; and sayd to the Frenchemen, 'Adue, sirs! I thank you;' and so rode forthe to his owne company. The whiche dede was moche praysed of many folkes."—*Froissart*, cap. 278.

The barriers, so often alluded to, are described, by the same admirable historian, to be grated pallisades, the grates being about half a foot wide. In a skirmish before Honycourt, Sir Henry of Flanders ventured to thrust his sword so far through one of those spaces, that a sturdy abbot, who was within, seized his sword-arm, and drew it through the harriers, up to the shoulder. In this aukward situation he remained for some time, being unwilling to dishonour himself by quitting his weapon. He was at length rescued, but lost his sword; which Froissart afterwards saw preserved, as a relique, in the monastery of Honycourt.—Vol. I. chap. 39. For instances of single combats, at the barriers, see the same author, *passim*.

*And if the twa suld slay ye baith,
Ye'se get na help frae me.*—P. 34. v. 5.

According to the laws of chivalry, laws, which were also for a long [53] time observed in duels, when two or more persons were engaged on each side, he, who first conquered his immediate antagonist, was at liberty, if he pleased, to come to the assistance of his companions. The play of the "*Little French Lawyer*" turns entirely upon this circumstance; and it may be remarked throughout the poems of Boiardo and Ariosto; particularly in the combat of three Christian and three Pagan champions, in the 42d canto of *Orlando Furioso*. But doubtless a gallant knight was often unwilling, like young Maitland, to avail himself of this advantage. Something of this kind seems to have happened in the celebrated combat, fought in the presence of James II. at Stirling, in 1449, between three French, or Flemish, warriors,

and three noble Scottishmen, two of whom were of the house of Douglas. The reader will find a literal translation of Olivier de la Marche's account of this celebrated tourney, in *Pinkerton's History*, Vol. I. p. 428.

*I am nae king, nor nae sic thing:
My word it shanna stand!—P. 35. v. 2.*

Maitland's apology for retracting his promise to stand neuter, is as curious as his doing so is natural. The unfortunate John of France was wont to say, that, if truth and faith were banished from all the rest of the universe, they should still reside in the breast and the mouth of kings.

They maul'd him cruellie.—P. 35. v. 5.

This has a vulgar sound, but is actually a phrase of romance. *Tant frappent et maillent lex deux vassaux l'un sur l'autre, que leurs heaumes, et leurs hauberts, sont tous cassez et rompus.—La fleur des Battailes.*

*But, wi' the poll-axe in his hand,
Upon the brigg sprang he.—P. 36. v. 4.*

The battle-axe, of which there are many kinds, was a knightly weapon, much used in the middle ages, as well in single combat as in battle. "And also there was a younge bachelor, called Bertrande of Glesguyne, [54] who duryng the seige, fought wyth an Englyshman, called Sir Nycholas Dagerne; and that batayle was takene thre courses wyth a speare, thre strokes wyth an axe, and thre wyth a dagger. And eche of these knyghtes bare themselves so valyantly, that they departed fro the felde wythout any damage, and they were well regarded, bothe of theyme wythyn, and they wythout." This happened at the siege of Rennes, by the Duke of Lancaster, in 1357.—*Froissart*, Vol. I. c. 175. With the same weapon Godfrey of Harcourt long defended himself, when surprised and defeated by the French. "And Sir Godfraye's men kepte no goode array, nor dyd nat as they had promysed; moost part of theyme fledde: whan Sir Godfraye sawe that, he sayde to hymselfe, howe he had rather there be slayne than be taken by the Frenchmen; there he toke hys axe in hys handes, and set fast the one legge before the other, to stonde the more surely; for hys one legge was a lytell crooked, but he was strong in the armes. Ther he fought valyantly and long: none durste well abyde hys strokes; than two Frenchmen mounted on

theyr horses, and ranne both with their speares at ones at hym, and so bare hym to the yerth: than other, that were a-fote, came wyth theyr swerdes, and strake hym into the body, under his barneys, so that ther he was slayne."—*Ibid*, chap. 172. The historian throws Sir Godfrey into a striking attitude of desperation.

*When Maitland saw his ain blude fa',
An angry man was he,—P. 37, v. 1.*

There is a saying, that a Scottishman fights best after seeing his own blood. Camerarius has contrived to hitch this foolish proverb into a national compliment; for he quotes it as an instance of the persevering gallantry of his countrymen. "*Si in pugna proprium effundi sanguinem vidissent, non statim prostrato animo concedebant, sed irato potius in hostes velut furentes omnibus viribus incurrebant.*"

[55] *That Edward once lay under me,
And e'er gat up again.—P. 37. v. 4.*

Some reciters repeat it thus:

"That *Englishman* lay under me,"

which is in the true spirit of Blind Harry, who makes Wallace say,

"I like better to see the southeron die,
"Than gold or land, that they can gie to me."

In slaying Edward, Maitland acts pitilessly, but not contrary to the laws of arms, which did not enjoin a knight to shew mercy to his antagonist, until he yielded him, "*rescue or no rescue.*" Thus, the seigneur de Languerant came before the walls of an English garrison, in Gascony, and defied any of the defenders to run a course with a spear: his challenge being accepted by Bertrand Courant, the governor of the place, they couched their spears, like good knights, and dashed on their horses. Their spears were broke to pieces, and Languerant was overthrown, and lost his helmet among the horses' feet. His attendants were coming up; but Bernard drew his dagger, and said, "Sir, yield ye my prisoner, rescue or no rescue; else ye are but dead." The dismounted champion spoke not a word; on which, Bertrand, entering into fervent ire, dashed his dagger into his skull. Besides, the battle was not

always finished by one warrior obtaining this advantage over the other. In the battle of Nejara, the famous Sir John Chandos was overthrown, and held down, by a gigantic Spanish cavalier, named Martino Fernandez. "Then Sir Johan Chandos remembred of a knyfe, that he had in his bosome, and drew it out, and struck this Martyne so in the backe, and in the sydes, that he wounded him to dethe, as he laye upon hym." The dagger, which the knights employed in these close and desperate struggles, was called the *poniard of mercy*.

BATTLE OF OTTERBOURNE.

THE SCOTTISH EDITION.

The following edition of the Battle of Otterbourne, being essentially different from that which is published in the *Reliques of Ancient Poetry*, Vol. I. and being obviously of Scottish composition, claims a place in the present collection. The particulars of that noted action are related by Froissard, with the highest encomium upon the valour of the combatants on each side. James, Earl of Douglas, with his brother, the Earl of Murray, in 1387 invaded Northumberland, at the head of 3000 men; while the Earls of Fife and Strathern, sons to the king of Scotland, ravaged the western borders of England, with a still more numerous army. Douglas penetrated as far as Newcastle, where the renowned Hotspur lay in garrison. In a skirmish before the walls, Percy's lance, with the pennon, or guidon, attached to it, was taken by Douglas, as most authors affirm, in a personal encounter [57] betwixt the two heroes. The earl shook the pennon aloft, and swore he would carry it as his spoil into Scotland, and plant it upon his castle of Dalkeith. "That," answered Percy, "shalt thou never!"—Accordingly, having collected the forces of the marches, to a number equal, or (according to the Scottish historians) much superior, to the army of Douglas, Hotspur made a night attack upon the Scottish camp, at Otterbourne, about thirty-two miles from Newcastle. An action took place, fought, by moon-light, with uncommon gallantry and desperation. At length, Douglas, armed with an iron mace, which few but he could wield, rushed into the thickest of the English battalions, followed only by his chaplain, and two squires of his body.^[99] Before his followers could come up, their brave leader was stretched on the ground, with three mortal wounds: his squires lay dead by his side; the priest alone, armed with a lance, was protecting his master from farther injury. "I die like my forefathers," said the expiring hero, "in a field of battle, and not on a bed of sickness. Conceal my death, defend my standard,^[100] and avenge my fall! It is [58] an old prophecy, that a dead man

shall gain a field,^[101] and I hope it will be accomplished this night."—*Godscroft*.—With these words he expired; and the fight was renewed with double obstinacy around his body. When morning appeared, however, victory began to incline to the Scottish side. Ralph Percy, brother to Hotspur, was made prisoner by the earl Marischal, and, shortly after, Harry Percy^[102] himself was taken by Lord Montgomery. The number of captives, according to Wyntoun, nearly equalled that of the victors. Upon this the English retired, and left the Scots masters of the dear-bought honours of the field. But the bishop of Durham approaching, at the head of a body of fresh forces, not only checked the pursuit of the victors, but made prisoners some of the stragglers, who had urged the chase too far. The battle was not, however, renewed, as the bishop of Durham did not venture to attempt the rescue of Percy. The field was fought 15th August, 1388.—*Fordun, Froissard, Hollinshed, Godscroft*.

The ground, on which this memorable engagement took place, is now the property of John Davidson, Esq. of Newcastle, and still retains the name of Battle Cross. A cross, erroneously termed *Percy's Cross*, has been erected upon the spot where the gallant Earl of Douglas is supposed to have fallen. These particulars were [59] communicated to the editor, in the most obliging manner, by the present proprietor of Otterbourne.

The ballad, published in the *Reliques*, is avowedly an English production; and the author, with a natural partiality, leans to the side of his countrymen; yet, that ballad, or some one similar, modified probably by national prejudice, must have been current in Scotland during the reign of James VI.: for Godscroft, in treating of this battle, mentions its having been the subject of popular song, and proceeds thus: But that, which is commonly sung of the *Hunting of Chiviot*, seemeth indeed poetical, and a mere fiction, perhaps to stir up virtue; yet a fiction whereof there is no mention, either in the Scottish or English Chronicle. Neither are the songs, that are made of them, both one; for the *Scots song made of Otterbourne*, telleth the time, about Lammas; and also the occasion, to take preys out of England; also the dividing the armies betwixt the earls of Fife and Douglas, and their several journeys, almost as in the authentic history. It beginneth thus;

"It fell about the Lammas tide,
"When yeomen win their hay,
"The doughty Douglas 'gan to ride,
"In England to take a prey."—

GODSCROFT, *ed. Edin.* 1743. Vol. I. p. 195.

I cannot venture to assert, that the stanzas, here published, belong [60] to the ballad alluded to by Godscroft; but they come much nearer to his description than the copy published in the first edition, which represented Douglas as falling by the poignard of a faithless page. Yet we learn, from the same author, that the story of the assassination was not without foundation in tradition.—"There are that say, that he (Douglas) was not slain by the enemy, but by one of his own men, a groom of his chamber, whom he had struck the day before with a truncheon, in ordering of the battle, because he saw him make somewhat slowly to. And they name this man John Bickerton of Luffness, who left a part of his armour behind, unfastened, and when he was in the greatest conflict, this servant of his came behind his back, and slew him thereat."—*Godscroft, ut supra.*—"But this narration," adds the historian, "is not so probable."^[103] Indeed, it seems to have no foundation, but the common desire of assigning some remote and extraordinary cause for the death of a great man. The following ballad is also inaccurate in many other particulars, and is much shorter, and [61] more indistinct, than that printed in the *Reliques*, although many verses are almost the same. Hotspur, for instance, is called *Earl Percy*, a title he never enjoyed; neither was Douglas buried on the field of battle, but in Melrose Abbey, where his tomb is still shown.

This song was first published from Mr. Herd's *Collection of Scottish Songs and Ballads*, Edin. 1774: 2 vols. octavo; but two recited copies have fortunately been obtained from the recitation of old persons residing at the head of Ettrick Forest, by which the story is brought out, and completed, in a manner much more correspondent to the true history.

I cannot dismiss the subject of the Battle of Otterbourne, without stating (with all the deference due to the father of this species of literature) a doubt, which occurs to me, as to the account given of "Sir John of Agurstone," one of the Scottish warriors, in the learned and excellent notes subjoined to the

ballad, in the *Reliques of Ancient Poetry*. This personage is there supposed to have been one of the Haggerstons of Haggerston, a Northumbrian family, who, according to the fate of war, were sometimes subjects of Scotland. I cannot, however, think, that at this period, while the English were in possession both of Berwick and Roxburgh, with the intermediate fortresses of Wark, Cornwall, and Norham, the Scots possessed any part of Northumberland, much less a manor which lay within that strong chain of castles. I should presume the person alluded to rather to [62] have been one of the Rutherfords, barons of Edgerstane, or Adgerston, a warlike family, which has long flourished on the Scottish borders, and who were, at this very period, retainers of the house of Douglas. The same notes contain an account of the other Scottish warriors of distinction, who were present at the battle. These were, the earls of Monteith, Buchan, and Huntley; the barons of Maxwell and Johnston; Swinton of that ilk, an ancient family which, about that period, produced several distinguished warriors; Sir David (or rather, as the learned editor well remarks, Sir Walter) Scott of Buccleuch, Stewart of Garlies, and Murray of Cockpool.

*Regibus et legibus Scotici constantes,
Vos clypeis et gladiis pro patria pugnantes,
Vestra est victoria, vestra est et gloria,
In cantu et historia, perpes est memoria!*

[63]

BATTLE OF OTTERBOURNE.

It fell about the Lammas tide,
When the muir-men win their hay,
The doughty earl of Douglas rode
Into England, to catch a prey.

He chose the Gordons and the Graemes,
With them the Lindesays, light and gay;

But the Jardines wald not with him ride,
And they rue it to this day.

And he has burn'd the dales of Tyne,
And part of Bambrough shire;
And three good towers on Roxburgh fells,
He left them all on fire.

[64]

And he march'd up to Newcastle,
And rode it round about;
"O wha's the lord of this castle,
"Or wha's the lady o't?"

But up spake proud Lord Percy, then,
And O but he spake hie!
"I am the lord of this castle,
"My wife's the lady gay."

"If thou'rt the lord of this castle,
"Sae weel it pleases me!
"For, ere I cross the border fells,
"The tane of us shall die."

He took a lang spear in his hand.
Shod with the metal free,
And for to meet the Douglas there,
He rode right furiouslie.

But O how pale his lady look'd,
Frae aff the castle wa',
When down, before the Scottish spear,
She saw proud Percy fa',

[65]

"Had we twa been upon the green,
"And never an eye to see,
I wad hae had you, flesh and fell^[104];
"But your sword sall gae wi' me."

"But gae ye up to Otterbourne,
"And wait there dayis three;
And, if I come not ere three dayis end,
"A fause knight ca' ye me."

"The Otterbourne's a bonnie burn;
"'Tis pleasant there to be;
"But there is nought at Otterbourne,
"To feed my men and me.

[66]

"The deer rins wild on hill and dale,
"The birds fly wild from tree to tree;
"But there is neither bread nor kale,
"To fend^[105] my men and me.

"Yet I will stay at Otterbourne,
"Where you shall welcome be;
"And, if ye come not at three dayis end,
"A fause lord I'll ca' thee."

"Thither will I come," proud Percy said,
"By the might of Our Ladye!"—
"There will I bide thee," said the Douglas,
"My trowth I plight to thee."

They lighted high on Otterbourne,
Upon the bent sae brown;
They lighted high on Otterbourne,
And threw their pallions down.

And he that had a bonnie boy,
Sent out his horse to grass;
And he that had not a bonnie boy,
His ain servant he was.

But up then spake a little page,

Before the peep of dawn—
"O waken ye, waken ye, my good lord,
"For Percy's hard at hand."

[67]

"Ye lie, ye lie, ye liar loud!
"Sae loud I hear ye lie:
For Percy had not men yestreen,
"To dight my men and me."

"But I hae dream'd a dreary dream,
"Beyond the Isle of Sky;
"I saw a dead man win a fight,
"And I think that man was I."

He belted on his good braid sword,
And to the field he ran;
But he forgot the helmet good,
That should have kept his brain.

When Percy wi' the Douglas met,
I wat he was fu' fain!
They swak'd their swords, till sair they swat,
And the blood ran down like rain.

But Percy, with his good broad sword,
That could so sharply wound,
Has wounded Douglas on the brow,
Till he fell to the ground.

[68]

Then he call'd on his little foot-page.
And said—"Run speedilie,
"And fetch my ain dear sister's son,
"Sir Hugh Montgomery."

"My nephew good," the Douglas said,
"What reck's the death of ane!
"Last night I dream'd a dreary dream,

"And I ken the day's thy ain,

"My wound is deep; I fain would sleep;

"Take thou the vanguard of the three,

"And hide me by the braken bush,

"That grows on yonder lilye lee,

"O bury me by the braken bush,

"Beneath the blooming briar;

"Let never living mortal ken,

"That ere a kindly Scot lies here."

He lifted up that noble lord,

Wi' the saut tear in his e'e;

He hid him in the braken bush,

That his merrie men might not see.

[69]

The moon was clear, the day drew near,

The spears in flinders flew,

But mony a gallant Englishman,

Ere day the Scotsmen slew.

The Gordons good, in English blood,

They steep'd their hose and shoon;

The Lindsays flew like fire about,

Till all the fray was done.

The Percy and Montgomery met,

That either of other were fain;

They swapped swords, and they twa swat,

And aye the blude ran down between.

"Yield thee, O yield thee, Percy!" he said,

"Or else I vow I'll lay thee low!"

"Whom to shall I yield," said Earl Percy,

"Now that I see it must be so?"

"Thou shalt not yield to lord nor loun,
"Nor yet shalt thou yield to me;
"But yield thee to the braken bush,^[106]
"That grows upon yon lilye lee!"

[70]

"I will not yield to a braken bush,
"Nor yet will I yield to a briar;
But I would yield to Earl Douglas,
"Or Sir Hugh the Montgomery, if he were here."

As soon as he knew it was Montgomery,
He stuck his sword's point in the gronde;
And the Montgomery was a courteous knight,
And quickly took him by the honde.

This deed was done at Otterbourne,
About the breaking of the day;
Earl Douglas was buried at the braken bush,
And the Percy led captive away.

[71]

NOTES ON THE BATTLE OF OTTERBOURNE.

He chose the Gordons and the Graemes.—P. 64. v. 2.

The illustrious family of Gordon was originally settled upon the lands of Gordon and Huntly, in the shire of Berwick, and are, therefore, of border extraction. The steps, by which they removed from thence to the shires of Aberdeen and Inverness, are worthy notice. In 1300, Adam de Gordon was warden of the marches.—*Rymer*, Vol. II. p. 870. He obtained, from Robert the Bruce, a grant of the forfeited estate of David de Strathbolgie, Earl of Athol; but no possession followed, the earl having returned to his allegiance.—John de Gordon, his great-grandson, obtained, from Robert II.,

a new charter of the lands of Strathbolgie, which had been once more and finally forfeited, by David, Earl of Athol, slain in the battle of Kilblene. This grant is dated 13th July, 1376. John de Gordon who was destined to transfer, from the borders of England to those of the Highlands, a powerful and martial race, was himself a redoubted warrior, and many of his exploits occur in the annals of that turbulent period. In 1371-2, the English borderers invaded and plundered the lands of Gordon, on the Scottish east march. Sir John of Gordon retaliated, by an incursion [72] on Northumberland, where he collected much spoil. But, as he returned with his booty, he was attacked, at unawares, by Sir John Lillburne, a Northumbrian, who, with a superior force, lay near Carham in ambush, to intercept him. Gordon harangued and cheered his followers, charged the English gallantly, and, after having himself been five times in great peril, gained a complete victory; slaying many southerners, and taking their leader and his brother captive. According to the prior of Lochleven, he was desperately wounded; but

"Thare rays a welle gret renowne,
"And gretly prysyd wes gud Gordown."

Shortly after this exploit, Sir John of Gordon encountered and routed Sir Thomas Musgrave, a renowned English marchman whom he made prisoner. The lord of Johnstone had, about the same time, gained a great advantage on the west border; and hence, says Wynton,

He and the Lord of Gordowne
Had a soverane gud renown,
Of ony that war of thare degré,
For full thai war of gret bounté.

Upon another occasion, John of Gordon is said to have partially succeeded in the surprisal of the town of Berwick, although the superiority of the garrison obliged him to relinquish his enterprise.

The ballad is accurate, in introducing this warrior, with his clan, into the host of Douglas at Otterbourne. Perhaps, as he was in possession of his extensive northern domains, he brought to the field the northern broadswords, as well as the lances of his eastern borderers. With his gallant leader, he lost his life in the deadly conflict. The English ballad commemorates his valour and prudence;

"The Erle of Huntley, cawte and kene."

But the title is a premature designation. The earldom of Huntly was first conferred on Alexander Seaton, who married the grand-daughter [73] of the hero of Otterbourne, and assumed his title from Huntly, in the north. Besides his eldest son Adam, who carried on the line of the family, Sir John de Gordon left two sons, known, in tradition, by the familiar names of *Jock* and *Tam*. The former was the ancestor of the Gordons of Pitlurg; the latter of those of Lesmoir, and of Craig-Gordon. This last family is now represented by James Gordon, Esq. of Craig, being the eleventh, in direct descent, from Sir John de Gordon.

The Graemes.

The clan of Graeme, always numerous and powerful upon the border, were of Scottish origin, and deduce the descent of their chieftain, Graeme of Netherby, from John *with the bright sword*, a son of Malice Graeme, Earl of Menteith, who flourished in the fourteenth century. Latterly, they *became Englishmen*, as the phrase went, and settled upon the Debateable Land, whence they were transported to Ireland, by James VI., with the exception of a very few respectable families; "because," said his majesty in a proclamation, "they do all (but especially the Graemes) confess themselves to be no meet persons to live in these countries; and also, to the intent their lands may be inhabited by others, of good and honest conversation." But, in the reign of Henry IV., the Graemes of the border still adhered to the Scottish allegiance, as appears from the tower of Graeme in Annandale, Graemes Walls in Tweeddale, and other castles within Scotland, to which they have given their name. The reader is, however, at liberty to suppose, that the Graemes of the Lennox and Menteith, always ready to shed their blood in the cause of their country, on this occasion joined Douglas.

With them the Lindsays light and gay.—p. 64. v. 2.

The chief of this ancient family, at the date of the battle of [74] Otterbourne, was David Liudissay, lord of Glenesk, afterwards created Earl of Crawford. He was, after the manner of the times, a most accomplished knight. He survived the battle of Otterbourne, and the succeeding carnage of

Homildon. In May, 1390, he went to England, to seek adventures of chivalry; and justed, upon London Bridge, against the lord of Wells, an English knight, with so much skill and success, as to excite, among the spectators, a suspicion that he was tied to his saddle; which he removed, by riding up to the royal chair, vaulting out of his saddle, and resuming his seat without assistance, although loaded with complete armour. In 1392, Lindsay was nearly slain in a strange manner. A band of Catterans, or wild Highlanders, had broken down from the Grampian Hills, and were engaged in plundering the county of Angus. Walter Ogilvy, the sheriff, with Sir Patrick Gray, marched against them, and were joined by Sir David Lindsay. Their whole retinue did not exceed sixty men, and the Highlanders were above three hundred. Nevertheless, trusting to the superiority of arms and discipline, the knights rushed on the invaders, at Gasclune, in the Stormont. The issue was unfortunate. Ogilvy, his brother, and many of his kindred, were overpowered and slain. Lindsay, armed at all points, made great slaughter among the naked Catterans; but, as he pinned one of them to the earth with his lance, the dying mountaineer writhed upwards and, collecting his force, fetched a blow with his broad-sword which cut through the knight's stirrup-leather and steel-boot and nearly severed his leg. The Highlander expired, and Lindsay was with difficulty borne out of the field by his followers—*Wyntown*. Lindsay is also noted for a retort, made to the famous Hotspur. At a march-meeting, at Haldane-Stank, he happened to observe, that Percy was sheathed in complete armour. "It is for fear of the English horsemen," said Percy, in explanation; for he was already meditating the insurrection, immortalised by Shakespeare. "Ah! Sir Harry," answered Lindsay, "I have seen you more sorely bestad by Scottish footmen than by English horse."—*Wyntown*. Such was the leader of the "*Lindsays light and guy*."

According to Froissard, there were three Lindsays in the battle of Otterbourne, whom he calls Sir William, Sir James, and Sir Alexander. To Sir James Lindsay there fell "a strange chance of war," which I [75] give in the words of the old historian. "I shall shewe you of Sir Mathewe Reedman (an English warrior, and governor of Berwick), who was on horsebacke, to save himselfe, for he alone coude nat remedy the mater. At his departynge, Sir James Limsay was nere him, and sawe Sir Mathewe departed. And this Sir James, to wyn honour, followed in chase Sir Mathewe Reedman, and

came so nere him, that he myght have stryken hym with hys speare, if he had lyst. Than he said, 'Ah! Sir knyght, tourne! it is a shame thus to fly! I am James of Lindsay. If ye will nat tourne, I shall strike you on the back with my speare.' Sir Mathewe spoke no worde, but struke his hors with his spurres sorer than he did before. In this maner he chased hym more than three myles. And at last Sir Mathewe Reedman's hors foundered, and fell under hym. Than he stept forthe on the erthe, and drewe oute his swerde, and toke corage to defend himselfe. And the Scotte thoughte to have stryken hym on the brest, but Sir Mathewe Reedman swerved fro the stroke, and the speare point entred into the erthe. Than Sir Mathewe strake asonder the speare wyth his swerde. And whan Sir James Limsay sawe howe he had lost his speare, he cast away the tronchon, and lyghted a-fote, and toke a lytell battell-axe, that he carryed at his backe, and handled it with his one hand, quickly and delyverly, in the whyche feate Scottes be well experte. And than he set at Sir Mathewe, and he defended himselfe properly. Thus they journeyed toguyder, one with an axe, and the other with a swerde, a longe season, and no man to lette them. Fynally, Sir James Limsay gave the knyght such strokes, and helde him so shorte, that he was putte out of brethe in such wyse, that he yelded himselfe, and sayde,—'Sir James Limsay, I yeld me to you.'—'Well,' quod he; 'and I receyve you, rescue or no rescue.'—'I am content,' quod Reedman, 'so ye dele wyth me like a good companyon.'—'I shall not fayle that,' quod Limsay, and so put up his swerde. 'Well,' said Reedman, 'what will ye nowe that I shall do? I am your prisoner; ye have conquered me; I wolde gladly go agayn [76] to Newcastle, and, within fiftene dayes, I shall come to you into Scotlande, where as ye shall assigne me.'—'I am content,' quod Limsay; 'ye shall promyse, by your faythe, to present yourselfe, within these foure wekes, at Edinborowe; and wheresoever ye go, to repute yourselfe my prisoner.' All this Sir Mathewe sware, and promised to fulfil."

The warriors parted upon these liberal terms, and Reedman returned to Newcastle. But Lindsay had scarcely ridden a mile, when he met the bishop of Durham, with 500 horse, whom he rode towards, believing them to be Scottish, until he was too near them to escape. The bysshoppe stepte to him, and sayde, 'Limsay, ye are taken; yelde ye to me.'—'Who be you?' quod Limsay. 'I am,' quod he, 'the bysshoppe of Durham.'—'And fro whens come you, sir?' quod Limsay. 'I come fro the battell,' quod the bysshoppe, 'but I

strucke never a stroke there. I go backe to Newcastell for this night, and ye shal go with me.'—'I may not chuse,' quod Limsay, 'sith ye will have it so. I have taken, and I am taken; suche is the adventures of armes.' Lindsay was accordingly conveyed to the bishop's lodgings in Newcastle, and here he was met by his prisoner, Sir Matthew Reedman; who founde hym in a studye, lying in a windowe, and sayde, 'What! Sir James Lindsay, what make you here?' Than Sir James came forth of the study to him, and saydc, 'By my fayth, Sir Mathewe, fortune hath brought me hyder; for, as soon as I was departed fro you, I mete by chaunce the bisshoppe of Durham, to whom I am prisoner, as ye be to me. I beleve ye shall not nede to come to Edenborowe to me to mak your fynaunce. I thynk, rather, we shall make an exchange one for another, if the bysshoppe be also contente.'—'Well, sir,' quod Reedman, 'we shall accord ryghte well toguyder; ye shall dine this day with me: the bysshoppe and our men be gone forth to fyght with your men. I can nat tell what we shall know at their retourne.'—'I am content to dyne with you,' quod Limsay."—*Froissart's Chronicle*, translated by Bouchier, Lord Berners, Vol. I, chap. 146.

[77] *O gran bontà de' cavalieri antiqui!*

Eran rivali, eran di fè diversi;

E si sentian, de gli aspri colpi iniqui,

Per tutta la persona anco dolersi;

E pur per selve oscure, e calle iniqui

Insieme van senza sospetto aversi.

L'Orlando.

But the Jardines wald not with him ride.—P. 64. v. 2.

The Jardines were a clan of hardy west-border men. Their chief was Jardine of Applegirth. Their refusal to ride with Douglas was, probably, the result of one of those perpetual feuds, which usually rent to pieces a Scottish army.

And he that had a bonny boy,

Sent out his horse to grass.—P. 67. v. 4.

Froissard describes a Scottish host, of the same period, as consisting of "III. M. men of armes, knightis, and squires, mounted on good horses; and

other X.M. men of warre armed, after their gyse, right hardy and firse, mounted on lytle hackneys, the whiche were never tyed, nor kept at hard meat, but lette go to pasture in the fieldis and bushes."—*Cronykle of Froissart*, translated by Lord Berners, Chap. xvii.

THE SANG OF THE OUTLAW MURRAY.

This ballad appears to have been composed about the reign of James V. It commemorates a transaction, supposed to have taken place betwixt a Scottish monarch, and an ancestor of the ancient family of Murray of Philiphaugh in Selkirkshire. The editor is unable to ascertain the historical foundation of the tale; nor is it probable that any light can be thrown upon the subject, without an accurate examination of the family charter chest. It is certain, that, during the civil wars betwixt Bruce and Baliol, the family of Philiphaugh existed, and was powerful; for their ancestor, Archibald de Moravia, subscribes the oath of fealty to Edward I.A.D. 1296. It is, therefore, not unlikely, that, residing in a wild and frontier country, they may have, at one [79] period or other, during these commotions, refused allegiance to the feeble monarch of the day, and thus extorted from him some grant of territory or jurisdiction. It is also certain, that, by a charter from James IV., dated November 30, 1509, John Murray of Philiphaugh is vested with the dignity of heritable sheriff of Ettrick Forest, an office held by his descendants till the final abolition of such jurisdictions by 28th George II. cap. 23. But it seems difficult to believe that the circumstances, mentioned in the ballad, could occur under the reign of so vigorous a monarch as James IV. It is true, that the *Dramatis Personae* introduced seem to refer to the end of the fifteenth, or beginning of the sixteenth, century; but from this it can only be argued, that the author himself lived soon after that period. It may, therefore, be supposed (unless farther evidence can be produced, tending to invalidate the conclusion), that the bard, willing to pay his court to the family, has connected the grant of the sheriffship by James IV. with some further dispute betwixt the Murrays of Philiphaugh and their sovereign, occurring, either while they were engaged upon the side of Baliol, or in the subsequent reigns of David II. and Robert II. and III., when the English possessed great part of the Scottish frontier, and the rest was in so lawless a state as hardly to acknowledge any superior. At the same time, this reasoning is not absolutely conclusive. James IV. had particular reasons for desiring that Ettrick Forest, which actually formed

part of the [80] jointure lands of Margaret, his queen, should be kept in a state of tranquillity.—*Rymer*, Vol. XIII. p. 66. In order to accomplish this object, it was natural for him, according to the policy of his predecessors to invest one great family with the power of keeping order among the rest. It is even probable, that the Philiphaugh family may have had claims upon part of the lordship of Ettrick Forest, which lay intermingled with their own extensive possessions; and, in the course of arranging, not indeed the feudal superiority, but the property, of these lands, a dispute may have arisen, of sufficient importance to be the ground-work of a ballad.—It is farther probable, that the Murrays, like other border clans, were in a very lawless state, and held their lands merely by occupancy, without any feudal right. Indeed, the lands of the various proprietors in Ettrick Forest (being a royal demesne) were held by the possessors, not in property, but as the kindly tenants, or rentallers, of the crown; and it is only about 150 years since they obtained charters, striking the feu-duty of each proprietor, at the rate of the quit-rent, which he formerly paid. This state of possession naturally led to a confusion of rights and claims. The kings of Scotland were often reduced to the humiliating necessity of compromising such matters with their rebellious subjects, and James himself even entered into a sort of league with Johnie Faa, the king of the gypsies.—Perhaps, therefore, the tradition, handed [81] down in this song, may have had more foundation than it would at present be proper positively to assert.

The merit of this beautiful old tale, it is thought, will be fully acknowledged. It has been, for ages, a popular song in Selkirkshire. The scene is, by the common people, supposed to have been the castle of Newark, upon Yarrow. This is highly improbable, because Newark was always a royal fortress. Indeed, the late excellent antiquarian Mr. Plummer, sheriff-depute of Selkirkshire, has assured the editor, that he remembered the *insignia* of the unicorns, &c. so often mentioned in the ballad, in existence upon the old tower at Hangingshaw, the seat of the Philiphaugh family; although, upon first perusing a copy of the ballad, he was inclined to subscribe to the popular opinion. The tower of Hangingshaw has been demolished for many years. It stood in a romantic and solitary situation, on the classical banks of the Yarrow. When the mountains around Hangingshaw were covered with the wild copse which constituted a

Scottish forest, a more secure strong-hold for an outlawed baron can hardly be imagined.

The tradition of Ettrick Forest bears, that the Outlaw was a man of prodigious strength, possessing a batton or club, with which he laid *lee* (i.e. waste) the country for many miles round; and that he was at length slain by Buccleuch, or some of his clan, at a little mount, covered with fir-trees, adjoining to Newark castle, and said to have been a part of the garden. A varying tradition bears the place [82] of his death to have been near to the house of the Duke of Buccleuch's game-keeper, beneath the castle; and, that the fatal arrow was shot by Scot of Haining, from the ruins of a cottage on the opposite side of the Yarrow. There was extant, within these twenty years, some verses of a song on his death. The feud betwixt the Outlaw and the Scotts may serve to explain the asperity, with which the chieftain of that clan is handled in the ballad.

In publishing the following ballad, the copy principally resorted to is one, apparently of considerable antiquity, which was found among the papers of the late Mrs. Cockburn, of Edinburgh, a lady whose memory will be long honoured by all who knew her. Another copy, much more imperfect, is to be found in Glenriddel's MSS. The names are in this last miserably mangled, as is always the case when ballads are taken down from the recitation of persons living at a distance from the scenes in which they are laid. Mr. Plummer also gave the editor a few additional verses, not contained in either copy, which are thrown into what seemed their proper place. There is yet another copy, in Mr. Herd's MSS., which has been occasionally made use of. Two verses are restored in the present edition, from the recitation of Mr. Mungo Park, whose toils, during his patient and intrepid travels in Africa, have not eradicated from his recollection the legendary lore of his native country.

The arms of the Philiphaugh family are said by tradition to allude [83] to their outlawed state. They are indeed those of a huntsman, and are blazoned thus; Argent, a hunting horn sable, stringed and garnished gules, on a chief azure, three stars of the first. Crest, a Demi Forester, winding his horn, proper. Motto, *Hinc usque superna venabor*.

THE SANG OF THE OUTLAW MURRAY.

Ettricke Foreste is a feir foreste,
In it grows manie a semelie trie;
There's hart and hynd, and dae and rae,
And of a' wilde beastes grete plentie.

There's a feir castelle, bigged wi' lyme and stane;
O! gin it stands not pleasauntlie!
In the forefront o' that castelle feir,
Twa unicorns are bra' to see;
There's the picture of a knight, and a ladye bright,
And the grene hollin abune their brie.^[107]

There an Outlaw keeps five hundred men;
He keepis a royalle cumpanie!

[84]

His merryemen are a' in ae liverye clad,
O' the Liukome grene saye gaye to see;
He and his ladye in purple clad,
O! gin they lived not royallie!

Word is gane to our nobil king,
In Edinburgh, where that he lay,
That there was an Outlaw in Ettricke Foreste,
Counted him nought, nor a' his courtrie gay.

"I make a vowe," then the gude king said,
Unto the man that deir bought me,
"T'se either be king of Ettricke Foreste,
Or king of Scotlonde that Outlaw sail be!"

Then spak the lord, hight Hamilton,
And to the nobil king said he,
"My sovereign prince, sum counsell take,

First at your nobilis, syne at me.

"I redd ye, send yon braw Outlaw till,
And see gif your man cum will he:
Desyre him cum and be your man,
And hald of you yon Foreste frie.

[85]

"Gif he refuses to do that,
We'll conquess baith his landis and he!
Or else, we'll throw his castell down,
And make a widowe o' his gay ladye."

The king then call'd a gentleman,
James Boyd, (the Earl of Arran his brother was he)
When James he cam befor the king,
He knelit befor him on his kné.

"Wellcum, James Boyd!" said our nobil king;
"A message ye maun gang for me;
Ye maun hye to Ettricke Foreste,
To yon Outlaw, where bydeth he:

"Ask him of whom he haldis his landis,
Or man, wha may his master be,
And desyre him cum, and be my man,
And hald of me yon Foreste frie.

"To Edinburgh to cum and gang,
His safe warrant I sall gie;
And gif he refuses to do that,
We'll conquess baith his landis and he.

[86]

"Thou may'st vow I'll cast his castell down,
And mak a widowe o' his gay ladye;
I'll hang his merryemen, payr by payr,
In ony frith where I may them see."

James Boyd tuik his leave o' the nobil king,
To Ettricke Foreste feir cam he;
Down Birkendale Brae when that he cam,
He saw the feir Foreste wi' his e'e.

Baithe dae and rae, and hart and hinde,
And of a' wilde beastis great plentie;
He heard the bows that bauldly ring,
And arrows whidderan' hym near bi.

Of that feir castell he got a sight;
The like he neir saw wi' his e'e!
On the fore front o' that castell feir,
Twa unicorns were gaye to see;
The picture of a knight, and a ladye bright,
And the grene hollin abune their brie.

Thereat he spyed five hundred men,
Shuting with bows on Newark Lee;

[87]

They were a' in ae livery clad,
O' the Lincome grene sae gaye to see.

His men were a' clad in the grene,
The knight was armed capapie,
With a bended bow, on a milk-white steed;
And I wot they ranked right bonilie.

Thereby Boyd kend he was master man,
And serv'd him in his ain degré.
"God mot thee save, brave Outlaw Murray!
Thy ladye, and all thy chyvalrie!"
"Marry, thou's wellcum, gentelman,
Some king's messenger thou seemis to be."

"The king of Scotlonde sent me here,
And, gude Outlaw, I am sent to thee;

I wad wot of whom ye hald your landis,
Or man, wha may thy master be?"

"Thir landis are MINE!" the Outlaw said;
"I ken nae king in Christentie;
Frae Soudron^[108] I this Foreste wan,
When the king nor his knightis were not to see."

[88]

"He desyres you'l cum to Edinburgh,
And hauld of him this Foreste frie;
And, gif ye refuse to do this,
He'll conquest baith thy landis and thee.
He hath vow'd to cast thy castell down,
And mak a widowe o' thy gaye ladye;

"He'll hang thy merryemen, payr by payr,
In ony frith where he may them finde."
"Aye, by my troth!" the Outlaw said,
"Than wald I think me far behinde.

"E'er the king my feir countrie get,
This land that's nativest to me!
Mony o' his nobilis sall be cauld,
Their ladies sall be right wearie."

Then spak his ladye, feir of face,
She seyde, "Without consent of me,
That an Outlaw suld cum befor a King;
I am right rad^[109] of treasonrie.
Bid him be gude to his lordis at hame,
For Edinburgh my lord sall nevir see."

[89]

James Boyd tuik his leave o' the Outlaw kene,
To Edinburgh boun is he;
When James he cam befor the king,
He knelit lowlie on his kné.

"Wellcum, James Boyd!" seyde our nobil king;
"What Foreste is Ettricke Foreste frie?"
"Ettricke Foreste is the feirest foreste
That evir man saw wi' his e'e.

"There's the dae, the rae, the hart, the hynde,
And of a' wild beastis grete plentie;
There's a pretty castell of lyme and stane;
O gif it stands not pleasauntlie!

"There's in the forefront o' that castell,
Twa unicorns, sae bra' to see;
There's the picture of a knight, and a ladye bright,
Wi' the grene hollin abune their brie.

"There the Outlaw keepis five hundred men;
He keepis a royalle cumpanie!
His merrymen in ae livery clad,
O' the Linkome grene sae gaye to see:

[90]

"He and his ladye in purple clad;
O! gin they live not royallie!

"He says, yon Foreste is his awin;
He wan it frae the Southronie;
Sae as he wan it, sae will he keep it,
Contrair all kingis in Christentie."

"Gar warn me Perthshire, and Angus baith;
Fife up and down, and the Louthians three,
And graith my horse!" said the nobil king,
"For to Ettricke Foreste hie will I me."

Then word is gane the Outlaw till,
In Ettricke Foreste, where dwelleth he,
That the king was cuming to his cuntrie,
To conquest baith his landis and he.

"I mak a vow," the Outlaw said,
"I mak a vow, and that trulie,
Were there but three men to tak my pairt;
Yon king's cuming full deir suld be!"

[91]

Then messengers he called forth,
And bade them hie them speedilye—
"Ane of ye gae to Halliday,
The laird of the Corhead is he.

"He certain is my sister's son;
Bid him cum quick and succour me!
The king cums on for Ettricke Foreste,
And landless men we a' will be."

"What news? What news?" said Halliday,
"Man, frae thy master unto me?"
"Not as ye wad; seeking your aide;
The king's his mortal enemy."

"Aye, by my troth!" said Halliday,
"Even for that it repenteth me;
For gif he lose feir Ettricke Foreste,
He'll tak feir Moffatdale frae me.

"I'll meet him wi' five hundred men,
And surely mair, if mae may be;
And before he gets the Foreste feir,
We a' will die on Newark Lee!"

[92]

The Outlaw call'd a messenger,
And bid him hie him speedilye,
To Andrew Murray of Cockpool—
"That man's a deir cousin to me;
Desyre him cum, and mak me ayd,
With a' the power that he may be."

"It stands me hard," Andrew Murray said,
Judge gif it stands na hard wi' me;
To enter against a king wi' crown,
And set my landis in jeopardie!
Yet, if I cum not on the day,
Surely at night he sall me see."

To Sir James Murray of Traquair,
A message cam right speedilye—
"What news? What news?" James Murray said,
"Man, frae thy master unto me?"

"What neids I tell? for weell ye ken,
The king's his mortal enemy;
And now he is cuming to Ettricke Foreste,
And landless men ye a' will be."

[93]

"And, by my trothe," James Murray said,
"Wi' that Outlaw will I live and die;
The king has gifted my landis lang syne—
It cannot be nae warse wi' me."

The king was cuming thro' Caddon Ford^[110],
And full five thousand men was he;
They saw the derke Foreste them before,
They thought it awsome for to see.

Then spak the lord, hight Hamilton,
And to the nobil king said he,
"My sovereign liege, sum council tak,
First at your nobilis, syne at me.

"Desyre him mete thee at Permanscore,
And bring four in his cumpanie;
Five erles sall gang yoursell befor,
Gude cause that you suld honour'd be.

"And, gif he refuses to do that,
We'll conquest baith his landis and he;
[94] "There sall nevir a Murray, after him,
Hald land in Ettricke Foreste frie."

Then spak the kene laird of Bucksleuth,
A stalworthy man, and sterne was he—
"For a king to gang an Outlaw till,
Is beneath his state and his dignitie.

"The man that wons yon Foreste intill,
He lives by reif and felonie!
Wherefore, brayd on, my sovereign liege!
Wi' fire and sword we'll follow thee;
Or, gif your courtrie lords fa' back,
Our borderers sall the onset gie."

Then out and spak the nobil king,
And round him cast a wilie e'e—
"Now haud thy tongue, Sir Walter Scott,
Nor speik of reif nor felonie:
For, had everye honeste man his awin kye,
A right puir clan thy name wad be!"

The king then call'd a gentleman,
Royal banner bearer there was he;
[95]
James Hop Pringle of Torsonse, by name;
He cam and knelit upon his kné.

"Wellcum, James Pringle of Torsonse!
A message ye maun gang for me;
Ye maun gae to yon Outlaw Murray,
Surely where bauldly bideth he.

"Bid him mete me at Permanscore,

And bring four in his cumpanie;
Five erles sall cum wi' mysell
Gude reason I suld honour'd be.

"And, gif he refuses to do that,
Bid him luke for nae good o' me!
Ther sall nevir a Murray, after him,
Have land in Ettricke Foreste frie."

James cam befor the Outlaw kene,
And serv'd him in his ain degré—
"Wellcum, James Pringle of Torsonse!
What message frae the king to me?"

[96]

"He bidds ye mete him at Permanscore,
And bring four in your cumpanie;
Five erles sall gang himsell befor,
Nae mair in number will he be.

"And, gif you refuse to do that,
(I freely here upgive wi' thee)
He'll cast yon bonny castle down,
And mak a widowe o' that gaye ladye.

"He'll loose yon bluidhound borderers,
Wi' fire and sword to follow thee;
There will nevir a Murray, after thysell,
Have land in Ettricke Foreste frie."

"It stands me hard," the Outlaw said;
"Judge gif it stands na hard wi' me!
Wha reck not losing of mysell,
But a' my offspring after me.

"My merryemen's lives, my widowe's teirs—
There lies the pang that pinches me!
When I am straught in bluidie eard,

Yon castell will be right dreirie.

[97]

"Auld Halliday, young Halliday,
Ye sall be twa to gang wi' me;
Andrew Murray, and Sir James Murray,
We'll be nae mae in cumpanie."

When that they cam befor the king,
They fell befor him on their kné—
"Grant mercie, mercie, nobil king!
E'en for his sake that dyed on trie."

"Sicken like mercie sall ye have;
On gallows ye sall hangit be!"
"Over God's forbode," quoth the Outlaw then,
"I hope your grace will bettir be!
Else, ere ye come to Edinburgh port,
I trow thin guarded sall ye be:

"Thir landis of Ettricke Foreste feir,
I wan them from the enemie;
Like as I wan them, sae will I keep them,
Contrair a' kingis in Christentie."

All the nobilis the king about,
Said pitie it were to see him die—

[98] "Yet graunt me mercie, sovereign prince!
Extend your favour unto me!

"I'll give thee the keys of my castell,
Wi' the blessing o' my gaye ladye,
Gin thoul't mak me sheriffe of this Foreste,
And a' my offspring after me."

"Wilt thou give me the keys of thy castell,
Wi' the blessing of thy gaye ladye?
I'se mak thee sheriffe of Ettricke Foreste,

Surely while upwards grows the trie;
If you be not traitour to the king,
Forfaulted sall thou nevir be."

"But, prince, what sall cum o' my men?
When I gae back, traitour they'll ca' me.
I had rather lose my life and land,
E'er my merryemen rebuked me."

"Will your merryemen amend their lives?
And a' their pardons I graunt thee—
Now, name thy landis where'er they lie,
And here I RENDER them to thee."

[99]

"Fair Philiphaugh is mine by right,
And Lewinshope still mine shall be;
Newark, Foulshiells, and Tinnies baith,
My bow and arrow purchased me.

"And I have native steads to me,
The Newark Lee and Hangingshaw;
I have mony steads in the Foreste shaw,
But them by name I dinna knaw."

The keys o' the castell he gave the king,
Wi' the blessing o' his feir ladye;
He was made sheriffe of Ettricke Foreste,
Surely while upwards grows the trie;
And if he was na traitour to the king,
Forfaulted he suld nevir be.

Wha ever heard, in ony times,
Sicken an Outlaw in his degré,
Sick favour get befor a king,
As did the OUTLAW MURRAY of the Foreste frie?

NOTES ON THE SANG OF THE OUTLAW MURRAY.

Then spak the Lord, hight Hamilton.—P. 86. v. 4.

This is, in most copies, the *earl* hight Hamilton, which must be a mistake of the reciters, as the family did not enjoy that title till 1503.

James Boyd (the Earl of Arran his brother), &c.—P. 87. v. 2.

Thomas Boyd, Earl of Arran, was forfeited, with his father and uncle, in 1469, for an attempt on the person of James III. He had a son, James, who was restored, and in favour with James IV. about 1482. If this be the person here meant, we should read "The Earl of Arran his *son* was he." Glenriddel's copy reads, "A highland laird I'm sure was he." Reciters sometimes call the messenger, the laird of Skene.

Down Birkendale Brae when that he cam.—P. 88, v. 2.

Birkendale Brae, now commonly called *Birkendailly*, is a steep descent on the south side of Minch-Moor, which separates Tweeddale from Ettrick Forest; and from the top of which you have the first view of the woods of Hangingshaw, the castle of Newark, and the romantic dale of Yarrow.

[101] *The laird of the Corehead, &c.*—P. 93. v. 1.

This is a place at the head of Moffat-water, possessed of old by the family of Halliday.

To Andrew Murray of Cockpool.—P. 94. v. 1.

This family were ancestors of the Murrays, earls of Annandale; but the name of the representative, in the time of James IV. was William, not Andrew. Glenriddel's MS. reads, "the country-keeper."

To Sir James Murray of Traquair.—P. 94. v. 3.

Before the barony of Traquair became the property of the Stewarts, it belonged to a family of Murrays, afterwards Murrays of Black-barony, and ancestors of Lord Elibank. The old castle was situated on the Tweed. The lands of Traquair were forfeited by Willielmus de Moravia, previous to 1464; for, in that year, a charter, proceeding upon his forfeiture, was granted by the crown "Willielmo Douglas de Cluny." Sir James was, perhaps, the heir of William Murray. It would farther seem, that the grant in 1464 was not made effectual by Douglas; for, another charter from the crown, dated the 3d February, 1478, conveys the estate of Traquair to James Stewart, Earl of Buchan, son to the black knight of Lorne, and maternal uncle to James III., from whom is descended the present Earl of Traquair. The first royal grant not being followed by possession, it is very possible that the Murrays may have continued to occupy Traquair long after the date of that charter. Hence, Sir James might have reason to say, as in the ballad, "The king has gifted my lands lang syne."

James Hop Pringle of Torsonse.—P. 97. v. 1.

The honourable name of Pringle, or Hoppringle, is of great antiquity in Roxburghshire and Selkirkshire. The old tower of Torsonse is situated upon the banks of the Gala. I believe the Pringles of Torsonse are now represented by Sir James Pringle of Stitchell. There are three other ancient and distinguished families of this name; those [102] of Whitebank, Clifton, and Torwoodlee.

He bids ye mete him at Permanscore.—P. 98. v. 1.

Permanscore is a hollow on the top of a high ridge of hills, dividing the vales of Tweed and Yarrow, a little to the east-ward of Minch-Moor. It is the outermost point of the lands of Broadmeadows. The Glenriddel MS., which, in this instance, is extremely inaccurate as to names, calls the place of rendezvous "*The Poor Man's house*," and hints, that the Outlaw was surprised by the treachery of the king:—

*"Then he was aware of the king's coming,
With hundreds three in company,
I wot the muckle deel * * * * *
He learned kings to lie!
For to fetch me here frae amang my men,
Here like a dog for to die."*

I believe the reader will think, with me, that the catastrophe is better, as now printed from Mrs. Cockburn's copy. The deceit supposed to be practised on the Outlaw, is unworthy of the military monarch, as he is painted in the ballad; especially if we admit him to be King James IV.

Fair Philiphaugh is mine by right.—P. 101. v. 1.

In this and the following verse, the ceremony of feudal investiture is supposed to be gone through, by the Outlaw resigning his possessions into the hands of the king, and receiving them back, to be held of him as superior. The lands of Philiphaugh are still possessed by the Outlaw's representative. Hangingshaw and Lewinshope were sold of late years. Newark, Foulshiels and Tinnies, have long belonged to the family of Buccleuch.



JOHNIE ARMSTRANG.

There will be such frequent occasion, in the course of this volume, to mention the clan, or sept, of the Armstrongs, that the editor finds it necessary to prefix, to this ballad, some general account of that tribe.

The Armstrongs appear to have been, at an early period, in possession of great part of Liddesdale, and of the Debateable Land. Their immediate neighbourhood to England, rendered them the most lawless of the Border depredators; and, as much of the country possessed by them was claimed by both kingdoms, the inhabitants, protected from justice by the one nation, in opposition to the other, securely preyed upon both.^[111] The chief was Armstrong of Mangertoun; but, at a later [104] period, they are declared a broken clan, i.e. one which had no lawful head, to become surety for their good behaviour. The rapacity of this clan, and of their allies, the Elliots, occasioned the popular saying, "Elliots and Armstrongs ride thieves all."—But to what Border-family of note, in former days, would not such an adage have been equally applicable? All along the river Liddel may still be discovered the ruins of towers, possessed by this numerous clan. They did not, however, entirely trust to these fastnesses; but, when attacked by a superior force, abandoned entirely their dwellings, and retired into morasses, accessible by paths known to themselves alone. One of their most noted places of refuge was the Tarras Moss, a desolate and horrible marsh, through which a small river takes its course. Upon its banks are found some dry spots, which were occupied by these outlaws, and their families, in cases of emergency. The stream runs furiously among huge rocks, which has occasioned a popular saying—

*Was ne'er are drown'd in Tarras, nor yet in doubt,
For e'er the head can win down, the harns (brains) are out.*

The morass itself is so deep, that, according to an old historian, two spears tied together would not reach the bottom. In this retreat, the Armstrongs, *anno* 1588, baffled the Earl of Angus, when lieutenant on the Border,

although he reckoned himself so skilful in winding a thief, that he declared, "he had the same pleasure in it, [105] as others in a hunting a hare." On this occasion he was totally unsuccessful, and nearly lost his relation, Douglas of Ively, whom the freebooters made prisoner.—*Godscroft* Vol. II. p. 411.

Upon another occasion the Armstrongs were less fortunate. They had, in one of their incursions, plundered the town of Haltwhistle, on the borders of Cumberland. Sir Robert Carey, warden of the west marches, demanded satisfaction from the king of Scotland, and received for answer, that the offenders were no subjects of his, and that he might take his own revenge. The English warden, accordingly entered Lldesdale, and ravaged the lands of the outlaws; on which occasion, *Sim of the Cat-hill* (an Armstrong) was killed by one of the Ridleys of Haltwhistle. This incident procured Haltwhistle another visit from the Armstrongs, in which they burnt great part of the town, but not without losing one of their leaders, by a shot from a window.

"The death of this young man (says Sir Robert Carey) wrote (wrought) so deep an impression upon them (the outlaws), as many vowes were made, that, before the end of next winter, they would lay the whole Border waste. This (the murder) was done about the end of May (1598). The chiefe of all these outlaws was *old Sim of Whittram*.^[112] He had five or six sonnes, as able men as the Borders had. This old [106] man and his sonnes had not so few as two hundred at their commands, that were ever ready to ride with them to all actions, at their beck.

The high parts of the marsh (march) towards Scotland were put in a mighty fear, and the chiefe of them, for themselves and the rest, petitioned to mee, and did assure mee, that, unless I did take some course with them, by the end of that summer, there was none of the inhabitants durst, or would, stay in their dwellings the next winter, but they would fley the countrey, and leave their houses and lands to the fury of the outlawes. Upon this complaint, I called the gentlemen of the countrey together, and acquainted them with the misery that the highest parts of the marsh towards Scotland were likely to endure, if there were not timely prevention to avoid it, and desired them to give mee their best advice what course were fitt to be taken. They all showed themselves willing to give mee their best counsailes, and most of them were of opinion, that I was not well advised to refuse the

hundred horse that my Lord Euers had; and that now my best way was speedily to acquaint the quene and counsaile with the necessity of having more soldiers, and that there could not be less than a hundred horse sent downe for the defence of the countrey, besides the forty I had already in pay, and that there was nothing but force of soldiers could keep them in awe: and to let the counsaile plainly understand, [107] that the marsh, of themselves, were not able to subsist, whenever the winter and long nights came in, unlesse present cure and remedy were provided for them. I desired them to advise better of it, and to see if they could find out any other meanes to prevent their mischievous intentions, without putting the quene and countrey to any further charge. They all resolved that there was no second meanes. Then I told them my intention what I meant to do, which was, that myselfe, with my two deputies, and the forty horse that I was allowed, would, with what speede wee could, make ourselves ready to go up to the Wastes, and there wee would entrench ourselves, and lye as near as wee could to the outlawes; and, if there were any brave spirits among them, that would go with us, they should be very wellcome, and fare and lye as well as myselfe: and I did not doubt before the summer ended, to do something that should abate the pride of these outlawes. Those, that were unwilling to hazard themselves, liked not this motion. They said, that, in so doing, I might keep the countrey quiet the time I lay there; but, when the winter approached, I could stay there no longer, and that was the theeves' time to do all their mischief. But there were divers young gentlemen, that offered to go with mee, some with three, some with four horses, and to stay with mee as long as I would there continue. I took a list of those that offered to go with mee, and found, that, with myself, my officers, the gentlemen, and our [108] servants, wee should be about two hundred good men and horse; a competent number, as I thought, for such a service.

The day and place was appointed for our meeting in the Wastes, and, by the help of the foot of Liddisdale^[113] and Risdale, wee had soone built a pretty fort, and within it wee had all cabines made to lye in, and every one brought beds or mattresses to lye on. There wee stayed, from the middest of June, till almost the end of August. We were betweene fifty and sixty gentlemen, besides their servants and my horsemen; so that wee were not so few as two hundred horse. Wee wanted no provisions for ourselves nor our horses, for the countrey people were well payed for any thing they brought us; so that

wee had a good market every day, before our fort, to buy what we lacked. The chiefe outlawes, at our coming, fled their houses where they dwelt, and betooke themselves to a large and great forest (with all their goodes), which was called the Tarras. It was of that strength, and so surrounded with bogges and marish grounds, and thicke bushes and shrubbes, as they feared not the force nor power of England nor Scotland, so long as they were there. They sent me word, that I was like the first puffe of a haggasse,^[114] hottest at the first, and [109] bade me stay there as long as the weather would give me leave. They would stay in the Tarras Wood till I was weary of lying in the Waste; and when I had had my time, and they no whit the worse, they would play their parts, which should keep mee waking the next winter. Those gentlemen of the countrey that came not with mee, were of the same minde; for they knew (or thought at least), that my force was not sufficient to withstand the furey of the outlawes. The time I stayed at the fort I was not idle, but cast, by all meanes I could, how to take them in the great strength they were in. I found a meanes to send a hundred and fifty horsemen into Scotland (conveighed by a muffled man,^[115] not known to any of the company), thirty miles within Scotland, and the businesse was carried so, that none in the countrey tooke any alarm at this passage. They were quietly brought to the back-side of the Tarras, to Scotland-ward. There they divided themselves into three parts, and tooke up three passages which the outlawes made themselves secure of, if from England side they should at any time be put at.

[110]

They had their scoutes on the tops of hills, on the English side, to give them warning if at any time any power of men should come to surprise them. The three ambushes were safely laid, without being discovered, and, about four o'clock in the morning, there were three hundred horse, and a thousand foote,^[116] that came directly to the place where the scoutes lay. They gave the alarm; our men brake down as fast as they could into the wood. The outlawes thought themselves safe, assuring themselves at any time to escape; but they were so strongly set upon, on the English side, as they were forced to leave their goodes, and betake themselves to their passages towards Scotland. There was presently five taken of the principall of them. The rest, seeing themselves, as they thought, betrayed, retired into the

thicke woodes and bogges,^[117] that our men durst not follow them for fear of loosing themselves. The principall of the five, that were taken, were two of the eldest sonnes of *Sim of Whitram*. These five they brought to mee to the fort, and a number of goodes, both of [111] sheep and kine, which satisfied most part of the countrey, that they had stolen them from.

"The five, that were taken, were of great worth and value amongst them; insomuch, that, for their liberty, I should have what conditions I should demand or desire. First, all English prisoners were set at liberty. Then had I themselves, and most part of the gentlemen of the Scottish side, so strictly bound in bondes to enter to mee, in fifteen dayes warning, any offendour, that they durst not, for their lives, break any covenant that I made with them; and so, upon these conditions, I set them at liberty, and was never after troubled with these kind of people. Thus God blessed me in bringing this great trouble to so quiet an end; wee brake up our fort, and every man retired to his owne house."—*Carey's Memoirs*, p. 151.

The people of Liddesdale have retained, by tradition, the remembrance of *Carey's Raid*, as they call it. They tell, that, while he was besieging the outlaws in the Tarras they contrived, by ways known only to themselves, to send a party into England, who plundered the warden's lands. On their return, they sent Carey one of his own cows, telling him, that, fearing he might fall short of provision during his visit to Scotland, they had taken the precaution of sending him some English beef. The anecdote is too characteristic to be suppressed.

From this narrative, the power and strength of the Armstrongs, at this late period, appear to have been very considerable. Even upon the [112] death of Queen Elizabeth, this clan, associated with other banditti of the west marches to the number of two or three hundred horse, entered England in a hostile manner, and extended their ravages as far as Penrith. James VI., then at Berwick, upon his journey to his new capital, detached a large force, under Sir William Selby, captain of Berwick, to bring these depredators to order. Their raid, remarkable for being the last of any note occurring in history, was avenged in an exemplary manner. Most of the strong-holds upon the Liddel were razed to the foundation, and several of the principal leaders executed at Carlisle; after which we find little mention of the Armstrongs in history. The precautions, adopted by the Earl of Dunbar, to

preserve peace on the borders, bore peculiarly hard upon a body of men, long accustomed to the most ungoverned licence. They appear, in a great measure, to have fallen victims to the strictness of the new enactments.—*Ridpath*, p. 703.—*Stow*, 819.—*Laing*, Vol. I. The lands, possessed by them in former days, have chiefly come into the hands of the Buccleuch family, and of the Elliots; so that, with one or two exceptions, we may say, that, in the country which this warlike clan once occupied, there is hardly left a land-holder of the name. One of the last border reivers was, however, of this family, and lived within the beginning of the last century. After having made himself dreaded over the whole country, he at last came to the following end: One—, a man of large property, having lost twelve cows [113] in one night, raised the country of Tiviotdale, and traced the robbers into Liddesdale, as far as the house of this Armstrong, commonly called *Willie of Westburnflat*, from the place of his residence, on the banks of the Hermitage water. Fortunately for the pursuers he was then asleep; so that he was secured, along with nine of his friends, without much resistance. He was brought to trial at Selkirk; and, although no precise evidence was adduced to convict him of the special fact (the cattle never having been recovered), yet the jury brought him in *guilty* on his general character, or, as it is called in our law, on *habite and repute*. When sentence was pronounced, Willie arose; and, seizing the oaken chair in which he was placed, broke it into pieces by main strength, and offered to his companions, who were involved in the same doom, that, if they would stand behind him, he would fight his way out of Selkirk with these weapons. But they held his hands, and besought him to let them *die like Christians*. They were accordingly executed in form of law. This was the last trial at Selkirk. The people of Liddesdale, who (perhaps not erroneously) still consider the sentence as iniquitous, remarked, that—, the prosecutor, never thrived afterwards, but came to beggary and ruin, with his whole family.

Johnie Armstrong, of Gilnockie, the hero of the following ballad, is a noted personage, both in history and tradition. He was, it would seem from the ballad, a brother of the laird of Mangertoun, chief of [114] the name. His place of residence (now a roofless tower) was at the Hollows, a few miles from Langholm, where its ruins still serve to adorn a scene, which, in natural beauty, has few equals in Scotland. At the head of a desperate band of freebooters, this Armstrong is said to have spread the terror of his name

almost as far as Newcastle, and to have levied *black mail*, or *protection and forbearance money*, for many miles around. James V., of whom it was long remembered by his grateful people, that he made the "rush-bush keep the cow," about 1529, undertook an expedition through the border counties, to suppress the turbulent spirit of the marchmen. But, before setting out upon his journey, he took the precaution of imprisoning the different border chieftains, who were the chief protectors of the marauders. The Earl of Bothwell was forfeited, and confined in Edinburgh castle. The lords of Home and Maxwell, the lairds of Buccleuch, Fairniherst, and Johnston, with many others, were also committed to ward. Cockburn of Henderland, and Adam Scott of Tushielaw, called the King of the Border, were publicly executed.—*Lesley*, p. 430. The king then marched rapidly forward, at the head of a flying army of ten thousand men, through Ettrick Forest, and Ewsdale. The evil genius of our Johnie Armstrong, or, as others say, the private advice of some courtiers, prompted him to present himself before James, at the head of thirty-six horse, arrayed in all the pomp of border chivalry, Pitscottie uses nearly the words of the ballad, in describing the splendour of his equipment, [115] and his high expectations of favour from the king. "But James, looking upon him sternly, said to his attendants, 'What wants that knave that a king should have?' and ordered him and his followers to instant execution."—"But John Armstrong," continues this minute historian, "made great offers to the king. That he should sustain himself, with forty gentlemen, ever ready at his service, on their own cost, without wronging any Scottishman: Secondly, that there was not a subject in England, duke, earl, or baron, but, within a certain day, he should bring him to his majesty, either quick or dead."^[118] At length he, seeing no hope of favour, said very proudly, 'It is folly to seek grace at a graceless face; but,' said he, 'had I known this, I should have lived upon the borders in despite of King Harry and you both; for [116] I know King Harry would *down-weigh my best horse with gold*, to know that I were condemned to die this day.'—*Pitscottie's History*, p. 145. Johnie, with all his retinue, was accordingly hanged upon growing trees, at a place called Carlenrig chapel, about ten miles above Hawick, on the high road to Langholm. The country people believe, that, to manifest the injustice of the execution, the trees withered away. Armstrong and his followers were buried in a deserted church-yard, where their graves are still shewn.

As this border hero was a person of great note in his way, he is frequently alluded to by the writers of the time. Sir David Lindsay of the Mount, in the curious play published by Mr. Pinkerton, from the Bannatyne MS., introduces a pardoner, or knavish dealer in reliques, who produces, among his holy rarities—

—*The cordis, baith grit and lang,
Quhilt hangit Johnnie Armistrang,
Of gude hempt, soft and sound,
Gude haly pepill, I stand ford,
Wha'evir beis hangit in this cord,
Neidis nevir to be drowned!*

Pinkerton's Scottish Poems, Vol. II. p. 69.

In *The Complaynt of Scotland*, John Armistrangis's dance, mentioned as a popular tune, has probably some reference to our hero.

The common people of the high parts of Tiviotdale, Liddesdale, and the country adjacent, hold the memory of Johnie Armstrong in very high [117] respect. They affirm also, that one of his attendants broke through the king's guard, and carried to Gilnockie Tower the news of the bloody catastrophe.

This song was first published by Allan Ramsay, in his *Evergreen*, who says, he copied it from the mouth of a gentleman, called Armstrong, who was in the sixth generation from this John. The reciter assured him, that this was the genuine old ballad; the common one false. By the common one, Ramsay means an English ballad upon the same subject, but differing in various particulars, which is published in Mr. Ritson's *English Songs*, Vol. II. It is fortunate for the admirers of the old ballad, that it did not fall into Ramsay's hands, when he was equipping with new sets of words the old Scottish tunes in his *Tea-Table Miscellany*. Since his time it has been often reprinted.

[118]

Sum speikis of lords, sum speikis of lairds,
And sick lyke men of hie degrie;
Of a gentleman I sing a sang,
Sum tyme called laird of Gilnockie.

The king he wrytes a luvng letter,
With his ain hand sae tenderly,
And he hath sent it to Johnie Armstrang,
To cum and speik with him speedily.

The Eliots and Armstrangs did convene;
They were a gallant cumpanie—
"We'll ride and meit our lawful king,
And bring him safe to Gilnockie."

[119]

"Make kinnen^[119] and capon ready then,
And venison in great plentie;
We'll wellcum here our royal king;
I hope he'll dine at Gilnockie!"

They ran their horse on the Langhome howm,
And brak their speirs wi' mickle main;
The ladies lukit frae their loft windows—
"God bring our men weel back agen!"

When Johnie cam before the king,
Wi' a' his men sae brave to see,
The king he movit his bonnet to him;
He ween'd he was a king as well as he.

"May I find grace, my sovereign liege,
Grace for my loyal men and me?
For my name it is Johnie Armstrang,
And subject of your's, my liege," said he.

"Away, away, thou traitor strang!

Out o' my sight soon may'st thou be!
I grantit nevir a traitor's life,
And now I'll not begin wi' thee."

[120]

"Grant me my life, my liege, my king!
"And a bonny gift I'll gie to thee—
"Full four and twenty milk-white steids,
"Were a' foaled in ae yeir to me.

"I'll gie thee a' these milk-white steids,
"That prance and nicker^[120] at a speir;
"And as mickle gude English gilt^[121],
"As four of their braid backs dow^[122] bear."

"Away, away, thou traitor strang!
"Out o' my sight soon may'st thou be!
"I grantit never a traitor's life,
"And now I'll not begin wi' thee!"

"Grant me my life, my liege, my king!
"And a bonny gift I'll gie to thee—
"Gude four and twenty ganging^[123] mills,
"That gang thro' a' the yeir to me.

[121]

"These four and twenty mills complete,
"Sall gang for thee thro' a' the yeir;
"And as mickle of gude reid wheat,
"As a' their happers dow to bear."

"Away, away, thou traitor strang!
"Out o' my sight soon may'st thou be!
"I grantit nevir a traitor's life,
"And now I'll not begin wi' thee."

"Grant me my life, my liege, my king!
"And a great gift I'll gie to thee—
"Bauld four and twenty sister's sons,

"Sall for thee fecht, tho' a' should flee!"

"Away, away, thou traitor strang!
"Out o' my sight soon may'st thou be!
"I grantit nevir a traitor's life,
"And now I'll not begin wi' thee."

"Grant me my life, my liege, my king!
"And a brave gift I'll gie to thee—
"All between heir and Newcastle town
"Sall pay their yeirly rent to thee."

[122]

"Away, away, thou traitor strang!
"Out o' my sight soon may'st thou be!
"I grantit nevir a traitor's life,
"And now I'll not begin wi' thee."

"Ye lied^[124], ye lied, now king," he says.
"Altho' a king and prince ye be!
For I've luved naething in my life,
"I weel dare say it, but honesty—

"Save a fat horse," and a fair woman,
"Twa bonny dogs to kill a deir;
"But England suld have found me meal and mault,
"Gif I had lived this hundred yeir!

"Sche suld have found me meal and mault,
"And beif and mutton in a' plentie;
"But nevir a Scots wyfe could have said,
"That e'er I skaithed her a pure flee.

"To seik het water beneith cauld ice,
"Surely it is a greit folie—
"I have asked grace at a graceless face,
"But there is mine for my men and me!

[123]

"But, had I kenn'd ere I cam frae hame,
"How thou unkind wadst been to me!
"I wad have keepit the border side,
"In spite of al thy force and thee.

"Wist England's king that I was ta'en,
"O gin a blythe man he wad be!
"For anes I slew his sister's son,
"And on his breist bane brake a trie."

John wore a girdle about his middle,
Imbroidered ower wi' burning gold,
Bespangled wi' the same metal;
Maist beautiful was to behold.

There hang nine targats^[125] at Johnie's hat,
And ilk are worth three hundred pound—
"What wants that knave that a king suld have,
But the sword of honour and the crown!

"O whair got thou these targats, Johnie,
"That blink^[126] sae brawly abune thy brie?"
"I gat them in the field fechtin,
"Where, cruel king, thou durst not be.

[124]

"Had I my horse, and harness gude,
"And riding as I wont to be,
"It suld have been tald this hundred yeir,
"The meeting of my king and me!

"God be with thee, Kirsty,^[127] my brother!
"Lang live thou laird of Mangertoun!
"Lang may'st thou live on the border syde,
"Ere thou see thy brother ride up and down!

"And God be with thee, Kirsty, my son,
"Where thou sits on thy nurse's knee!

"But and thou live this hundred yeir,
"Thy father's better thou'lt nevir be.

"Farewell! my bonny Gilnock hall,
"Where on Esk side thou stand est stout!
"Gif I had lived but seven yeirs mair,
"I wad hae gilt thee round about."

John murdered was at Carlinrigg,
And all his gallant cumpanie;
But Scotland's heart was ne'er sae wae,
To see sae mony brave men die—

[125]

Because they saved their countrey deir,
Frae Englishmen! Nane were sae bauld,
Whyle Johnie lived on the border syde,
Nane of them durst cum neir his hauld.

[126]

SUPPLEMENT TO THE BALLAD OF JOHNNIE ARMSTRANG.

The editor believes, his readers will not be displeased to see a Bond of Manrent, granted by this border freebooter to the Scottish warden of the west marches, in return for the gift of a feudal casualty of certain lauds particularized. It is extracted from *Syme's Collection of Old Writings*, MS. penes Dr. Robert Anderson, of Edinburgh.

BOND OF MANRENT.

Be it kend till all men, be thir present letters, me, Johne Armistrang, for to be bound and oblist, and be the tenor of thir present letters, and faith and trewth in my body, lelie and trewlie, bindis and oblissis me and myn airis, to are nobil and michtie lord, Robert Lord Maxwell, wardane of the west marches of Scotland, that, forasmikle as my said lord has given and grantit to me, and mine airis perpetuallie, the nonentries of all and hail the landis underwritten, that is to say, the landis of Dalbetht, Shield, Dalblane, Stapil-Gortown, Langholme, and—with their pertindis, lyand in the lordship of Eskdale, as his gift, maid to me, therupon beris in the self: and that for all the tyme of the nonentres of the samyn. [127] Theirfor, I, the said Johne Armistrang, bindis and oblissis me and myne airis, in manrent and service to the said Robert Lord Maxwell, and his airis, for evermair, first and befor all uthirs, myne allegiance to our soverane lord, the king, allanerly except; and to be trewe, gude, and lele servant to my said lord, and be ready to do him service, baith in pece and weir, with all my kyn, friends, and servants, that I may and dowe to raise, and be and to my said lord's airis for evermair. And sall tak his true and plane part in all maner of actions at myn outer power, and sall nouthir wit, hear, nor se my said lordis skaith, lak, nor dishonestie, but we sall stop and lett the samyn, and geif we dowe not lett the samyn, we sall warn him thereof in all possible haist; and geif it happenis me, the said Johne Armistrang, or myne airis, to fail in our said service and manrent, any maner of way, to our said lord (as God forbid we do), than, and in that caiss, the gift and nonentres maid be him to us, of the said landis of Dalbetht, Schield, Dalblane, Stapil-Gortown, Langholme, and—with the pertinentis to be of no avale, force, nor effect; but the said lord and his airis to have free regress and ingress to the nonentres of the samyn, but ony pley or impediment. To the keeping and fulfilling of all and sundry the premisses, in form above writtin, I bind and obliss me and my airis foresaids, to the said lord and his airis for evermare, be the faithis treuthis in our bodies, but fraud or gile. In witness of the whilk thing, to thir letters of manrent subscrievit, with my hand at the pen, my sele is hangin, at Drumfries, the secund day of November, the yeir of God, Jaiv and XXV. yeiris.

*JOHNE ARMISTRANG, with my hand
at the pen.*

The lands, here mentioned, were the possessions of Armstrong himself, the investitures of which not having been regularly renewed, the feudal casualty of non-entry had been incurred by the vassal. The brother of Johnie Armstrong is said to have founded, or rather repaired, Langholm castle, before which, as mentioned in the ballad, [128] verse 5th, they "ran their horse," and "brake their spears," in the exercise of border chivalry.—*Account of the Parish of Langholm, apud Macfarlane's MSS.* The lands of Langholm and Staplegorton continued in Armstrong's family; for there is, in the same MS. collection, a similar bond of manrent, granted by "Christofer Armistrang, calit *Johne's Pope*," on 24th January, 1557, to Lord Johnie Lord Maxwell, and to Sir Johnie Maxwell of Terreglis, knight, his tutor and governor, in return for the gift of "the males of all and haill the landis whilk are conteint in ane bond made by umquhile Johnie Armistrang, my father, to umquhile Robert, Lord Maxwell, gudshore to the said Johnie, now Lord Maxwell." It would therefore appear, that the bond of manrent, granted by John Armstrong, had been the price of his release from the feudal penalty arising from his having neglected to procure a regular investiture from his superior. As Johnie only touched the pen, it appears that he could not write.

Christopher Armstrong, above-mentioned, is the person alluded to in the conclusion of the ballad—"God be with thee, Kirsty, my son." He was the father, or grandfather, of William Armstrong, called *Christie's Will*, a renowned freebooter, some of whose exploits the reader will find recorded in the third volume of this work.

THE LOCHMABEN HARPER.

NOW FIRST PUBLISHED.

The castle of Lochmaben was formerly a noble building, situated upon a peninsula, projecting into one of the four lakes which are in the neighbourhood of the royal burgh, and is said to have been the residence of Robert Bruce, while lord of Annandale. Accordingly, it was always held to be a royal fortress, the keeping of which, according to the custom of the times, was granted to some powerful lord, with an allotment of lands and fishings, for the defence and maintenance of the place. There is extant a grant, dated 16th March, 1511, to Robert Lauder of the Bass, of the office of captain and keeper of Lochmaben castle, for seven years, with many perquisites. Among others, the "land, stolen frae the king," is bestowed upon the captain, as his proper lands.—What shall we say of a country, where the very ground was the subject of theft?

O heard ye na o' the silly blind Harper,
How lang he lived in Lochmaben town?
And how he wad gang to fair England,
To steal the Lord Warden's Wanton Brown!

[130]

But first he gaed to his gude wyfe,
Wi' a' the haste that he could thole—
"This wark," quo' he, "will ne'er gae weel,
Without a mare that has a foal."

Quo' she—"Thou hast a gude gray mare,
That can baith lance o'er laigh and hie;
Sae set thee on the gray mare's back,
And leave the foal at hame wi' me."

So he is up to England gane,

And even as fast as he may drie;
And when he cam to Carlisle gate,
O whae was there but the Warden, he?

"Come into my hall, thou silly blind Harper,
And of thy harping let me hear!"
"O by my sooth," quo' the silly blind Harper,
I wad rather hae stabling for my mare."

The Warden look'd ower his left shoulder,
And said unto his stable groom—
"Gae take the silly blind Harper's mare,
And tie her beside my Wanton Brown."

[131]

Then aye he harped, and aye he carped^[128],
Till a' the lordlings footed the floor;
But an' the music was sae sweet,
The groom had nae mind of the stable door.

And aye he harped, and aye he carped,
Till a' the nobles were fast asleep;
Then quickly he took aff his shoon,
And saftly down the stair did creep.

Syne to the stable door he hied,
Wi' tread as light as light could be;
And when he opened and gaed in,
There he fand thirty steeds and three.

He took a cowl halter^[129] frae his hose,
And o' his purpose he did na fail;
He slipt it ower the Wanton's nose,
And tied it to his gray mare's tail.

He turned them loose at the castle gate,
Ower muir and moss and ilka dale;
And she ne'er let the Wanton bait,

But kept him a-galloping hame to her foal.

[132]

The mare she was right swift o' foot,
She did na fail to find the way;
For she was at Lochmaben gate,
A lang three hours before the day.

When she cam to the Harper's door,
There she gave mony a nicker and sneer—^[130]
"Rise up," quo' the wife, "thou lazy lass;
Let in thy master and his mare."

Then up she rose, put on her clothes,
And keekit through at the lock-hole—
"O! by my sooth," then cried the lass,
Our mare has gotten a braw brown foal!"

"Come, haud thy tongue, thou silly wench!
The morn's but glancing in your e'e."—
I'll^[131] wad my hail fee against a groat,
He's bigger than e'er our foal will be."

Now all this while, in merry Carlisle,
The Harper harped to hie and law;
And the^[132] fiend thing dought they do but listen him to,
Until that the day began to daw.

[133]

But on the morn, at fair day light,
When they had ended a' their cheer,
Behold the Wanton Brown was gane,
And eke the poor blind Harper's mare!

"Allace! allace!" quo' the cunning auld Harper,
"And ever allace that I cam here!
In Scotland I lost a braw cowl foal,
In England they've stown my gude gray mare!"

"Come! cease thy allacing, thou silly blind Harper,
And again of thy harping let us hear;
And weel payd sall thy cowt-foal be,
And thou sall have a far better mare."

Then aye he harped, and aye he carped;
Sae sweet were the harpings he let them hear!
He was paid for the foal he had never lost,
And three times ower for the gude GRAY MARE.

[134]

NOTES ON THE LOCHMABEN HARPER.

The only remark which offers itself on the foregoing ballad seems to be, that it is the most modern in which the harp, as a border instrument of music, is found to occur.

I cannot dismiss the subject of Lochmaben, without noticing an extraordinary and anomalous class of landed proprietors, who dwell in the neighbourhood of that burgh. These are the inhabitants of four small villages, near the ancient castle, called the Four Towns of Lochmaben. They themselves are termed the King's Rentallers, or kindly tenants; under which denomination each of them has a right, of an allodial nature, to a small piece of ground. It is said, that these people are the descendants of Robert Bruce's menials, to whom he assigned, in reward of their faithful service, these portions of land, burdened only with the payment of certain quit-rents, and grassums or fines, upon the entry of a new tenant. The right of the rentallers is, in essence, a right of property, but, in form, only a right of lease; of which they appeal for the foundation on the rent-rolls of the lord of the castle and manor. This possession, by rental, or by simple entry upon the rent-roll, was anciently a common, and peculiarly sacred, species of property, granted by a chief to his faithful [135] followers; the connection of

landlord and tenant being esteemed of a nature too formal to be necessary, where there was honour upon one side, and gratitude upon the other. But, in the case of subjects granting a right of this kind, it was held to expire with the life of the granter, unless his heir chose to renew it; and also upon the death of the rentaller himself, unless especially granted to his heirs, by which term only his first heir was understood. Hence, in modern days, the *kindly tenants* have entirely disappeared from the land. Fortunately for the inhabitants of the Four Towns of Lochmaben, the maxim, that the king can never die, prevents their right of property from reverting to the crown. The viscount of Stormonth, as royal keeper of the castle, did, indeed, about the beginning of last century, make an attempt to remove the rentallers from their possessions, or at least to procure judgment, finding them obliged to take out feudal investitures, and subject themselves to the casualties thereto annexed. But the rentallers united in their common defence; and, having stated their immemorial possession, together with some favourable clauses in certain old acts of parliament, enacting, that the king's *poor kindly tenants* of Lochmaben should not be hurt, they finally prevailed in an action before the Court of Session. From the peculiar state of their right of property, it follows, that there is no occasion for feudal investitures, or the formal entry of an heir; and, of course, when they chuse to convey their lands, it is done by a simple deed of conveyance, without charter or sasine.

The kindly tenants of Lochmaben live (or at least lived till lately) much sequestered from their neighbours, marry among themselves, and are distinguished from each other by *soubriquets*, according to the ancient border custom, repeatedly noticed You meet, among their writings, with such names as *John Out-bye*, *Will In-bye*, *White-fish*, *Red-fish*, &c. They are tenaciously obstinate in defence of their privileges of commonry, &c. which are numerous. Their lands are, in general, neatly inclosed, and well cultivated, and they form a contented and industrious little community.

[136]

Many of these particulars are extracted from the MSS. of Mr. Syme, writer to the signet. Those, who are desirous of more information, may consult *Craig de Feudis*, Lib. II. dig. 9. sec. 24. It is hoped the reader will excuse this digression, though somewhat professional; especially as there can be little doubt, that this diminutive republic must soon share the fate of

mightier states; for, in consequence of the increase of commerce, lands possessed under this singular tenure, being now often brought to sale, and purchased by the neighbouring proprietors, will, in process of time, be included in their investitures, and the right of rentallage be entirely forgotten.

[137]

JAMIE TELFER OF THE FAIR DODHEAD.

There is another ballad, under the same title as the following, in which nearly the same incidents are narrated, with little difference, except that the honour of rescuing the cattle is attributed to the Liddesdale Elliots, headed by a chief, there called Martin Elliot of the Preakin Tower, whose son, Simon, is said to have fallen in the action. It is very possible, that both the Tiviotdale Scotts, and the Elliots were engaged in the affair, and that each claimed the honour of the victory.

The editor presumes, that the Willie Scott, here mentioned must have been a natural son of the laird of Buccleuch.

It fell about the Martinmas tyde,
When our border steeds get corn and hay,
The captain, of Bewcastle hath bound him to ryde,
And he's ower to Tividale to drive a prey.

[138]

The first ae guide that they met wi',
It was high up in Hardhaughswire;
The second guide that they met wi',
It was laigh down in Borthwick water.

"What tidings, what tidings, my trusty guide?"

"Nae tidings, nae tidings, I hae to thee;

But, gin ye'll gae to the fair Dodhead,
Mony a cow's cauf I'll let thee see."

And whan they cam to the fair Dodhead,
Right hastily they clam the peel;
They loosed the kye out, are and a',
And ranshacked^[133] the house right weel.

Now Jamie Telfer's heart was sair,
The tear aye rowing in his e'e;
He pled wi' the captain to hae his gear,
Or else revenged he wad be.

The captain turned him round, and leugh;
Said—"Man, there's naething in thy house,
But ae auld sword without a sheath,
That hardly now wad fell a mouse!"

[139]

The sun was na up, but the moon was down,
It was the gryming^[134] of a new fa'n snaw,
Jamie Telfer has run ten myles a-foot,
Between the Dodhead and the Stobs's Ha'.

And whan he cam to the fair tower yate,
He shouted loud, and cried weel hie,
Till out bespak auld Gibby Elliot—
"Whae's this that brings the fraye to me?"

"Its I, Jamie Telfer o' the fair Dodhead,
And a harried man I think I be!
There's naething left at the fair Dodhead,
But a waefu' wife and bairnies three."

"Gar seek your succour at Branksome Ha',
For succour ye'se get nane frae me!
Gae seek your succour where ye paid black mail,
For, man! ye ne'er paid money to me."

Jamie has turned him round about,
I wat the tear blinded his e'e—
"I'll ne'er pay mail to Elliot again,
And the fair Dodhead I'll never see!

[140]

"My hounds may a' rin masterless,
My hawks may fly frae tree to tree,
My lord may grip my vassal lands,
For there again maun I never be!"

He has turned him to the Tiviot side,
E'en as fast as he could drie,
Till he cam to the Coultart Cleugh,
And there he shouted baith loud and hie.

Then up bespak him auld Jock Grieve—
"Whae's this that bring's the fray to me?"
"It's I, Jamie Telfer o' the fair Dodhead,
A harried man I trew I be.

"There's naething left in the fair Dodhead,
But a greeting wife and bairnies three,
And sax poor ca's^[135] stand in the sta',
A' routing loud for their minnie."^[136]

"Alack a wae!" quo' auld Jock Grieve,
"Alack! my heart is sair for thee!
For I was married on the elder sister,
And you on the youngest of a' the three,"

[141]

Then he has ta'en out a bonny black,
Was right weel fed wi' corn and hay,
And he's set Jamie Telfer on his back,
To the Catslockhill to tak the fraye.

And whan he cam to the Catslockhill,

He shouted loud, and cried weel hie,
Till out and spak him William's Wat—
"O whae's this brings the fraye to me?"

"Its I, Jamie Telfer of the fair Dodhead,
A harried man I think I be!
The captain of Bewcastle has driven my gear;
For God's sake rise, and succour me!"

"Alas for wae!" quo' William's Wat,
Alack, for thee my heart is sair!
I never cam bye the fair Dodhead,
That ever I fand thy basket bare."

He's set his twa sons on coal-black steeds,
Himsel' upon a freckled gray,
And they are on wi' Jamie Telfer,
To Branksome Ha' to tak the fraye.

[142]

And whan they cam to Branksome Ha',
They shouted a' baith loud and hie,
Till up and spak him auld Buccleuch,
Said—"Whae's this brings the fraye to me?"

"It's I, Jamie Telfer o' the fair Dodhead,
And a harried man I think I be!
There's nought left in the fair Dodhead,
But a greeting wife, and bairnies three."

"Alack for wae!" quoth the gude auld lord,
"And ever my heart is wae for thee!
But fye gar cry on Willie, my son,
And see that he come to me speedilie!

"Gar warn the water, braid and wide,
Gar warn it sune and hastilie!
They that winna ride for Telfer's kye,

Let them never look in the face o' me!

"Warn Wat o' Harden, and his sons,
Wi' them will Borthwick water ride;
Warn Gaudilands, and Allanhaugh,
And Gilmanscleugh, and Commonsideside.

[143]

"Ride by the gate at Priestthaughswire,
And warn the Currors o' the Lee;
As ye cum down the Hermitage Slack,
Warn doughty Willie o' Gorrinberry."

The Scots they rade, the Scots they ran,
Sae starkly and sae steadilie!
And aye the ower-word o' the thrang
Was—"Rise for Branksome readilie!"

The gear was driven the Frostylee up,
Frae the Frostylee unto the plain,
Whan Willie has looked his men before,
And saw the kye right fast driving.

"Whae drives thir kye?" can Willie say,
To mak an outspeckle^[137] o' me?"
"Its I, the captain o' Bewcastle, Willie;
I winna layne my name for thee."

"O will ye let Telfer's kye gae back?
Or will ye do aught for regard o' me?
Or, by the faith of my body," quo' Willie Scott,
"I'se ware my dame's cauf's skin on thee!"

[144]

"I winna let the kye gae back,
Neither for thy love, nor yet thy fear;
But I will drive Jamie Telfer's kye,
In spite of every Scot that's here."

"Set on them, lads!" quo' Willie than;
Fye, lads, set on them cruellie!
For ere they win to the Ritterford,
Mony a toom^[138] saddle there sall be!"

Then till't they gaed, wi' heart and hand;
The blows fell thick as bickering hail;
And mony a horse ran masterless,
And mony a comely cheek was pale!

But Willie was stricken ower the head,
And thro' the knapscap^[139] the sword has gane;
And Harden grat for very rage,
Whan Willie on the grund lay slane.

But he's tane aff his gude steel cap,
And thrice he's wav'd it in the air—
The Dinlay^[140] snaw was ne'er mair white,
Nor the lyart locks of Harden's hair.

[145]

"Revenge! revenge!" auld Wat can cry;
"Fye, lads, lay on them cruellie!
We'll ne'er see Tiviot-side again,
Or Willie's death revenged sall be."

O mony a horse ran masterless,
The splintered lances flew on hie;
But or they wan to the Kershope ford,
The Scots had gotten the victory.

John o' Brigham there was slane,
And John o' Barlow, as I hear say;
And thirty mae o' the captain's men,
Lay bleeding on the grund that day.

The captain was run thro' the thick of the thigh,
And broken was his right leg bane;

If he had lived this hundred years,
He had never been loved by woman again.

"Hae back thy kye!" the captain said;
"Dear kye, I trow, to some they be!
For gin I suld live a hundred years,
There will ne'er fair lady smile on me."

[146]

Then word is gane to the captain's bride,
Even in the bower where that she lay,
That her lord was prisoner in enemy's land,
Since into Tividale he had led the way.

"I wad loured^[141] have had a winding-sheet,
And helped to put it ower his head,
Ere he had been disgraced by the border Scot,
Whan he ower Liddel his men did lead!"

There was a wild gallant amang us a',
His name was Watty wi' the Wudspurs,^[142]
Cried—"On for his house in Stanegirthside,
If ony man will ride with us!"

When they cam to the Stanegirthside,
They dang wi' trees, and burst the door;
They loosed out a' the captain's kye,
And set them forth our lads before.

There was an auld wyfe ayont the fire,
A wee bit o' the captain's kin—
"Whae dar loose out the captain's kye,
Or answer to him and his men?"

[147]

"Its I, Watty Wudspurs, loose the kye!
I winna layne my name frae thee!
And I will loose out the captain's kye,
In scorn of a' his men and he."

When they cam to the fair Dodhead,
They were a wellcum sight to see!
For instead of his ain ten milk kye,
Jamie Telfer has gotten thirty and three.

And he has paid the rescue shot,
Baith wi' goud, and white monie;
And at the burial o' Willie Scott,
I wat was mony a weeping e'e.

[148]

NOTES ON JAMIE TELFER OF THE FAIR DODHEAD.

It was high up in Hardhaughswire.—P. 140. v. 1.

Hardhaughswire is the pass from Liddesdale to the head of Tiviotdale.

It was laigh down in Borthwick water.—P. 140. v. 1.

Borthwick water is a stream, which falls into the Tiviot, three miles above Hawick.

But, gin ye'll gae to the fair Dodhead.—P. 140. v. 2.

The Dodhead, in Selkirkshire, near Singlee, where there are still the vestiges of an old tower.

Now Jamie Telfer's heart was sair.—P. 140. v. 4.

There is still a family of Telfers, residing near Langholm, who pretend to derive their descent from the Telfers of the Dodhead.

Between the Dodhead and the Stobs's Ha'.—P. 141. v. 1.

Stobs Hall, upon Slitterick. Jamie Telfer made his first application [149] here because he seems to have paid the proprietor of that castle *black-mail*, or protection-money.

Gar seek your succour at Branksome Ha'.—P. 141. v. 4.

The ancient family-seat of the lairds of Buccleuch, near Hawick.

Till he cam to the Coultart Cleugh.—P. 142. v. 2.

The Coultart Cleugh is nearly opposite to Carlinrig, on the road between Hawick and MossPaul.

Gar warn the water, braid and wide.—P. 144. v. 4.

The water, in the mountainous districts of Scotland, is often used to express the banks of the river, which are the only inhabitable parts of the country. *To raise the water*, therefore, was to alarm those who lived along its side.

Warn Wat o' Harden, and his sons, &c.—P. 144. v. 5.

The estates, mentioned in this verse, belonged to families of the name of Scott, residing upon the waters of Borthwick and Tiviot, near the castle of their chief.

Ride by the gate at Priestthaughswire.—P. 145. v. 1.

The pursuers seem to have taken the road through the hills of Liddesdale, in order to collect forces, and intercept the foragers at the passage of the Liddel, on their return to Bewcastle. The Ritterford and Kershope-ford, after mentioned, are noted fords on the river Liddel.

The gear was driven the Frostylee up.—P. 145. v. 3.

The Frostylee is a brook, which joins the Tiviot, near MossPaul.

And Harden grat for very rage.—P. 146. v. 4.

Of this border laird, commonly called *Auld Wat of Harden*, tradition has preserved many anecdotes. He was married to Mary Scott, [150] celebrated in song by the title of the Flower of Yarrow. By their marriage-contract, the father-in-law, Philip Scott of Dryhope, was to find Harden in horse meat, and man's meat, at his tower of Dryhope, for a year and a day; but five barons pledge themselves, that, at the expiry of that period, the son-in-law should remove, without attempting to continue in possession by force! A notary-public signed for all the parties to the deed, none of whom could write their names. The original is still in the charter-room of the present Mr. Scott of Harden. By the Flower of Yarrow the laird of Harden had six sons; five of whom survived him, and founded the families of Harden (now extinct), Highchesters (now representing Harden), Reaburn, Wool, and Synton. The sixth son was slain at a fray, in a hunting-match, by the Scotts of Gilmanscleugh. His brothers flew to arms; but the old laird secured them in the dungeon of his tower, hurried to Edinburgh, stated the crime, and obtained a gift of the lands of the offenders from the crown. He returned to Harden with equal speed, released his sons, and shewed them the charter. "To horse, lads!" cried the savage warrior, "and let us take possession! the lands of Gilmanscleugh are well worth a dead son." The property, thus obtained, continued in the family till the beginning of last century, when it was sold, by John Scott of Harden, to Anne, Duchess of Buccleuch.

John o' Brigham there was slane.—P. 147. v. 3.

Perhaps one of the ancient family of Brougham, in Cumberland. The editor has used some freedom with the original in the subsequent verse. The account of the captain's disaster (*tests laeva vulnerata*) is rather too *naive* for literal publication.

Cried—"On for his house in Stanegirthside.—P. 148. v. 3.

A house belonging to the Foresters, situated on the English side of the Liddel.

An article in the list of attempts upon England, fouled by the [151] commissioners at Berwick, in the year 1587, may relate to the subject of the foregoing ballad.

October, 1582.

*Thomas Musgrave, deputy {Walter Scott, laird } 200 kine and
of Bewcastle, and {of Buckluth, and his} oxen, 300 gait the
tenants, against {complices; for } and sheep.*

Introduction, to History of Westmoreland and Cumberland, p. 31.

THE RAID OF THE REIDSWIRE.

This poem is published from a copy in the Bannatyne MS. in the handwriting of the Hon. Mr. Carmichael, advocate. It first appeared in *Allan Ramsay's Evergreen*, but some liberties have been taken by him in transcribing it; and, what is altogether unpardonable, the MS., which is itself rather inaccurate, has been interpolated to favour his readings; of which there remain obvious marks.

The skirmish of the Reidswire happened upon the 7th of June, 1575, at one of the meetings, held by the wardens of the marches, for arrangements necessary upon the border. Sir John Carmichael, ancestor of the present Earl of Hyndford, was the Scottish warden, and Sir John Forster held that office on the English middle march.—In the course of the day, which was employed, as usual, in redressing wrongs, a bill, or indictment, at the instance of a Scottish complainer, was fouled (*i.e.* found a true bill) against one Farnstein, a [153] notorious English freebooter. Forster alleged that he had fled from justice: Carmichael considering this as a pretext to avoid making compensation for the felony, bade him "play fair!" to which the haughty English warden retorted, by some injurious expressions respecting Carmichael's family, and gave other open signs of resentment. His retinue, chiefly men of Reesdale and Tynedale, the most ferocious of the English borderers, glad of any pretext for a quarrel, discharged a flight of arrows among the Scots. A warm conflict ensued, in which, Carmichael being beat down and made prisoner, success seemed at first to incline to the English side; till the Tynedale men, throwing themselves too greedily upon the plunder, fell into disorder; and a body of Jedburgh citizens arriving at that instant, the skirmish terminated in a complete victory on the part of the Scots, who took prisoners, the English warden, James Ogle, Cuthbert Collingwood, Francis Russel, son to the Earl of Bedford, and son-in-law to Forster, some of the Fenwicks, and several other border chiefs. They were sent to the Earl of Morton, then regent, who detained them at Dalkeith for some days, till the heat of their resentment was abated; which prudent

precaution prevented a war betwixt the two kingdoms. He then dismissed them with great expressions of regard; and, to satisfy Queen Elizabeth,^[143] sent up Carmichael to York, whence he was soon after honourably dismissed. ^[154] The field of battle, called the Reidswire, is a part of the Carter Mountain, about ten miles from Jedburgh.—See, for these particulars, *Godscroft*, *Spottiswoode*, and *Johnstone's History*.

The editor has adopted the modern spelling of the word Reidswire, to prevent the mistake in pronunciation which might be occasioned by the use of the Scottish *qu* for *w*. The MS. reads *Reidsquair*. *Swair*, or *Swire*, signifies the descent of a hill; and the epithet *Red* is derived from the colour of the heath, or, perhaps, from the Reid-water, which rises at no great distance.

[155]

THE RAID OF THE REIDSWIRE.

The seventh of July, the suith to say,
At the Reidswire the tryst was set;
Our wardens they affixed the day,
And, as they promised, so they met.
Alas! that day I'll ne'er forgett!
Was sure sae feard, and then sae faine—
They came theare justice for to gett,
Will never green^[144] to come again.

Carmichael was our Warden then,
He caused the country to convey;
And the Laird's Wat, that worthie man,
Brought in that sirname weil beseen^[145]:

[156]

The Armestranges, that aye hae been

A hardie house, but not a hail,
The Elliot's honours to maintaine,
Brought down the lave^[146] o' Liddesdale.

Then Tividale came to wi' speid;
The sheriffe brought the Douglas down,
Wi' Cranstane, Gladstain, good at need,
Baith Rewle water, and Hawick town.
Beanjeddart bauldly made him boun,
Wi' a' the Trumbills, stronge and stout;
The Rutherfoords, with grit renown,
Convoyed the town of Jedburgh out.

Of other clans I cannot tell,
Because our warning was not wide.—
Be this our folks hae taen the fell,
And planted down palliones^[147] there to bide.
We looked down the other side,
And saw come breasting ower the brae,
Wi' Sir John Forster for their guyde,
Full fifteen hundred men and mae.

[157]

It grieved him sair, that day, I trow,
Wi' Sir George Hearoune of Schipsydehouse;
Because we were not men enow,
They counted us not worth a louse.
Sir George was gentle, meek, and douse,
But he was hail and het as fire;
And yet, for all his cracking crouse^[148],
He rewd the raid o' the Reidswire.

To deal with proud men is but pain;
For either must ye fight or flee,
Or else no answer make again,
But play the beast, and let them be.
It was na wonder he was hie,
Had Tindaill, Reedsdaill, at his hand,

Wi' Cukdaill, Gladsdaill on the lee,
And Hebsrime, and Northumberland.

Yett was our meeting meek enough,
Begun wi' merriement and mowes,
And at the brae, aboon the heugh,
The clark sate down to call the rowes.^[149]
And some for kyne, and some for ewes,
Called in of Dandrie, Hob, and Jock—
We saw, come marching ower the knows,
Five hundred Fennicks in a flock.

[158]

With jack and speir, and bows all bent,
And warlike weapons at their will:
Although we were na weel content,
Yet, be my trouth, we feard no ill.
Some gaed to drink, and some stude still,
And some to cairds and dice them sped;
Till on ane Farnstein they fyled a bill,
And he was fugitive and fled.

Carmichael bade them speik out plainlie,
And cloke no cause for ill nor good;
The other, answering him as vainlie,
Began to reckon kin and blood:
He raise, and raxed^[150] him where he stood,
And bade him match him with his marrows,
Then Tindaill heard them reasun rude,
And they loot off a flight of arrows.

Then was there nought but bow and speir,
And every man pulled out a brand;
"A Schaftan and a Fenwick" thare:
Gude Symington was slain frae hand.
The Scotsmen cried on other to stand,
Frae time they saw John Robson slain—
What should they cry? the king's command

Could cause no cowards turn again.

[159]

Up rose the laird to red the cumber,^[151]
Which would not be for all his boast;—
What could we doe with sic a number?
Fyve thousand men into a host.
Then Henry Purdie proved his cost,^[152]
And very narrowlie had mischiefed him,
And there we had our warden lost,
Wert not the grit God he relieved him.

Another throw the breiks him bair,
Whill flatlies to the ground he fell:
Than thought I weel we had lost him there,
Into my stomach it struck a knell!
Yet up he raise, the treuth to tell ye,
And laid about him dints full dour;
His horsemen they raid sturdilie,
And stude about him in the stoure.

Then raise^[153] the slogan with ane shout—
"Fy Tindaill, to it! Jedbrugh's here!"
I trow he was not half sae stout,
But^[154] anis his stomach was asteir.

[160]

With gun and genzie,^[155] bow and speir,
Men might see monie a cracked crown!
But up amang the merchant geir,
They were as busie as we were down.

The swallow taill frae tackles flew,
Five hundreth flain^[156] into a flight,
But we had pestelets enow,
And shot amang them as we might.
With help of God the game gaed right,
Frae time the foremost of them fell;

Then ower the know without goodnight,
They ran, with mony a shout and yell.

But after they had turned backs,
Yet Tindaill men they turned again;
And had not been the merchant packs,
There had been mae of Scotland slain.
But, Jesu! if the folks were fain
To put the bussing on their thies;
And so they fled, wi' a' their main,
Down ower the brae, like clogged bees.

[161]

Sir Francis Russel ta'en was there,
And hurt, as we hear men rehearse;
Proud Wallinton was wounded sair,
Albeit he be a Fennick fierce.
But if ye wald a souldier search,
Among them a' were ta'en that night,
Was nane sae wordie to put in verse,
As Collingwood, that courteous knight.

Young Henry Schafton, he is hurt;
A souldier shot him with a bow:
Scotland has cause to mak great sturt,
For laiming of the laird of Mow.
The Laird's Wat did weel, indeed;
His friends stood stoutlie by himsel',
With little Gladstain, gude in need,
For Gretein kend na gude be ill.

The Sheriffe wanted not gude will,
Howbeit he might not fight so fast;
Beanjeddart, Hundlie, and Hunthill,
Three, on they laid weel at the last.
Except the horsemen of the guard,
If I could put men to availe,
None stoutlier stood out for their laird.

For did the lads of Liddesdail.

[162]

But little harness had we there;
But auld Badreule had on a jack,
And did right weel, I you declare,
With all his Trumbills at his back.
Gude Ederstane was not to lack,
Nor Kirktoun, Newtoun, noble men!
Thirs^[157] all the specials I of speake,
By^[158] others that I could not ken.

Who did invent that day of play,
We need not fear to find him soon;
For Sir John Forster, I dare well say,
Made us this noisome afternoon.
Not that I speak preceislíe out,
That he supposed it would be perril;
But pride, and breaking out of feuid,
Garr'd Tindaill lads begin the quarrel.

[163]

NOTES ON THE RAID OF THE REIDSWIRE.

Carmichael was our warden then.—P. 157. v. 2.

Sir John Carmichael was a favourite of the resent Morton, by whom he was appointed warden of the middle marches, in preference to the border chieftains. With the like policy, the regent married Archibald Carmichael, the warden's brother, to the heiress of Edrom, in the Merse, much contrary to the inclination of the lady and her friends. In like manner, he compelled another heiress, Jane Sleigh, of Cumlege, to marry Archibald, brother to

Auchinleck of Auchiuleck, one of his dependants. By such arbitrary practices, Morton meant to strengthen his authority on the borders; instead of which, he hastened his fall, by giving disgust to his kinsman the Earl of Angus, and his other friends, who had been established in the country for ages.—*Godscroft*, Vol. II. Pages 238. 246. Sir John Carmichael, the warden, was murdered 16th June, 1600, by a party of borderers, at a place called Raesknows, near Lochmaben, whither he was going to hold a court of justice. Two of the ring-leaders in the slaughter, Thomas Armstrong, called *Ringan's Tarn*, and Adam Scott, called *the Pecket*, were tried at Edinburgh, at the instance of Carmichael of Edrom. They were condemned to have their right hands struck off, [164] thereafter to be hanged, and their bodies gibbeted on the Borough Moor; which sentence was executed, 14th November, 1601. "This *Pecket*, (saith Birrel in his *Diary*), was ane of the maist notalrie thieftes that ever raid:" he calls his name Steill, which appears, from the record, to be a mistake. Four years afterwards, an Armstrong, called *Sandy of Rowanburn*, and several others of that tribe, were executed for this and other excesses.—*Books of Adjournal of these dates*.

And the Laird's Wat, that worthie man.—P. 157. v. 2.

The chief, who led out the surname of Scott upon this occasion, was (saith Satchells) Walter Scott of Ancrum, a natural son of Walter of Buccleuch. The laird of Buccleuch was then a minor. The ballad seems to have been popular in Satchells' days, for he quotes it literally. He must, however, have been mistaken in this particular; for the family of Scott of Ancrum, in all our books of genealogy, deduce their descent from the Scotts of Balwearie in Fife, whom they represent. The first of this family, settled in Roxburghshire, is stated in *Douglas' Baronage* to have been Patrick Scott, who purchased the lands of Ancrum, in the reign of James VI. He therefore could not be the *Laird's Wat* of the ballad; indeed, from the list of border families in 1597, Ker appears to have been proprietor of Ancrum at the date of the ballad. It is plainly written in the MS. the *Laird's Wat*, i.e., the Laird's son Wat; notwithstanding which, it has always hitherto been printed the *Laird Wat*. If Douglas be accurate in his genealogy, the person meant must be the young laird of Buccleuch, afterwards distinguished for his surprise of Carlisle Castle.—See *Kinmont Willie*. I am the more confirmed in this opinion, because Kerr of Ancrum was at this time a fugitive, for slaying one

of the Rutherfords, and the tower of Ancrum given in keeping to the Turnbells, his hereditary enemies. His mother, however, a daughter of Home of Wedderburn, contrived to turn out the Turnbells, and possess herself of the place by surprise.—*Godscroft*, Vol. II. p. 250.

[165] *The Armestranges, that aye hae been.*—P. 158. v. 1.

This clan are here mentioned as not being hail, or whole, because they were outlawed or broken men. Indeed, many of them had become Englishmen, as the phrase then went. Accordingly, we find, from Paton, that forty of them, under the laird of Mangertoun, joined Somerset upon his expedition into Scotland.—*Paton, in Dalyell's Fragments*, p. 1. There was an old alliance betwixt the Elliots and Armstrongs, here alluded to. For the enterprises of the Armstrongs, against their native country, when under English assurance, see *Murdin's State Papers*, Vol. I. p. 43. From which it appears, that, by command of Sir Ralph Evers, this clan ravaged almost the whole west border of Scotland.

The sheriffe brought the Douglas down.—P. 158. v. 2,

Douglas of Cavers, hereditary sheriff of Teviotdale, descended from Black Archibald, who carried the standard of his father, the Earl of Douglas, at the battle of Otterbourne.—*See the Ballad of that name.*

Wi' Cranstane, Gladstain, good at need.—P. 158. v. 2.

Cranstoun of that ilk, ancestor to Lord Cranstoun; and Gladstain of Gladstains.

Wi a' the Trumbills, stronge and stout;

The Rutherfoords, with grit renown.—P. 158. v. 2.

These were ancient and powerful border clans, residing chiefly upon the river Jed. Hence, they naturally convoyed the town of Jedburgh out. Although notorious freebooters, they were specially patronised by Morton, who, by their means, endeavoured to counterpoise the power of Buccleuch and Fernihurst, during the civil wars attached to the queen's faction.

The following fragment of an old ballad is quoted in a letter from an aged gentleman of this name, residing at New-York, to a friend in Scotland:

[166] "Bauld Rutherfurd, he was fow stout, Wi' a' his nine sons
him round about; He led the town o' Jedburgh out, All bravely
fought that day."

Wi' Sir John Forster for their guyde.—P. 158. v. 3.

This gentleman is called, erroneously, in some copies of this ballad, *Sir George*. He was warden of the mid-marches of England.

Wi' Sir George Henroune of Schipsydehouse.—P. 159. v. 1.

Sir George Heron of Chipchase-house, whose character is contrasted with that of the English warden.

Had Tindaill, Reedsdaill at his hand.—P. 159. v. 2.

These are districts, or dales, on the English border. Hebsrime seems to be an error in the MS. for Hebburn upon the Till.

Five hundred Fennicks in a flock.—P. 159. v. 3.

The Fenwicks; a powerful and numerous Northumberland clan.

Then raise the slogan with ane shout.—P. 161. v. 3.

The gathering word, peculiar to a certain name, or set of people, was termed *slogan*, or *slughorn*, and was always repeated at an onset, as well as on many other occasions, as appears from the following passage of an old author, whom this custom seems much to have offended—for he complains,

"That whereas always, both in al tounes of war, and in al campes of armies, quietnes and stilnes without nois is principally in the night, after the watch is set, observed (I need not reason why.) Yet, our northern prikkers, the borderers, notwithstanding, with great enormitie, (as thought me) and not unlyke (to be playn) unto a masterless hounde houyling in a hie wey, when he hath lost him he wayted upon, sum hoopyng, sum whistelyng, and most with crying, a *Berwyke!* a *Berwyke!* a *Fenwyke!* a *Fenwyke!* [167] a *Bulmer!* a *Bulmer!* or so ootherwise as theyr captein's names wear, never linnde those troublous and daungerous noyses all the night long. They sayd they did it to fynd out their captein and fellowes; but if the soldiours of our oother countries and sheres had used the same maner, in that case we shoold

have oftymes had the state of our campe more lyke the outrage of a dissolute huntyng, than the quiet of a wel ordred army."—

Patten's Account of Somerset's Expedition, p. 76.—*Apud Dalyell's Fragments*.

Honest Patten proceeds, with great prolixity, to prove, that this was a custom more honoured in the breach than in the observance; and, like Fluellen, declares, "that such idle pribble prabbles were contrary to all the good customs and disciplines of war." Nevertheless, the custom of crying the *slogan* or *ensenzie*, is often alluded to in all our ancient histories and poems. It was usually the name of the clan, or place of rendezvous, or leader. In 1335, the English, led by Thomas of Rosslyne, and William Moubray, assaulted Aberdeen. The former was mortally wounded in the onset; and, as his followers were pressing forward, shouting *Rosslyne! Rosslyne!* "Cry *Moubray*," said the expiring chieftain; "*Rosslyne* is gone!" The Highland clans had also their appropriate slogans. The Macdonalds cried *Frich*, (heather); the Macphersons *Craig-Ubh*; the Grants *Craig-Elachie*; and the Macfarlanes *Lock-Sloy*.

The swallow taill frae tackles flew.—P. 162. v. 2.

The Scots, on this occasion, seem to have had chiefly fire-arms; the English retaining still their partiality for their ancient weapon, the long-bow. It also appears, by a letter from the Duke of Norfolk to Cecil, that the English borderers were unskilful in fire-arms, or, as he says, "our countrymen be not so commyng with shots as I wolde wishe."—See *Murdin's State Papers*, Vol. I. p. 319.

And had not been the merchant packs.—P. 162. v. 3.

The ballad-maker here ascribes the victory to the real cause; for, [168] the English borderers, dispersing to plunder the merchandise, gave the opposite party time to recover from their surprise. It seems to have been usual for travelling merchants to attend border-meetings, although one would have thought the kind of company, usually assembled there, might have deterred them.

Sir Francis Russel ta'en was there.—P. 163. v. 1.

This gentleman was son to the Earl of Bedford. He was afterwards killed in a fray of a similar nature, at a border-meeting, between the same Sir John Forster (father-in-law to Russell), and Thomas Ker of Fairnihurst, A.D. 1585.

Proud Wallinton was wounded sair.—P. 163. v. 1.

Fenwick of Wallinton, a powerful Northumbrian chief.

As Collingwood, that courteous knight.—P. 163. v. 1.

Sir Cuthbert Collingwood. Besides these gentlemen, James Ogle, and many other Northumbrians of note, were made prisoners. Sir George Heron, of Chipchase and Ford, was slain, to the great regret of both parties, being a man highly esteemed by the Scots, as well as the English. When the prisoners were brought to Morton, at Dalkeith, and, among other presents, received from him some Scottish falcons, one of his train observed, that the English were nobly treated, since they got live *hawks* for dead *herons*.—*Godscroft*.

Young Henry Schufton,—P. 163. v. 2.

The name of this gentleman does not appear in the MS. in the Advocates' Library, but is restored from a copy in single sheet, printed early in the last century.

For laiming of the laird of Mow.—P. 163. v. 2.

An ancient family on the borders. The lands of Mowe are situated upon [169] the river Bowmont, in Roxburghshire. The family is now represented by William Molle, Esq. of Mains, who has restored the ancient spelling of the name. The laird of Mowe, here mentioned, was the only gentleman of note killed in the skirmish on the Scottish side.

For Gretein kend net gude be ill.—P. 163. v. 2;

Graden, a family of Kerrs.

Beanjeddart, Hundlie, and Hunthill.—P. 163. v. 3.

Douglas of Beanjeddart, an ancient branch of the house of Cavers, possessing property near the junction of the Jed and Tiviot.

Hundlie,—Rutherford of Hundlie, or Hundalee, situated on the Jed, above Jedburgh.

Hunthill.—The old tower of Hunthill was situated about a mile above Jedburgh. It was the patrimony of an ancient family of Rutherfords. I suppose the person, here meant, to be the same who is renowned in tradition by the name of the *Cock of Hunthill*. His sons were executed for march-treason, or border-theft, along with the lairds of Corbet, Greenhead, and Overton, A.D. 1588.—*Johnston's History*, p. 129.

But auld Badreule had on a jack.—P. 164. v. 1.

Sir Andrew Turnbull of Bedrule, upon Rule Water. This old laird was so notorious a thief, that the principal gentlemen of the clans of Hume and Kerr refused to sign a bond of alliance, to which he, with the Turnbulls and Rutherfords, was a party; alleging, that their proposed allies had stolen Hume of Wedderburn's cattle. The authority of Morton, however, compelled them to digest the affront. The debate (and a curious one it is) may be seen at length in *Godscroft*, Vol. I. p. 221. The Rutherfords became more lawless after having been deprived of the countenance of the court, for slaying the nephew of Forman, archbishop of St. Andrews, who had attempted to carry off the heiress of Rutherford. This lady was afterwards married to James Stuart of Traquair, son to James, Earl of Buchan, according to a papal bull, dated 9th November, 1504. By this lady a great estate in Tiviotdale fell to the family of Traquair, which was sold by James, [170] Earl of Traquair, lord-high-treasurer of Scotland, in consequence of the pecuniary difficulties to which he was reduced, by his loyal exertions in favour of Charles I.

Gude Ederstane was not to lack.—P. 164. v. 1.

An ancient family of Rutherfords; I believe, indeed, the most ancient now extant. The family is represented by Major Rutherford of Edgerstane. His seat is about three miles distant from the field of battle.

Nor Kirkton, Newtown, noble men!—P. 164. v. 1.

The parish of Kirkton belonged, I believe, about this time, to a branch of the Cavers family; but Kirkton of Stewartfield is mentioned in the list of border clans in 1597.

Newtoun.—This is probably Grinyslaw of Little Newtoun, mentioned in the said roll of border clans.

KINMONT WILLIE

In the following rude strains, our forefathers commemorated one of the last, and most gallant achievements, performed upon the border. The reader will find, in the subjoined extract from Spottiswoode, a minute historical account of the exploit; which is less different from that contained in the ballad than might perhaps have been expected.

Anno, 1596.—"The next year began with a trouble in the borders, which was like to have destroyed the peace betwixt the two realms, and arose upon this occasion. The Lord Scroop being the warden of the west marches of England, and the laird of Bacleuch having the charge of Liddesdale, they sent their deputies to keep a day of truce, for redress of some ordinary matters.—The place of meeting was at the Dayholme of Kershop, where a small brook divideth England from Scotland, and Liddesdale from Bawcastle. There met, as deputy for the laird of Bacleuch, Robert Scott of Hayninge; and for the Lord Scroop, [172] a gentleman within the west wardenry, called Mr. Salkeld. These two, after truce taken and proclaimed, as the custom was, by sound of trumpet, met friendly, and, upon mutual redress of such wrongs as were then complained of, parted in good terms, each of them taking his way homewards. Meanwhile it happened, one William Armstrong, commonly called *Will of Kinmonth*, to be in company with the Scottish deputy, against whom the English had a quarrel, for many wrongs he had committed, as he was indeed a notorious thief. This man, having taken his leave of the Scots deputy, and riding down the river of Liddel on the Scottish side, towards his own house, was pursued by the English, who espied him from the other side of the river, and, after a chase of three or four miles, taken prisoner, and brought back to the English deputy, who carried him away to the castle of Carlisle.

"The laird of Bacleuch complaining of the breach of truce (which was always taken from the time of meeting, unto the next day at sun-rising), wrote to Mr. Salkeld, and craved redress. He excused himself by the

absence of the Lord Scroop. Whereupon Bacleuch sent to the Lord Scroop, and desired the prisoner might be set at liberty, without any bond or condition, seeing he was unlawfully taken. Scroop answered, that he could do nothing in the matter, it having so happened, without a direction from the queen and council of England, [173] considering the man was such a malefactor.—Bacleuch, loth to inform the king of what was done, lest it might have bred some misliking betwixt the princes, dealt with Mr. Bowes, the resident ambassador of England, for the prisoner's liberty; who wrote very seriously to the Lord Scroop in that business, advising him to set the man free, and not to bring the matter to a farther hearing. But no answer was returned: the matter thereupon was imparted to the king, and the queen of England solicited by letters to give direction for his liberty; yet nothing was obtained; which Bacleuch perceiving, and apprehending both the king, and himself as the king's officer, to be touched in honour, he resolved to work the prisoner's relief, by the best means he could.

"And, upon intelligence that the castle of Carlisle, wherein the prisoner was kept, was surprisable, he employed some trusty persons to take a view of the postern gate, and measure the height of the wall, which he meant to scale by ladders, and, if those failed, to break through the wall with some iron instruments, and force the gates. This done, so closely as he could, he drew together some two hundred horse, assigning the place of meeting at the tower of Morton, some ten miles from Carlisle, an hour before sun-set. With this company, passing the water of Esk, about the falling, two hours before day, he crossed Eden beneath Carlisle bridge (the water, through the rain that had fallen, being thick), and came to the Sacery, a plain under the castle. There [174] making a little halt, at the side of a small bourn, which they call Cadage, he caused eighty of the company to light from their horses, and take the ladders, and other instruments which he had prepared, with them. He himself, accompanying them to the foot of the wall, caused the ladders to be set to it, which proving too short, he gave order to use the other instruments for opening the wall nigh the postern; and, finding the business likely to succeed, retired to the rest whom he had left on horseback, for assuring those that entered upon the castle against any eruption from the town. With some little labor a breach was made for single men to enter, and they who first went in, broke open the postern for the rest. The watchmen, and some few the noise awaked, made a little restraint, but

they were quickly repressed, and taken captive. After which, they passed to the chamber wherein the prisoner was kept; and, having brought him forth, sounded a trumpet, which was a signal to them without that the enterprize was performed. My Lord Scroope and Mr. Salkeld were both within the house, and to them the prisoner cried "a good night!" The captives taken in the first encounter were brought to Bacleuch, who presently returned them to their master, and would not suffer any spoil, or booty, as they term it, to be carried away; he had straitly forbidden to break open any door, but that where the prisoner was kept, though he might have made prey of all the goods within the castle, and taken the [175] warden himself captive; for he would have it seen, that he did intend nothing but the reparation of his majesty's honor. By this time, the prisoner was brought forth, the town had taken the alarm, the drums were beating, the bells ringing, and a beacon put on the top of the castle, to give warning to the country. Whereupon Bacleuch commanded those that entered the castle, and the prisoner, to horse; and marching again by the Sacery, made to the river at the Stony-bank, on the other side, whereof certain were assembled to stop his passage; but he, causing to sound the trumpet, took the river, day being then broken, and they choosing to give him way, he retired in order through the Grahams of Esk (men at that time of great power, and his un-friends), and came back into Scottish ground two hours after sun-rising, and so homewards.

"This fell out the 13th of April, 1596. The queen of England, having notice sent her of what was done, stormed not a little. One of her chief castles surprised, a prisoner taken forth of the hands of the warden, and carried away, so far within England, she esteemed a great affront. The lieger, Mr. Bowes, in a frequent convention kept at Edinburgh, the 22d of May, did, as he was charged, in a long oration, aggravate the heinousness of the fact, concluding that peace could not longer continue betwixt the two realms, unless Bacleuch were delivered in England, to be punished at the queen's pleasure. Bacleuch [176] compearing, and charged with the fact, made answer—"That he went not into England with intention to assault any of the queen's houses, or to do wrong to any of her subjects, but only to relieve a subject of Scotland unlawfully taken, and more unlawfully detained; that, in the time of a general assurance, in a day of truce, he was taken prisoner against all order, neither did he attempt his relief till redress was refused; and that he had carried the business in such a moderate manner, as no

hostility was committed, nor the least wrong offered to any within the castle; yet was he content, according to the ancient treaties observed betwixt the two realms, when as mutual injuries were alleged, to be tried by the commissioners that it should please their majesties to appoint, and submit himself to that which they should decern.'—The convention, esteeming the answer reasonable, did acquaint the ambassador therewith, and offered to send commissioners to the borders, with all diligence, to treat with such as the queen should be pleased to appoint for her part.

"But she, not satisfied with the answer, refused to appoint any commissioners; whereupon the council of England did renew the complaint in July thereafter; and the business being of new agitated, it was resolved of as before, and that the same should be remitted to the trial of commissioners: the king protesting, 'that he might, with great reason, crave the delivery of Lord Scroope, for the injury committed by his deputy, it being less favourable to take a prisoner, [177] than relieve him that is unlawfully taken; yet, for the continuing of peace, he would forbear to do it, and omit nothing, on his part, that could be desired, either in equity, or by the laws of friendship.'—The borders, in the mean time, making daily incursions one upon another, filled all their parts with trouble, the English being continually put to the worse; neither were they made quiet, till, for satisfying the queen, the laird of Bacleuch was first committed in St. Andrews, and afterwards entered in England, where he remained not long^[159]."—*Spottiswood's History of the Church of Scotland*, p. 414, 416, Ed. 1677.

Scott of Satchells, in the extraordinary poetical performance, which he has been pleased to entitle *A History of the Name of Scott* (published 1688), dwells, with great pleasure, upon this gallant achievement, at which, it would seem, his father had been present. He also mentions, that the laird of Buccleuch employed the services of the younger sons and brothers only of his clan, lest the name should have been weakened by the landed men incurring forfeiture. But he adds, that three gentlemen of estate insisted upon attending their chief, notwithstanding this prohibition. These were, the lairds [178] of Harden and Commonsides, and Sir Gilbert Elliot of the Stobbs, a relation of the laird of Buccleuch, and ancestor to the present Sir William Elliot, Bart. In many things Satchells agrees with the ballads current in his time, from which, in all probability, he derived most of his information as to

past events, and from which he sometimes pirates whole verses, as noticed in the annotations upon the *Raid of the Reidswire*. In the present instance, he mentions the prisoner's *large spurs* (alluding to the fetters), and some other little incidents noticed in the ballad, which was, therefore, probably well known in his days.

All contemporary historians unite in extolling the deed itself as the most daring and well-conducted achievement of that age. "*Audax facinus cum modica manu, in urbe maenibus et multitudine oppidanorum munita, et callidae: audaciae, vix ullo obsisti modo potuit.*"—*Johnstoni Historia*, Ed. Amstael. p. 215. Birrel, in his gossiping way, says, the exploit was performed "with shouting and crying, and sound of trumpet, puttand the said toun and countrie in sic ane fray, that the like of sic ane wassaladge wes nevir done since the memory of man, no not in Wallace dayis."—*Birrel's Diary*, April 6, 1596. This good old citizen of Edinburgh also mentions another incident which I think proper to insert here, both as relating to the personages mentioned in the following ballad, and as tending to shew the light in which the men of the border were regarded, even at this late period, by their fellow subjects. The [179] author is talking of the king's return to Edinburgh, after the disgrace which he had sustained there, during the riot excited by the seditious ministers, on December 17, 1596. Proclamation had been made, that the Earl of Mar should keep the West Port, Lord Seton the Nether-Bow, and Buccleuch, with sundry others, the High Gate. "Upon the morn, at this time, and befor this day, thair wes ane grate rumour and word among the tounesmen, that the kinges M. sould send in *Will Kinmond, the common thieffe*, and so many southland men as sould spulye the toun of Edinburgh. Upon the whilk, the haill merchants tuik thair haill gear out of their buiths or chops, and transportit the same to the strongest hous that wes in the toune, and remained in the said hous, thair, with thameselfis, thair servants, and luiking for nothing bot that thai sould have been all spulyeit. Sic lyke the hail craftsmen and comons convenit themselfis, thair best guides, as it wer ten or twelve householdes in are, whilk wes the strongest hous, and might be best kepit from spulyeing or burning, with hagbut, pistolet, and other sic armour, as might best defend thameselfis. Judge, gentill reider, giff this wes playing." The fear of the borderers being thus before the eyes of the contumacious citizens of Edinburgh, James obtained a quiet hearing for one of his favourite orisones,

or harangues, and was finally enabled to prescribe terms to his fanatic metropolis. Good discipline was, however, [180] maintained by the chiefs upon this occasion; although the fears of the inhabitants were but too well grounded, considering what had happened in Stirling ten years before, when the Earl of Angus, attended by Home, Buccleuch, and other border chieftains, marched thither to remove the Earl of Arran from the king's councils: the town was miserably pillaged by the borderers, particularly by a party of Armstrongs, under this very Kinmont Willie, who not only made prey of horses and cattle, but even of the very iron grating of the windows.—*Johnstoni Historia*, p. 102. *Ed. Amstael*.—*Moyse's Memoirs*, p. 100.

The renown of Kinmont Willie is not surprising, since, in 1588, the apprehending that freebooter, and Robert Maxwell, natural-brother to the Lord Maxwell, was the main, but unaccomplished, object of a royal expedition to Dumfries. "*Rex ... Robertum Maxvallium ... et Gulielmum Armstrangum Kinmonthum latrociniis intestinis externisque famosum, conquiri jubet. Missi e ministerio regio, qui per aspera loca vitabundos persequuntur, magnoque incommodo afficiunt. At illi latebris aut silvis se eripiunt.*"—*Johnstoni Historia*, p. 138. About this time, it is possible that Kinmont Willie may have held some connection with the Maxwells, though afterwards a retainer to Buccleuch, the enemy of that tribe. At least, the editor finds, that, in a bond of manrent, granted by Simon Elliot of Whytheuch, in Liddesdale, to Lord Maxwell, styled therein Earl of Morton, dated February 28, 1599, William Armstrang, called *Will of Kinmond*, [181] appears as a witness.—*Syme's MSS*. According to Satchells, this freebooter was descended of Johnie Armstrong of Gilnockie (See *Ballad*, p. 105, of this volume.)—*Est in juvencis, est et in equis, patrum virtus*. In fact, his rapacity made his very name proverbial. Mas James Melvine, in urging reasons against subscribing the act of supremacy, in 1584, asks ironically, "Who shall take order with vice and wickedness? The court and bishops? As well as Martine Elliot, and Will of Kinmont, with stealing upon the borders!"—*Calderwood*, p. 168.

This affair of Kinmont Willie was not the only occasion upon which the undaunted keeper of Liddesdale gave offence to the haughty Elizabeth. For, even before this business was settled, certain of the English borderers having invaded Liddesdale, and wasted the country, the laird of Buccleuch retaliated the injury by a *raid* into England, in which he not only brought

off much spoil, but apprehended thirty-six of the Tynedale thieves, all of whom he put to death.—*Spottiswoode*, p. 450. How highly the Queen of England's resentment blazed on this occasion, may be judged from the preface to her letter to Bowes, then her ambassador in Scotland. "I wonder how base-minded that king thinks me, that, with patience, I can digest this dishonourable ——. Let him know, therefore, that I will have satisfaction, or else ——." These broken words of ire are inserted betwixt the subscription and the address of the letter.—*Rymer*, [182] Vol. XVI. p. 318. Indeed, so deadly was the resentment of the English, on account of the affronts put upon them by this formidable chieftain, that there seems at one time to have been a plan formed (not, as was alleged, without Elizabeth's privity,) to assassinate Buccleuch.—*Rymer*, Vol. XVI. p. 107. The matter was at length arranged by the commissioners of both nations in Berwick, by whom it was agreed that delinquents should be delivered up on both sides, and that the chiefs themselves should enter into ward in the opposite countries, till these were given up, and pledges granted for the future maintenance of the quiet of the borders. Buccleuch, and Sir Robert Ker of Cessford (ancestor of the Duke of Roxburgh), appear to have struggled hard against complying with this regulation; so much so, that it required all James's authority to bring to order these two powerful chiefs.—*Rymer*, Vol. XVI. p. 322.—*Spottiswoode*, p. 448.—*Carey's Memoirs*, p. 131. *et sequen.*—When at length they appeared, for the purpose of delivering themselves up to be warded at Berwick, an incident took place, which nearly occasioned a revival of the deadly feud which formerly subsisted between the Scots and the Kers. Buccleuch had chosen, for his guardian, during his residence in England, Sir William Selby, master of the ordnance at Berwick, and accordingly gave himself into his hands. Sir Robert Ker was about to do the same, when a pistol was discharged by one of his retinue, and the cry of treason was raised. Had not the Earl of Home been present, with a party of Merse [183] men, to preserve order, a dreadful tumult would probably have ensued. As it was, the English commissioners returned in dismay to Berwick, much disposed to wreak their displeasure on Buccleuch; and he, on his side, mortally offended with Cessford, by whose means, as he conceived, he had been placed in circumstances of so much danger. Sir Robert Ker, however, appeased all parties, by delivering himself up to ward in England; on which occasion, he magnanimously chose for his guardian Sir Robert Carey, deputy-warden of the east marches, notwithstanding

various causes of animosity which existed betwixt them. The hospitality of Carey equalled the generous confidence of Cessford, and a firm friendship was the consequence^[160].

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Buccleuch appears to have remained in England from October, 1597, till February, 1598.—*Johnstoni Historia*, p. 231,—*Spottiswoode, ut supra*. According to ancient family tradition, Buccleuch was presented to Elizabeth, who, with her usual rough and peremptory address, demanded of him, "how he dared to undertake an enterprize so desperate and presumptuous." "What is it," answered the undaunted chieftain, "What is it that a man dares not do!" Elizabeth, struck with the reply, turned to a lord in waiting; "With ten thousand such men," said she, "our brother of Scotland might shake the firmest throne of Europe." Luckily, perhaps, for the murtheress of Queen Mary, James's talents did not lie that way.

The articles, settled by the commissioners at Berwick, were highly favourable to the peace of the border. They may be seen at large in the *Border Laws*, p. 103. By article sixth, all wardens and keepers are discharged from seeking reparation of injuries, in the [185] ancient hostile mode of riding, or causing to ride, in warlike manner, against the opposite march; and that under the highest penalty, unless authorized by a warrant under the hand of their sovereign. The mention of the word *keeper*, alludes obviously to the above-mentioned reprisals, made by Buccleuch in the capacity of keeper of Liddesdale.

This ballad is preserved, by tradition, on the west borders, but much mangled by reciters; so that some conjectural emendations have been absolutely necessary to render it intelligible. In particular, the *Eden* has been substituted for the *Eske*, p. 193, the latter name being inconsistent with geography.

[186]

KINMONT WILLIE.

O have ye na heard o' the fause Sakelde?
O have ye na heard o' the keen Lord Scroop?
How they hae ta'en bauld Kinmont Willie,
On Hairibee to hang him up?

Had Willie had but twenty men,
But twenty men as stout as he,
Fause Sakelde had never the Kinmont ta'en,
Wi' eight score in his cumpanie.

They band his legs beneath the steed,
They tied his hands behind his back;
They guarded him, fivesome on each side,
And they brought him ower the Liddel-rack.

[187]

They led him thro' the Liddel-rack,
And also thro' the Carlisle sands;
They brought him to Carlisle castell,
To be at my Lord Scroop's commands.

"My hands are tied, but my tongue is free!
And whae will dare this deed avow?
Or answer by the border law?
Or answer to the bauld Buccleuch!"

"Now haud thy tongue, thou rank reiver!
There's never a Scot shall set ye free:
Before ye cross my castle yate,
I trow ye shall take farewell o' me."

"Fear na ye that, my lord," quo' Willie:
"By the faith o' my body, Lord Scroop," he said,
"I never yet lodged in a hostelrie,^[161]
But I paid my lawing^[162] before I gaed."

Now word is gane to the bauld Keeper,

In Branksome Ha', where that he lay,
That Lord Scroop has ta'en the Kinmont Willie,
Between the hours of night and day.

[188]

He has ta'en the table wi' his hand,
He garr'd the red wine spring on hie—
"Now Christ's curse on my head," he said,
"But avenged of Lord Scroop I'll be!

"O is my basnet^[163] a widow's curc^[164]
Or my lance a wand of the willow tree?
Or my arm a ladye's lilye hand,
That an English lord should lightly^[165] me!

"And have they ta'en him, Kinmont Willie,
Against the truce of border tide?
And forgotten that the bauld Buccleuch
Is Keeper here on the Scottish side?

"And have they e'en ta'en him, Kinmont Willie,
Withouten either dread or fear?
And forgotten that the bauld Buccleuch
Can back a steed, or shake a spear?

"O were there war between the lands,
As well I wot that there is none,
I would slight Carlisle castell high,
Tho' it were builded of marble stone.

[189]

"I would set that castell in a low,^[166]
And sloken it with English blood!
There's nevir a man in Cumberland,
Should ken where Carlisle castell stood.

"But since nae war's between the lands,
And there is peace, and peace should be;
I'll neither harm English lad or lass,

And yet the Kinmont freed shall be!"

He has call'd him forty marchmen bauld,
I trow they were of his ain name,
Except Sir Gilbert Elliot, call'd
The laird of Stobs, I mean the same.

He has call'd him forty marchmen bauld,
Were kinsmen to the bauld Buccleuch;
With spur on heel, and splent on spauld,^[167]
And gleuves of green, and feathers blue.

There were five and five before them a',
Wi' hunting horns and bugles bright;
And five and five came wi' Buccleuch,
Like warden's men, arrayed for fight:

[190]

And five and five, like a mason gang,
That carried the ladders lang and hie;
And five and five, like broken men;
And so they reached the Woodhouselee.

And as we cross'd the Bateable Land,
When to the English side we held,
The first o' men that we met wi',
Whae sould it be but fause Sakelde?

"Where be ye gaun, ye hunters keen?"
Quo' fause Sakelde; "come tell to me!"
"We go to hunt an English stag,
Has trespassed on the Scots countrie."

"Where be ye gaun, ye marshal men?"
Quo' fause Sakelde; "come tell me true!"
"We go to catch a rank reiver,
Has broken faith wi' the bauld Buccleuch."

"Where are ye gaun, ye mason lads,
Wi' a' your ladders, lang and hie?"
"We gang to herry a corbie's nest,
That wons not far frae Woodhouselee."

[191]

"Where be ye gaun, ye broken men?"
Quo' fause Sakelde; "come tell to me!"
Now Dickie of Dryhope led that band,
And the never a word o' lear had he.

"Why trespass ye on the English side?
Row-footed outlaws, stand!" quo' he;
The never a word had Dickie to say,
Sae he thrust the lance thro' his fause bodie.

Then on we held for Carlisle toun,
And at Staneshaw-bank the Eden we cross'd;
The water was great and meikle of spait,
But the nevir a horse nor man we lost.

And when we reached the Staneshaw-bank,
The wind was rising loud and hie;
And there the laird garr'd leave our steeds,
For fear that they should stamp and nie.

And when we left the Staneshaw-bank,
The wind began full loud to blaw;
But 'twas wind and weet, and fire and sleet,
When we came beneath the castle wa'.

[192]

We crept on knees, and held our breath,
Till we placed the ladders against the wa';
And sae ready was Buccleuch himsell
To mount the first, before us a'.

He has ta'en the watchman by the throat,
He flung him down upon the lead—

"Had there not been peace between our land,
Upon the other side thou hadst gaed!—

"Now sound out, trumpets!" quo' Buccleuch;
"Let's waken Lord Scroop, right merrilie!"
Then loud the warden's trumpet blew—
"O whae dare meddle wi' me?"^[168]

Then speedilie to work we gaed,
And raised the slogan ane and a'.
And cut a hole thro' a sheet of lead,
And so we wan to the castle ha'.

They thought King James and a' his men
Had won the house wi' bow and spear;
It was but twenty Scots and ten,
That put a thousand in sic a stear!^[169]

[193]

Wi' coulters and wi' fore-hammers,
We garr'd the bars bang merrilie,
Untill we cam to the inner prison,
Where Willie o' Kinmont he did lie.

And when we cam to the lower prison,
Where Willie o' Kinmont he did lie—
"O sleep ye, wake ye, Kinmont Willie,
Upon the morn that thou's to die?"

"O I sleep saft,^[170] and I wake aft;
Its lang since sleeping was fleyed^[171] frae me!
Gie my service back to my wife and bairns,
And a' gude fellows that speer for me."

Then Red Rowan has hente him up,
The starkest man in Teviotdale—
"Abide, abide now, Red Rowan,
Till of my Lord Scroope I take farewell.

"Farewell, farewell, my gude Lord Scroope!
My gude Lord Scroope, farewell!" he cried—
"I'll pay you for my lodging maill,^[172]
When first we meet on the border side."

[194]

Then shoulder high, with shout and cry,
We bore him down the ladder lang;
At every stride Red Rowan made,
I wot the Kinmont's aims played clang!

"O mony a time," quo' Kinmont Willie,
"I have ridden horse baith wild and wood;
But a rougher beast than Red Rowan,
I ween my legs have ne'er bestrode.

"And mony a time," quo' Kinmont Willie,
"I've pricked a horse out oure the furs;^[173]
But since the day I backed a steed,
I never wore sic cumbrous spurs!"

We scarce had won the Staneshaw-bank,
When a' the Carlisle bells were rung,
And a thousand men, in horse and foot,
Cam wi' the keen Lord Scroope along.

Buccleuch has turned to Eden water,
Even where it flow'd frae bank to brim,
And he has plunged in wi' a' his band,
And safely swam them thro' the stream.

[195]

He turned him on the other side,
And at Lord Scroope his glove flung he—
"If ye like na my visit in merry England,
In fair Scotland come visit me!"

All sore astonished stood Lord Scroope,

He stood as still as rock of stane;
He scarcely dared to trew his eyes,
When thro' the water they had gane.

"He is either himsell a devil frae hell,
Or else his mother a witch maun be;
I wad na have ridden that wan water,
For a' the gowd in Christentie."

[196]

NOTES ON KINMONT WILLIE.

On Hairibee to hang him up?—P. 188. v. 1.

Hairibee is the place of execution at Carlisle.

And they brought him ower the Liddel-rack.—P. 188. v. 3.

The Liddel-rack is a ford on the Liddel.

And so they reached the Woodhouselee.—P. 192. v. 1.

Woodhouselee; a house on the border, belonging to Buccleuch.

The Salkeldes, or Sakeldes, were a powerful family in Cumberland, possessing, among other manors, that of Corby, before it came into the possession of the Howards, in the beginning of the seventeenth century. A strange stratagem was practised by an outlaw, called Jock Grame of the Peartree, upon Mr. Salkelde, sheriff of Cumberland; who is probably the person alluded to in the ballad, as the fact is stated to have happened late in Elizabeth's time. The brother of this [197] freebooter was lying in Carlisle jail for execution, when Jock of the Peartree came riding past the gate of Corby castle. A child of the sheriff was playing before the door, to whom

the outlaw gave an apple, saying, "Master, will you ride?" The boy willingly consenting, Grame took him up before him, carried him into Scotland, and would never part with him, till he had his brother safe from the gallows. There is no historical ground for supposing, either that Salkelde, or any one else, lost his life in the raid of Carlisle.

In the list of border clans, 1597, Will of Kinmonth, with Kyrstie Armestrange, and John Skynbanke, are mentioned as leaders of a band of Armstrongs, called *Sandies Barnes*, inhabiting the Debateable Land. The ballad itself has never before been published.

DICK O' THE COW.

This ballad, and the two which immediately follow it in the collection, were published, 1784, in the *Hawick Museum*, a provincial miscellany, to which they were communicated by John Elliot, Esq. of Reidheugh, a gentleman well skilled in the antiquities of the western border, and to whose friendly assistance the editor is indebted for many valuable communications.

These ballads are connected with each other, and appear to have been composed by the same author. The actors seem to have flourished, while Thomas, Lord Scroope, of Bolton, was warden of the west marches of England, and governor of Carlisle castle; which offices he acquired upon the death of his father, about 1590; and retained it till the union of the crowns.

Dick of the Cow, from the privileged insolence which he assumes, seems to have been Lord Scroope's jester. In the preliminary dissertation, the reader will find the border custom of assuming *noms de guerre* particularly noticed. It is exemplified in [199] the following ballad, where one Armstrong is called the *Laird's Jock* (i.e. the laird's son Jock), another *Fair Johnie*, a third *Billie Willie* (brother Willie), &c. The *Laird's Jock*, son to the laird of Mangerton, appears, as one of the men of name in Liddesdale, in the list of border clans, 1597.

Dick of the Cow is erroneously supposed to have been the same with one Ricardus Coldall, de Plumpton, a knight and celebrated warrior, who died in 1462, as appears from his epitaph in the church of Penrith.—*Nicolson's History of Westmoreland and Cumberland*, Vol. II. p. 408.

This ballad is very popular in Liddesdale; and the reciter always adds, at the conclusion, that poor Dickie's cautious removal to Burgh under Stanemore, did not save him from the clutches of the Armstrongs; for that, having fallen into their power several years after this exploit, he was put to an inhuman death. The ballad was well known in England, so early as 1556. An allusion

to it likewise occurs in *Parrot's Laquei Ridiculosi, or Springes for Woodcocks*; London, 1613.

Owenus wondreth, since he came to Wales,
What the description of this isle should be,
That nere had seen but mountains, hills, and dales.
Yet would he boast, and stand on pedigree,
From Rice ap Richard, sprung from Dick a Cow,
Be cod, was right gud gentleman, looke ye now!

Epigr. 76.

[200]

DICK O' THE COW.

Now Liddesdale has layen lang in,
There is na riding there at a';
The horses are grown sae lither fat,
They downa stur out o' the sta.'

Fair Johnie Armstrang to Willie did say—
"Billie, a riding we will gae;
England and us have been lang at feid;
Ablins we'll light on some bootie."

Then they are come on to Hutton Ha';
They rade that proper place about;

But the laird he was the wiser man,
For he had left nae gear without.

[201]

For he had left nae gear to steal,
Except sax sheep upon a lee:
Quo' Johnie—"I'd rather in England die,
"Ere thir sax sheep gae to Liddesdale wi' me."

"But how ca' they the men we last met,
Billie, as we cam owre the know?"
"That same he is an innocent fule,
And men they call him Dick o' the Cow,"

"That fule has three as good kye o' his ain,
As there are in a' Cumberland, billie," quo he:
"Betide me life, betide me death,
These kye shall go to Liddesdale wi' me."

Then they have come on to the pure fule's house,
And they hae broken his wa's sae wide;
They have loosed out Dick o' the Cow's three ky,
And ta'en three co'erlets frae his wife's bed.

Then on the morn when the day was light,
The shouts and cries rase loud and hie:
"O haud thy tongue, my wife," he says,
"And o' thy crying let me be!

[202]

"O had thy tongue, my wife," he says,
"And o' thy crying let me be;
And ay where thou hast lost ae cow,
In gude suith I shall bring thee three."

Now Dickie's gane to the gude Lord Scroope,
And I wat a dreirie fule was he;
"Now hand thy tongue, my fule," he says,
"For I may not stand to jest wi' thee."

"Shame fa' your jesting, my lord!" quo' Dickie,
"For nae sic jesting grees wi' me;
Liddesdale's been in my house last night,
And they hae awa my three kye frae me.

"But I may nae langer in Cumberland dwell,
To be your puir fule and your leal,
Unless you gi' me leave, my lord,
To gae to Liddesdale and steal."

"I gie thee leave, my fule!" he says;
"Thou speakest against my honour and me,
Unless thou gie me thy trowth and thy hand,
Thou'lt steal frae nane but whae sta' frae thee."

[203]

"There is my trowth, and my right hand!
My head shall hang on Hairibee;
I'll ne'er cross Carlisle sands again,
If I steal frae a man but whae sta' frae me."

Dickie's ta'en leave o' lord and master;
I wat a merry fule was he!
He's bought a bridle and a pair of new spurs,
And pack'd them up in his breek thie.

Then Dickie's come on to Pudding-burn house,
E'en as fast as he might drie;
Then Dickie's come on to Pudding-burn,
Where there were thirty Armstrangs and three.

"O what's this come o' me now?" quo' Dickie;
"What mickle wae is this?" quo' he;
"For here is but ae innocent fule,
And there are thirty Armstrangs and three!"

Yet he has come up to the fair ha' board,

Sae weil he's become his courtesie!
"Weil may ye be, my gude Laird's Jock!
But the deil bless a' your cumpanie.

[204]

"I'm come to plain o' your man, fair Johnie Armstrang
And syne o' his billie Willie," quo he;
"How they've been in my house last night,
And they hae ta'en my three kye frae me."

"Ha!" quo' fair Johnie Armstrang, "we will him hang."
"Na," quo' Willie, "we'll him slae."
Then up and spak another young Armstrang,
"We'll gie him his batts,^[174] and let him gae."

But up and spak the gude Laird's Jock,
The best falla in a' the cumpanie:
"Sit down thy ways a little while, Dickie,
And a piece o' thy ain cow's hough I'll gie ye."

But Dickie's heart it grew sae grit,
That the ne'er a bit o't he dought to eat—
Then was he aware of an auld peat-house,
Where a' the night he thought for to sleep.

Then Dickie was aware of an auld peat-house,
Where a' the night he thought for to lye—
And a' the prayers the pure fule prayed
Were, "I wish I had amends for my gude three kye!"

[205]

It was then the use of Pudding-burn house,
And the house of Mangerton, all hail,
Them that cam na at the first ca',
Gat nae mair meat till the neist meal.

The lads, that hungry and weary were,
Abune the door-head they threw the key;
Dickie he took gude notice o' that,

Says—"There will be a bootie for me."

Then Dickie has into the stable gane,
Where there stood thirty horses and three;
He has tied them a' wi' St. Mary's knot,
A' these horses but barely three.

He has tied them a' wi' St. Mary's knot,
A' these horses but barely three;
He's loupin on ane, ta'en another in hand,
And away as fast as he can hie.

But on the morn, when the day grew light,
The shouts and cries raise loud and hie—
"Ah! whae has done this?" quo' the gude Laird's Jock,
"Tell me the truth and the verity!"

[206]

"Whae has done this deed?" quo' the gude Laird's Jock;
"See that to me ye dinna lie!"
Dickie has been in the stable last night,
And has ta'en my brother's horse and mine frae me."

"Ye wad ne'er be tald," quo' the gude Laird's Jock;
"Have ye not found my tales fu' leil?
Ye ne'er wad out o' England bide,
Till crooked, and blind, and a' would steal."

"But lend me thy bay," fair Johnie can say;
"There's nae horse loose in the stable save he;
And I'll either fetch Dick o' the Cow again,
Or the day is come that he shall die."

"To lend thee my bay!" the Laird's Jock can say,
"He's baith worth gowd and gude monie;
Dick o' the Cow has awa twa horse;
I wish na thou may make him three."

He has ta'en the laird's jack on his back,
A twa-handed sword to hang by his thie;
He has ta'en a steil cap on his head,
And galloped on to follow Dickie.

[207]

Dickie was na a mile frae aff the town,
I wat a mile but barely three,
When he was o'erta'en by fair Johnie Armstrang,
Hand for hand, on Cannobie lee.

"Abide, abide, thou traitour thief!
The day is come that thou maun die."
Then Dickie look't owre his left shoulder,
Said—"Johnie, hast thou nae mae in cumpanie?"

"There is a preacher in our chapell,
And a' the live lang day teaches he:
When day is gane, and night is come,
There's ne'er ae word I mark but three.

"The first and second is—Faith and Conscience;
The third—Ne'er let a traitour free:
But, Johnie, what faith and conscience was thine,
When thou took awa my three ky frae me?"

"And when thou had ta'en awa my three ky,
Thou thought in thy heart thou wast not weil sped,
Till thou sent thy billie Willie ower the know,
To take thrie coverlets off my wife's bed!"

[208]

Then Johnie let a speir fa' laigh by his thie,
Thought well to hae slain the innocent, I trow;
But the powers above were mair than he,
For he ran but the puir fule's jerkin through.

Together they ran, or ever they blan;
This was Dickie the fule and he!

Dickie could na win at him wi' the blade o' the sword,
But fell'd him wi' the plummet under the e'e.

Thus Dickie has fell'd fair Johnie Armstrang,
The prettiest man in the south country—
"Gramercy!" then can Dickie say,
"I had but twa horse, thou hast made me thrie!"

He's ta'en the steil jack aff Johnie's back,
The twa-handed sword that hang low by his thie;
He's ta'en the steil cap aff his head—
"Johnie, I'll tell my master I met wi' thee."

When Johnie wakened out o' his dream,
I wat a dreirie man was he:
"And is thou gane? Now, Dickie, than
The shame and dule is left wi' me.

[209]

"And is thou gane? Now, Dickie, than
The deil gae in thy cumpanie!
For if I should live these hundred years,
I ne'er shall fight wi' a fule after thee."—

Then Dickie's come hame to the gude Lord Scroope,
E'en as fast as he might his;
"Now, Dickie, I'll neither eat nor drink,
Till hie hanged thou shalt be."

"The shame speed the liars, my lord!" quo' Dickie;
"This was na the promise ye made to me!
For I'd ne'er gane to Liddesdale to steal,
Had I not got my leave frae thee."

"But what garr'd thee steal the Laird's Jock's horse?
And, limmer, what garr'd ye steal him?" quo' he;
"For lang thou mightst in Cumberland dwelt,
Ere the Laird's Jock had stown frae thee."

"Indeed I wat ye lied, my lord!
And e'en sae loud as I hear ye lie!
I wan the horse frae fair Johnie Armstrong,
Hand to hand, on Cannobie lee.

[210]

"There is the jack was on his back;
This twa-handed sword hang laigh by his thie,
And there's the steil cap was on his head;
I brought a' these tokens to let thee see."

"If that be true thou to me tells,
(And I think thou dares na tell a lie,)
I'll gie thee fifteen punds for the horse,
Weil tald on thy cloak lap shall be.

"I'll gie thee are o' my best milk ky,
To maintain thy wife and children thrie;
And that may be as gude, I think,
As ony twa o' thine wad be."

"The shame speed the liars, my lord!" quo' Dickie;
"Trow ye aye to make a fule o' me?
I'll either hae twenty punds for the gude horse,
Or he's gae to Mortan fair wi' me."

He's gien him twenty punds for the gude horse,
A' in goud and gude monie;
He's gien him ane o' his best milk ky,
To maintain his wife and children thrie.

[211]

Then Dickie's come down thro' Carlisle toun,
E'en as fast as he could drie;
The first o' men that he met wi'
Was my lord's brother, bailiff Glozenburrie.

"Weil be ye met, my gude Ralph Scroope!"

"Welcome, my brother's fule!" quo' he:
"Where didst thou get fair Johnie Armstrong's horse?"
"Where did I get him? but steal him," quo' he.

"But wilt thou sell me the bonny horse?
And, billie, wilt thou sell him to me?" quo' he:
"Aye; if thoul't tell me the monie on my cloak lap:
"For there's never ae penny I'll trust thee."

"I'll gie thee ten pund for the gude horse,
Weil tald on thy cloak lap they shall be;
And I'll gie thee ane o' the best milk ky,
To maintain thy wife and children thrie."

"The shame speid the liars, my lord!" quo' Dickie;
"Trow ye ay to make a fule o' me!
I'll either hae twenty pund for the gude horse,
Or he's gae to Mortan fair wi' me."

[212]

He's gien him twenty pund for the gude horse,
Baith in goud and gude monie;
He's gien him ane o' his best milk ky,
To maintain his wife and children thrie.

Then Dickie lap a loup fu' hie,
And I wat a loud laugh laughed he—
"I wish the neck o' the third horse were broken,
If ony of the twa were better than he!"

Then Dickie's come hame to his wife again;
Judge ye how the poor fule had sped!
He has gien her twa score English pund,
For the thrie auld coverlets ta'en aff her bed.

"And tak thee these twa as gude ky,
I trow, as a' thy thrie might be;
And yet here is a white-footed nagie,

I trow he'll carry baith thee and me.

"But I may nae langer in Cumberland bide;
The Armstrongs they would hang me hie."
So Dickie's ta'en leave at lord and master,
And at Burgh under Stanmuir there dwells he.

[213]

NOTES ON DICK O' THE COW.

Then Dickie's come on to Pudding-burn house.—P. 205. v. 3.

This was a house of strength, held by the Armstrongs. The ruins at present form a sheep-fold, on the farm of Reidsmoss, belonging to the Duke of Buccleuch.

He has tied them a' wi' St. Mary's knot.—P. 207. v. 4.

Hamstringing a horse is termed, in the border dialect, *tying him with St. Mary's Knot*. Dickie used this cruel expedient to prevent a pursuit. It appears from the narration, that the horses, left unhurt, belonged to Fair Johnie Armstrang, his brother Willie, and the Laird's Jock, of which Dickie carried off two, and left that of the Laird's Jock, probably out of gratitude for the protection he had afforded him on his arrival.

Hand for hand, on Cannobie lee.—P. 209. v. 1.

A rising-ground on Cannobie, on the borders of Liddesdale.

Ere the Laird's Jock had stown frae thee.—P. 211. v. 4.

The commendation of the Laird's Jock's honesty seems but indifferently founded; for, in July 1586, a bill was fouled against him, Dick of [214] Dryup, and others, by the deputy of Bewcastle, at a warden-meeting, for

400 head of cattle taken in open forray from the Drysike in Bewcastle: and, in September 1587, another complaint appears at the instance of one Andrew Rutledge of the Nook, against the Laird's Jock, and his accomplices, for 50 kine and oxen, besides furniture, to the amount of 100 merks sterling. See Bell's MSS., as quoted in the *History of Cumberland and Westmoreland*. In Sir Richard Maitland's poem against the thieves of Liddesdale, he thus commemorates the Laird's Jock:

They spuilye puir men of thair pakis,
They leif them nocht on bed nor bakis;
Baith hen and cok,
With reil and rok,
The *Lairdis Jock*
All with him takis.

Those, who plundered Dick, had been bred up under an expert teacher.

JOCK O' THE SIDE.

The subject of this ballad, being a common event in those troublesome and disorderly times, became a favourite theme of the ballad-makers. There are, in this collection, no fewer than three poems on the rescue of prisoners, the incidents in which nearly resemble each other; though the poetical description is so different, that the editor did not think himself at liberty to reject any one of them, as borrowed from the others. As, however, there are several verses, which, in recitation, are common to all these three songs, the editor, to prevent unnecessary and disagreeable repetition, has used the freedom of appropriating them to that, in which they seem to have the best poetic effect.

The reality of this story rests solely upon the foundation of tradition. Jock o' the side seems to have been nephew to the laird of Mangertoun, cousin to the Laird's Jock, one of his deliverers, and [216] probably brother to Chrystie of the Syde, mentioned in the list of border clans 1597. Like the Laird's Jock, he also is commemorated by Sir Richard Maitland.—See the *Introduction*.

He is weil kend, Johne of the Syde,
A greater theif did never ryde;
He never tyris
For to brek byris.
Our muir and myris
Ouir gude ane guide.

The land-serjeant, mentioned in this ballad, and also in that of *Hobble Noble*, was an officer under the warden, to whom was committed the apprehending of delinquents, and the care of the public peace.

JOCK O' THE SIDE.

Now Liddesdale has ridden a raid,
 But I wat they had better hae staid at hame;
 For Michael o' Winfield he is dead,
 And Jock o' the Side is prisoner ta'en.

For Mangerton house Lady Downie has gane,
 Her coats she has kilted up to her knee;
 And down the water wi' speed she rins,
 While tears in spaits^[175] fa' fast frae her e'e.

Then up and spoke our gude auld lord—
 "What news, what news, sister Downie, to me?"
 "Bad news, bad news, my Lord Mangerton;
 "Michael is killed, and they hae ta'en my son Johnie."

[218]

"Ne'er fear, sister Downie," quo' Mangerton;
 "I have yokes of ousen, eighty and three;
 "My barns, my byres, and my faulds a' weil fill'd,
 And I'll part wi' them a' ere Johnie shall die.

"Three men I'll send to set him free,
 A' harneist wi' the best o' steil;
 The English louns may hear, and drie
 The weight o' their braid-swords to feel.

"The Laird's Jock ane, the Laird's Wat twa,
 O Hobbie Noble, thou ane maun be!
 Thy coat is blue, thou hast been true,
 Since England banish'd thee to me."

Now Hobbie was an English man,
 In Bewcastle dale was bred and born:

But his misdeeds they were sae great,
They banish'd him ne'er to return.

Lord Mangerton them orders gave,
"Your horses the wrang way maun be shod;
Like gentlemen ye mauna seim,
But look like corn-caugers^[176] ga'en the road.

[219]

"Your armour gude ye mauna shaw,
Nor yet appear like men o' weir;
As country lads be a' array'd,
Wi' branks and brecham^[177] on each mare."

Sae now their horses are the wrang way shod.
And Hobbie has mounted his grey sae fine;
Jock his lively bay, Wat's on his white horse, behind,
And on they rode for the water of Tyne

At the Cholerford they all light down,
And there, wi' the help of the light o' the moon,
A tree they cut, wi' fifteen nogs on each side,
To climb up the wa' of Newcastle toun.

But when they cam to Newcastle toun,
And were alighted at the wa',
They fand their tree three ells ower laigh,
They fand their stick baith short and sma'.

Then up and spak the Laird's ain Jock;
"There's naething for't; the gates we maun force."
But when they cam the gate untill,
A proud porter withstood baith men and horse.

[220]

His neck in twa the Armstrangs wrang;
Wi' fute or hand he ne'er play'd pa!
His life and his keys at anes they hae ta'en,
And cast the body ahind the wa'.

Now sune they reach Newcastle jail,
And to the prisoner thus they call;
"Sleeps thou, wakes thou, Jock o' the Side,
Or art thou weary of thy thrall?"

Jock answers thus, wi' dulefu' tone;
"Aft, aft, I wake—I seldom sleep:
But whae's this kens my name sae well,
And thus to mese^[178] my waes does seik?"

Then out and spak the gude Laird's Jock,
"Now fear ye na, my billie," quo' he;
"For here are the Laird's Jock, the Laird's Wat,
And Hobbie Noble, come to set thee free."

"Now hand thy tongue, my gude Laird's Jock;
For ever, alas! this canna be;
For if a' Liddesdale was here the night,
The morn's the day that I maun die.

[221]

"Full fifteen stane o' Spanish iron,
They hae laid a' right sair on me;
Wi' locks and keys I am fast bound
Into this dungeon dark and dreirie."

"Fear ye na' that," quo' the Laird's Jock;
"A faint heart ne'er wan a fair ladie;
Work thou within, we'll work without,
And I'll be sworn we'll set thee free."

The first strong door that they cam at,
They loosed it without a key;
The next chain'd door that they cam at,
They garr'd it a' to flinders flee.

The prisoner now upon his back,

The Laird's Jock has gotten up fu' hie;
And down the stair, him, irons and a',
Wi' nae sma' speid and joy, brings he.

"Now, Jock, my man," quo' Hobbie Noble,
"Some o' his weight ye may lay on me."
"I wat weel no!" quo' the Laird's ain Jock,
"I count him lighter than a flee."

[222]

Sae out at the gates they a' are gane,
The prisoner's set on horseback hie;
And now wi' speid they've ta'en the gate,
While ilk ane jokes fu' wantonlie:

"O Jock! sae winsomely's ye ride,
Wi' baith your feet upon ae side;
Sae weel ye're harneist, and sae trig,
In troth ye sit like ony bride!"

The night, tho' wat, they did na mind,
But hied them on fu' merrilie,
Until they cam to Cholerford brae,^[179]
Where the water ran like mountains hie.

But when they cam to Cholerford,
There they'met with an auld man;
Says—"Honest man, will the water ride?
Tell us in haste, if that ye can."

"I wat weel no," quo' the gude auld man;
"I hae lived here threty years and thrie,
And I ne'er yet saw the Tyne sae big,
Nor running anes sae like a sea."

[223]

Then out and spak the Laird's saft Wat,
The greatest coward in the cumpanie;
"Now halt, now halt! we need na try't;

The day is come we a' maun die!"

"Puir faint-hearted thief!" cried the Laird's ain Jock,
"There'l nae man die but him that's fie;^[180]
I'll guide ye a' right safely thro';
Lift ye the pris'ner on ahint me."

Wi' that the water they hae ta'en,
By ane's and twa's they a' swam thro';
"Here are we a' safe," quo' the Laird's Jock,
"And, puir faint Wat, what think ye now?"

They scarce the other brae had won,
When twenty men they saw pursue;
Frae Newcastle toun they had been sent,
A' English lads baith stout and true.

But when the land-serjeant the water saw,
"It winna ride, my lads," says he;
Then cried aloud—"The prisoner take,
But leave the fetters, I pray, to me."

[224]

"I wat weel no," quo' the Laird's Jock;
"I'll keep them a'; shoon to my mare they'll be,
My gude bay mare—for I am sure,
She has bought them a' right dear frae thee."

Sae now they are on to Liddesdale,
E'en as fast as they could them hie;
The prisoner is brought to's ain fire side,
And there o's airns they mak him free.

"Now, Jock, my billie," quo' a' the three,
"The day is com'd thou was to die;
But thou's as weel at thy ain ingle side,
Now sitting, I think, 'twixt thee and me."

HOBBIE NOBLE.

We have seen the hero of this ballad act a distinguished part in the deliverance of Jock o' the Side, and are now to learn the ungrateful return which the Armstrongs made him for his faithful services.^[181] Halbert, or Hobbie Noble, appears to have been one of those numerous English outlaws, who, being forced to fly their own country, had established themselves on the Scottish borders. As Hobbie continued his depredations upon the English, they bribed some of his hosts, the [226] Armstrongs, to decoy him into England, under pretence of a predatory expedition. He was there delivered, by his treacherous companions, into the hands of the officers of justice, by whom he was conducted to Carlisle, and executed next morning. The laird of Mangerton, with whom Hobbie was in high favour, is said to have taken a severe revenge upon the traitors who betrayed him. The principal contriver of the scheme, called here Sim o' the Maynes, fled into England from the resentment of his chief; but experienced there the common fate of a traitor, being himself executed at Carlisle, about two months after Hobbie's death. Such is, at least, the tradition of Liddesdale. Sim o' the Maynes appears among the Armstrongs of Whitauch, in Liddesdale, in the list of clans so often alluded to.

[227]

Kershope-burn, where Hobbie met his treacherous companions, falls into the Liddel, from the English side, at a place called Turnersholm, where, according to tradition, turneys and games of chivalry were often solemnized. The Mains was anciently a border-keep, near Castletoun, on the north side of the Liddel, but is now totally demolished.

Askerton is an old castle, now ruinous, situated in the wilds of Cumberland, about seventeen miles north-east of Carlisle, amidst that mountainous and desolate tract of country, bordering upon Liddesdale, emphatically termed the Waste of Bewcastle. Conscouthart Green, and Rodric-haugh, and the Foulbogshiel, are the names of places in the same wilds, through which the

Scottish plunderers generally made their raids upon England; as appears from the following passage in a letter from William, Lord Dacre, to Cardinal Wolsey, 18th July, 1528; *Appendix to Pinkerton's Scotland*, v. 12, No. XIX. "Like it also your grace, seeing the disordour within Scotlaund, and that all the mys-guyded men, borderers of the same, inhabiting within Eskdale, Ewsdale, Walghopedale, Liddesdale, and a part of Tividale, foranempt Bewcastelldale, and a part of the middle marches of this the king's bordours, entres not this west and middle marches, to do any attemptate to the king our said soveraine's subjects: but thaye come throrow Bewcastelldale, and retornes, for the most part, the same waye agayne."

Willeva and Speir Edom are small districts in Bewcastledale, through [228] which also the Hartlie-burn takes its course.

Of the castle of Mangertoun, so often mentioned in these ballads, there are very few vestiges. It was situated on the banks of the Liddel, below Castletoun. In the wall of a neighbouring mill, which has been entirely built from the ruins of the tower, there is a remarkable stone, bearing the arms of the lairds of Mangertoun, and a long broad-sword, with the figures 1583; probably the date of building, or repairing, the castle. On each side of the shield are the letters S.A. and E.E. standing probably for Simon Armstrong, and Elizabeth Elliot. Such is the only memorial of the laird of Mangertoun, except those rude ballads, which the editor now offers to the public.

[229]

HOBBIE NOBLE.

Foul fa' the breast first treason bred in!
That Liddesdale may safely say:
For in it there was baith meat and drink,
And corn unto our geldings gay.

And we were a' stout-hearted men,

As England she might often say;
But now we may turn our backs and flee,
Since brave Noble is sold away.

Now Hobbie was an English man,
And born into Bewcastle dale;
But his misdeeds they were sae great,
They banish'd him to Liddesdale.

[230]

At Kershope foot the tryst was set,
Kershope of the lilye lee;
And there was traitor Sim o' the Mains,
And with him a private companie.

Then Hobbie has graithed his body fair,
Baith wi' the iron and wi' the steil;
And he has ta'en out his fringed grey,
And there, brave Hobbie, he rade him weel.

Then Hobbie is down the water gane,
E'en as fast as he could his;
Tho' a' should hae bursten and broken their hearts,
Frae that riding tryst he wad na be.

"Weel be ye met, my feres^[182] five!
And now, what is your will wi' me?"
Then they cried a', wi ae consent,
"Thou'rt welcome here, brave Noble, to me.

"Wilt thou with us into England ride,
And thy safe warrand we will be?
If we get a horse, worth a hundred pound,
Upon his back thou sune shalt be."

[231]

"I dare not by day into England ride;
The land-serjeant has me at feid:
"And I know not what evil may betide,

For Peter of Whitfield, his brother, is dead.

"And Anton Shiel he loves not me,
For I gat twa drifts o' his sheep;
The great Earl of Whitfield^[183] loves me not,
For nae geer frae me he e'er could keep.

"But will ye stay till the day gae down,
Untill the night come o'er the grund,
And I'll be a guide worth ony twa,
That may in Liddesdale be found.

"Tho' the night be black as pick and tar,
I'll guide ye o'er yon hill sae hie;
And bring ye a' in safety back,
If ye'll be true, and follow me."

He has guided them o'er moss and muir,
O'er hill and hope, and mony a down;
Until they came to the Foulbogshiel,
And there, brave Noble, he lighted down.

[232]

But word is gane to the land-serjeant,
In Askerton where that he lay—
"The deer, that ye hae hunted sae lang,
Is seen into the Waste this day."

"Then Hobbie Noble is that deer!
I wat he carries the style fu' hie;
Aft has he driven our bluidhounds back,
And set ourselves at little lee.

"Gar warn the bows of Hartlie-burn;
See they sharp their arrows on the wa':
Warn Willeva, and Speir Edom,
And see the morn they meet me a'.

"Gar meet me on the Rodric-haugh,
And see it be by break o' day;
And we will on to Conscouthart-green,
For there, I think, we'll get our prey."

Then Hobbie Noble has dreimt a dreim,
In the Foulbogshiel, where that he lay;
He dreimt his horse was aneath him shot,
And he himself got hard away.

[233]

The cocks could crawl, the day could daw,
And I wot sae even fell down the rain;
Had Hobbie na wakened at that time,
In the Foulbogshiel he had been ta'en or slain.

"Awake, awake, my feres five!
I trow here makes a fu' ill day;
Yet the worst cloak o' this company,
I hope, shall cross the Waste this day."

Now Hobbie thought the gates were clear;
But, ever alas! it was na sae:
They were beset by cruel men and keen,
That away brave Hobbie might na gae.

"Yet follow me, my feres five,
And see ye kelp of me guid ray;
And the worst cloak o' this company
Even yet may cross the Waste this day."

But the land-serjeant's men came Hobbie before,
The traitor Sim came Hobbie behin',
So had Noble been wight as Wallace was,
Away, alas! he might na win.

[234]

Then Hobbie had but a laddie's sword;
But he did mair than a laddie's deed;

For that sword had clear'd Conscouthart green,
Had it not broke o'er Jerswigham's head.

Then they hae ta'en brave Hobbie Noble,
Wi's ain bowstring they band him sae;
But his gentle heart was ne'er sae sair,
As when his ain five bound him on the brae.

They hae ta'en him on for west Carlisle;
They asked him, if he kend the way?
Tho' much he thought, yet little he said;
He knew the gate as weel as they.

They hae ta'en him up the Ricker-gate;
The wives they cast their windows wide:
And every wife to another can say,
"That's the man loosed Jock o' the Side!"

"Fy on ye, women! why ca' ye me man?
For it's nae man that I'm used like;
I am but like a forfoughen^[184] hound,
Has been fighting in a dirty syke."^[185]

[235]

They hae had him up thro' Carlisle toun,
And set him by the chimney fire;
They gave brave Noble a loaf to eat,
And that was little his desire.

They gave him a wheaten loaf to eat,
And after that a can of beer;
And they a' cried, with one consent,
"Eat, brave Noble, and make gude cheir!

"Confess my lord's horse, Hobbie," they said,
"And to-morrow in Carlisle thou's na die."
"How can I confess them," Hobbie says,
"When I never saw them with my e'e?"

Then Hobbie has sworn a fu' great aith,
Bi the day that he was gotten and born,
He never had ony thing o' my lord's,
That either eat him grass or corn.

"Now fare thee weel, sweet Mangerton!
For I think again I'll ne'er thee see:
I wad hae betrayed nae lad alive,
For a' the gowd o' Christentie.

[236]

"And fare thee weel, sweet Liddesdale!
Baith the hie land and the law;
Keep ye weel frae the traitor Mains!
For goud and gear he'll sell ye a'.

"Yet wad I rather be ca'd Hobbie Noble,
In Carlisle, where he suffers for his fau't,
Than I'd be ca'd the traitor Mains,
That eats and drinks o' the meal and maut."

[237]

NOTES ON HOBBIE NOBLE.

Aft has he driven our bluidhounds back.—P. 234. v. 2.

"The russet blood-hound wont, near Annand's stream,
"To trace the sly thief with avenging foot,
"Close as an evil conscience still at hand."

Our ancient statutes inform us, that the blood-hound, or sluith-hound (so called from its quality of tracing the slot, or track, of men and animals), was

early used in the pursuit and detection of marauders. *Nullus perturbet, aut impediat canem trassantem, aut homines trassantes cum ipso, ad sequendum latrones.*—*Regiam Majestatem*, Lib. 4tus, Cap. 32. And, so late as 1616, there was an order from the king's commissioners of the northern counties, that a certain number of slough-hounds should be maintained in every district of Cumberland, bordering upon Scotland. They were of great value, being sometimes sold for a hundred crowns. *Exposition of Bleau's Atlas, voce Nithsdale*. The breed of this sagacious animal, which could trace the human footstep with the most unerring accuracy, is now nearly extinct.

ARCHIE OF CA'FIELD.

It may perhaps be thought, that, from the near resemblance which this ballad bears to Kinmont Willie, and Jock o' the Side, the editor might have dispensed with inserting it in this collection. But, although the incidents in these three ballads are almost the same, yet there is considerable variety in the language; and each contains minute particulars, highly characteristic of border manners, which it is the object of this publication to illustrate. Ca'field, or Calfield, is a place in Wauchopdale, belonging of old to the Armstrongs. In the account betwixt the English and Scottish marches, Jock and Geordie of Ca'field, there called Calfhill, are repeatedly marked as delinquents.—*History of Westmoreland and Cumberland*, Vol. I. *Introduction*, p. 33. "*Mettled John Hall, from the laigh Tiviotdale*," is perhaps John Hall of Newbigging, mentioned in the list of border clans, as one of the chief men of name residing on the [239] middle marches in 1597. The editor has been enabled to add several stanzas to this ballad, since publication of the first edition. They were obtained from recitation; and, as they contrast the brutal indifference of the elder brother with the zeal and spirit of his associates, they add considerably to the dramatic effect of the whole.

ARCHIE OF CA'FIELD.

As I was a walking mine alane,
It was by the dawning of the day,
I heard twa brithers make their mane,
And I listened weel to what they did say.

The youngest to the eldest said,
"Blythe and merrie how can we be?
There were three brithren of us born,
And ane of us is condemned to die."

"An' ye wad be merrie, an' ye wad be sad,
What the better wad billie Archie be?
Unless I had thirty men to mysell,
And a' to ride in my cumpanie.

[241]

"Ten to hald the horses' heads,
And other ten the watch to be,
And ten to break up the strong prison,
Where billy^[186] Archie he does lie."

Then up and spak him mettled John Hall,
(The luve of Teviotdale aye was he)
"An' I had eleven men to mysell,
Its aye the twalt man I wad be."

Then up bespak him coarse Ca'field,
(I wot and little gude worth was he)
"Thirty men is few anew,
And a' to ride in our cumpanie."

There was horsing, horsing in haste,
And there was marching on the lee;

Until they cam to Murraywhate,
And they lighted there right speedilie.

"A smith! a smith!" Dickie he cries,
"A smith, a smith, right speedilie,
To turn back the caukers of our horses' shoon!
For its unkensoome^[187] we wad be."

[242]

"There lives a smith on the water side,
Will shoe my little black mare for me;
And I've a crown in my pocket,
And every groat of it I wad gie."

"The night is mirk, and its very mirk,
And by candle light I canna weel see;
The night is mirk, and its very pit mirk,
And there will never a nail ca' right for me."

"Shame fa' you and your trade baith,
Canna beet^[188] a gude fellow by your myster^[189]
But leez me on thee, my little black mare,
Thou's worth thy weight in gold to me."

There was horsing, horsing in haste,
And there was marching upon the lee;
Until they cam to Dumfries port,
And they lighted there right speedilie.

"There's five of us will hold the horse,
And other five will watchmen be:
But wha's the man, amang ye a',
Will gae to the Tolbooth door wi' me?"

[243]

O up then spak him mettled John Hall,
(Frae the laigh Tiviotdale was he)
"If it should cost my life this very night,
I'll gae to the Tolbooth door wi' thee."

"Be of gude cheir, now, Archie, lad!
Be of gude cheir, now, dear billie!
Work thou within, and we without,
And the mom thou'se dine at Ca'field wi' me."

O Jackie Hall stepped to the door,
And he bended low back his knee;
And he made the bolts, the door hang on,
Loup frae the wa' right wantonlie.

He took the prisoner on his back,
And down the Tolbooth stair cam he;
The black mare stood ready at the door,
I wot a foot ne'er stirred she.

They laid the links out ower her neck,
And that was her gold twist to be;^[190]
And they cam down thro' Dumfries toun,
And wow but they cam speedilie.

[244]

The live long night these twelve men rade,
And aye till they were right wearie,
Until they cam to the Murraywhate,
And they lighted there right speedilie.

"A smith! a smith!" then Dickie he cries;
"A smith, a smith, right speedilie,
To file the irons frae my dear brither!
For forward, forward we wad be,"

They had na filed a shackle of iron,
A shackle of iron but barely thrie,
When out and spak young Simon brave,
"O dinna ye see what I do see?"

"Lo! yonder comes Lieutenant Gordon,

Wi' a hundred men in his cumpanie;
This night will be our lyke-wake night,
The morn the day we a' maun die,"

O there was mounting, mounting in haste,
And there was marching upon the lee;
Until they cam to Annan water,
And it was flowing like the sea.

[245]

"My mare is young and very skeigh,^[191]
And in o' the weil^[192] she will drown me;
But ye'll take mine, and I'll take thine,
And sune through the water we sall be."

Then up and spak him, coarse Ca'field,
(I wot and little gude worth was he)
"We had better lose are than lose a' the lave;
We'll lose the prisoner, we'll gae free."

"Shame fa' you and your lands baith!
Wad ye e'en^[193] your lands to your born billy?
But hey! bear up, my bonnie black mare,
And yet thro' the water we sall be."

Now they did swim that wan water,
And wow but they swam bonilie!
Until they cam to the other side,
And they wrang their cloathes right drunkily.

"Come thro', come thro', Lieutenant Gordon!
Come thro' and drink some wine wi' me!
For there is an ale-house here hard by,
And it shall not cost thee ae penny."

[246]

"Throw me my irons," quo' Lieutenant Gordon;
"I wot they cost me dear aneugh."
"The shame a ma," quo' mettled John Ha',

"They'll be gude shackles to my pleugh."

"Come thro', come thro', Lieutenant Gordon!
Come thro' and drink some wine wi' me!
Yestreen I was your prisoner,
But now this morning am I free."

ARMSTRONG'S GOODNIGHT.

The following verses are said to have been composed by one of the ARMSTRONGS, executed for the murder of Sir JOHN CARMICHAEL of Edrom, warden of the middle marches, (See p. 165.) The tune is popular in Scotland; but whether these are the original words, will admit of a doubt.

This night is my departing night,
For here nae langer must I stay;
There's neither friend nor foe o' mine,
But wishes me away.

What I have done thro' lack of wit,
I never, never, can recall;
I hope ye're a' my friends as yet;
Goodnight and joy be with you all!

THE FRAY OF SUPORT.

AN ANCIENT BORDER GATHERING SONG FROM TRADITION.

Of all the border ditties, which have fallen into the editor's hands, this is by far the most uncouth and savage. It is usually chaunted in a sort of wild recitative, except the burden, which swells into a long and varied howl, not unlike to a view hollo'. The words, and the very great irregularity of the stanza (if it deserves the name), sufficiently point out its intention and origin. An English woman, residing in Suport, near the foot of the Kershope, having been plundered in the night by a band of the Scottish moss-troopers, is supposed to convoke her servants and friends for the pursuit, or *Hot Trod*; upbraiding them, at the same time, in homely phrase, for their negligence and security. The *Hot Trod* was followed by the persons who had lost goods, with blood-hounds and horns, to raise [249] the country to help. They also used to carry a burning wisp of straw at a spear head, and to raise a cry, similar to the Indian war-whoop. It appears, from articles made by the wardens of the English marches, September 12th, in 6th of Edward VI. that all, on this cry being raised, were obliged to follow the fray, or chace, under pain of death. With these explanations, the general purport of the ballad may be easily discovered, though particular passages have become inexplicable, probably through corruptions introduced by reciters. The present copy is corrected from four copies, which differed widely from each other.

[250]

THE FRAY OF SUPORT.

Sleep'ry Sim of the Lamb-hill,
And snoring Jock of Suport-mill,
Ye are baith right het and fou';—
But my wae wakens na you.
Last night I saw a sorry sight—
Nought left me, o' four-and-twenty gude ousen and ky,
My weel-ridden gelding, and a white quey,
But a toom byre and a wide,
And the twelve nogs^[194] on ilka side.
 Fy lads! shout a' a' a' a' a',
 My gear's a' gane.

[251]

Weel may ye ken,
Last night I was right scarce o' men:
But Toppet Hob o' the Mains had guesten'd in my
house by chance;
I set him to wear the fore-door wi' the speir, while I
kept the back door wi' the lance;
But they hae run him thro' the thick o' the thie, and
broke his knee-pan,
And the mergh^[195] o' his shin bane has run down on his
spur leather whang:
He's lame while he lives, and where'er he may gang.
 Fy lads! shout a' a' a' a' a',
 My gear's a' gane.

But Peenye, my gude son, is out at the Hagbut-head,
His e'en glittering for anger like a fierye gleed;
Crying—"Mak sure the nooks
Of Maky's-muir crooks;
For the wily Scot takes by nooks, hooks, and crooks.
Gin we meet a' together in a head the morn,
We'll be merry men."
 Fy lads! shout a' a' a' a' a'
 My gear's a' gane.

[252]

There's doughty Cuddy in the Heugh-head,
Thou was aye gude at a' need:
With thy brock-skin bag at thy belt,
Ay ready to mak a puir man help.
Thou maun awa' out to the cauf-craigs,
(Where anes ye lost your ain twa naigs)
And there toom thy brock-skin bag.
 Fy lads! shout a' a' a' a' a',
 My gear's a' taen.

Doughty Dan o' the Houlet Hirst,
Thou was aye gude at a birst:
Gude wi' a bow, and better wi' a speir,
The bauldest march-man, that e'er followed gear;
Come thou here.
 Fy lads! shout a' a' a' a' a',
 My gear's a' gane.

Rise, ye carle coopers, frae making o' kirns and tubs,
In the Nicol forest woods.
Your craft has na left the value of an oak rod,
But if you had had ony fear o' God,
Last night ye had na slept sae sound,
And let my gear be a' ta'en.
 Fy lads! shout a' a' a' a' a',
 My gear's a' ta'en.

[253]

Ah! lads, we'll fang them a' in a net!
For I hae a' the fords o' Liddel set;
The Dunkin, and the Door-loup,
The Willie-ford, and the Water-slack,
The Black-rack and the Trout-dub o' Liddel;
There stands John Forster wi' five men at his back,
Wi' bufft coat and cap of steil:
Boo! ca' at them e'en, Jock;
That ford's sicker, I wat weil.
 Fy lads! shout a' a' a' a' a',

My gear's a' ta'en.

Hoo! hoo! gar raise the Reid Souter, and Ringan's Wat,
Wi' a broad elshin and a wicker;
I wat weil they'll mak a ford sicker.
Sae whether they be Elliots or Armstrangs,
Or rough riding Scots, or rude Johnstones,
Or whether they be frae the Tarras or Ewsdale,
They maun turn and fight, or try the deeps o' Liddel.
 Fy lads! shout a' a' a' a' a',
 My gear's a' ta'en.

"Ah! but they will play ye another jig,
For they will out at the big rig,
[254] And thro' at Fargy Grame's gap."
"But I hae another wile for that:
For I hae little Will, and stalwart Wat,
And lang Aicky, in the Souter moor,
Wi' his sleuth dog sits in his watch right sure:
Shou'd the dog gie a bark,
He'll be out in his sark,
And die or won.
 Fy lads! shout a' a' a' a' a',
 My gear's a' ta'en.

Ha! boys—I see a party appearing—wha's yon!
Methinks it's the captain of Bewcastle, and Jephtha's
John,
Coming down by the foul steps of Catlowdie's loan:
They'll make a sicker, come which way they will.
 Ha lads! shout a' a' a' a' a',
 My gear's a' ta'en.

Captain Musgrave, and a' his band,
Are coming down by the Siller-strand,
And the muckle toun-bell o' Carlisle is rung:
My gear was a' weel won,

And before it's carried o'er the border, mony a man's
gae down.

Fy lads! shout a' a' a' a' a',
My gear's a gane.

[255]

NOTES ON THE FRAY OF SUPORT.

And there, toom thy brock-skin bag.—P. 254. v. 1.

The badger-skin pouch was used for carrying ammunition.

In the Nicol forest woods.—P. 254. v. 3.

A wood in Cumberland, in which Suport is situated.

For I hae a' the fords o' Liddel set.—P. 255. v. 1.

Watching fords was a ready mode of intercepting the marauders; the names of the most noted fords upon the Liddel are recited in this verse.

And thro' at Fargy Grame's gap.—P. 256. v. 1.

Fergus Grame of Sowport, as one of the chief men of that clan, became security to Lord Scroope for the good behaviour of his friends and dependants, 8th January, 1602.—*Introduction to History of Westmoreland and Cumberland*, p. 111.

Wi' his sleuth dog sits in his watch right sure.—P. 256. v. 1.

The centinels, who, by the march laws, were planted upon the border each night, had usually sleuth-dogs, or blood-hounds, along with [256] them.—See *Nicolson's Border Laws*, and *Lord Wharton's Regulations*, in the 6th of Edward VI.

Of the blood-hound we have said something in the notes on *Hobbie Noble*; but we may, in addition, refer to the following poetical description of the qualities and uses of that singular animal:

—Upon the banks
Of Tweed, slow winding thro' the vale, the seat
Of war and rapine once, ere Britons knew
The sweets of peace, or Anna's dread commands
To lasting leagues the haughty rivals awed,
There dwelt a pilfering race; well trained and skill'd
In all the mysteries of theft, the spoil
Their only substance, feuds and war their sport.
Not more expert in every fraudulent art
The arch felon was of old, who by the tail
Drew back his lowing prize: in vain his wiles,
In vain the shelter of the covering rock,
In vain the sooty cloud, and ruddy flames,
That issued from his mouth; for soon he paid
His forfeit life: a debt how justly due
To wronged Alcides, and avenging Heaven!

Veil'd in the shades of night, they ford the stream;
Then, prowling far and near, whate'er they seize
Becomes their prey; nor flocks nor herds are safe,
Nor stalls protect the steer, nor strong barr'd doors
Secure the favourite horse. Soon as the morn
Reveals his wrongs, with ghastly visage wan
The plunder'd owner stands, and from his lips
A thousand thronging curses burst their way.
He calls his stout allies, and in a line
His faithful hound he leads; then, with a voice
That utters loud his rage, attentive cheers.
Soon the sagacious brute, his curling tail
Flourish'd in air, low bending, plies around
His busy nose, the steaming vapour snuffs
Inquisitive, nor leaves one turf untried;

[257] Till, conscious of the recent stains, his heart
Beats quick, his snuffling nose, his active tail,

Attest his joy; then, with deep-opening mouth
That makes the welkin tremble, he proclaims
The audacious felon; foot by foot he marks
His winding way, while all the listening crowd
Applaud his reasonings. O'er the watery ford,
Dry sandy heaths, and stony barren hills,
O'er beaten tracks, with men and beast distain'd,
Unerring he pursues; till, at the cot
Arrived, and seizing by his guilty throat
The caitiff vile, redeems the captive prey:
So exquisitely delicate his sense!

SOMERVILLE'S *Chase*.

Methinks it's the Captain of Newcastle, &c.

Coming down by the foul steps of Catlowdie's loan.—P. 256. v. 2.

According to the late Glenriddell's notes on this ballad, the office of captain of Bewcastle was held by the chief of the Nixons.

Catlowdie is a small village in Cumberland, near the junction of the Esk and Liddel.

Captain Musgrave and a' his band.—P. 256. v. 3.

This was probably the famous Captain Jack Musgrave, who had charge of the watch along the Cryssop, or Kershope, as appears from the order of the watches appointed by Lord Wharton, when deputy-warden-general, in 6th Edward VI.

LORD MAXWELL'S GOODNIGHT.

NEVER BEFORE PUBLISHED.

This beautiful ballad is published from a copy in Glenriddel's MSS., with some slight variations from tradition. It alludes to one of the most remarkable feuds upon the west marches.

A.D. 1585, John, Lord Maxwell, or, as he styled himself, Earl of Morton, having quarrelled with the Earl of Arran, reigning favourite of James VI., and fallen, of course, under the displeasure of the court, was denounced rebel. A commission was also given to the laird of Johnstone, then warden of the west-marches, to pursue and apprehend the ancient rival and enemy of his house. Two bands of mercenaries, commanded by Captains Cranstoun and Lammie, who were sent from Edinburgh to support Johnstone, were attacked and cut to pieces at Crawford-muir by Robert Maxwell, natural brother to the [259] chieftain;^[196] who, following up his advantage, burned Johnstone's castle of Lochwood, observing, with savage glee, that he would give Lady Johnstone light enough by which to "set her hood." In a subsequent conflict, Johnstone himself was defeated, and made prisoner, and is said to have died of grief at the disgrace which he sustained.—See *Spottiswoode and Johnstone's Histories*, and *Moyse's Memoirs*, *ad annum* 1585.

By one of the revolutions, common in those days, Maxwell was soon after restored to the king's favour, in his turn, and obtained the wardenry of the west marches. A bond of alliance was subscribed by him, and by Sir James Johnstone, and for some time the two clans lived in harmony. In the year 1593, however, the hereditary feud was revived, on the following occasion: A band of marauders, of the clan Johnstone, drove a prey of cattle from the lands belonging to the lairds of Crichton, Sanquhar, and Drumlanrig; and defeated, with slaughter, the pursuers, who attempted to rescue their property.—[See the following *Ballad and Introduction*.] The injured parties,

being apprehensive that Maxwell would not cordially embrace their cause, on account of his late reconciliation with the [260] Johnstones, endeavoured to overcome his reluctance, by offering to enter into bonds of manrent, and so to become his followers and liegemen; he, on the other hand, granting to them a bond of maintenance, or protection, by which he bound himself, in usual form, to maintain their quarrel against all mortals, saving his loyalty. Thus, the most powerful and respectable families in Dumfries-shire became, for a time, the vassals of Lord Maxwell. This secret alliance was discovered to Sir James Johnstone by the laird of Cummertrees, one of his own clan, though a retainer to Maxwell. Cummertrees even contrived to possess himself of the bonds of manrent, which he delivered to his chief. The petty warfare betwixt the rival barons was instantly renewed. Buccleuch, a near relation of Johnstone, came to his assistance with his clan, "the most renowned freebooters (says a historian), the fiercest and bravest warriors, among the border tribes"^[197] With Buccleuch also came the Elliots, Armstrongs, and Graemes. Thus reinforced, Johnstone surprised and cut to pieces a party of the Maxwells, stationed at Lochmaben. On the other hand, Lord Maxwell, armed with the royal authority, and numbering among his followers all the barons of Nithesdale, displayed his banner as the king's lieutenant, and invaded Annandale, at the head of 2000 men. In [261] those days, however, the royal auspices to have carried as little good fortune as effective strength with them. A desperate conflict, still renowned in tradition, took place at the Dryffe sands, not far from Lockerby, in which Johnstone, although inferior in numbers, partly by his own conduct, partly by the valour of his allies, gained a decisive victory. Lord Maxwell, a tall man, and heavily armed, was struck from his horse in the flight, and cruelly slain, after the hand, which he stretched out for quarter, had been severed from his body. Many of his followers were slain in the battle, and many cruelly wounded; especially by slashes in the face, which wound was thence termed a "*Lockerby lick*." The barons of Lag, Closeburn, and Drumlanrig, escaped by the fleetness of their horses; a circumstance alluded to in the following ballad.

This fatal battle was followed by a long feud, attended with all the circumstances of horror, proper to a barbarous age. Johnstone, in his diffuse manner, describes it thus: "*Ab eo die ultro citroque in Annandia et Nithia magnis utriusque regionis jacturis certatum. Caedes, incendia, rapinae, et*

nefanda facinora; liberi in maternis gremiis trucidati; mariti in conspectu conjugum suarum, incensae villae lamentabiles ubique querimoniae et horribiles armorum fremitus." JOHNSTONI *Historia*, Ed. Amstael. p. 182.

John, Lord Maxwell, with whose *Goodnight* the reader is here presented, was son to him who fell at the battle of Dryffe Sands, [262] and is said to have early vowed the deepest revenge for his father's death. Such, indeed, was the fiery and untameable spirit of the man, that neither the threats nor entreaties of the king himself could make him lay aside his vindictive purpose; although Johnstone, the object of his resentment, had not only reconciled himself to the court, but even obtained the wardenry of the middle-marches, in room of Sir John Carmichael, murdered by the Armstrongs. Lord Maxwell was therefore prohibited to approach the border counties; and having, in contempt of that mandate, excited new disturbances, he was confined in the castle of Edinburgh. From this fortress, however, he contrived to make his escape; and, having repaired to Dumfries-shire, he sought an amicable interview with Johnstone, under pretence of a wish to accommodate their differences. Sir Robert Maxwell, of Orchardstane (mentioned in the Ballad, verse 1.), who was married to a sister of Sir James Johnstone, persuaded his brother-in-law to accede to Maxwell's proposal. The two chieftains met, each with a single attendant, at a place called Achmanhill, 6th April, 1608. A quarrel arising betwixt the two gentlemen who attended them (Charles Maxwell, brother to the laird of Kirkhouse, and Johnstone of Lockerby), and a pistol being discharged, Sir James turned his horse to separate the combatants; at which instant Lord Maxwell shot him through the back with a brace of bullets, of which wound he died on the spot, after having for some [263] time gallantly defended himself against Maxwell, who endeavoured to strike him with his sword. "A fact," saith Spottiswoode, "detested by all honest men, and the gentleman's misfortune severely lamented, for he was a man full of wisdom and courage."—SPOTTISWOODE, *Edition* 1677, *pages* 467, 504. JOHNSTONI *Historia*, Ed. Amstael. pp. 254, 283, 449.

Lord Maxwell, the murderer, made his escape to France; but, having ventured to return to Scotland, he was apprehended lurking in the wilds of Caithness, and brought to trial at Edinburgh. The royal authority was now much strengthened by the union of the crowns, and James employed it in staunching the feuds of the nobility, with a firmness which was no attribute

of his general character. But, in the best actions of that monarch, there seems to have been an unfortunate tincture of that meanness, so visible on the present occasion. Lord Maxwell was indicted for the murder of Johnstone; but this was combined with a charge of *fire-raising*, which, according to the ancient Scottish law, if perpetrated by a landed man, constituted a species of treason, and inferred forfeiture. Thus, the noble purpose of public justice was sullied, by being united with that of enriching some needy favourite. John, Lord Maxwell, was condemned, and beheaded, 21st May, 1613. Sir Gideon Murray, treasurer-depute, had a great share of his forfeiture; but the attainder was afterwards reversed, and the honours and estate were conferred upon the brother of the deceased.—LAING'S *History of Scotland*, Vol. I. p. 62.—JOHNSTONI *Historia*, p. 493.

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The lady, mentioned in the ballad, was sister to the Marquis of Hamilton, and, according to Johnstone the historian, had little reason to regret being separated from her husband, whose harsh treatment finally occasioned her death. But Johnstone appears not to be altogether untinctured with the prejudices of his clan, and is probably, in this instance, guilty of exaggeration; as the active share, taken by the Marquis of Hamilton in favour of Maxwell, is a circumstance inconsistent with such a report.

Thus was finally ended, by a salutary example of severity, the "foul debate" betwixt the Maxwells and Johnstones, in the course of which each family lost two chieftains; one dying of a broken heart, one in the field of battle, one by assassination, and one by the sword of the executioner.

It seems reasonable to believe, that the following ballad must have been written before the death of Lord Maxwell, in 1613; otherwise there would have been some allusion to that event. It must therefore have been composed betwixt 1608 and that period.

[265]

LORD MAXWELL'S GOODNIGHT.

Adieu, madame, my mother dear,
But and my sisters three!
Adieu, fair Robert of Orchardstane!
My heart is wae for thee.
Adieu, the lily and the rose,
The primrose fair to see:
Adieu, my ladie, and only joy!
For I may not stay with thee.

"Though I hae slain the Lord Johnstone,
What care I for their feid?
My noble mind their wrath disdains:
He was my father's deid.
Both night and day I laboured oft
Of him avenged to be;
But now I've got what lang I sought,
And I may not stay with thee.

[266]

"Adieu! Drumlanrig, false wert aye,
And Closeburn in a Land!
The laird of Lag, frae my father that fled,
When the Johnston struck aff his hand.
They were three brethren in a band—
Joy may they never see!
Their treacherous art, and cowardly heart,
Has twin'd my love and me,

Adieu! Dumfries, my proper place,
But and Carlaverock fair!
Adieu! my castle of the Thrieve,
Wi' a my buildings there:
Adieu! Lochmaben's gates sae fair,
The Langholm-holm where birks there be;
Adieu! my ladye, and only joy,
For, trust me, I may not stay wi' thee,

"Adieu! fair Eskdale up and down,
Where my puir friends do dwell;
The bangisters^[198] will ding them down,
And will them sair compell.
But I'll avenge their feid mysell,
When I come o'er the sea;
Adieu! my ladye, and only joy,
For I may not stay wi' thee."

[267]

"Lord of the land!"—that ladye said,
"O wad ye go wi' me,
Unto my brother's stately tower,
Where safest ye may be!
There Hamiltons and Douglas baith,
Shall rise to succour thee."
"Thanks for thy kindness, fair my dame,
But I may not stay wi' thee."

Then he tuik aff a gay gold ring,
Thereat hang signets three;
"Hae, take thee that, mine ain dear thing,
And still hae mind o' me;
But, if thou take another lord,
Ere I come ower the sea—
His life is but a three day's lease,
Tho' I may not stay wi' thee."

The wind was fair, the ship was clear,
That good lord went away;
And most part of his friends were there,
To give him a fair convey.
They drank the wine, they did na spair,
Even in that gude lord's sight—
Sae now he's o'er the floods sae gray,
And Lord Maxwell has ta'en his Goodnight.

NOTES ON LORD MAXWELL'S GOODNIGHT.

Adieu! Drumlanrig, &c..—P. 268. v. 1.

The reader will perceive, from the Introduction, what connection the bond, subscribed by Douglas of Drumlanrig, Kirkpatrick of Closeburn, and Grierson of Lagg, had with the death of Lord Maxwell's father. For the satisfaction of those, who may be curious as to the form of these bonds, I have transcribed a letter of manrent,^[199] from a MS. collection of upwards of twenty deeds of that nature, copied from the originals by the late John Syme, Esq. writer to the signet; for the use of which, with many other favours of a similar nature, I am indebted to Dr. Robert Anderson of Edinburgh. The bond is granted by Thomas Kirkpatrick of Closeburn, to Robert, Lord Maxwell, father of him who was slain at the battle of the Dryffe Sands.

BOND OF MANRENT.

"Be it kend till all men be thir present lettres, me Thomas Kirkpatrick of Closburn, to be bundin and oblist, and be the tenor heirof, bindis and oblissis me be the faith and treuth of my body, in manrent and service to ane nobil and mychty lord, Robert Lord Maxwell, induring all the dayis of my lyfe; and byndis and oblissis me, as said is, to be leill and trew man and servand to the said Robert Lord Maxwell, my master, and sall nowthir heir nor se his skaith, but sall lat the samyn at my uter power, an warn him therof. And I sall conceill it that the said lord schawis to me, and sall gif him agane the best leill and trew counsale that I can, quhen he ony askis at me; and that I sall ryde with my kin, freyndis, servandis, and allies, that wil do for me, or to gang with the said lord; and do to him aefauld, trew, and thankful service, and take aefauld playne part with the said lord, my maister, in all and sindry his

actionis, causis, querrellis, leful and honest, movit, or to be movit be him, or aganis him, baith in peace and weir, contrair or aganis all thae that leiffes or de may (my allegeant to owr soveran ladye the quenis grace, her tutor and governor, allanerly except). And thir my lettres of manrent, for all the dayis of my life foresaid to indure, all dissimulations, fraud, or gyle, secludit and away put. In witness, &c." The deed is signed at Edinburgh, 3d February, 1542.

In the collection, from which this extract is made, there are bonds of a similar nature granted to Lord Maxwell, by Douglas of Drumlanrig, ancestor of the Duke of Queensberry; by Crichton Lord Sanquhar, ancestor of the earls of Dumfries, and many of his kindred; by Stuart of Castlemilk; by Stuart of Garlies, ancestor of the earls of Galloway; by Murray of Cockpool, ancestor of the Murrays, lords Annandale; by Grierson of Lagg, Gordon of Lochmaben, and many other of the most ancient and respectable barons in the south-west of Scotland, binding themselves, in the most submissive terms, to become the liegemen and the vassals of the house of Maxwell; a circumstance which [270] must highly excite our idea of the power of that family. Nay, even the rival chieftain, Johnstone of Johnstone, seems at one time to have come under a similar obligation to Maxwell, by a bond, dated 11th February 1528, in which reference is made to the counter-obligation of the patron, in these words: "Forasmeikle as the said lord has oblist him to supple, maintene, and defend me, in the peciabill brouking and joysing of all my landis, rentis, &c. and to take my aefald, leill and trew part, in all my good actionis, causis, and quarles, leiful and honest, aganes all deedlie, his alledgeance to our soveraigne lord the king allanerly excepted, as at mair length is contained in his lettres of maintenance maid to me therupon; therefore, &c." he proceeds to bind himself as liegeman to the Maxwell.

I cannot dismiss the subject without observing, that, in the dangerous times of Queen Mary, when most of these bonds are dated, many barons, for the sake of maintaining unanimity and good order, may have chosen to enroll themselves among the clients of Lord Maxwell, then warden of the border, from which, at a less turbulent period, personal considerations would have deterred them.

Adieu! my castle of the Thrieve.—P. 268. v. 2.

This fortress is situated in the stewartry of Kirkcudbright, upon an island about two acres in extent, formed by the river Dee. The walls are very thick and strong, and bear the marks of great antiquity. It was a royal castle; but the keeping of it, agreeable to the feudal practice, was granted by charter, or sometimes by a more temporary and precarious right, to different powerful families, together with lands for their good service in maintaining and defending the place. This office of heritable keeper remained with the Nithesdale family (chief of the Maxwells) till their forfeiture, 1715. The garrison seems to have been victualled upon feudal principles; for each parish in the stewartry was burdened with the yearly payment of a *lardner mart cow*, i.e. a cow fit for being killed and salted at Martinmas, for winter provisions. The right of levying these cattle was retained by [271] the Nithesdale family, when they sold the castle and estate, in 1704, and they did not cease to exercise it till their attainder.—*Fountainhall's Decisions*, Vol. I. p. 688.

This same castle of the Thrieve was, A.D. 1451-2, the scene of an outrageous and cruel insult upon the royal authority. The fortress was then held by William VIII. Earl of Douglas, who, in fact, possessed a more unlimited authority over the southern districts of Scotland, than the reigning monarch. The earl had, on some pretence, seized and imprisoned a baron, called Maclellan, tutor of Bombie, whom he threatened to bring to trial, by his power of hereditary jurisdiction. The uncle of this gentleman, Sir Patrick Gray of Foulis, who commanded the body-guard of James II., obtained from that prince a warrant, requiring from Earl Douglas the body of the prisoner. When Gray appeared, the earl instantly suspected his errand. "You have not dined," said he, without suffering him to open his commission: "it is ill talking between a full man and a fasting." While Gray was at meat, the unfortunate prisoner was, by Douglas's command, led forth to the courtyard and beheaded. When the repast was finished, the king's letter was presented and opened. "Sir Patrick," says Douglas, leading Gray to the court, "right glad had I been to honour the king's messenger; but you have come too late. Yonder lies your sister's son, without the head: you are welcome to his dead body." Gray, having mounted his horse, turned to the earl, and expressed his wrath in a deadly oath, that he would requite the injury with Douglas's heart's blood.—"To horse!" cried the haughty baron, and the messenger of his prince was pursued till within a few miles of

Edinburgh. Gray, however, had an opportunity of keeping his vow; for, being upon guard in the king's anti-chamber at Stirling, when James, incensed at the insolence of the earl, struck him with his dagger, Sir Patrick rushed in, and dispatched him with a pole-axe. The castle of Thrieve was the last of the fortresses which held out for the house of Douglas, after [272] their grand rebellion in 1553. James II. writes an account of the exile of this potent family, to Charles VII. of France, 8th July, 1555; and adds, that all their castles had been yielded to him, *Excepto duntaxat castro de Trefe, per nostres fideles impraesentiarum obsessio; quod domino concedente in brevi obtinere speramus.*—*Pinkerton's History, Appendix, Vol. I. p. 486.*—See *Pitscottie's History, Godscroft, &c.*

And most part of his friends were, there,—P. 269. v. 3. The ancestor of the present Mr. Maxwell of Broomholm is particularly mentioned in Glenriddell's MS. as having attended his chieftain in his distress, and as having received a grant of lands, in reward of this manifestation of attachment.

Sae now he's o'er the floods sae gray.—P. 269. v. 3.

This seems to have been a favourite epithet in old romances, Thus in *Hornchilde*, and *Maiden Rimuuld*,

Thai sayled ower the *flode so gray*,
In Ingland arrived were thay,
Ther him levest ware.

THE LADS OF WAMPHRAY.

The reader will find, prefixed to the foregoing ballad, an account of the noted feud betwixt the families of Maxwell and Johnstone. The following song celebrates the skirmish, in 1593, betwixt the Johnstones and Crichtons, which led to the revival of the ancient quarrel betwixt Johnstone and Maxwell, and finally to the battle of Dryffe Sands, in which the latter lost his life. Wamphray is the name of a parish in Annandale. Lethenhall was the abode of Johnstone of Wamphray, and continued to be so till of late years. William Johnstone of Wamphray, called the *Galliard*, was a noted freebooter. A place, near the head of Tiviotdale, retains the name of the *Galliard's Faulds*, (folds) being a valley where he used to secrete and divide his spoil, with his Liddesdale and Eskdale associates. His *nom de guerre* seems to have been derived from the dance called *The Galliard*. The word is still used in [274] Scotland, to express an active, gay, dissipated character. [200] Willie of the Kirkhill, nephew to the Galliard, and his avenger, was also a noted border robber. Previous to the battle of Dryffe Sands, so often mentioned, tradition reports, that Maxwell had offered a ten-pound-land to any of his party, who should bring him the head or hand of the laird of Johnstone. This being reported to his antagonist, he answered, he had not a ten-pound-land to offer, but would give a five-merk-land to the man who should that day cut off the head or hand of Lord Maxwell. Willie of the Kirkhill, mounted upon a young gray horse, rushed upon the enemy, and earned the reward, by striking down their unfortunate chieftain, and cutting off his right hand.

Leverhay, Stefenbiggin, Girth-head, &c. are all situated in the parish of Wamphray. The Biddes-burn, where the skirmish took place betwixt the Johnstones and their pursuers, is a rivulet which takes its course among the mountains on the confines of Nithesdale and Annandale. The Wellpath is a pass by which the Johnstones were retreating to their fastnesses in Annandale. Ricklaw-holm is a place upon the Evan water, [275] which falls into the Annan, below Moffat. Wamphray-gate was in these days an ale-

house. With these local explanations, it is hoped the following ballad will be easily understood.

From a pedigree in the appeal case of Sir James Johnstone of Westeraw, claiming the honours and titles of Annandale, it appears that the Johnstones of Wamphray were descended from James, sixth son of the sixth baron of Johnstone. The male line became extinct in 1657.

[276]

THE LADS OF WAMPHRAY.

'Twixt Girth-head and the Langwood end,
Lived the Galliard, and the Galliard's men;
But and the lads of Leverhay,
That drove the Crichtons' gear away.

It is the lads of Lethenha',
The greatest rogues amang them a':
But and the lads of Stefenbiggin,
They broke the house in at the rigging.

The lads of Fingland, and Hellbeck-hill,
They were never for good, but aye for ill;
'Twixt the Staywood-bush and Langside-hill,
They stealed the broked cow and the branded bull.

[277]

It is the lads of the Girth-head,
The deil's in them for pride and greed;
For the Galliard, and the gay Galliard's men,
They ne'er saw a horse but they made it their ain.

The Galliard to Nithside is gane,
To steal Sim Crichton's winsome dun;

The Galliard is unto the stable gane,
But instead of the dun, the blind he has ta'en.

"Now Simmy, Simmy of the Side,
Come out and see a Johnstone ride!
Here's the bonniest horse in a' Nithside,
And a gentle Johnstone aboon his hide."

Simmy Crichton's mounted then,
And Crichtons has raised mony a ane;
The Galliard trowed his horse had been wight,
But the Crichtons beat him out o' sight.

As soon as the Galliard the Crichton saw,
Behind the saugh-bush he did draw;
And there the Crichtons the Galliard hae ta'en,
And nane wi' him but Willie alane.

[278]

"O Simmy, Simmy, now let me gang,
And I'll nevir mair do a Crichton wrang!
O Simmy, Simmy, now let me be,
And a peck o' gowd I'll give to thee!

O Simmy, Simmy, now let me gang,
And my wife shall heap it with her hand."
But the Crichtons wad na let the Galliard be,
But they hanged him hie upon a tree.

O think then Willie he was right wae,
When he saw his uncle guided sae;
"But if ever I live Wamphray to see,
My uncle's death avenged shall be!"

Back to Wamphray he is gane,
And riders has raised mony a ane;
Saying—"My lads, if ye'll be true,
Ye shall a' be clad in the noble blue."

Back to Nithisdale they have gane,
And awa' the Crichtons' nowt hae ta'en;
But when they cam to the Wellpath-head,
The Crichtons bade them 'light and lead.

[279]

And when they cam to the Biddes burn,
The Crichtons bade them stand and turn;
And when they cam to the Biddess strand,
The Crichtons they were hard at hand.

But when they cam to the Biddes law,
The Johnstones bade them stand and draw;
"We've done nae ill, we'll thole nae wrang,
"But back to Wamphray we will gang,"

And out spoke Willy o' the Kirkhill,
"Of fighting, lads, ye'se hae your fill."
And from his horse Willie he lap,
And a burnished brand in his hand he gat.

Out through the Crichtons Willie he ran,
And dang them down baith horse and man;
O but the Johnstones were wondrous rude,
When the Biddes burn ran three days blood.

"Now, Sirs, we have done a noble deed;
"We have revenged the Galliard's bleid:
"For every finger of the Galliard's hand,
"I vow this day I've killed a man."

[280]

As they cam in at Evan-head,
At Ricklaw-holm they spread abroad;
"Drive on, my lads! it will be late;
We'll hae a pint at Wamphray gate.

"For where'er I gang, or e'er I ride,

The lads of Wamphray are on my side;
And of a' the lads that I do ken,
A Wamphray lad's the king of men."

THE END OF THE FIRST VOLUME.

FOOTNOTES.

[1]

In the spirited translation of this poem, by Jones, the following verses are highly descriptive of the exhausted state of the victor army.

At Madoc's tent the clarion sounds,
With rapid clangour hurried far:
Each echoing dell the note resounds—
But when return the sons of war!
Thou, born of stern necessity,
Dull peace! the desert yields to thee,
And owns thy melancholy sway.

[2]

At the battle of Arkinholme, the Earl of Angus, a near kinsman of Douglas, commanded the royal forces; and the difference of their complexion occasioned the saying, "that the *Black Douglas* had put down the *Red*." The Maxwells, the Johnstones, and the Scotts, composed his army. Archibald, earl of Murray, brother to Douglas, was slain in the action; and Hugh, Earl of Ormond, his second brother, was taken and executed. His captors, Lord Carlisle, and the Baron of Johnstone, were rewarded with a grant of the lands of Pittinane, upon Clyde.—*Godscroft*, Vol. I. p. 375.—*Balfour's MS. in the Advocates' Library, Edinburgh*.—*Abercrombie's Achievements*, Vol. II. p. 361. *folio Ed.*—The other chiefs were also distinguished by royal favour. By a charter, upon record, dated 25th February, 1458, the king grants to Walter Scott of Kirkurd, ancestor of the house of Buccleuch, the lands of Abingtown, Phareholm, and Glentonan craig, in Lanarkshire.

"Pro suo fideli servitio nobis impenso et pro quod

*interfuit in conflictu de Arkenholme in occisione et captione
nostrorum rebellium quondam Archibaldi et Hugonis de Douglas
olim comitum Moraviae et de Ormond et aliorum rebellium
nostrorum in eorum comitiva existen: ibidem captorum et
interfectorum."*

Similar grants of land were made to Finnart and Arran, the two branches of the house of Hamilton; to the chiefs of the Battisons; but, above all, to the Earl of Angus who obtained from royal favour a donation of the Lordship of Douglas, and many other lands, now held by Lord Douglas, as his representative. There appears, however, to be some doubt, whether, in this division, the Earl of Angus received more than his natural right. Our historians, indeed, say, that William I. Earl of Douglas, had three sons; 1. James, the 2d Earl, who died in the field of Otterburn; 2. Archibald, the Grim, 3d Earl; and 3. George, in right of his mother, earl of Angus. Whether, however, this Archibald was actually the son of William, seems very doubtful; and Sir David Dalrymple has strenuously maintained the contrary. Now, if Archibald, the Grim, intruded into the earldom of Douglas, without being a son of that family, it follows that the house of Angus, being kept out of their just rights for more than a century, were only restored to them after the battle of Arkinholme. Perhaps, this may help to account for the eager interest taken by the earl of Angus against his kinsman.—*Remarks on History of Scotland*, Edinburgh, 1773. p. 121.

[3]

A grant of the king, dated 2d October, 1484, bestowed upon Kirkpatrick, for this acceptable service, the lands of Kirkmichael.

[4]

Spens of Kilspindie, a renowned cavalier, had been present in court, when the Earl of Angus was highly praised for strength and valour. "It may be," answered Spens, "if all be good that is upcome;" insinuating, that the courage of the earl might not answer the promise of his person. Shortly after, Angus, while hawking near Borthwick, with a single attendant, met Kilspindie. "What reason had ye," said the earl, "for making question of my manhood? thou art a tall fellow, and so am I; and by St. Bride of Douglas,

one of us shall pay for it!"—"Since it may be no better," answered Kilspindie, "I will defend myself against the best earl in Scotland." With these words they encountered fiercely, till Angus, with one blow, severed the thigh of his antagonist, who died upon the spot. The earl then addressed the attendant of Kilspindie: "Go thy way: tell my gossip, the king, that here was nothing but fair play. I know my gossip will be offended; but I will get me into Liddisdale, and remain in my castle of the Hermitage till his anger be abated."—*Godscroft*, Vol. II. p. 59. The price of the earl's pardon seems to have been the exchange mentioned in the text. Bothwell is now the residence of Lord Douglas. The sword, with which Archibald, *Bell-the-Cat*, slew Spens, was, by his descendant, the famous Earl of Morton, presented to Lord Lindsay of the Byres, when, about to engage in single combat with Bothwell, at Carberry-hill—*Godscroft*, Vol. II. p. 175.

[5]

The statute 1594, cap. 231, ascribes the disorders on the border in a great measure to the "counselles, directions, receipt, and partaking, of chieftains principalles of the branches, and householders of the saides surnames, and clannes, quhilkis bears quarrel, and seeks revenge for the least hurting or slauchter of ony ane of their unhappy race, although it were ardour of justice, or in rescuing and following of trew mens geares stollen or reft."

[6]

This tragedy, or, perhaps, the preceding execution of Lord Home, must have been the subject of the song, the first two lines of which are preserved in the *Complaynt of Scotland*;

God sen' the Duc hed byddin in France,
And de la Bauté had never come hame.

P, 100, Edin. 1801.

[7]

The particulars of this encounter are interesting. The Hamiltons were the most numerous party, drawn chiefly from the western counties. Their

leaders met in the palace of Archbishop Beaton, and resolved to apprehend Angus, who was come to the city to attend the convention of estates. Gawain Douglas, bishop of Dunkeld, a near relation of Angus, in vain endeavoured to mediate betwixt the factions. He appealed to Beaton, and invoked his assistance to prevent bloodshed. "On my conscience," answered the archbishop, "I cannot help what is to happen." As he laid his hand upon his breast, at this solemn declaration, the hauberk, concealed by his rocket, was heard to clatter: "Ah! my lord!" retorted Douglas, "your conscience sounds hollow." He then expostulated with the secular leaders, and Sir Patrick Hamilton, brother to Arran, was convinced by his remonstrances; but Sir James, the natural son of the earl, upbraided his uncle with reluctance to fight. "False bastard!" answered Sir Patrick, "I will fight to day where thou darest not be seen." With these words they rushed tumultuously towards the high-street, where Angus, with the prior of Coldinghame, and the redoubted Wedderburn, waited their assault, at the head of 400 spearmen, the flower of the east marches, who, having broke down the gate of the Netherbow, had arrived just in time to the earl's assistance. The advantage of the ground, and the disorder of the Hamiltons, soon gave the day to Angus. Sir Patrick Hamilton, and the master of Montgomery, were slain. Arran, and Sir James Hamilton, escaped with difficulty; and with no less difficulty was the military prelate of Glasgow rescued from the ferocious borderers, by the generous interposition of Gawain Douglas. The skirmish was long remembered in Edinburgh, by the name of "Cleanse the Causeway."—*Pinkerton's History*, Vol. II. p. 181.—*Pitscottie Edit.* 1728. p. 120.—*Life of Gawain Douglas, prefixed to his Virgil.*

[8]

A curious letter from Surrey to the king is printed in the Appendix, No. I.

[9]

In a letter to the Duke of Norfolk, October 1524, Queen Margaret says, "Sen that the Lard of Sessford and the Lard of Baclw was put in the castell of Edinbrouh, the Erl of Lenness hath past hyz vay vythout lycyens, and in despyt; and thynkyth to make the brek that he may, and to solyst other lordis to tak hyz part; for the said lard of Bavkl wvas hyz man, and dyd the

gretyst ewelyz that myght be dwn, and twk part playnly vyth theasyz as is well known."—*Cot. MSS. Calig. B.I.*

[10]

Near Darnick. By a corruption from Skirmish field, the spot is still called the Skinnerfield. Two lines of an old ballad on the subject are still preserved:

"There were sick belts and blows,
The Mattous burn ran blood."

[11]

Buccleuch contrived to escape forfeiture, a doom pronounced against those nobles, who assisted the Earl of Lennox, in a subsequent attempt to deliver the king, by force of arms. "The laird of Bukcleugh has a respecte, and is not forfeited; and will get his pece, and was in Leithquo, both Sondaye, Mondaye, and Tewisday last, which is grete displeasure to the Carres."—*Letter from Sir C. Dacre to Lord Dacre, 2d December, 1526.*

[12]

"To ding down Tantallon, and make a bridge to the Bass," was an adage expressive of impossibility. The shattered ruins of this celebrated fortress still overhang a tremendous rock on the coast of East Lothian.

[13]

Edgebucklin, near Musselburgh.

[14]

I allude to the affecting story of Douglas of Kilspindie, uncle to the Earl of Angus. This gentleman had been placed by Angus about the king's person, who, when a boy, loved him much, on account of his singular activity of body, and was wont to call him his *Graysteil*, after a champion of chivalry, in the romance of *Sir Eger and Sir Grime*. He shared, however, the fate of his chief, and, for many years, served in France. Weary, at length, of exile, the aged warrior, recollecting the king's personal attachment to him, resolved to throw himself on his clemency. As James returned from hunting in the park at Stirling, he saw a person at a distance, and, turning to his nobles, exclaimed, "Yonder is my *Graysteil*, Archibald of Kilspindie!" As he approached, Douglas threw himself on his knees, and implored permission to lead an obscure life in his native land. But the name of Douglas was an amulet, which steeled the king's heart against the influence of compassion and juvenile recollection. He passed the suppliant without an answer, and rode briskly up the steep hill, towards the castle. Kilspindie, though loaded with a hauberk under his cloaths, kept pace with the horse, in vain endeavouring to catch a glance from the implacable monarch. He sat down at the gate, weary and exhausted, and asked for a draught of water. Even this was refused by the royal attendants. The king afterwards blamed their discourtesy; but Kilspindie was obliged to return to France, where he died of a broken heart; the same disease which afterwards brought to the grave his unrelenting sovereign. Even the stern Henry VIII. blamed his nephew's conduct, quoting the generous saying "A king's face should give grace."—*Godscroft*, Vol. II. P. 107.

[15]

In Haynes' State Papers, from p. 43 to p. 64, is an account of these destructive forays. One list of the places burned and destroyed enumerates

Monasteries and Freehouses	7
Castles, towres, and piles	16
Market townes	5
Villages	243
Mylnes	13
Spytells and hospitals	3

See also official accounts of these expeditions, in *Dalyell's Fragments*.

[16]

Patten gives us a list of those east border chiefs who did homage to the Duke of Somerset, on the 24th of September, 1547; namely, the lairds of Cessfoorth, Fernyherst, Grenehed, Hunthill, Hundely, Makerstone, Bymerside, Bounjedworth, Ormeston, Mellestains, Warmesay, Synton, Egerston, Merton, Mowe, Rydell, Beamerside. Of gentlemen, he enumerates George Tromboul, Jhon Haliburton, Robert Car, Robert Car of Greyden, Adam Kirton, Andrew Methers, Saunders Purvose of Erleston, Mark Car of Littledean, George Car of Faldenside, Alexander Mackdowal, Charles Rutherford, Thomas Car of the Yere, Jhon Car of Meynthorn (Nenthorn), Walter Holiburton, Richard Hangansyde, Andrew Car, James Douglas of Cavers, James Car of Mersington, George Hoppringle, William Ormeston of Edmerden, John Grymslowe.—*Patten*, in *Dalyell's Fragments*, p. 87.

On the west border, the following barons and clans submitted and gave pledges to Lord Wharton, that they would serve the king of England, with the number of followers annexed to their names.

ANNERDALE.		NITHSDALE.	
Laird of Kirkmighel	222	Mr Maxwell and more	
..... 1000			
..... Rose	165	Laird of Closeburn	
..... 403			
..... Hemsfield	163	Lag	
..... 202			
..... Home Ends	162	Cransfield	

..... 27		
Wamfrey	102	Mr Ed. Creighton
..... 10		
Dunwoddy	44	Laird of Cowhill
..... 91		
Laird of Newby and Gratney ..	122	Maxwells of Brackenside,
Tinnel (Tinwald)	102	and vicar of Carlaverick
.. 310		
Patrick Murray	203	ANNERDALE AND GALWAY.
Christie Urwin (Irving) of		Lord Carlisle
..... 101		
Coveshawe	102	ANNERDALE AND CLIDSDALE
Cuthbert Urwen of Robbgill ..	34	Laird of Applegirth
..... 242		
Urwens of Sennersack	40	LIDDESDALE AND DEBATEABLE
Wat Urwen	20	LAND.
Jeffrey Urwen	93	Armstrongs
..... 300		
T. Johnston of Crackburn	64	Elwoods (Elliot's)
..... 74		
James Johnston of Coites	162	Nixons
..... 32		
Johnstons of Graggyland	37	GALLOWAY
Johnstons of Driesdell	46	Laird of Dawbaylie
..... 41		
Johnstons of Malinshaw	65	Orcherton
..... 111		
Gawen Johnston	31	Carlisle
..... 206		
Will Johnston, the laird's		Loughenwar
..... 45		
brother	110	Tutor of Bumbie
..... 140		
Robin Johnston of		Abbot of Newabbey
..... 141		
Lochmaben	67	Town of Dumfries
..... 201		
Lard of Gillersbie	30	Town of Kircubrie
..... 36		
Moffits	24	TIVIDALE.
Bells of Tostints	142	Laird of Drumlire
..... 364		
Bells of Tindills	222	Caruthers
..... 71		
Sir John Lawson	32	Trumbells
..... 12		
Town of Annan	33	ESKDALE.

Roomes of Tordephe 32 Battisons and Thomsons
..... 166

Total 7008 men under English assurance.

Nicolson, from Bell's MS. Introduction to History of Cumberland, p. 65.

[17]

These were the lairds of Buccleuch, Cessford, and Fairnihirst, Littleden, Grenehed, and Coldingknows. Buccleuch, whose gallant exploits we have noticed, did not long enjoy his new honours. He was murdered, in the streets of Edinburgh, by his hereditary enemies, the Kerrs, anno 1552.

[18]

The jest of James VI. is well known, who, when a favourite cow had found her way from London, back to her native country of Fife, observed, "that nothing surprised him so much as her passing uninterrupted through the Debateable Land!"

[19]

He was lord of Liddesdale, and keeper of the Hermitage castle. But he had little effective power over that country, and was twice defeated by the Armstrongs, its lawless inhabitants.—*Border History*, p. 584. Yet the unfortunate Mary, in her famous Apology, says, "that in the weiris againis Ingland, he gaif proof of his vailyentnes, courage, and gude conduct;" and praises him especially for subjugating "the rebellious subjectis inhabiting the cuntreis lying ewest the marches of Ingland."—*Keith*, p. 388. He appears actually to have defeated Sir Henry Percy, in a skirmish, called the Raid of Haltweilswire.

[20]

This nobleman had, shortly before, threatened to spoil the English east march; "but," says the Duke of Norfolk, "we have provided such sauce for him, that I think he will not deal in such matter; but, if he do fire but one

hay-goff, he shall not go to Home again without torch-light, and, peradventure, may find a lanthorn at his own house."

[21]

The commissioners on the English side were, the elder Lord Scroope of Bolton, Sir John Foster, Sir Thomas Gargrave, and Dr. Rookby. On the Scottish side appeared, Sir John Maxwell of Terreagles, and Sir John Ballenden.

[22]

The *Queen's Mire* is still a pass of danger, exhibiting, in many places, the bones of the horses which have been entangled in it. For what reason the queen chose to enter Liddesdale by the circuitous route of Hawick, does not appear. There are two other passes from Jedburgh to Hermitage castle; the one by the *Note of the Gate*, the other over the mountain, called Winburgh. Either of these, but especially the latter, is several miles shorter than that by Hawick, and the Queen's Mire. But, by the circuitous way of Hawick, the queen could traverse the districts of more friendly clans, than by going directly into the disorderly province of Liddesdale.

[23]

The followers of these barons are said to have stolen the horses of their friends, while they were engaged in the battle.

[24]

This building still remains, in the unfinished state which it then presented.

[25]

Birrel says, that "the regent was shot by an unhappy fellow, while sitting on horseback behind the laird of Buccleuch."—The following curious account of the whole transaction is extracted from a journal of principal events, in the years 1570, 1571, 1572, and part of 1573, kept by Richard Bannatyne, amanuensis to John Knox. The four of September, they of Edinburgh, horsemen and footmen (and, as was reported, the most part of Clidisdail,

that pertainit to the Hamiltons), come to Striveling, the number of iii or iiij c men, in hors bak, geydit be ane George Bell, their hacbutteris being all horsed, enterit in Striveling, be fyve houris in the morning (whair thair was never one to mak watche), crying this slogane, 'God and the quene! ane Hamiltoun think on the bishop of St. Androis, all is owres;' and so a certaine come to everie grit manis ludgene, and apprehendit the Lordis Mortoun and Glencarne; but Mortounis hous they set on fyre, wha randerit him to the laird of Balcleuch. Wormestoun being appointed to the regentes hous, desyred him to cum furth, which he had no will to doe, yet, be perswasione of Garleys and otheris, with him, tho't it best to come in will, nor to byde the extremitie, becaus they supposed there was no resistance, and swa the regent come furth, and was randered to Wormestoun, under promeis to save his lyfe. Captane Crawford, being in the town, gat sum men out of the castell, and uther gentlemen being in the town, come as they my't best to the geat, chased them out of the town. The regent was schot be ane Captain Cader, wha confessed, that he did it at comande of George Bell, wha was comandit so to doe be the Lord Huntlie and Claud Hamilton. Some sayis, that Wormestoun was schot by the same schot that slew the regent, but alwayis he was slane, notwithstanding the regent cryed to save him, but it culd not be, the furie was so grit of the presewaris, who, following so fast, the lord of Mortone said to Balcleuch, 'I sall save you as ye savit me,' and so he was tane. Garleys, and sindrie otheris, war slane at the port, in the persute of thame. Thair war ten or twelve gentlemen slane of the kingis folk, and als mony of theiris, or mea, as was said, and a dosone or xvi tane. Twa especiall servantis of the Lord Argyle's were slane also. This Cader, that schot the regent, was once turned bak off the toune, and was send again (as is said), be the Lord Huntlie, to cause Wormistoun retire; but, before he come agane, he was dispatched, and had gottin deidis woundis.

The regent being schot (as said is), was brought to the castell, whair he callit for ane phisitione, one for his soule, ane uther for his bodie. But all hope of life was past, for he was schot in his entreallis; and swa, after sumthingis spokin to the lordis, which I know not, he departed, in the feare of God, and made a blessed end; whilk the rest of the lordis, that tho't thame to his hiert, and lytle reguardit him, shall not mak so blised ane end, unles they mend thair maneris.

This curious manuscript has been lately published, under the inspection of John Graham Dalyell, Esq.

[26]

A rude sort of guillotine, called the *maiden*. The implement is now in possession of the Society of Scottish Antiquaries.

[27]

The associated nobles seem to have owed their success chiefly to the border spearmen; for, though they had a band of mercenaries, who used fire arms, yet they were such bad masters of their craft, their captain was heard to observe, "that those, who knew his soldiers as well as he did, would hardly chuse to *march before them*."—*Godscroft*, v. ii. p. 368.

[28]

Spottiswoode says, the king awaited this charge with firmness; but Birrell avers, that he fled upon the gallop. The same author, instead of the firm deportment of James, when seized by Bothwell, describes "the king's majestie as flying down the back stair, with his breeches in his hand, in great fear."—*Birrell, apud Dalyell*, p. 30. Such is the difference betwixt the narrative of the courtly archbishop, and that of the presbyterian burghess of Edinburgh.

[29]

This rencounter took place at Humbie, in East Lothian. Bothwell was attended by a servant, called Gibson, and Cessford by one of the Rutherfords, who was hurt in the cheek. The combatant parted from pure fatigue.

[30]

Sir Walter Raleigh, in writing of Essex, then in prison, says, "Let the queen hold *Bothwell* while she hath him."—*Murdin*, Vol. II. p. 812. It appears, from *Crichton's Memoirs*, that Bothwell's grandson, though so nearly

related to the royal family, actually rode a private in the Scottish horse guards, in the reign of Charles II.—*Edinburgh*, 1731, p. 43.

[31]

"Proclamation shall be made, that all inhabiting within Tynedale and Riddesdale, in Northumberland, Bewcastledale, Willgavey, the north part of Gilsland, Esk, and Leven, in Cumberland; east and west Tividale, Liddesdale, Eskdale, Ewsdale, and Annesdale, in Scotland (saving noblemen Footnote: and gentlemen unsuspected of felony and theft, and not being of broken clans, and their household servants, dwelling within those several places, before recited), shall put away all armour and weapons, as well offensive as defensive, as jacks, spears, lances, swords, daggers, steel-caps, hack-buts, pistols, plate sleeves, and such like; and shall not keep any horse, gelding, or mare, above the value of fifty shillings sterling, or thirty pounds Scots, upon the like paid of imprisonment."—*Proceedings of the Border Commissioners*, 1505.—*Introduction to History of Cumberland*, p. 127.

[32]

See the acts 18 Cha. II. 6.3. and 80 Cha. II. ch. 2. against the border moss-troopers; to which we may add the following curious extracts from *Mercurius Politicus*, a newspaper, published during the usurpation.

"*Thursday, November 11, 1662.*

"Edinburgh.—The Scotts and moss-troopers have again revived their old custom, of robbing and murdering the English, whether soldiers or other, upon all opportunities, within these three weeks. We have had notice of several robberies and murders, committed by them. Among the rest, a lieutenant, and one other of Col. Overton's regiment, returning from England, were robbed not far from Dunbarr. A lieutenant, lately master of the customs at Kirkcudbright, was killed about twenty miles from this place; and four foot soldiers of Colonel Overton's were killed, going to their quarters, by some mossers, who, after they had given them quarter, tied their hands behind them, and then threw them down a steep hill, or rock, as it was related by a Scotchman, who was with them, but escaped."

Ibidem.—"October 13, 1663.—The Parliament, October 21, past an act, declaring, any person that shall discover any felon, or felons (commonly called, or known, by the name of moss-troopers), residing upon the borders of England and Scotland, shall have a reward of ten pound upon their conviction."

[33]

The armorial bearings, adopted by many of the border tribes, shew how little they were ashamed of their trade of rapine. Like *Falstaff*, they were "Gentlemen of the night, minions of the moon," under whose countenance they committed their depredations.—Hence, the emblematic moons and stars, so frequently charged in the arms of border families. Their mottoes, also, bear allusion to their profession.—"*Reparabit cornua Phaebe*," i.e. "We'll have moon-light again," is that of the family of Harden. "Ye shall want, ere I want," that of Cranstoun, &c.

[34]

By act 1587, c. 96, borderers are expelled from the inland counties, unless they can find security for their quiet deportment.

[35]

The following tradition is also illustrative of Lesley's account. Veitch of Dawyk, a man of great strength and bravery who flourished in the 16th century, was upon bad terms with a neighbouring proprietor, Tweedie of Drummelziar. By some accident, a flock of Dawyk's sheep had strayed over into Drummelziar's grounds, at the time when *Dickie of the Den*, a Liddesdale outlaw, was making his rounds in Tweeddale. Seeing this flock of sheep; he drove them off without ceremony. Next morning, Veitch, perceiving his loss, summoned his servants and retainers, laid a blood-hound upon the traces of the robber, by whom they were guided for many miles, till, on the banks of Liddel, he staid upon a very large hay-stack. The pursuers were a good deal surprised at the obstinate pause of the blood-hound, till Dawyk pulled down some of the hay, and discovered a large excavation, containing the robbers and their spoil. He instantly flew upon Dickie, and was about to poniard him, when the marauder, with the address noticed by Lesley, protested that he would never have touched a *cloot*

(hoof) of them, had he not taken them for Drummelziar's property. This dexterous appeal to Veitch's passions saved the life of the freebooter.

[36]

This practice of the marchmen was observed and reprobated by Patten. "Anooother maner have they (*the English borderers*) amoong them, of wearyng handkerchers roll'd about their armes, and letters brouder'd (*embroidered*) upon their cappes: they said themselves, the use thearof was that ech of them might knowe his fellowe, and thearbye the sooner assemble, or in nede to ayd one another, and such lyke respectes; howbeit, thear wear of the army amoong us (sum suspicious men perchaunce), that thought thei used them for collusion, and rather bycaus thei might be knowen to the enemie, as the enemies are knowen to them (for thei have their markes too), and so in conflict either ech to spare oother, or gently eche to take oother. Indede men have been mooved the rather to thinke so, bycaus sum of their crosses (*the English red cross*) were so narrowe, and so singly set on, that a puff of wynde might blowed them from their breastes, and that thei wear found right often talking with the Skottish prikkers within less than their gad's (*spears*) length asunder; and when thei perceived thei had been espied, thei have begun one to run at anooother, but so apparently perlassent (*in parley*), as the lookers on resembled their chasyng lyke the running at base in an uplondish toun, whear the match is made for a quart of good ale, or like the play in Robin Cookes scole (*a fencing school*), whear, bycaus the punies may lerne, thei strike fewe strokes but by assent and appointment. I hard sum men say, it did mooch augment their suspicion that wey, bycaus at the battail they sawe these prikkers so badly demean them, more intending the taking of prisoners, than the surety of victorie; for while oother men fought, thei fell to their prey; that as thear wear but fewe of them but brought home his prisoner, so wear thear many that had six or seven."—*Patten's Account of Somerset's Expedition, apud Dalyell's Fragments*, p. 76.

It is singular that, about this very period, the same circumstances are severely animadverted upon by the strenuous Scottishman, who wrote the *Complaynt of Scotland*, as well as by the English author above quoted. "There is nothing that is occasione of your adhering to the opinion of Ingland contrair your natife cuntré, bot the grit familiarite that Inglis men

and Scottes hes had on baitht the boirdours, ilk are witht utheris, in merchandeis, in selling and buying hors and nolt, and scheip, outfang and infang, ilk are amang utheris, the whilk familiarite is express contrar the lauis and consuetudis bayth of Ingland and Scotland. In auld tymis it was determit in the artiklis of the pace, be the twa wardanis of the boirdours of Ingland and Scotland, that there suld be na familiarite betwix Scottis men and Inglis men, nor marriage to be contrakit betwix them, nor conventions on holydais at gammis and plays, nor merchandres to be maid amang them, nor Scottis men till enter on Inglis grond, witht out the king of Ingland's save conduct, nor Inglis men til enter on Scottis grond witht out the King of Scotland's save conduct, howbeit that ther war sure pace betwix the twa realmes. Bot thir sevyn yeir bygane, thai statutis and artiklis of the pace are adnullit, for ther hes been as grit familiarite, and conventions, and makyng of merchandreis, on the boirdours, this lang tyme betwix Inglis men and Scottis men, baytht in pace and weir, as Scottismen usis amang theme selfis witht in the realme of Scotland: and sic familiarite has bene the cause that the kyng of Ingland gat intelligence witht divers gentlemen of Scotland."

Complaynt of Scotland, Edin. 1801, p. 164.

[37]

Stowe, in detailing the happy consequences of the union of the crowns, observes, "that the northerne borders became as safe, and peaceable, as any part of the entire kingdome, so as in the fourth yeare of the king's raigne, as well gentlemen as others, inhabiting the places aforesayde, finding the auncient wast ground to be very good and fruitefull, began to contende in lawe about their bounds, challenging then, that for their hereditarie right, which formerly they disavowed, only to avoyde charge of common defence."

[38]

"As for the humours of the people (*i.e.* of Tiviotdale), they were both strong and warlike, as being inured to war, and daily incursions, and the most part of the heritors of the country gave out all their lands to their tenants, for military attendance upon rentals, and reserved only some few manses for their own sustenance, which were laboured by their tenants, besides their

service. They paid an entry, a herauld, and a small rental-duty; for there were no rents raised here that were considerable, till King James went into England; yea, all along the border."—*Account of Roxburghshire, by Sir William Scott of Harden, and Kerr of Sunlaws, apud Macfarlane's MSS.*

[39]

The royal castles of Roxburgh, Hermitage, Lochmaben, &c. form a class of exceptions to this rule, being extensive and well fortified. Perhaps we ought also to except the baronial castle of Home. Yet, in 1455, the following petty garrisons were thought sufficient for the protection of the border; two hundred spearmen, and as many archers, upon the east and middle marches; and one hundred spears, with a like number of bowmen, upon the western marches. But then the same statute provides, "They that are neare hand the bordoure, are ordained to have gud househaldes, and abuilzed men as effeiris: and to be reddie at their principal place, and to pass, with the wardanes, quhen and quhair they sail be charged."—*Acts of James II., cap. 55, Of garissones to be laid upon the borderes.*—Hence Buchanan has justly described, as an attribute of the Scottish nation,

"Nec fossis, nee muris, patriam sed Marte tueri."

[40]

I have observed a difference in architecture betwixt the English and Scottish towers. The latter usually have upon the top a projecting battlement, with interstices, anciently called *machicoules*, betwixt the parapet and the wall, through which stones or darts might be hurled upon the assailants. This kind of fortification is less common on the south border.

[41]

I ought to except the famous Dand Ker, who was made prisoner in his castle of Fairnihirst, after defending it bravely against Lord Dacres, 24th September, 1523.

[42]

The rude strains of the inscription little correspond with the gallantry of a

—village Hampden, who, with dauntless breast,
The little tyrant of his fields withstood.

It is in these words:

Here Hobbie Hall boldly maintained his right,
'Gainst reif, plain force, armed wi' awles might.
Full thirty pleughs, harnes'd in all their gear,
Could not his valiant noble heart make fear:
But wi' his sword, he cut the foremost's soam
In two; and drove baith pleughs and pleughmen home.
1620.

Soam means the iron links, which fasten a yoke of oxen to the plough.

[43]

In the parish of Linton, in Roxburghshire, there is a circle of stones, surrounding a smooth plot of turf, called the *Tryst*, or place of appointment, which tradition avers to have been the rendezvous of the neighbouring warriors. The name of the leader was cut in the turf, and the arrangement of the letters announced to his followers the course which he had taken. See *Statistical Account of the Parish of Linton*.

[44]

See Appendix.

[45]

These vassals resembled, in some degree, the Vidames in France, and the Vogten, or Vizedomen, of the German abbeys; but the system was never carried regularly into effect in Britain, and this circumstance facilitated the dissolution of the religious houses.

[46]

This decree was followed by a marriage betwixt the abbot's daughter, Elizabeth Stewart, and Walter Halliburton, one of the family of Newmains. But even this alliance did not secure peace between the venerable father and his vassals. The offspring of the marriage was an only daughter, named Elizabeth Halliburton. As this young lady was her father's heir, the Halliburtons resolved that she should marry one of her cousins, to keep her property in the clan. But as this did not suit the views of the abbot, he carried off by force the intended bride, and married her, at Stirling, to Alexander Erskine, a brother of the laird of Balgony, a relation and follower of his own. From this marriage sprung the Erskines of Shielfield. This exploit of the abbot revived the feud betwixt him and the Halliburtons, which only ended with the dissolution of the abbey.—*MS. History of Halliburton Family, penes editorem.*

[47]

This man was chaplain in the family of Sir Walter Scott of Harden, who attended the meetings of the indulged presbyterians; but Cameron, considering this conduct as a compromise with the foul fiend Episcopacy, was dismissed from the family. He was slain in a skirmish at Airdsmoss, bequeathing his name to the sect of fanatics, still called Cameronians.

[48]

This small church is founded upon a little hill of sand, in which no stone of the size of an egg is said to have been found, although the neighbouring soil is sharp and gravelly. Tradition accounts for this, by informing us, that the foundresses were two sisters, upon whose account much blood had been spilt in that spot; and that the penance, imposed on the fair causers of the slaughter, was an order from the pope to sift the sand of the hill, upon which their church was to be erected. This story may, perhaps, have some foundation; for, in the church-yard was discovered a single grave, containing no fewer than fifty skulls, most of which bore the marks of having been cleft by violence.

[49]

An epithet bestowed upon the borderers, from the names of their various districts; as Tiviotdale, Liddesdale, Eskdale, Ewsdale, Annandale, &c.

Hence, an old ballad distinguishes the north as the country,

"Where every river gives name to a dale,"

Ex-ale-tation of Ale.

[50]

Among these may be reckoned the supposed influence of Irish earth, in curing the poison of adders, or other venomous reptiles.—This virtue is extended by popular credulity to the natives, and even to the animals, of Hibernia. A gentleman, bitten by some reptile, so as to occasion a great swelling, seriously assured the editor, that he ascribed his cure to putting the affected finger into the mouth of an Irish mare!

[51]

One of the most noted apparitions is supposed to haunt Spedlin's castle, near Lochmaben, the ancient baronial residence of the Jardines of Applegirth. It is said, that, in exercise of his territorial jurisdiction, one of the ancient lairds had imprisoned, in the *Massy More*, or dungeon of the castle, a person named Porteous. Being called suddenly to Edinburgh, the laird discovered, as he entered the West Port, that he had brought along with him the key of the dungeon. Struck with the utmost horror, he sent back his servant to relieve the prisoner; but it was too late. The wretched being was found lying upon the steps descending from the door of the vault, starved to death. In the agonies of hunger, he had gnawed the flesh from one of his arms. That his spectre should haunt the castle was a natural consequence of such a tragedy. Indeed, its visits became so frequent, that a clergyman of eminence was employed to exorcise it. After a contest of twenty-four hours, the man of art prevailed so far as to confine the goblin to the *Massy More* of the castle, where its shrieks and cries are still heard. A part, at least, of the spell, depends upon the preservation of the ancient black-lettered bible, employed by the exorcist. It was some years ago thought necessary to have this bible re-bound; but, as soon as it was removed from the castle, the spectre commenced his nocturnal orgies, with ten-fold noise; and it is verily believed that he would have burst from his confinement, had not the sacred volume been speedily replaced.

A Mass John Scott, minister of Peebles, is reported to have been the last renowned exorciser, and to have lost his life in a contest with an obstinate spirit. This was owing to the conceited rashness of a young clergyman, who commenced the ceremony of laying the ghost before the arrival of Mass John. It is the nature, it seems, of spirits disembodied, as well as embodied, to increase in strength and presumption, in proportion to the advantages which they may gain over the opponent. The young clergyman losing courage, the horrors of the scene were increased to such a degree, that, as Mass John approached the house in which it passed, he beheld the slates and tiles flying from the roof, as if dispersed by a whirlwind. At his entry, he perceived all the wax-tapers (the most essential instruments of conjuration) extinguished, except one, which already burned blue in the socket. The arrival of the experienced sage changed the scene: he brought the spirit to reason; but, unfortunately, while addressing a word of advice or censure to his rash brother, he permitted the ghost to obtain the *last word*; a circumstance which, in all colloquies of this nature, is strictly to be guarded against. This fatal oversight occasioned his falling into a lingering disorder, of which he never recovered.

A curious poem, upon the laying of a ghost, forms article No. V. of the Appendix.

[52]

I have seen, *penes* Hugh Scott, Esq. of Harden, the record of the trial of a witch, who was burned at Ducove. She was tried in the manner above mentioned.

[53]

—how the drudging goblin swet,
To earn the cream-bowl, duly set;
When, in one night, ere glimpse of morn,
His shadowy flail had thresh'd the corn,
That ten day-lab'ers could not end;
Then lies him down the lubbar fiend,
And, stretch'd out all the chimney's length,

Basks at the fire his hairy strength;
And, crop-full, out of doors he flings,
E'er the first cock his matin rings.

L'Allegro.

When the menials in a Scottish family protracted their vigils around the kitchen fire, Brownie, weary of being excluded from the midnight hearth, sometimes appeared at the door, seemed to watch their departure, and thus admonished them—"Gang a' to your beds, sirs, and dinna put out the wee *grieshoch* (embers)."

[54]

It is told of a Brownie, who haunted a border family, now extinct, that the lady having fallen unexpectedly in labour, and the servant, who was ordered to ride to Jedburgh for the *sage femme*, shewing no great alertness in setting out, the familiar spirit slipt on the great-coat of the lingering domestic, rode to the town on the laird's best horse, and returned with the mid-wife *en croupe*. Daring the short space of his absence, the Tweed, which they must necessarily ford, rose to a dangerous height. Brownie, who transported his charge with all the rapidity of the ghostly lover of *Lenoré*, was not to be stopped by this obstacle. He plunged in with the terrified old lady, and landed her in safety where her services were wanted. Having put the horse into the stable (where it was afterwards found in a woeful plight), he proceeded to the room of the servant, whose duty he had discharged; and, finding him just in the act of drawing on his boots, he administered to him a most merciless drubbing with his own horse-whip. Such an important service excited the gratitude of the laird; who, understanding that Brownie had been heard to express a wish to have a green coat, ordered a vestment of that colour to be made, and left in his haunts. Brownie took away the green coat, but never was seen more. We may suppose, that, tired of his domestic drudgery, he went in his new livery to join the fairies.—See *Appendix*, No. VI.

The last Brownie, known in Ettrick forest, resided in Bodsbeck, a wild and solitary spot, where he exercised his functions undisturbed, till the scrupulous devotion of an old lady induced her to *hire him away*, as it was termed, by placing in his haunt a porringer of milk and a piece of money.

After receiving this hint to depart, he was heard the whole night to howl and cry, "Farewell to bonny Bodsbeck!" which he was compelled to abandon for ever.

[55]

One of his pranks is thus narrated: Two men, in a very dark night, approaching the banks of the Ettrick, heard a doleful voice from its waves repeatedly exclaim—"Lost! lost!"—They followed the sound, which seemed to be the voice of a drowning person, and, to their infinite astonishment, they found that it ascended the river. Still they continued, during a long and tempestuous night, to follow the cry of the malicious sprite; and arriving, before morning's dawn, at the very sources of the river, the voice was now heard descending the opposite side of the mountain in which they arise. The fatigued and deluded travellers now relinquished the pursuit; and had no sooner done so, than they heard Shellycoat applauding, in loud bursts of laughter, his successful roguery. The spirit was supposed particularly to haunt the old house of Gorrinberry, situated on the river Hermitage, in Liddesdale.

[56]

The following notice of Lamhdearg occurs in another account of Strathspey, *apud* Macfarlane's MSS.:—"There is much talke of a spirit called *Ly-erg*, who frequents the Glenmore. He appears with a red hand, in the habit of a souldier, and challenges men to fight with him; as lately as 1669, he fought with three brothers, one after another, who immediately died thereafter."

[57]

There is current, in some parts of Germany, a fanciful superstition concerning the *Stille Volke*, or silent people. These they suppose to be attached to houses of eminence, and to consist of a number, corresponding to that of the mortal family, each person of which has thus his representative amongst these domestic spirits. When the lady of the family has a child, the queen of the silent people is delivered in the same moment. They endeavour to give warning when danger approaches the family, assist in warding it off, and are sometimes seen to weep and wring their hands, before inevitable calamity.

[58]

So generally were these tales of *diablerie* believed, that one William Lithgow, a *bon vivant*, who appears to have been a native, or occasional inhabitant, of Melrose, is celebrated by the pot-companion who composed his elegy, because

He was good company at jeists.
And wanton when he came to feists,
He scorn'd the converse of great beasts,
O'er a sheep's head;
He laugh'd at stones about ghaists;
Blythe Willie's dead!

Watson's Scottish Poems, Edin. 1706.

[59]

We may form some idea of the stile of life maintained by the border warriors, from the anecdotes, handed down by tradition, concerning Walter Scott of Harden, who flourished towards the middle of the sixteenth century. This ancient laird was a renowned freebooter, and used to ride with a numerous band of followers. The spoil, which they carried off from England, or from their neighbours, was concealed in a deep and impervious glen, on the brink of which the old tower of Harden was situated. From thence the cattle were brought out, one by one, as they were wanted, to supply the rude and plentiful table of the laird. When the last bullock was killed and devoured, it was the lady's custom to place on the table a dish, which, on being uncovered, was found to contain a pair of clean spurs; a hint to the riders, that they must shift for their next meal. Upon one occasion, when the village herd was driving out the cattle to pasture, the old laird heard him call loudly *to drive out Harden's cow*. "*Harden's cow!*" echoed the affronted chief—"Is it come to that pass? by my faith they shall sune say Harden's *kye* (cows)." Accordingly, he sounded his bugle, mounted his horse, set out with his followers, and returned next day with "*a bow of kye, and a bussen'd* (brindled) *bull*." On his return with this gallant prey, he passed a very large hay-stack. It occurred to the provident laird, that this would be extremely convenient to fodder his new stock of cattle; but as no

means of transporting it occurred, he was fain to take leave of it with this apostrophe, now proverbial: "By my soul, had ye but four feet, ye should not stand lang there." In short, as Froissard says of a similar class of feudal robbers, nothing came amiss to them, that was not *too heavy, or too hot*. The same mode of house-keeping characterized most border families on both sides. An MS. quoted in *History of Cumberland*, p. 466, concerning the Graemes of Netherby, and others of that clan, runs thus: "They were all stark moss-troopers and arrant thieves: both to England and Scotland outlawed: yet sometimes connived at, because they gave intelligence forth of Scotland, and would raise 400 horse at any time, upon a raid of the English into Scotland." A saying is recorded of a mother to her son (which is now become proverbial), "*Ride Rouly* (Rowland), *hough's i' the pot*;" that is, the last piece of beef was in the pot, and therefore it was high time for him to go and fetch more. To such men might with justice be applied the poet's description of the Cretan warrior; translated by my friend, Dr. Leyden.

My sword, my spear, my shaggy shield,
With these I till, with these I sow;
With these I reap my harvest field,
The only wealth the Gods bestow.
With these I plant the purple vine,
With these I press the luscious wine.

My sword, my spear, my shaggy shield,
They make me lord of all below;
For he who dreads the lance to wield,
Before my shaggy shield must bow.
His lands, his vineyards, must resign;
And all that cowards have is mine.

Hybrias (ap. Athenaeum).

[60]

The reward of the Welch bards, and perhaps of those upon the border, was very similar. It was enacted by Howel Dha, that if the king's bard played

before a body of warriors, upon a predatory excursion, be should receive, in recompence, the best cow which the party carried off.—*Leges Walliae*, I. 1. cap. 19.

[61]

"The Lord of Liddisdale being at his pastime, hunting in Ettrick forest, is beset by William, Earl of Douglas, and such as he had ordained for the purpose, and there assailed, wounded, and slain, beside Galsewood, in the year 1353, upon a jealousy that the earl had conceived of him with his lady, as the report goeth; for so sayeth the old song,

"The countess of Douglas out of her bower she came,
And loudly there that she did call—
It is for the Lord of Liddisdale,
That I let all these tears down fall."

"The song also declareth, how she did write her love-letters to Liddisdale, to dissuade him from that hunting. It tells likewise the manner of the taking of his men, and his own killing at Galsewood; and how he was carried the first night to Linden kirk, a mile from Selkirk, and was buried in the abbey of Melrose."—*Godscroft*, Vol. I. p. 144, Ed. 1743.

Some fragments of this ballad are still current, and will be found in the ensuing work.

[62]

The Selkirkshire ballad of *Tamlane* seems also to have been well known in England. Among the popular heroes of romance, enumerated in the introduction to the history of "*Tom Thumbe*," (London, 1621, bl. letter), occurs "Tom a Lin, the devil's supposed bastard." There is a parody upon the same ballad in the "*Pinder of Wakefield*" (London, 1621).

[63]

These town pipers, an institution of great antiquity upon the borders, were certainly the last remains of the minstrel race. Robin Hastie, town-piper of Jedburgh, perhaps the last of the order, died nine or ten years ago: his

family was supposed to have held the office for about three centuries. Old age had rendered Robin a wretched performer; but he knew several old songs and tunes, which have probably died along with him. The town-pipers received a livery and salary from the community to which they belonged; and, in some burghs, they had a small allotment of land, called the Piper's Croft. For further particulars regarding them, see *Introduction to Complaynt of Scotland*, Edinburgh, 1801, p. 142.

[64]

This person, perhaps the last of our professed ballad reciters, died since the publication of the first edition of this work. He was by profession an itinerant cleaner of clocks and watches; but, a stentorian voice, and tenacious memory, qualified him eminently for remembering accurately, and reciting with energy, the border gathering songs and tales of war. His memory was latterly much impaired; yet, the number of verses which he could pour forth, and the animation of his tone and gestures, formed a most extraordinary contrast to his extreme feebleness of person, and dotage of mind.

[65]

Mr. Jamieson of Macclesfield, a gentleman of literary and poetical accomplishment, has for some years been employed in a compilation of Scottish ballad poetry, which is now in the press, and will probably be soon given to the public. I have, therefore, as far as the nature of my work permitted, sedulously avoided anticipating any of his materials; as I am very certain he himself will do our common cause the most ample justice.

[66]

Now a senator of the College of Justice, by the title of Lord Woodhouselee.

[67]

William Tytler, Esq. the ingenious defender of Queen Mary, and author of a *Dissertation upon Scotch Music*, which does honour to his memory.

[68]

Sir Robert Kerr of Cessford, warden of the middle marches, and ancestor of the house of Roxburghe.

[69]

Owing to the marchmen being divided into large clans, bearing the same surname, individuals were usually distinguished by some epithet, derived from their place of residence, personal qualities, or descent. Thus, every distinguished moss-trooper had, what is here called, a *to-name*, or *nom de guerre*, in addition to his family name.

[70]

Apparently some lines are here omitted.

[71]

This seems to allude to the old romance of *Orfeo and Heurodis*, from which the reader will find some extracts, Vol. II. The wife of *Orpheus* is here called *Elpha*, probably from her having been extracted by the elves, or fairies.

[72]

Alluding to a strange unintelligible poem in the Bannatyne MSS., called *Cockelby's sow*.

[73]

The *wraith*, or spectral appearance, of a person shortly to die, is a firm article in the creed of Scottish superstition. Nor is it unknown in our sister kingdom. See the story of the beautiful lady Diana Rich.—*Aubrey's Miscellanies*, p, 89.

[74]

See Introduction, p. ci.

[75]

For an account of the Fairy superstition, see *Introduction to the Tale of Tamlane*.

[76]

That the public might possess this carious fragment as entire as possible, the editor gave one of these copies, which seems the most perfect, to Mr. Robert Jamieson, to be inserted in his Collection.

[77]

In singing, the interjection, O, is added to the second and fourth lines.

[78]

Skeely skipper—Skilful mariner.

[79]

Gane—Suffice.

[80]

Half-fou—the eighth part of a peck.

[81]

Lap—Sprang.

[82]

Flattered—Fluttered, or rather floated, on the foam.

[83]

This old woman is still alive, and at present resides at Craig of Douglas, in Selkirkshire.

[84]

There exists also an indenture, or bond, entered into by Patrick, abbot of Kelsau, and his convent, referring to an engagement betwixt them and Sir Richard Maitland, and Sir William, his eldest son, concerning the lands of Hedderwicke, and the pasturages of Thirlestane and Blythe. This Patrick was abbot of Kelso, betwixt 1258 and 1260.

[85]

i.e. Similar family distress demands the same family courage.

[86]

Sewin sons—This must include sons-in-law; for the last Sir Richard, like his predecessor, had only three sons, namely, I. William, the famous secretary of Queen Mary; II. Sir John, who alone survived him, and is the *Burd-allane* of the consolation; III. Thomas, a youth of great hopes, who died in Italy. But he had four daughters, married to gentlemen of fortune.—*Pinkerton's List of Scottish Poets*, p. 114.

[87]

Grie and grie—In regular descent; from *gre*, French.

[88]

Such liberties with the genealogy of monarchs were common to romancers. Henry the Minstrel makes Wallace slay more than one of King Edward's nephews; and Johnie Armstrong claims the merit of slaying a sister's son of Henry VIII.

[89]

It is impossible to pass over this curious list of Scottish romances without a note; to do any justice to the subject would require an essay.—*Raf Coilyear* is said to have been printed by Lekprevik, in 1572; but no copy of the edition is known to exist, and the hero is forgotten, even by popular tradition.

John the Reif, as well as the former personage, is mentioned by Dunbar, in one of his poems, where he stiles mean persons,

Kyne of Rauf Colyard, and Johne the Reif.

They seem to have been robbers: Lord Hailes conjectured John the Reif to be the same with Johnie Armstrong; but, surely, not with his usual accuracy; for the *Palice of Honour* was printed twenty-eight years before Johnie's execution. John the Reif is mentioned by Lindesay, in his tragedy of *Cardinal Beatoun*.

—disagysit, like John the Raif, he geid.—

Cowkilbeis Sow is a strange legend in the Bannatyne MSS.—See *Complaynt of Scotland*, p. 131.

How the wren came out of Ailsay.—The wren, I know not why, is often celebrated in Scottish song. The testament of the wren is still sung by the children, beginning,

The wren she lies in care's nest,
Wi' meikle dole and pyne.

This may be a modification of the ballad in the text.

[90]

Peirs Plowman is well known. Under the uncouth names of Gow Mac Morn, and of Fyn MacCowl, the admirers of Ossian are to recognise Gaul, the son of Morni, and Fingal himself; *heu quantum mutatus ab illo!*

To illustrate the familiar character of *Robin Hood*, would be an insult to my readers. But they may be less acquainted with *Gilbert with the White Hand*, one of his brave followers. He is mentioned in the oldest legend of that outlaw; Ritson's *Robin Hood*, p. 52.

Thryes Robin shot about,
And alway he slist the wand,

And so dyde good *Gylberte*
With the White Hand.

Hay of Nachton I take to be the knight, mentioned by Wintown, whose feats of war and travel may have become the subject of a romance, or ballad. He fought, in Flanders, under Alexander, Earl of Mar, in 1408, and is thus described;

Lord of the Nachtane, schire William,
Ane honest knycht, and of gud fame,
A travalit knycht lang before than.

And again, before an engagement,

The lord of Nachtane, schire William
The Hay, a knycht than of gud fame,
Mad schire Gilberte the Hay, knycht.

Cronykil, B. IX. c. 27.

I apprehend we should read "How Hay of Nachton *slew* in Madin Land." Perhaps Madin is a corruption for Maylin, or Milan Land.

[91]

Waled—Chosen.

[92]

North-Berwick, according to some reciters.

[93]

Edward had quartered the arms of Scotland with his own.

[94]

The two first lines are modern, to supply an imperfect stanza.

[95]

This sort of bravade seems to have been fashionable in those times: "Et avec drapeaux, et leurs chaperons, ils torchoient les murs à l'endroit, ou les pierres venoient frapper."—*Notice des Manuscrits de la Bibliotheque Nationale*.

[96]

The war-cries of their family.

[97]

By the terms of the peace betwixt England and Scotland, the Scottish were left at liberty to take service either with France or England, at their pleasure. Sir Robert Knolles, therefore, who commanded the expedition, referred to in the text, had under his command a hundred Scottish spears.

[98]

Assueton is a corruption for Swinton. Sir John Swinton, of Swinton, was a Scottish champion, noted for his courage and gigantic stature.

[99]

Their names were Robert Hart and Simon Glendinning. The chaplain was Richard Lundie, afterwards archdean of Aberdeen.—*Godscroft*. Hart, according to Wintown, was a knight. That historian says, no one knew how Douglas fell.

[100]

The banner of Douglas, upon this memorable occasion, was borne by his natural son, Archibald Douglas, ancestor of the family of Cavers, hereditary sheriffs of Teviotdale, amongst whose archives this glorious relique is still preserved. The earl, at his onset, is said to have charged his son to defend it to the last drop of his blood.

[101]

This prophecy occurs in the ballad as an ominous dream.

[102]

Hotspur, for his ransom, built the castle of Penoon, in Ayrshire, belonging to the family of Montgomery, now earls of Eglintoun.

[103]

Wintown assigns another cause for Douglas being carelessly armed.

"The erle Jamys was sa besy,
For til ordane his cumpany;
And on his Fays for to pas,
That reckles he of his armyng was;
The Erle of Mwrrawys Bassenet,
Thai sayd, at that tyme was feryhete."

Book VIII. Chap 7.

The circumstance of Douglas' omitting to put on his helmet, occurs in the ballad.

[104]

Fell.—Hide. Douglas insinuates, that Percy was rescued by his soldiers.

[105]

Fend.—Support.

[106]

Braken.—Fern.

[107]

Brow.

[108]

Southern, or English.

[109]

Afraid.

[110]

A ford on the Tweed, at the mouth of the Caddon Burn, near Yair.

[111]

In illustration of this position, the reader is referred to a long correspondence betwixt Lord Dacre and the Privy Council of England, in 1550, concerning one Sandye Armstrang, a partizan of England, and an inhabitant of the Debateable Land, who had threatened to become a Scottishman, if he was not protected by the English warden against the Lord Maxwell.—See *Introduction to Nicholson and Burn's History of Cumberland and Westmoreland*.

[112]

Whittram is a place in Liddesdale. It is mistaken by the noble editor for Whithern, in Galloway, as is Hartwesel (Haltwhistle, on the borders of Cumberland) for Twisel, a village on the English side of the Tweed, near Wark.

[113]

The foot of Liddisdale were the garrison of King James, in the castle of Hermitage, who assisted Carey on this occasion, as the Armstrongs were outlaws to both nations.

[114]

A haggis, (according to Burns, "the chieftain of the pudding-race,") is an olio, composed of the liver, heart, &c. of a sheep, minced down with oatmeal, onions, and spices, and boiled in the stomach of the animal, by way of bag. When the bag is cut, the contents, (if this savoury dish be well made) should spout out with the heated air. This will explain the allusion.

[115]

A Muffled Man means a person in disguise; a very necessary precaution for the guide's safety; for, could the outlaws have learned who played them this trick, beyond all doubt it must have cost him dear.

[116]

From this it would appear, that Carey, although his constant attendants in his fort consisted only of 200 horse, had, upon this occasion by the assistance, probably, of the English and Scottish royal garrisons, collected a much greater force.

[117]

There are now no trees in Liddesdale, except on the banks of the rivers, where they are protected from the sheep. But the stumps and fallen timber, which are every where found in the morasses, attest how well the country must have been wooded in former days.

[118]

The borderers, from their habits of life, were capable of most extraordinary exploits of this nature. In the year 1511, Sir Robert Ker of Cessford, warden of the middle marches of Scotland, was murdered at a border-meeting, by the bastard Heron, Starhead, and Lilburn. The English monarch delivered up Lilburn to justice in Scotland, but Heron and Starhead escaped. The latter chose his residence in the very centre of England, to baffle the vengeance of Ker's clan and followers. Two dependants of the deceased, called Tait, were deputed by Andrew Ker of Cessford to revenge his father's murder. They travelled through England in various disguises till they discovered the place of Starhead's retreat, murdered him in his bed, and brought his head in triumph to Edinburgh, where Ker caused it to be exposed at the cross. The bastard Heron would have shared the same fate, had he not spread abroad a report of his having died of the plague, and caused his funeral obsequies to be performed.—*Ridpath's History*, p. 481.—*See also Metrical Account of the Battle of Flodden, published by the Rev. Mr. Lambe.*

[119]

Kinnen—Rabbits.

[120]

Nicker—Neigh.

[121]

Gilt—*Gold*.

[122]

Dow—Able to.

[123]

Ganging—Going.

[124]

Lied—Lye.

[125]

Targats—Tassels.

[126]

Blink sae brawly—Glance so bravely.

[127]

Christopher.

[128]

Carped—Sung.

[129]

Cowt halter—Colt's halter.

[130]

Nicker and sneer—Neigh and snort.

[131]

Wad my hail fee—Bet my whole wages.

[132]

Fiend thing dought—Nothing could they do.

[133]

Ranshacked—Ransacked.

[134]

Gryming—Sprinkling.

[135]

Ca's—Calves.

[136]

Minnie—Mother.

[137]

Outspeckle.—Laughing-stock.

[138]

Toom—Empty.

[139]

Knapscap—Headpiece.

[140]

The Dinlay—is a mountain in Liddesdale.

[141]

Lourd—Rather.

[142]

Wudspurs—Hotspur, or Madspur.

[143]

Her ambassador at Edinburgh refused to lie in a bed of state which had been provided for him, till this "*oudious fact*" had been enquired into.—*Murden's State Papers*, Vol. II, p. 282.

[144]

Green—Long.

[145]

Weil beseen—Well appointed. The word occurs in *Morte Arthur*: "And when Sir Percival saw this, he hied him thither, "and found the ship covered with silke, more blacker than any beare; and therein was a gentlewoman, of great beautie, and she was richly *beseene*, that none might be better."

[146]

Lave—Remainder.

[147]

Palliones—Tents.

[148]

Cracking crouse—Talking big.

[149]

Rowes—Rolls.

[150]

Raxed him—Stretched himself up.

[151]

Red the cumber—Quell the tumult.

[152]

Cost—Signifies loss or risk.

[153]

Raise—Rose.

[154]

But, &c.—Till once his anger was up.

[155]

Genzie—Engine of war.

[156]

Flain—Arrows; hitherto absurdly printed *slain*.

[157]

Thirs—These are.

[158]

By—Besides.

[159]

The bishop is, in this last particular, rather inaccurate. Buccleuch was indeed delivered into England, but this was done in consequence of the judgment of commissioners of both nations, who met at Berwick this same year. And his delivery took place, less on account of the raid of Carlisle, than of a second exploit of the same nature, to be noticed hereafter.

[160]

Such traits of generosity illuminate the dark period of which we treat. Carey's conduct, on this occasion, almost atones for the cold and unfeeling policy with which he watched the closing moments of his benefactress, Elizabeth, impatient till remorse and sorrow should extort her last sigh, that he might lay the foundation of his future favour with her successor, by carrying him the first tidings of her death.—*Carey's Memoirs*, p. 172. *et sequen*. It would appear that Sir Robert Ker was soon afterwards committed to the custody of the archbishop of York; for there is extant a letter from that prelate to the lord-treasurer, desiring instructions about the mode of keeping this noble hostage. "I understand," saith he, "that the gentleman is wise and valiant, but somewhat haughty here, and resolute. I would pray your lordship, that I may have directions whether he may not go with his keeper in my company, to sermons; and whether he may not sometimes dine with the council, as the last hostages did; and, thirdly, whether he may sometimes be brought to sitting to the common-hall, where he may see how careful her majesty is that the poorest subject in her kingdom may have their right, and that her people seek remedy by law, and not by avenging themselves. Perhaps it may do him good as long as he liveth."—*Strype's Annals*, *ad annum*, 1597. It would appear, from this letter, that the treatment of the hostages was liberal; though one can hardly suppress a smile at the zeal of the good bishop for the conversion of the Scottish chieftain to a more christian mode of thinking than was common among the borderers of that day. The date is February 25. 1597, which is somewhat difficult to reconcile with those given by the Scottish historians—Another letter follows, stating, that Sir Robert, having been used to open air, prayed for more liberty for his health's sake, "offering his word, which it is said he doth chiefly regard, that he would be true prisoner."—*Strype, Ibid*.

[161]

Hostelrie—Inn.

[162]

Lawing—Reckoning.

[163]

Basnet—Helmet.

[164]

Curch—Coif.

[165]

Lightly—Set light by.

[166]

Low—Flame.

[167]

Splent on spauld—Armour on shoulder.

[168]

The name of a border tune.

[169]

Stear—Stir.

[170]

Soft—Light.

[171]

Fleyed—Frightened.

[172]

Maill—Rent.

[173]

Furs—Furrows.

[174]

Gie him his batts—Dismiss him with a beating.

[175]

Spaits—Torrents.

[176]

Caugers—Carriers.

[177]

Branks and brecham—Halter and cart-collar.

[178]

Mese—Soothe.

[179]

Cholerford brae—A ford upon the Tyne, above Hexham.

[180]

Fie—Predestined.

[181]

The original editor of the *Reliques of Ancient Poetry* has noticed the perfidy of this clan in another instance; the delivery of the banished Earl of Northumberland into the hands of the Scottish regent, by Hector of Harelaw, an Armstrong, with whom he had taken refuge.—*Reliques of*

Ancient Poetry, Vol. I. p. 283. This Hector of Harelaw seems to have been an Englishman, or under English assurance; for he is one of those, against whom bills were exhibited, by the Scottish commissioners, to the lord-bishop of Carlisle.—*Introduction to the History of Westmoreland and Cumberland*, p. 81. In the list of borderers, 1597, Hector of Harelaw, with the Griefs and Cuts of Harelaw, also figures as an inhabitant of the Debateable Land. It would appear, from a spirited invective in the Maitland MSS. against the regent, and those who delivered up the unfortunate earl to Elizabeth, that Hector had been guilty of this treachery, to redeem the pledge which had been exacted from him for his peaceable demeanour. The poet says, that the perfidy of Morton and Lochlevin was worse than even that of—

—the traitour Eckie of Harelaw,
That says he sould him to redeem his pledge;
Your deed is war, as all the world does know—
You nothing can but covatice alledge.

Pinkerton's Maitland Poems, Vol. II. p. 290.

Eckie is the contraction of Hector among the vulgar.

These little memoranda may serve still farther to illustrate the beautiful ballads, upon that subject, published in the *Reliques*.

[182]

Feres—Companions.

[183]

Earl of Whitfield—The editor does not know who is here meant.

[184]

Forfoughen—Quite fatigued.

[185]

Syke—Ditch.

[186]

Billy—Brother.

[187]

Unkensome—Unknown.

[188]

Beet—Abet, aid.

[189]

Mystery—Trade.—See Shakespeare.

[190]

The *Gold Twist* means the small gilded chains drawn across the chest of a war-horse, as a part of his caparaison.

[191]

Skeigh—Shy.

[192]

Weil—Eddy.

[193]

E'en—Even, put into comparison.

[194]

Nogs—Stakes.

[195]

Mergh—Marrow.

[196]

It is devoutly to be wished, that this Lammie (who was killed in the skirmish) may have been the same miscreant, who, in the day of Queen Mary's distress, "hes ensigne being of quhyt taffitae, had painted one it ye creuell murther of King Henry, and layed down before her majestie, at quhat time she presented herself as prisoner to ye lordis."—*Birrel's Diary*, June 15, 1567. It would be some satisfaction to know, that the grey hairs of this worthy personage did not go down to the grave in peace.

[197]

Inter accolas latrociniis famosos Scotos Buccleuchi clientes—fortissimos tributum et ferocissimos,—JOHNSTONI *Historia*, ed. Amstael, p. 182.

[198]

Bangisters—The prevailing party.

[199]

The proper spelling is *manred*. Thus, in the romance of *Florice and Blancheflour*—

"He wil falle to thi fot,
"And bicom thi man gif be mot;
"His *manred* thou schalt afonge,
"and the trewthe of his honde."

[200]

Cleveland applies the phrase in a very different manner, in treating of the assembly of Divines at Westminster, 1644:

And Selden is a *Galliard* by himself.
And wel might be; there's more divines in him.
Than in all this their Jewish Sanhedrim.

Skelton, in his railing poem against James IV., terms him *Sir Skyr Galyard*.

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